

MYANMAR (BURMA):

No end in sight for internal displacement crisis

A profile of the internal displacement situation

14 February, 2008

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Through its work, the Centre contributes to improving national and international capacities to protect and assist the millions of people around the globe who have been displaced within their own country as a result of conflicts or human rights violations.

At the request of the United Nations, the Geneva-based Centre runs an online database providing comprehensive information and analysis on internal displacement in some 50 countries.

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OVERVIEW

No end in sight for internal displacement crisis

Despite intense international focus on the human rights situation in Myanmar (Burma) in 2007, forced displacement, as a result of conflict and human rights violations, is ongoing in the country. The government remains the perpetrator of the majority of violations against civilians, particularly those belonging to ethnic minority groups. As a result of the abuses, hundreds of thousands of Burmese have been left with no choice but to migrate over the course of a number of years. As of October 2007, at least 500,000 people were estimated to be internally displaced in the country's eastern States. This is, however, a conservative figure as no information exists for several parts of the country.

At present, the displacement crisis is most acute in Karen State in the east of the country, where upwards of 40,000 civilians have been forced from their homes since late 2005 by the Burmese army's latest offensive against insurgent groups. The offensive, the most intense in ten years, has been characterised by the army attacking rural villages, forcibly moving people to relocation sites, and extending its authority over civilian populations. Humanitarian access to the most vulnerable IDP populations in the eastern part of the country remains very limited.

Forced displacement is also occurring in areas where armed conflict has come to an end and ceasefires have been negotiated between the central government and ethnic minority leaders. Communities in ceasefire areas continue to lose land due to confiscation by the army, as well as large development and infrastructure projects which, according to various reports, have involved forced evictions.

In 2007, the human rights situation in Myanmar (Burma) came under the scrutiny of the UN Security Council and the Human Rights Council, and both responded to the government's September crackdown against pro-democracy demonstrations. Neither body gave the same priority to the widespread and ongoing violations of the rights of ethnic minorities in the country. International and regional actors must respond to the humanitarian situation of the ethnic minority populations and hold the government accountable for its policies and practices which violate their rights, otherwise there is unlikely to be an end to the internal displacement crisis in the country.

Background

Intense international attention in 2007 focused on the crackdown against demonstrators during the largest anti-government protests since 1988. However, there continued to be significantly lower awareness of the many years of human rights violations against ethnic minorities in the country which have caused one of the worst internal displacement crises in Asia.

For decades, the country's Burman-controlled military government, currently known as the State Peace and Development Council (SPDC), has perpetrated violations against its citizens, particularly those belonging to the non-Burman ethnic minority groups that make up about 35 per cent of the country's population of 52 million. To a lesser extent, the ethnic groups fighting the government have also committed human rights abuses. These violations and abuses are especially widespread in the areas affected by the country's various internal armed conflicts (RI, June 2006, p.1).

Following independence from Britain in 1948, civil war broke out in Burma between the central government and various armed opposition groups. An insurgency by communist forces collapsed

in 1989, but a diverse collection of armed ethno-nationalist groups continued to fight for greater political autonomy. Today almost all the insurgent ethnic groups have accepted the existence of the “Union of Burma” and rather seek increased local authority within a federal state structure.

The government, however, still pursues an anti-federal goal of “national reconsolidation” including through repressive and often brutal policies in minority areas. Ethnic minority groups have accused successive governments not only of marginalising them economically, but also of depriving them of their social, cultural, and religious rights through a policy of “Burmanisation” (ICG, May 2003, p.1). The country’s ethnic conflict must be resolved if a lasting political solution is to be found. Nonetheless, the conflict between pro-democracy parties and the military government is better known and has received more international attention.

The repressive political conditions and deteriorating economy culminated in mass uprisings in 1988 and 2007. Pro-democracy campaigner Aung San Suu Kyi propelled the National League for Democracy to an election victory in 1990 but the party was prevented from taking power, and she has spent most of the years since 1989 under house arrest.

Following the removal of moderate leaders in 2004, the government has withdrawn into diplomatic isolation, moving its seat from Rangoon to the more inaccessible Naypidaw, and international efforts to initiate political change in the country have been largely without result. During and after the 2007 “Saffron Revolution” and its brutal suppression, the international community has shown renewed interest in attempting to resolve the longstanding political stalemate.

Causes of forced displacement and other movements

The army has been fighting ethnic insurgent groups along the country’s eastern border with Thailand for more than five decades. Government forces continue to target civilians using a counter-insurgency tactic known as the Four Cuts which aims to sever resistance groups’ links to local civilians and so block their access to food, funds, recruits and information. This approach aims to transform “black” rebel-held areas into “brown” contested areas and then into “white” government-held areas (RI, June 2006, p.5).

Under the Four Cuts, the army forces villagers living in “black” or “brown” zones to move to relocation sites in government-controlled areas, often with little or no warning. Following a “scorched earth” policy, the army attacks villagers, destroys houses and crops, plants landmines in fields and on paths, and shoots on sight those found returning to their homes. To escape the army, many villagers have gone into hiding in the jungle, some living there for years. Displaced civilians found hiding risk being identified as possible rebel supporters and subjected to human rights violations (CA, May 2004, p.5).

Since 1989, the SPDC has made ceasefire arrangements with 28 armed groups, who have retained their arms and in some cases still control extensive areas. The ceasefire agreements are all military accords rather than political settlements. They have not led to an end to displacement, and communities in ceasefire areas still continue to lose land, due to post-ceasefire militarisation and confiscation of civilian property by the army, as well as large economic, development and infrastructure projects which involve forced evictions and forced labour at construction sites (HRW, June 2005, p.55).

Development projects such as mine construction and hydroelectric dams are leading to the forcible displacement of communities without compensation. The army has used severe tactics in some cases to secure control over sites, with entire villages being relocated (KRW, November 2004, p.1).

The government has also carried out urban evictions and forcibly relocated at least half a million people in the 1980s and 1990s from around Rangoon and other cities to new satellite towns. Those displaced to the satellite towns were offered little compensation and were ordered to pay for their plots of land at the new locations (COHRE, October 2004, p.20). Since 2005, at least 10,000 local people have been uprooted due to construction of the new capital in Naypyidaw (South, February 2007, p.22).

The lack of any means to maintain a livelihood, as a result of government policy, is the primary cause of migration within and from the country. The main causes are ineffective government practices, insecurity of tenure, limited availability of productive land, and poor access to markets, often resulting in food insecurity (COHRE, November 2007, p.29).

Displacement in eastern States

According to the 2007 survey by the Thailand Burmese Border Consortium (TBBC), 273 infantry and light infantry battalions are active in the country's eastern States, more than 30 per cent of the army's complement. During the past year, around 76,000 people have been forced to leave their homes as a result of, or in order to avoid, the effects of armed conflict and associated human rights violations (TBBC, October 2007, p.2).

The TBBC previously reported that more than 3,000 villages had been destroyed, relocated or abandoned in the east between 1996 and 2006. According to the organisation, from 2006 to 2007, at least 167 more villages were displaced in their entirety. Although the Burmese government has long denied these accusations, satellite photos taken by the American Association for the Advancement of Science during 2007 supported claims of human rights violations, and provided evidence of burnt-out villages, an increasing military presence, and growing populations of displaced people (BBC News, 17 November 2007).

As of October 2007, at least 500,000 IDPs were estimated by the TBBC to be unable to return, resettle or reintegrate after being forced to leave their homes in eastern States. They included 295,000 people in temporary settlements or ceasefire areas administered by ethnic nationalities, an estimated 99,000 hiding from the army in areas most affected by ongoing conflict, and 109,000 villagers who had moved into designated relocation sites following SPDC eviction orders. During 2007, estimates of the number of IDPs in relocation sites decreased, while those of the number in ceasefire areas and hiding sites increased. The largest group of civilians in hiding in the east in 2007, approximately 30,800 people, were in Karen State's Papun district (TBBC, October 2007).

Forced migration in eastern States in 2007 was most concentrated in northern Karen State and eastern Pegu Division, where counter-insurgency operations displaced approximately 43,000 civilians. These operations, which began in late 2005, have led to the most intense military activity in ten years, and civilians in the districts of Toungoo, Papun and Nyaunglebin have been particularly hard hit. By attacking rural villages, upgrading and constructing new roads, forcibly relocating local populations to relocation sites, and establishing new army bases in Toungoo district, the SPDC has extended its authority over civilian communities (KHRG, May 2007, p.1).

Civilians in Karen State are also exploited for forced labour and have their money confiscated by the army and its proxy forces. Extortion by soldiers has served to redistribute wealth from agrarian farmers to the local military elite. In Toungoo district in 2007, men and women as old as 60 and children as young as 16 were engaged in forced labour without compensation (KHRG, May 2007, p.4). In March 2007, SPDC township administrations in Doooplaya district circulated a notice stressing that local officials could no longer demand certain forms of forced labour from civilians, but these notices have had little impact on the military perpetrators of forced labour, and the violations have led to many villagers becoming displaced (KHRG, October 2007, p.5).

In southern Shan State, where there are at least 163,000 IDPs, the SPDC has over the last year increased pressure on ethnic leaders, and on the civilian population, with militarisation and state-sponsored development projects displacing more people and contributing to further insecurity. Systematic human rights violations in 12 townships displaced over 15,000 people from their homes in 2007. In areas of Shan State where the compliance of ceasefire authorities had decreased, the army deployed more troops to maintain control. 2,500 civilians in a ceasefire territory administered by the United Wa State Army reportedly fled their homes to avoid harassment by government forces (TBBC, October 2007, p.32).

An estimated 81,000 IDPs were living in Karenni State as of October 2007. The majority were in conditions of absolute poverty in ceasefire areas administered by ethnic groups, but the most vulnerable were the 10,000 IDPs hiding from the SPDC and ceasefire party patrols in Shadaw, Pruso and Pasaung townships. Almost 5,000 villagers remained in eight relocation sites in 2007. Over 70,000 civilians from Mon State were estimated to be internally displaced in 2007, with the vast majority having moved to ceasefire areas in Ye township of Mon State, Kyain Seikkgyi township of Karen State and Yebyu township of Tenasserim Division. In Tenasserim Division, military rule resulted in approximately 61,000 villagers remaining as IDPs, including almost 2,000 people forced to leave their homes during 2007 (TBBC, October 2007).

Anti-personnel landmines deployed by the army and insurgent groups continue to fuel displacement in the east. The Burmese government is the only government in the world that used anti-personnel mines on a regular basis. Villagers and relief workers have recorded the army entering villages from which inhabitants had fled or been relocated and planting landmines to discourage return. The mines have reportedly been planted in essential sites such as plantations, storage barns and schools (HRW, December 2006). Given the intensity of conflict in Karen State, it is likely that the Karen National Liberation Army was the resistance group using mines most frequently between 2006 and 2007, although other groups such as the Karenni Army, the Democratic Karen Buddhist Army, and the Shan State Army-South also deployed anti-personnel mines in 2007 (LM, 2006).

Hundreds of thousands of people, after exhausting all coping mechanisms, have fled across the border into Thailand. Some have joined the estimated two million Burmese workers in Thailand, while others have claimed refugee status, and live in camps along the border (IRC, November 2006).

Displacement in other regions

In the western Arakan State, the government maintains its policy of persecuting the largely Muslim ethnic Rohingya population. The Rohingya, numbering roughly 800,000, are denied full Burmese citizenship and rendered stateless. They are frequently pressed into forced labour, denied access to medical care and education, and they face severe restrictions on their rights to travel and marry. A minor low-intensity armed conflict with associated human rights violations is ongoing between the army and an ethnic insurgent group. Civilians continue to flee within the State or to Bangladesh and other countries in the region. There are several hundred thousand repatriated and/or displaced Rohingya in Arakan State, including many who fled to Bangladesh in the early 1990s and were sent back. According to local sources, approximately 80,000 IDPs are in hiding or in temporary settlements in the jungles and mountainous areas of the State. IDPs in Arakan State have insufficient food and clothing, no schooling, and almost no international contact or support (COHRE, November 2007, p.58).

Arakan State hosts the largest gas project currently being developed in the country, at the offshore Shwe field. In 2006, the Burmese government signed an agreement with a Chinese state-owned company to supply natural gas from Arakan State to China via an overland pipeline.

The pipeline is expected to stretch from Arakan State and through Shan State into China's Yunnan province. Construction of the pipeline could lead to human rights violations such as land confiscation, forced labour and displacement in both states (SGB, January 2006, p.3).

In the western Chin State, SPDC militarisation and the activities of SPDC troops, including various abuses, have led to the migration of between 40,000 and 50,000 people, often across the border to India. There are a small number of IDPs in Paletwa township of southern Chin State, where Chin armed groups are active. In Sagaing Division, greater counter-insurgency cooperation between the Burmese and Indian armies against Naga ethnic insurgents on both sides of the border has displaced an unknown number of civilians since 2003 (COHRE, November 2007, p.58).

In the northern Kachin State, where a ceasefire has been in place between Kachin leaders and the Burmese government since 1994, communities continue to lose land due to post-ceasefire militarisation and confiscation of farm land by the army, mostly to build garrisons. Large-scale jade mining and agricultural projects have also displaced several thousand people in western Kachin State (HRW, June 2005, p.54).

Displacement due to livelihoods restrictions

In all rural areas, taxes and restrictions on economic activity have undermined human and food security, and contributed to people's decision to leave their homes. In order to extend the land used for agricultural production, the government introduced a "land reclamation plan" in the mid-1990s. In practice, however, existing farmland has been confiscated from local communities, particularly in minority-populated areas (COHRE, November 2007).

Since 2004, the government has forcibly promoted the nationwide cultivation of physic nut, a shrub whose toxic seeds are used to produce biodiesel. A quota of 500,000 acres has reportedly been set for each state and division in the country to plant the crop, and authorities carry out forced labour practices at some physic nut plots. The government is also believed to have agreed to lease seven million hectares of land in the east to Thai companies to grow sugar and cassava. These practices have caused widespread displacement (COHRE, November 2007).

Assistance and protection of IDPs

Government policies have directly and indirectly caused the majority of displacements in Myanmar (Burma) and the IDP issue has acquired political sensitivity. The government does not recognise the existence of IDPs and has no specific programmes to address their needs. Consequently, Burmese IDPs have no incentive to come forward and identify themselves to government agencies or the international community (RI, June 2006, p.10).

A majority of IDPs are living in government-controlled or ceasefire areas and some can be reached by agencies operating in the country. As they live alongside non-displaced people in peri-urban and rural groups, their humanitarian needs are similar to those of settled residents and relate primarily to lack of employment and income. Conditions for IDPs in these areas are believed to be considerably better than for those living in areas of armed conflict (RI, June 2006, p.10).

The IDPs who seek shelter in remote areas are at extreme risk, surviving on a diet of rice and wild vegetables. When searching for food or returning to destroyed villages to salvage rice or cooking pots, they are exposed to mines laid by SPDC troops. Malnutrition and a lack of shelter, especially in the rainy season, are other constant problems facing the IDPs in hiding (FMR 28, July 2007, p.46).

Healthcare, in particular, has remained inaccessible to many IDPs and serious medical concerns have long remained untreated. Every year thousands of civilians die in border areas during health emergencies or epidemics. Malaria is usually the major health problem, but illnesses such as tuberculosis, tetanus, typhoid, diarrhea, pneumonia, hepatitis and cholera are also a constant threat. Surveys of IDPs show that some in the remote areas have never even heard of HIV/AIDS even though the country hosts one of the most serious epidemics in all of Asia (DFID, July 2007, p.31).

Women IDPs in eastern States have been identified as a particularly vulnerable group with regard to sexual and reproductive health. A 2002-03 survey of households there found very high rates of maternal mortality, with 27 per cent of adult female deaths being pregnancy-related (DFID, July 2007, p.31).

Humanitarian support inside the country

Currently ten UN agencies and 48 international NGOs hold Memorandums of Understanding with the Burmese government. Between November 2003 and September 2004, the humanitarian space briefly expanded under the government of Prime Minister Khin Nyunt, who was forced from office in October 2004. Since then NGOs have had to carry out activities in an increasingly difficult climate. Restrictions imposed in 2006, although not fully implemented, include state officials accompanying UN and international NGO staff on all field trips and limitations on the employment of national staff (DFID, July 2007, p.19). Between 2005 and 2006, the Global Fund for HIV/AIDS, Malaria and Tuberculosis and Medecins Sans Frontieres-France made the decision to withdraw, citing restrictions on programme implementation and monitoring.

The government prevents UN agencies and NGOs from providing humanitarian assistance in the conflict and some ceasefire areas in the east. The ICRC was the only international organisation successful in gaining independent entry to ongoing conflict zones, but since 2005, its ability to carry out its protection and monitoring work in eastern States has been severely impacted, forcing it to close some field offices. In June 2007, the ICRC publicly denounced the government's violations of civilians' rights (BBC News, 29 June 2007).

Since 2004, UNHCR has had access to parts of Karen State, Mon State and Tenasserim Division in communities affected by displacement, including areas of potential return for Burmese refugees in Thailand. The agency acts as one of the UN interlocutors with local authorities and establishes partnerships with the few humanitarian NGOs active in the south-eastern areas. In 2005, UNHCR was able to map the activities of these NGOs and identify the particular vulnerabilities of the communities affected by displacement (UNHCR, 2007, p.3).

International organisations do not have access to more tightly-controlled IDP relocation sites. The affected communities rely on self-help initiatives undertaken by extended family and ethnic nationality networks mediated by local religious leaders, or on more systematic assistance provided by community-based organisations (CBOs) and local NGOs which have established low-profile aid programmes in some relocated sites and ceasefire areas (COHRE, November 2007, p.125).

In areas away from conflict and border zones, humanitarian agencies assist populations that include IDPs. Few international organisations in the country have programmes aimed specifically at IDPs, and because a large number of conflict-affected people have been displaced at some point, it is very difficult to distinguish IDPs from other vulnerable groups (DFID, July 2007, p.19).

The presence of representatives of international organisations has prevented some populations from being forcibly displaced and contributed to reductions in forced labour (RI, June 2006, p.16). Burmese civil society organisations have also had some success in engaging with authorities to

protect local communities, and many local NGOs and CBOs continue to find ways to work for local development, and build independent community networks (COHRE, November 2007, p.127).

Humanitarian support from Thailand

Since the early 1990s, Thailand-based teams from the Karen and other Burmese ethnic groups have travelled into the conflict zones to deliver emergency assistance including cash, food, and education services to the IDPs. Though this mode of delivery is not neutral, these cross-border initiatives have stood alone in delivering assistance to many extremely vulnerable groups. Sustained medical assistance is provided to some IDPs by Back Pack Health Worker Teams, each made up of three to five medical staff, who run an independent service from Thailand to provide health and emergency care, including amputations for mine casualties (LM, 2006).

Some of the cross-border aid groups go beyond the provision of relief, and record and document human rights abuses and undertake advocacy work to help build the capacity of opposition groups (DFID, 18 July 2007, p.27).

International political response

The humanitarian crisis and displacement in Myanmar (Burma) will carry on as long as the political situation remains unresolved. Various governments and international bodies have tried different tactics to break the political deadlock. Some have imposed comprehensive sanctions, others have opted for sanctions that permit humanitarian aid, and many nations still engage with the government.

Despite the UN General Assembly's and the Commission on Human Rights' adoption of at least 28 resolutions calling for national reconciliation and democratisation, and in spite of the "good offices" efforts undertaken by Secretary-General Kofi Annan, there had been little improvement in the political situation by 2005 (FIDH, 13 March, 2007). The SPDC was withdrawing further into diplomatic isolation; the Special Envoy of the Secretary General, Razali Ismail, had been denied entry to the country from 2004 onwards, while the Special Rapporteur on Myanmar, Paulo Sergio Pinheiro, had not been allowed in since 2003 (SCR, December 2005).

In December 2005, the UN Security Council held its first-ever briefing on the deteriorating situation in the country and its impact on the region. The briefing mentioned the large-scale internal displacement and the flow of refugees from the country. In September 2006, the country was formally voted onto the agenda of the Security Council, although in January 2007 the campaign for Security Council action suffered a setback when China and Russia vetoed a resolution calling for the restoration of democracy.

The Burmese government has come under renewed international pressure since the 2007 "Saffron Revolution". In October 2007, the Security Council adopted a Presidential Statement deploring the government's crackdown against protesters and calling for genuine dialogue for national reconciliation between the government, democracy movement leaders and ethnic groups (UNSC/PRST, 11 October 2007). This was the Council's first formal action on the country.

The UN Secretary-General's Special Adviser Ibrahim Gambari has made two trips to Rangoon since September 2007 for talks with the SPDC. Following his first trip, the government appointed a liaison minister to handle dialogue with Aung San Suu Kyi. However, prior to Gambari's second trip in November 2007, the government ordered UN Resident and Humanitarian Coordinator Charles Petrie to leave the country. The expulsion call followed an October statement issued by Petrie's office drawing attention to the deepening poverty in the country and linking this to the September demonstrations (FT, 2 November 2007).

The UN's Human Rights Council condemned the government's response to the October 2007 protests and urged an immediate investigation of the rights situation. After a gap of four years, the government once more allowed the Special Rapporteur on Myanmar entry in November 2007 to determine how many people had been killed or detained since the start of the crackdown.

In October, the largest aid donor, Japan, cancelled an educational grant of almost \$5 million in reaction to the killing of a Japanese journalist during the government's response to the demonstrations (CBC News, 16 October 2007).

The following month, leaders at the Association of Southeast Asian Nations (ASEAN) summit bent to the demands of Burmese Prime Minister Thein Sein in refusing to allow Ibrahim Gambari to brief members and their dialogue partners on the government's crackdown on protesters. They also signed a charter which confirmed their support for non-interference in the internal affairs of member states (AFP, 23 November 2007). Although Myanmar (Burma) joined ASEAN a decade ago, the membership has had little impact on human rights, democratisation and governance in the country (ISN Security Watch, November 2007).

Many analysts believe that those with the most potential influence over the SPDC are its counterparts in neighbouring China and India. Currently, both countries remain generally supportive of the government. China is believed to be the largest foreign investor in Burma, and its growing role is cited by Indian officials as justification for their increasing military, political and trade agreements with Myanmar (Burma) (CRS, October 2007, p.12). At present, resolution of the political crisis – and the ethnic conflict – appears to be distant.

CAUSES AND BACKGROUND

Political Background

September 2007 demonstrations and political developments (February 2008)

- In September 2007, the government cracked down on the largest peaceful demonstrations in Burma since 1988
- The crackdown on the demonstrations led to at least ten deaths and over 4,000 imprisonments
- Under pressure from the international community, Burma's military government appointed a liaison minister to communicate with Aung San Suu Kyi who remains under house arrest

HRW, December 2007, p. 5:

"In August and September 2007, Burmese democracy activists, monks and ordinary people took to the streets of Rangoon and elsewhere to peacefully challenge nearly two decades of dictatorial rule and economic mismanagement by Burma's ruling generals. While opposition to the military government is widespread in Burma, and small acts of resistance are an everyday occurrence, military repression is so systematic that such sentiment rarely is able to burst into public view; the last comparable public uprising was in August 1988. As in 1988, the generals responded this time with a brutal and bloody crackdown, leaving Burma's population once again struggling for a voice."

USDOS, Burma briefer, October 2007:

"The ruling military junta resorted to violence rather than engaging in a dialogue with pro-democracy leaders and ethnic minority groups. The crackdown against monks and unarmed civilian demonstrators resulted in ten deaths and the imprisonment of some 4,000, according to the regime. Diplomatic sources, however, state that the numbers of those killed, injured and imprisoned are much higher than those officially reported."

IHT, October 25, 2007:

"Detained pro-democracy leader Aung San Suu Kyi met with a newly appointed Myanmar government official, part of a U.N.-brokered attempt to nudge her and the military junta toward reconciliation. [...] It was the first known meeting between Suu Kyi — under house arrest for 12 of the last 18 years — and "minister for relations" retired major general Aung Kyi, who was appointed to the post on Oct. 8 to hold talks with her. [...] Appointing a liaison officer had been suggested by U.N. special envoy Ibrahim Gambari during his Sept. 29-Oct. 2 visit to Myanmar, state media said."

International political response (February 2008)

- In response to the crackdowns, the UN Security Council issued a statement on Burma deploring the violence
- The Human Rights Council strongly criticized the events in Burma
- The Special Rapporteur on Burma was permitted by Burmese authorities to undertake a fact-finding mission

- The UN Resident Coordinator was expelled from Burma following a statement critical of the crackdown and the deteriorating humanitarian situation

ICG, January 2008, p. 5-8:

"The international community reacted to the escalating protests by calling on the authorities to show restraint. When this was ignored, condemnation and urgent calls for a stop to the violence were near universal. In addition to harsh Western criticism, Singapore on 27 September 2007 made an unprecedented statement on behalf of the Association of Southeast Asian Nations (ASEAN), expressing "revulsion" over the violence against the monks. China, too, made it clear that it wanted a peaceful resolution to the crisis. Significant differences, however, remain between the West and Asia, as well as within the two regions, over

how to move forward. The unity of disapproval of the crackdown paved the way for a presidential statement from the UN Security Council – the first ever concrete action by a body which has been hobbled by disagreements among its five permanent members (P5) – as well as a consensus resolution by the new UN Human Rights Council, which includes China. Both statements strongly deplored violence against

peaceful protesters and called for the release of political detainees and dialogue on national reconciliation among all concerned parties. Senior international human rights officials echoed these calls, as did numerous government leaders, parliamentarians, campaign groups and celebrities. The international community has also come together in support of the UN Secretary-General's good offices, led by his special adviser, Ibrahim Gambari."

[...]

The Human Rights Council also reacted strongly to the crackdown. During its fifth special session, on 2 October 2007, it adopted a consensus resolution strongly deploring "the continued violent repression of peaceful demonstrations", requesting the special rapporteur on the situation of human rights in Myanmar, Paulo Sergio Pinheiro, to seek "an urgent visit to Myanmar" to assess "the current human rights situation" and urging Myanmar to cooperate with him. Pinheiro subsequently was given access to Myanmar for the first time in four years, visiting for five days, 11-15 November. His report to the Human Rights Council on 11 December detailed the course of the mass protests, as well as the government crackdown, and called on the government to take a series of immediate and transitional measures to alleviate the human rights situation.

[...]

The UN Country Team in Myanmar issued a strong statement, urging the government to heed the call of the

people for urgent measures to address the deteriorating socio-economic situation. It highlighted the social indicators, called on the government to increase expenditure on the social sector and improve the operating environment for humanitarian organisations and urged donors to "significantly [increase] international assistance to address the needs of the poor". Following this and other statements critical of both the September crackdown and the deteriorating humanitarian situation, then UN Resident Coordinator Charles Petrie, was expelled from the country. No replacement has been agreed upon."

Ethnic minorities and developments with the National Convention (February 2008)

- Burma's political conflict will not be resolved without a tri-partite solution, involving the military, pro-democracy parties, and the ethnic nationalities
- The only political process in Burma is the National Convention that has been ongoing since 1993
- The National Convention concluded in September 2007 with no written constitution and no political reform

- The Convention lacks legitimacy and the participation of the main Burmese opposition party, but has included ethnic nationality representatives from ceasefire groups.
- Representatives from ceasefire groups have made a joint submission to the Convention calling for a federal union under ethnic or national democracy
- According to some actors, even though the constitution will create a deeply flawed political environment, any constitution is better than being ruled by military decree

MRG, 2002, p. 4:

" [...] leading figures on all sides of the country are aware that ethnic minority issues are an equally vital element in what the United Nations (UN) has embraced as the need for 'tri-partite' solutions (i.e. between the military government, NLD and ethnic nationality parties). Far from being a marginal or remote borderland question, Burma's troubled history has repeatedly demonstrated that ethnic rights and conflict resolution are at the centre of challenges facing the country today. Not only do minority peoples make up an estimated third of the population, but it is in ethnic minority areas that many of the most acute political and humanitarian crises exist. This, in turn, has fuelled the debilitating cycle of conflict, militarization and economic malaise that has long needed to be addressed if Burma is ever to progress as a modern nation state."

MRG, 2007:

"In 1993 to attract international loans and humanitarian assistance the SPDC took steps to initiate reform. This came through the 'seven point road map for national reconciliation and democratic transition' which would include the drawing up of a new constitution through a National Convention, and moves toward greater participation in the global economy."

HRW, September 2007:

"The National Convention began in 1993 and has met haphazardly for over a decade, even failing to meet at all between 1996 and 2003. The convention followed an election in 1990 that had been overwhelmingly won by a pro-democracy party, the National League for Democracy [...] The convention has still not produced a written constitution. The State Peace and Development Council (SPDC) has drawn up a list of "Fundamental Principles" and "Detailed Basic Principles" that will serve as the basis of a future constitution. Some of the clauses in the "Principles" are those designed to ensure the continued primacy of the military in Burmese politics."

COHRE, November 2007, p. 42:

"Although the Government handpicked most of the one thousand-plus convention delegates, they included over one hundred representatives from twenty-eight ceasefire groups. These were a mixed bunch, which enjoyed varying degrees of legitimacy, and represented only one sector of the ethnic nationalist constituency. Nevertheless, the ceasefire groups developed coherent positions on several key issues."

In June 2004, representatives from thirteen ceasefire groups made a joint submission to the Convention outlining their main demands. These included a call for state governments to be granted significant legislative and administrative powers, a proposal that all residual powers lie at the state level (rather than with central government), and demands for the formation of local ethnic security forces (a new role for the ceasefire armies). Crucially, the document called for a federal union of Burma, under the rubric of 'ethnic or national democracy'.

The ceasefire groups were informed that their proposals would not be included in the draft Constitution (which some participants suspect has already been written by the SPDC). Nevertheless, in articulating their demands, the groups demonstrated the coherence and determination of the ethno-nationalist constituency, which has for so long been side-lined in discussions of Burma's political and constitutional future.

[...] it seems likely that at least some of the ex-CPB ceasefire groups (such as the 20 000 strong United Wa State Army) will be granted at least partial autonomy under the new Constitution. Furthermore, although it will create a deeply flawed political environment, some actors (including for example, some KIO leaders) consider that any constitution for Burma is better than continued rule by military decree, and that pro-democracy and civil society forces will inevitably have to work within a constrained constitutional setting for some time to come."

Political developments (March 2007)

- Despite a seven-step "roadmap" for constitutional and political reform announced in August 2003, most observers say there is a political deadlock and that the situation worsened during 2006
- In October 2004, Prime Minister General Khin Nyunt was removed from power and replaced by the hardline SPDC Secretary-General Soe Win
- In May 2004, the government convened the National Convention in order to draft a new Constitution, but did not involve most political parties, including the NLD - the process has stalled
- Several ministries have been relocated to a "command and control centre" near Pinyinmana, in southern Mandalay Division

HRW, 2006 report:

"Burma's international isolation deepened during 2006 as the authoritarian military government, the State Peace and Development Council (SPDC), continued to restrict basic rights and freedoms and waged brutal counterinsurgency operations against ethnic minorities. The democratic movement inside the country remained suppressed, and Daw Aung San Suu Kyi and other political activists continued to be detained or imprisoned. International efforts to foster change in Burma were thwarted by the SPDC and sympathetic neighboring governments.

These regressions were epitomized by the SPDC's move in November 2005 to a new "administrative capitol" called Nay Pyi Taw, 300 kilometers north of Rangoon and deep in the interior. The regime relocated key ministries and thousands of public servants to the purpose-built city during 2006, and notified foreign embassies that they could begin voluntary relocation during 2007. No official reason was given for the surprise move, although the main factors appear to include concerns over possible civilian protests in Rangoon, foreign criticism of the SPDC, a fear of a foreign military intervention, and the need to locate the SPDC more centrally to direct its military campaigns against ethnic insurgencies along the eastern border. Forced labor was used in building the capitol, and many public servants were given no choice over moving there.

[...]

There was no progress in 2006 on national reconciliation or the 2003 "road map" for a transition to democracy. In May, National League for Democracy (NLD) leader Daw Aung San Suu Kyi's detention was extended by another year despite continuing international calls for her release. This marks her eleventh year under house arrest, where she is held in solitary confinement and denied most visitors, newspapers, telephone, or correspondence."

UNCHR, 27 February 2007:

"22. In the past two years, the reform process proposed in the "seven-point road map for national reconciliation and democratic transition" - whose potential for political transition the Special Rapporteur had recognized at the outset - has been strictly limited and delineated. The work of the National Convention has been adversely affected by this development. First convened in 1993, the National Convention was adjourned in May 1996 until it was reconvened

for an eight-week period from 17 May to 9 July 2004. Having again been suspended for a further nine months following its 17 February-31 March 2005 session, the National Convention reconvened on 5 December 2005. On 31 January 2006, after having met for nearly two months without significant progress, the National Convention adjourned once more. It resumed its activities on 10 October and recessed on 29 December 2006 after more than 10 weeks of deliberations which were not genuinely open to all political parties and ethnic groups. The Special Rapporteur remains convinced that the announcement of a timetable for the implementation of the road map would be a clear demonstration of a commitment to the realization of a political transition."

USDOS, 6 March 2006:

"The government's human rights record worsened during the year [2006]. The regime continued to abridge the right of citizens to change their government. The government detained five leaders of the 88 Generation Students prodemocracy activists. The government refused to allow the International Committee of the Red Cross (ICRC) to visit prisoners privately. The army increased attacks on ethnic minority villagers in Bago Division and Karen State designed to drive them from their traditional land. In addition, the government continued to commit other serious abuses, including extrajudicial killings, custodial deaths, disappearances, rape, and torture. The government abused prisoners and detainees, held persons in harsh and life threatening conditions, routinely used incommunicado detention, and imprisoned citizens arbitrarily for political motives. National League for Democracy (NLD) General Secretary Aung San Suu Kyi and NLD Vice Chairman Tin Oo remained under house arrest. Governmental authorities routinely infringed on citizens' privacy and resorted more frequently to forced relocations. The government restricted freedom of speech, press, assembly, association, religion, and movement. The government did not allow domestic human rights nongovernmental organizations (NGOs) to function independently, and international NGOs encountered a hostile environment. Violence and societal discrimination against women continued, as did forced recruitment of child soldiers, discrimination against ethnic minorities, and trafficking in persons, particularly of women and girls. Workers rights remained restricted, and forced labor, including that of children, also persisted.

Ethnic armed groups allegedly committed human rights abuses, including forced labor, although reportedly to a much lesser extent than the government. Some cease fire groups also reportedly committed abuses, including forced relocation of villagers in their home regions. Armed insurgent groups and cease fire groups also practiced forced conscription of child soldiers."

Ethnic groups demands for larger autonomy were excluded from the agenda of the National Convention:

HRW, June 2005, p. 18:

"Ethnic nationality groups have sought to advance their agenda politically as well as militarily. Although most of the 1,076 delegates to the 2003 National Convention were handpicked by the SPDC, they included over one hundred representatives from armed ethnic nationality groups that have concluded ceasefire agreements with Rangoon, such as the Kachin Independence Organization (KIO) and New Mon State Party (NMSP). Despite their reservations about the process, most groups apparently attended the convention in good faith in the hope of registering their aspirations on the national political agenda and using the ceasefire agreements to address some of the key issues that have caused armed conflict in Burma for over five decades.

Although demands varied to some extent, there was general agreement among them to press for granting states more authority, transforming ceasefire armies into local security forces, and, most importantly, establishing a federal union of Burma, under the rubric of "ethnic or national democracy." In expressing their concerns on the national political stage, ethnic groups have made it harder for the international community, while pursuing the resolution of political issues in Rangoon, namely the restoration of multiparty democracy in Burma, to ignore the "ethnic question."

However, the convention's Convening Work Committee refused to put the proposals of the ethnic groups on the agenda, claiming they fell outside the National Convention's current remit.[...] The ceasefire groups were told that their proposal would be submitted directly to the Prime Minister, General Khin Nyunt, yet his ouster in October 2004 means that the proposals remain in limbo."

1990 onwards: the military regime seeks ceasefires, but tightens its grip (2006)

- The government has concluded 17 ceasefire agreements with various armed groups
- While human rights abuses still take place in ceasefire areas, the situation is considerably better than in areas not covered by such agreements
- Nearly two dozen armed opposition groups are still active in pockets around the country's remote border regions, the two largest being the Shan State Army South (SSA-S) and the Karen National Liberation Army (KNLA)
- Clashes between the SPDC and KNU, as well as other armed ethnic groups, intensified after the ousting of Khin Nyunt in October 2004
- Peace talks between the government and the Karen National Union (KNU) stalled in 2005
- The pressure on ceasefire groups has increased and conflict and human rights abuses escalated in some areas

During the 1990s, the Burmese government began to seek ceasefire agreements with insurgent armies:

Christian Aid May 2004:

"The 1988 pro-democracy uprising and 1990 election in Burma marked a change. Following the 1990 election, which saw the National League for Democracy under Aung San Suu Kyi win a landslide victory, the military heightened its crackdown on the pro-democracy movement. Although thousands of activists fled to ethnic minority areas and fought alongside various insurgent groups, these groups have progressively weakened. In 1989, the CPB, one of the strongest armed groups, collapsed and split into a number of different ethnic minority armies, including the United Wa State Army (UWSA). At the same time, the Burmese government began to seek ceasefires with ethnic minority armies.

[...]

The main ethnic groups with long-standing ceasefire agreements are the UWSA in 1989, the Kachin Independence Organisation since 1994, and the New Mon State Party since 1995. The Democratic Karen Buddhist Army (DKBA), which split from the Karen National Union in 1994, not only agreed a ceasefire with the government but now fights as allies of the Tatmadaw in Karen state. There are also seven other groups in Shan state and two in Kachin which have signed ceasefires."

Earthrights October 2003:

"In 1997, the SLORC was reorganized and changed its name to the State Peace and Development Council (SPDC). By this point, twenty-three groups had either surrendered or entered into different cease-fire agreements with the military regime

[...]

Nearly two dozen armed opposition groups, however, are still active in pockets around the country's remote border regions, the two largest being the Shan State Army South (SSA-S) and the Karen National Liberation Army (KNLA).[...]

Most of the cease-fire groups were allowed to retain their weapons, control some territory, and in some cases actually receive business concessions from Rangoon. In recent years, several of these cease-fire groups, most notably the United Wa State Army (UWSA) and Democratic Kayin Buddhist Army (DKBA), have become significant fighting forces in their own right and frequently

act as proxies for the regime. Other groups, such as the Kachin Independence Organization (KIO) and the New Mon State Party (NMSP) have sought to carry out a more difficult balancing act: continuing their demands for regional autonomy while granting favorable business deals to the same powerful interests which allow them to manage their own affairs. These cease-fires did not constitute political agreements, however. Subsequent efforts by some cease-fire groups to conduct political negotiations with the SPDC have been completely unsuccessful and many of the issues which drove the insurgencies in the first place remain unresolved.[...] The re-arrest of Daw Aung San Suu Kyi in May 2003 following the violent aftermath of "Black Friday" has sent a powerful signal that this situation is extremely unlikely to change in the near future."

As of June 2005, 17 ceasefire agreements have been concluded with various armed groups . While human rights abuses still take place in ceasefire areas, the situation is considerably better than in areas not covered by such agreements:

HRW, June 2005, p. 24:

"Since 1989, ceasefire arrangements have been made with some twenty-eight armed ethnic nationality groups. The nature of the ceasefire agreements are not uniform, although in all cases the ex-insurgents have retained their arms and still control sometimes extensive blocks of territory (in recognition of the military situation on the ground). The ceasefires are not peace treaties, and generally lack all but the most rudimentary accommodation of the ex-insurgents' political and developmental demands. These agreements have been dismissed by some as benefiting vested interests in the military regime and insurgent hierarchies. Civilians in these 'ceasefire areas' still experience a wide range of problems.

However, in many cases there is also something of a peace dividend from the ceasefires. Human rights abuses, displacement, and livelihood issues are considerably less acute in ceasefire areas, so much so that the TBBC reports that the IDP population in those areas has increased, as IDPs move out of war zones and into ceasefire zones. While many violations continue, such as forced labor, land confiscation, and arbitrary taxation, in areas where ceasefires have held serious violations against the integrity of the person, such as extrajudicial killings and torture, have decreased."

TBBC, October 2004, pp.8-9:

"The Burma Army's negotiation of seventeen ceasefire agreements with various ethnic-nationalist forces reduced the scale of armed conflict in the 1990's. While these ceasefires have led to the establishment of special regions with some degree of administrative autonomy, broader political grievances and human rights abuses are yet to be addressed. Negotiating a ceasefire has proved easier than building peace and conditions in special administrative areas generally remain unsuitable for the return and resettlement of internally displaced persons. In the mid-1990', Rangoon's ceasefire with the Karenni National Progressive Party (KNPP) lasted only a few months while Khun Sa's surrender of the Mong Tai Army in exchange for an amnesty against drug-related charges led to the Shan States Army reforming around a more genuinely ethnic nationalist cause. The New Mon State Party's (NMSP's) ceasefire has been maintained, but over the past three years its authority has been challenged by Mon splinter groups forming to continue armed resistance."

During 2004, ceasefire talks between the KNU and the SPDC continued sporadically, but skirmishes between the two continued. Fighting between the army and the Shan armed opposition group, the Shan State Army-South (SSA-South), continued in south-eastern Shan State:

Amnesty International, annual report 2005:

"Ceasefire talks between the Karen National Union (KNU), a Karen armed opposition group, and the SPDC continued sporadically during the year but no ceasefire was agreed. Skirmishes between the KNU and the army continued in the Kayin State and Tanintharyi Division. Fighting between the army and the Shan armed opposition group, the Shan State Army-South (SSA-South), continued in south-eastern Shan State. The army expanded its presence in southern Ye township, Mon State, where the Hongsawati Party, a breakaway faction of the ceasefire group, the New Mon State Party (NMSP), had fought against the central government."

Asia Times, 24 March 2005:

"Khin Nyunt had been closely associated with the ceasefire deals signed with a number of ethnic groups. After his ousting, talks with the KNU appear to have unraveled, with a number of clashes between the SPDC and the Karen Army. KNU leaders attended fresh talks at Mawlamyine in Myanmar this month, but appear to have come away empty-handed. Meanwhile, the attack on Nya Moe has continued.

[...]

Some observers believe the attacks on the KNU and KNPP are directly linked to the fall of General Khin Nyunt. The theory goes that with Khin Nyunt out of the way, the even-more hardline generals in Yangon, such as SPDC vice chairman General Maung Aye, are free to seek a military solution to the country's "ethnic question" [...]. But while Khin Nyunt's downfall is a factor, the reasons for the attacks are more complex. One issue is the increased willingness of the KNPLF to join forces with the SPDC. According to Tu Reh, a senior KNPP leader, "We believe that the SPDC paid around 70 million Burmese kyat [US\$12.47 million] some time ago to the KNPLF, in exchange for their help to fight the KA. For a long time, they did nothing. But then, after Khin Nyunt was ousted, the ceasefire groups started to come under a lot of pressure. The generals in Rangoon [Yangon] have pushed them to take part in its National Convention, which is now working on a new constitution. The junta has made clear that, once the convention is over, the ceasefire groups will have to disarm."

HRW, June 2005, p. 20:

"In late April 2005 a battalion of the Shan State National Army (SSNA) ceasefire group was pressured by the SPDC into surrendering its weapons. Many observers viewed this as an escalation of the government's crackdown on Shan opposition groups.^[...] Then, on April 29, another northern Shan State-based ceasefire group, the Palaung State Liberation Army (PSLA), was also forced to surrender its weapons. This development may indicate that the government is intent on picking off ceasefire groups one-by-one, persuading the smaller groups and less well-organized groups to disarm first, before moving on to the better established Wa, Kachin, Mon, and other militias.^[...] In late May the SSNA leader, Colonel Sai Yi, took his three remaining battalions back to war with Rangoon, merging his forces with the Shan State Army-South (SSA-S), which had never agreed to a ceasefire.^[...] This was the first time in a decade that a ceasefire group had resumed armed conflict with the military government."

HRW, Annual Report 2005:

"In 2005 there was an increase in government military presence in certain ceasefire areas, and the political concerns of ethnic communities appear to have been left unaddressed in the deliberations of the National Convention.

Some ethnic groups are now reconsidering ceasefire agreements, while some ceasefires have already broken down. The arrests of several Shan leaders, including the President of the Shan State Peace Council (SSPC) and the Chairman of the Shan Nationalities League for Democracy (SNLD) in early 2005, led to the withdrawal of the Shan State National Army (SSNA) from its ceasefire agreement with the government. Peace talks between the government and the Karen National Union (KNU) also stalled in 2005 as Burmese forces continued to attack and destroy villages populated by Karen civilians or to uproot them from their homes to gain control over their

land. Brutal and protracted fighting between the military government and various ethnic groups seeking autonomy and freedom has been consistent and ongoing."

Since 1988, the Myanmar Government has launched massive military campaigns against ethnic insurgent groups (June 2005)

- Ethnic minority insurgents have been fighting for greater autonomy from the central Myanmar government for the past 50 years
- The military staged a coup d'etat in 1962 which isolated Burma from the rest of the world under the rule of the Burma Socialist Programme Party (BSPP)
- A 1988 pro-democracy uprising and the victory of National League for Democracy (NLD) in 1990 elections led the military to launch an intense crackdown on the pro-democracy movements and warfare against ethnic minority armies
- During the 1990s, the Burmese army swelled to 350,000 or 400,000 people

TBBC October 2004, p.8:

"Burma's post-independence history has been dominated by civil war between the central government and a plethora of armed opposition groups.[...] Political instability has been partly rooted in ideological conflict between a socialist State and communist resistance, and more recently between military rule and democratic opposition. However, the most protracted armed conflict has been between the Burman controlled State and a loose alliance of non-Burman ethnic nationalities who are fighting for self determination."

HRW, June 2005:

"Ethnic minorities constitute at least 35 percent, or eighteen million, of Burma's estimated fifty-two million people. Historically, the "ethnic question" has been at the heart of Burma's protracted political, social and humanitarian crises. Ethnic insurgent armies have operated along Burma's borders for decades in several areas since independence in 1948. However, by the early 1980s, the *Tatmadaw* had gained the upper hand against the ethnic rebels, and the areas under their control began to shrink. Increasing numbers of civilians became displaced by the fighting in eastern and northern Burma, and were no longer able to retreat to relative safety behind the "front lines" of the conflict and rebuild their villages. Instead, many had to flee across the border to Thailand, China, India, or Bangladesh.

[...] Burma's rebellions have long been driven by a mixture of genuine grievances and political-military-economic opportunism. Especially following the military take-over by General Ne Win in 1962, ethnic nationality elites have been excluded from meaningful participation in politics, while minority-populated border areas have experienced chronic underdevelopment, combined with often unsustainable natural resource extraction. Meanwhile, in its largely successful campaigns against a myriad of ethnic and communist insurgent organizations, the SPDC and its precursors have extended militarized control into previously semi-autonomous border areas, causing massive social, economic and human disruption—and greatly weakening the armed opposition.

Every Burmese regime since the establishment of military rule in 1962 has sought to suppress ethnic minorities and bring previously insurgent-dominated border areas under Rangoon's control. The strategy has had military and ethnic dimensions: not only would ethnic minority communities be broken up and their ability to resist weakened, but it would also allow for the spread of state-sponsored "Burmanization," in which minority cultures, histories, and political aspirations would be eliminated in favor of a "national" identity. The Burmese regimes in essence

view all ethnic minorities as a potential security threat [...], and, as a result, have “allowed security issues to come to dominate all aspects of government policymaking.”[...]

The *Tatmadaw*’s often brutal counter-insurgency strategies set the tone for coercive methods of dealing with dissent—whether armed revolt, nonviolent political dissent, or apolitical civilians—over the following decades.[...] The *Tatmadaw*’s “Four Cuts” (*pya ley pya*) counter-insurgency strategy, used since 1963, best embodies the state’s approach to suppressing ethnic minorities. A rebel group has been fully “cut” if it no longer has access to new recruits, intelligence, food, or finances. This approach aims to transform “black” (rebel-held) areas into “brown” (contested/free fire) areas, and then into “white” (government-held) areas.

In response, ethnic insurgent groups have positioned themselves as the defenders of minority populations, adopting guerrilla-style tactics. This has invited retaliation against the civilian population, against which the insurgents have been unable to defend villagers. As a result, rural Burma has now essentially been engaged in a half century of chronic, low-grade warfare. Human rights abuses are rife, most notably torture in detention and rape, and the conflict has further deepened the poverty of an already poor population. Traditional ways of life have been destroyed."

HRW September 1998, "Reasons for Flight":

"In the 1988-89 period, as the international community remained focused on the activities of the pro-democracy forces both within Burma and in Thailand, the Burmese military launched a major offensive against the combined ethnic and student forces in Karen- and Mon-held territory. The government apparently hoped that a display of military force against the ethnic minority armies would convince people of the need for a strong army to save the country from imminent disintegration. The SLORC vastly expanded the size of the army (from around 180,000 men under arms in 1988 to 340,000 in late 1993), and in 1990 purchased new weapons from China in a \$1.2 billion deal that included jet fighters, tanks, and naval patrol boats. The strengthened armed forces, assisted by thousands of civilians forced to work as porters (usually two porters for every soldier), launched major offensives against the armed ethnic opposition every year from 1989 onwards, even at times crossing into Thailand to attack from the rear."

HRW 2002 – My gun was as tall as me:

"In a letter to Human Rights Watch, the SPDC stated that as of May 2002 "[t]he current size of the Myanmar armed forces is 350,000."[...] Most Burma analysts and opposition representatives interviewed by Human Rights Watch placed the present figure higher, estimating that the armed forces as a whole number 400,000-450,000, with the army making up at least 350,000 or 400,000 of those numbers."

HREIB, September 2006:

"In 1988 there were 200,000 men serving in the *Tatmadaw*, in 2004 estimates were nearly 380,000 troops,¹ and it is reported that the SPDC wants to increase that number to 500,000."²

General causes of displacement

Causes of displacement in Burma (February 2008)

- Armed conflict and counter-insurgency operations are fueling displacement particularly in parts of eastern Burma

- In ceasefire areas displacement is being caused by acts of military occupation and land confiscation by the army, including in context of natural resource extraction
- In remote and under-developed regions of Burma, displacement due to livelihoods restrictions is being caused by ineffective government policies and practices
- Urban development schemes by the government have also displaced large numbers of people

COHRE, November 2007, p. 29:

"Three broad, 'ideal types' can be identified within the spectrum of forced migration in Burma. These 'types' are defined according to the root causes of population movement: armed conflict; State-society conflict (man-made disasters, including military occupation and 'development'); and livelihoods vulnerability (including natural disasters).

Type 1: Armed conflict-induced displacement either as a direct consequence of fighting and counter-insurgency operations (e.g. forced relocation), or because armed conflict has directly undermined human and food security. Type 1 displacement is linked to severe human rights abuses across Karen State, in eastern Tenasserim Division, southern Mon State, southern and eastern Karenni (Kayah) State, southern Shan State, and parts of Chin State and Sagaing Division. A certain amount of quantitative data is available for Type 1 IDPs in eastern Burma.

Type 2: Military occupation - and 'development'- induced (state-society conflict-induced) displacement: generally caused, post-armed conflict, by land confiscation by the *Tatmadaw* or other armed groups, including in the context of natural resource extraction (e.g. logging and mining); displacement due to infrastructure construction (e.g. roads, bridges, airports); also forced migration as a product of predatory taxation, forced labour and other abuses. While this form of displacement is characterised by the use of force, it is not the result of outright armed conflict. All of the border states and divisions are affected by militarisation and/or 'development'-induced displacement. This includes Arakan (Rakhine) and Kachin States, as well as a number of urban areas, (including displacement in the context of tourism development and 'urban renewal'). Both displacement types are products of conflict: Type 1 is directly caused by armed conflict; Type 2 is caused by latent conflict, or the threat of the use of force. As such, they constitute forced migration, and cause internal displacement (as defined in the Guiding Principles).

Type 3: Livelihoods vulnerability-induced displacement is the primary form of internal and external migration in and from Burma (and many other developing countries). The main causes are inappropriate government policies and practices, limited availability of productive land, and poor access to markets, resulting in food insecurity; lack of education and health services; plus stresses associated with transition to a cash economy."

COHRE, October 2004, p. 20:

"Since 1989, the military junta has followed their 'beautification' program in Rangoon and other cities forcefully relocating and inducing voluntary relocation of residents to new satellite towns. About half a million people were moved to ten satellite cities around Rangoon in the 1990s."

General causes of displacement in Burma (February 2007)

South, February 2007:

"[...] internal displacement in Burma is not only caused by armed conflict in the insurgent-prone eastern borderlands. While the most acutely vulnerable internally displaced persons (IDPs) do live in those few areas of the country still affected by significant levels of armed conflict, the phenomenon of forced migration is more complex and widespread – the product of decades of mis-governance by the militarized state."

RI, June 2006:

"In many cases, villagers' livelihoods have been affected so severely by abuses such as forced labor that they have had little choice but to migrate within Burma or to a neighboring country. Food insecurity, loss of livelihood, and lack of access to basic services are likely the most widespread and chronic causes of forced displacement in Burma."

Land confiscation is widespread (February 2007)

- Access to and control over land and natural resources is a central mean for the government to control the population
- A large-scale and effectively arbitrary land confiscation policy prevails throughout the country
- There is increasing recognition among human rights, humanitarian and development groups of the need to document issues related to land and natural resource management in Burma

UNGA, 12 February 2007, para:

"60. Access to and control over land and natural resources has long been central to the political economy of Myanmar. In many ethnic minority-populated areas, repeated incidents of forced displacement - interspersed with occasional periods of relative stability - have been a fact of life for generations. Some 75 per cent of the population is engaged in agriculture (including fisheries, forestry and livestock), which accounts for 40 per cent of the gross domestic product.

Land and natural resource issues therefore lie at the heart of livelihoods in Myanmar.

61. A large-scale and effectively arbitrary land confiscation policy prevails throughout the country. These confiscations appear to have several aims, including relocating civilian populations deemed to be sympathetic to the armed opposition; anchoring a military presence in disputed areas through the deployment or support of new Army battalions; opening the way for infrastructure development projects, including the Lawpita dam, the three proposed Salween dams and the Day Loh dam in Toungoo District; the extraction of natural resources, notably offshore gas; and providing various interest groups, including the military and foreign groups, with business opportunities, e.g. economic concessions, including for logging and mining. This policy has led to numerous forced evictions, relocations and resettlements, especially in rural areas but also in urban areas, most notably in connection with the move of the capital from Yangon to Pyinmana.

62. The Land Nationalization Act of 26 October 1953 confers land ownership on the State. Legal practice in Myanmar today generally refers to this Law, which recognizes some private ownership of agricultural land, although it restricts land sales or transfers. However, the Law allows the State to confiscate land that is left fallow. The current legislation on land offers little protection to farmers. In addition, victims of land confiscations are not likely to lodge complaints because of fear of reprisals and lack of confidence in the judiciary.

63. The Special Rapporteur is not aware of any specific provisions of the draft Constitution which would provide for secure land and housing rights of citizens, protect the rights to fair and just compensation as a result of legal or illegal land or property expropriation, or guarantee traditional practices of ethnic minorities in relation to land and natural resource management, such as collective property rights and swidden agriculture (an important element of sustainable livelihood strategies).

64. The Special Rapporteur views the ongoing large-scale confiscation of land as a matter of grave concern that will continue to impact dramatically on the political and economic stability of the country if it is not addressed. The Special Rapporteur notes the increasing recognition among human rights, humanitarian and development groups of the need to document issues related to land and natural resource management in Myanmar.

65. The Special Rapporteur believes there is a need to recognize that Myanmar's ethnic nationalities enjoy a special relationship with the land. The issue of housing, land and property

rights in Myanmar is inextricably linked to the struggle for justice and democracy in the country. For ethnic minorities, this includes the right to reside on their ancestral land and to participate in decisions regarding its use.

66. Protection from land confiscation depends on settlement of the conflicts which have wracked the country for more than half a century. Unfortunately, efforts at conflict resolution have thus far met with only very limited success. Nevertheless, some inspiring projects have been implemented by civil society groups in Myanmar. These examples show that it is not necessary to wait for fundamental democratic reform before addressing the issue of land confiscation and paving the way to transitional justice."

Development induced displacement

Construction of gas pipeline and dams could contribute to displacement (February 2008)

- Construction of a pipeline from Shwe gas fields off the coast of Burma to China could lead to human rights violations including forced displacement
- The proposed Tasang Dam in southern Shan State could lead to forced relocations and the flooding of 50 former villages

HRW, March 2007:

"Major deposits of natural gas have been discovered off the coast of Arakan State in western Burma. One of the gas fields, known as Shwe (golden), is being developed by a consortium of South Korean and Indian firms, in partnership with the Burmese military government, the SPDC. Energy analysts estimate that Burma may have the largest natural gas deposits in Southeast Asia. Natural gas exports are now Burma's main source of foreign exchange. [...] Based on experience from previous oil and gas projects in Burma, Human Rights Watch expressed concern that the proposed construction of overland pipelines to transport the gas will involve the use of forced labor, and result in illegal land confiscation, forced displacement, and unnecessary use of force against villagers. Revenue from gas sales would also serve to entrench the brutal military rule in the country. Because of these well-founded concerns, Human Rights Watch urged companies with interests in Burma's oil and gas deposits to suspend activity until they can credibly demonstrate that their projects can be carried out without abusing human rights.

The likelihood of major pipeline construction has sparked human rights concerns. Persecution against Arakanese civilians and Muslim Rohingya minorities by the Burmese military has been occurring for decades. Illegal land confiscation by the army and the government-controlled Union Solidarity and Development Association (USDA) is systematic and often closely tied to infrastructure projects. Some groups have reported that villages in Arakan State have already begun to experience forced relocations, forced labor and other abuses by troops whom they allege are expanding their presence in preparation for pipeline construction."

COHRE, November 2007, p. 87:

"A series of secretive agreements between the Thai and Burmese Governments, and the Electricity Generating Authority of Thailand (EGAT), culminated in a December 2005 Memorandum of Understanding, to build four mega-dams (Tasang, Wei Gyi, Dar Gwin and Htut Gyi) on the Salween (Thanlwin) River, and one on the Tenasserim River. Environment Impact Assessments on the planned dams have not been released to the public, and at no time in the agreement process were people at the proposed dam sites consulted, or even informed.

The proposed 230-80 metre high, 7110 megawatt, US\$ 6 billion Tasang Dam, in southern Shan State, on the Salween 53 km west of Mongton, will be the largest dam in Southeast Asia. Following a MoU agreed to in April 2006, the dam is in the early stages of construction by Thailand's MDX Public Company Limited. Villages in the area around the dam site (and elsewhere in central/southern Shan State) were subject to extensive and well-documented bouts of forced relocation in the period 1996-98, when about 300,000 people (56,000 families) were forced to move to relocation sites, or flee; many have never been allowed to return. If the Tasang Dam is completed, about 50 former villages may be flooded. In the meantime, companies connected to the *Tatmadaw* and local pro-Government militia continue to log out large tracts of forest in and around the dam area."

Development projects lead to forced relocation and forced labour (October 2006)

- Forced displacement due to development projects such as road building, the construction of mines and irrigation systems is alarmingly common, using IDPs as forced labourers
- Commercial agriculture has intensified during the past year
- The Border Areas Development Program primarily facilitated the militarization of border areas, bringing remote, previously semi-autonomous regions under centralized state control
- In the cases of large scale hydro-electric projects proposed for the Salween River in Shan and Karen state, SPDC troops have forcibly evicted villages in the vicinity
- SPDC-led Dam project in western Toungoo District brought new military presence and SPDC human rights abuses
-

TBBC, October 2006, p. 18:

"Burma lags behind most of its neighbours in terms of poverty alleviation, with UN agencies and the Asian Development Bank recently reporting that Burma is either unable to provide credible data, off-track or regressing in regards to indicators for all of the Millenium Development Goals. A *Future Within Reach: Reshaping Institutions in a region of Disparities to meet the Millenium Development Goals in Asia and the Pacific*, UNESCAP, UNDP and ADB, 2005, New York, p13 This partly reflects the government's priorities as an estimated 40% of the budget is allocated to the military International Crisis Group, 2004, *Myanmar: Aid to the Border Areas*, Yangon / Brusses, p14. whereas annual public expenditure on health and education is less than US\$1 per person. Center for Public Health and Human Rights, March 2006, *Responding to AIDS, TB, Malaria and Emerging Infectious Diseases in Burma*, Johns Hopkins Bloomberg School of Public Health, p7 A global survey of transparent governance in 145 countries also found only three nations where systematic corruption was more prevalent than in Burma. Transparency International, 2005, cited in *A Future Within Reach*, op cit, 2005, New York, p 73

While poverty is a nation-wide phenomenon, many of the most deprived areas are in border areas where protracted conflict has further undermined human, social, economic and natural capital. By focusing on infrastructure construction and commercial agriculture, the government's Border Areas Development programme has done little to alleviate poverty in conflict-affected areas. International Crisis Group, 2004, *Myanmar: Aid to the Border Areas*, Yangon / Brussels, p4 In contrast, state-sponsored development initiatives have often undermined livelihoods and "primarily served to consolidate military control over the rural population" Human Rights Watch, 2005, *They Came and Destroyed our Village Again: The Plight of Internally Displaced Persons in Karen State*, Vol. 17, No. 4(c), p43

Burma's energy sector is its largest recipient of foreign direct investment, however gas pipelines and the proposed hydro-electric dams along the Salween river have also been significant causes of human rights abuses during the past year. While approximately 35,000 people were previously displaced from areas surrounding the proposed Tasang dam site in Shan State, the livelihoods of

those remaining continue to be undermined by forced labour for the construction of roads and deforestation caused by large scale logging. Similarly, villagers along the perimeter of the Yadana gas pipeline in Tenasserim Division and the Kanbauk-Myaingkalay gas pipeline in Mon state have been forced to provide security guards without payment by the local authorities. When there was an explosion in the latter pipeline during February, villagers were punished with fines, restrictions on movements and the arrest of leaders for allegedly cooperating with the armed opposition.

Commercial agriculture has intensified during the past year with the promotion of a national development initiative to cultivate castor oil plantations to produce bio-diesel as a potential fuel substitute. Thousands of acres across eastern Burma have been confiscated by local authorities without the payment of compensation to landowners and primarily to the benefit of privately financed joint-ventures with SPDC. Livelihoods have been further undermined by the imposition of procurement quotas and forced labour for the cultivation of seedlings. There have been no indications that former landowners and labourers will share any of the harvests, which in any case are years away. As with other monocultures, the environmental consequences of deforestation and a loss of biodiversity will also undermine local livelihoods and natural resource management in the longer term."

RI, June 2006:

"Development projects such as mine construction and gas and oil extraction facilities are forcibly displacing communities without compensation. In November 2004 it was reported that since 1992 the regime had used scorched-earth tactics in Papun district of Karen state to secure control over sites on the Salween River where Burma and Thailand planned to build large hydroelectric dams. The *Tatmadaw* campaigns had decimated the local population, destroying 210 villages and forcing villagers to move to 31 relocation sites. Tens of thousands of people had fled to Thailand, while others were living in hiding. In 1992, there were estimated to be about 107,000 people in Papun district. By 2004, this number had been halved to approximately 54,000, of whom about 35,000 were living as IDPs in the jungles.²³ similar cases can be found across the country where the military is forcing people to move prior to initiating major infrastructure projects.

[...]

Since the early 1990s, a series of displacements have related to partnerships between the junta and three western oil companies (Total, Premier and Unocal) to build the Yadana and Yetagun pipelines. The regime created a highly militarized pipeline corridor and soldiers moved villages to establish complete control. Through early 1993, Karen communities east of the Ye-Tavoy road were targeted for relocation because of the pipelines. The military forced Karen villages 15-20 miles north and south of the pipeline routes to move closer to SPDC outposts on the Ye-Tavoy road to create a labor pool and eliminate threats from armed resistance groups. Some villages were completely relocated; in others troops forced residents living on the outskirts of the village to move to the center to increase the military's control of the people. The relocations and evictions devastated communities. Villages were split at times with some people fleeing across the border to Thailand, others to jungles or relocation sites."

HRW, June 2005, p. 42:

"Developmental displacement is also now alarmingly common. Forced relocation commonly makes way for—and is conducted to provide forced labor on—road building and other infrastructure projects.[...] Roads bring a cash economy with them, and add value to land—thus sometimes motivating further expropriation.

Communities have also been forcibly displaced without compensation for other kinds of development projects, including the construction of mines[...], irrigation systems[...], and natural gas and oil extraction facilities. In March 1997 the *Tatmadaw* and DKBA forced villagers to move to Mae Wei relocation site, in southwest Papun District, prior to intensive logging activities. [...] The planned construction of a series of large hydroelectric dams is of similar concern in Karen

State. In November 2004 Karen Rivers Watch (KRW), a coalition of Karen NGOs, reported that three-quarters of the 85 villages in the vicinity of the planned dam sites had been forcibly relocated since 1995, displacing tens of thousands of civilians.[...] Similar cases can be found across the country, in which ethnic nationality villages were forcibly relocated by the military prior to major infrastructure projects. As KRW noted, "the regime is using 'development' to justify its subjugation and militarization of the ethnic-controlled areas...and mask the root causes of civil war in Burma." [...]

In May 1989 the SLORC initiated a new Border Areas Development Program, ostensibly aimed at improving conditions in the ethnic minority borderlands.[...] Despite SPDC claims to have spent U.S.\$43 million since 1993[...] building 7,865 kilometers of roads, 763 bridges, 767 schools, fifty-four hospitals, thirty-two rural health care centers, and eighty-one dispensaries in border areas[...], the program has done little to alleviate poverty[...] and primarily served to consolidate military control over the rural population. The program has facilitated the militarization of border areas, bringing remote, previously semi-autonomous regions under centralized state control. In several cases, "development projects" have in fact induced displacement. In Kachin State, since the ceasefires the government has built roads and bridges on confiscated land, using forced labor. In December 2003 in Mon State, 1,400 houses in three wards of Moulmein were ordered to relocate so that a railway bridge could be built across the Salween River to Martaban (on completion, this will be the longest bridge in Burma). Householders were given one month's notice to move. Some received nothing, while others received limited compensation (at 70 percent of the calculated value of their property), as well as plots of land at a new (relocation) site in Pat-kin Ward, east of the city. The authorities have forced other Moulmein residents to re-model their houses and streets, according to a standard model."

Read also "Dammed by Burma's Generals - the Karenni Experience with Hydropower Development from Lawpita to the Salween, by the Karenni Research Development Group

Tourism projects have displaced thousands to satellite towns (October 2004)

Dr Hudson-Rodd, Nancy and Dr Nyunt, Myo, June 2004, p.32:

"Villagers and residents living at ancient tourist sites, such as Mandalay, Pagan, and Amarapura in Upper Burma, were forcefully relocated for the purpose of renovating these sites for tourist attraction. The central feature of the satellite towns created across Burma is that modern homes of military commanders and high ranking government officials are built along the main highways and railway tracks with access to electricity, telephone, and water supply. On the other hand, the homes of forcefully relocated people are built with traditional bamboo and thatches that are located far away from the main roads with no electricity and water supply. Military elites and high ranking officials secured low-interest mortgage loans from state banks and building materials at subsidized prices to build two to three homes in the best sections of these satellite towns. They would either sell these homes to make abnormal profit or maintain absentee ownership of unoccupied homes or rent them out to foreign businessmen and diplomats to earn foreign exchange."

Dr. Hudson Rodd, Nancy and Cowan, Edith, October 2004, p. 23:

"In Mandalay people who lived in traditional wooden homes were forced to convert these structures into modern, two-storey buildings. Residents were forced to leave their homes in Mandalay to accommodate new commercial ventures and construction of hotels. If residents could not afford this re-construction, they were displaced to satellite towns."

Main causes of displacement in urban areas

Displacement as a result of construction of new capital (February 2008)

- 18,000 people have been displaced to make way for construction of the new capital Pyinmana/Naypidaw

COHRE, November 2007, p. 98:

"More recently, thousands of residents in the vicinity of Ayelar and Leway, southwest of Pyinmana - 400km north of Yangon, in central Burma - have been uprooted to make way for construction of a new military/administrative capital city and airport. In late 2005, the SPDC ordered the relocation of Burma's administrative capital, and military command-and-control centre, from Yangon to Pyinmana. According to the *Bangkok Post*, the construction of Senior General Than Shwe's new capital has displaced 10,000 local residents, with another 3,000 ordered to move in mid-2005, and more than 5,000 villagers forcibly relocated in 2006. Most government ministries were ordered to move to the area by the end of 2006. Extensive anecdotal evidence suggests that many civil servants resettled to the new capital against their will."

Displacement in urban areas on the decrease, but hundreds of thousands forcibly relocated during the 1990s (February 2007)

- Claimed that some 1.5 million people had been relocated or resettled between 1989-1990
- Resettlements undertaken by the government for purposes of land development planning and other urban works
- Urban squatter communities moved to rural border areas
- Relocation of Burma's administrative capital from Yangon to the central Burma hill town of Pyinmana displaced 10,000 people
- There are major gaps in both the data regarding urban relocation in Burma and its analysis

USDOS, 6 March 2007:

"Reports of forced relocation in urban areas continued to decrease [during 2006]; however, the government reportedly continued to forcibly relocate households for "security" reasons. In Rangoon persons were forced to leave homes or dwellings located on property that could be used for commercial gain. In some cases those forced to move were poorly compensated. The government in Bago forced residents to move off their land so that authorities could build an urban development project. The land was later deemed unsuitable, but the residents were not allowed to return. In November 2005 the government ordered most civil servants to relocate without their families to its new administrative capital Nay Pyi Taw near Pyinmana, Mandalay Division, and would not allow them to resign their jobs in lieu of moving. At year's end many civil servants were forced to live separately from their families in Rangoon, due to lack of family housing and schools."

South, Ashley, 26 February 2007, p. 22:

"The large-scale forced relocation of urban populations in Burma has been practiced by governments since the 1950s. The practice has intensified since 1988-1990, when several hundred residents of Yangon and other cities were forcibly moved to outlying 'satellite towns'. In late 2005, the SPDC ordered the relocation of Burma's administrative capital, and military command-and-control centre, from Yangon to the central Burma hill town of Pyinmana, 400 Km to the north. Construction of Senior General Than Shwe's new capital has reportedly displaced at

least 10,000 local people, while thousands of government employees have been forced to move north, where living and working conditions are said to be Spartan at best. Urban displacement is considered a cause of Type 2 forced migration, as movement is forced (based on the threat or actual use of violence), and is often conducted in the name of 'development'. Conditions, vulnerabilities and needs in 'new villages' vary, but are often similar to those in other government-controlled relocation sites. Also, like relocation site residents, many urban relocatees demonstrate great tenacity and resilience, in re-building their lives and communities in a new setting, under often very difficult circumstances. For people who relocate elsewhere (i.e. who do not move to the 'new villages'), vulnerabilities and needs will be similar to those in other relatively stable areas. Urban relocatees also have similar protection needs to other Type 2 forced migrants, especially in the field of land and property rights. Local NGO and international agency programs with urban relocatees are mostly limited to some substitution and support activities, with occasional denunciatory advocacy conducted by non-Burma based groups. There are major gaps in both the data regarding urban relocation in Burma and its analysis. This in part explains the limited awareness of this as a protection issue among agencies 'inside' the country, and the subsequent lack of advocacy initiatives."

Dr Hudson-Rodd, Nancy and Dr Nyunt, Myo, June 2004, p.31:

"The SLORC declared the year 1996 as "The Visit Myanmar Year" to capture foreign exchange from the tourists. Since 1989, the military junta has been launching the beautification program of Rangoon and other cities across Burma by forcefully relocating and inducing voluntary relocation to new satellite towns. There are ten satellite towns around Rangoon alone to which almost half a million population has been relocated. Similarly, satellite towns were created around the famous ancient city of Mandalay in Upper Burma, forcefully relocating the residents to attract and accommodate Chinese and other foreign investors as well as tourists. The junta claimed that most of the evicted were squatters and fire victims who were not allowed to reacquire their old plots of land. However, the Burmese nationals reported that among the forcefully evicted were regular homeowners. The forcefully their homes were well below their market values. They were also asked to pay for the new plots of land in satellite towns. If they could not pay, they were moved further away and forced to settle in shabbier satellite towns outside Rangoon division."

Martin Smith/ MRG, May 2002, p. 24:

"The question of displaced persons has begun to blur with government resettlement and urban development programmes more generally. Since 1988, the government has instituted major new town projects in several parts of the country, and such resettlement or dis-placement fits a long-standing pattern. One unpublished report, for example, by Habitat (the UN Centre for Human Settlements), estimated that in 1990 1.5 million people (or 4 per cent of the population at that time) had been affected by displacements dating back to the 1950s."

BERG July 1999:

"Considered by UNCHS/Habitat in their 1990 report as unprecedented internationally, for both the scale and the time period involved, these urban relocations or resettlements were undertaken by the government for purposes of land development planning and other urban works. These included development of: housing for civil servants; road, rail and pedestrian passageways; parks and gardens; commercial and residential use; clean up and beautification; and drainage systems and water bodies. An additional cause for much concern, was the accelerated forced relocation of poor communities to new, ill-prepared relocation sites, which was combined with a heavy handedness on the part of the military government to impose law and order standards in newly resettled areas.

Urban displaced people, particularly those- poorest households, have frequently been described in government documents as squatters, although some of them were previously renters or owners of permanent houses. They were often evicted at their own expense to new resettlement sites where conditions were difficult and where social services were lacking or scarce. Some such

squatter clearance projects in Mandalay and Rangoon appear to have taken place to punish people after the 1988 upheavals, while 'fire' became an effective way of clearing squatters, as old plots are rarely returned to fire victims.

The most controversial of these urban displacements were those which concerned the relocation of urban communities to schemes designed as new rural communities. Throughout the early 1990s the government moved squatter communities and other urban populations from urban to border areas where people were to inhabit low population density areas and provide labor for construction and other infrastructure or development activities. Examples of this have been reported in the Kabaw Valley of Sagaing Division and in the Dimosoe area of Karenni State."

Main causes of displacement in the border areas

Army offensives against ethnic opposition groups have caused massive displacement of the civil population since the late 1960s (January 2005)

- Increased relocation due to expanded presence of SLORC soldiers in areas previously under control of ethnic insurgent groups
- Civilians rather than combatants are main victims of the army campaign, and are subject to a broad range of serious human rights abuses
- From 1992 onwards, tens of thousands of ethnic minority villagers in areas all along the Thai border were forced to relocate to Tatmadaw-controlled areas
- The scale of forced relocations increased significantly after 1996
- The 'Four Cuts' policy aims to cut the supplies of food, funds, recruits and information to insurgent groups by systematically terrorising the civilian population in resistance areas
- In the context of the 'Four Cuts', ethnic minority civilians are routinely detained and abused by the Burmese Army, which is a major cause of displacement
- IDP populations fall into two main categories: those who go to government (or ceasefire group)-controlled relocation sites, and those 'in hiding' in the jungle

Christian Aid, May 2004:

"The displacement of ethnic minorities in eastern Burma is a direct result of the Burmese government's policies over the past 40 years. Loss of life, human rights abuses and the impoverishment of a once-wealthy country have marked this conflict. Since the late 1960s the Burmese army, called the Tatmadaw, has targeted civilians in conflict areas as a counterinsurgency measure. This process sought to undermine insurgent groups by severing their links with local people, and was known as the 'Four Cuts'."

NCGUB, September 2002, "*Internally Displaced People and Forced Relocation*":

"The military regime has subjected people to displacement for both economic and security reasons. Government displacement programs have been in place since the late 1960s, and possibly before. Since that time, under the guise of regional or area development, private land and plantations from civilians have been confiscated by the military - without any compensation - for military plantations, farms or animal breeding ranches, or for the construction of roads, railways, hydroelectric power plants, large dams and small scale infrastructure projects. In addition, the regime has forced numerous urban populations to move into areas away from city centres. In the 1990s the trend has been for the military to displace civilians from cultivable land which is then used for the construction of military bases or for income-generating projects.

[...]

In the volatile border regions, displacement campaigns have been aimed at securing combat zones, cutting off civilians support for insurgents, and curtailing the activities of ethnic armed groups. These activities fall under what the SPDC refers to as the 'four-cuts' policy. This program was introduced in 1974 with the aim of cutting the supplies of 1), food, 2) funds, 3) recruits, and 4) information to the resistance groups. In some border areas which the regime had labeled *brown areas*, forced relocation programs were carried out systematically. In other areas, which were classified as *black areas*, all villages were destroyed, fields and paddy barns were burnt, and anyone found in the area was shot. These campaigns against civilians were intensified after the 1988 pro-democracy uprising. Currently under the four-cuts campaign, villagers and village elders suspected of having contact with the resistance are detained, tortured, and executed; regime troops systematically extort and pillage villagers' crops, food supplies, livestock, cash and valuables; and villagers are forced to labor for army projects. Any village that is suspected to be supporting the opposition is forced to relocate. In 1996-1997, the military regime launched programs to forcibly move or wipe out all rural villages in areas not directly under their control. As a result of these intensified programs to destroy the populations in the ethnic areas, the number of people displaced has continued to increase dramatically.

When a village is forced to relocate, the villagers are usually told that they will not be permitted to go home until the opposition groups have capitulated. The SPDC issues written orders addressed to village headmen, which specifies the date by which the entire village must be relocated to a designated site. Relocated persons are not compensated for their homes nor are they given enough time to collect all of their belongings. Villagers must leave behind the majority of their belongings, including their livestock. Often people must also leave behind elderly and sick relatives. The areas cleared of villagers are then designated as "free-fire" or *black areas*. Houses, villages, and crops left behind are often pillaged and then dismantled and/or scorched to prevent the return of villages. Villagers seen in the areas of their former homes are considered to be rebel soldiers and shot on site. In some cases landmines are laid on the roads leading into villages, or in abandoned fields and homes."

Christian Aid May 2004:

"Until 1995, the Burmese army launched annual offensives into ethnic minority areas in the dry season, then withdrew to government-controlled regions. Villagers could prepare their hiding places and food stocks in the jungle, and return to their villages, once the Burmese army retreated. With the fall of Manerplaw and the other main KNU bases, Burmese army troops now stay in the border areas all year round. Since 1996 they have implemented the 'Four Cuts' policy in Karen state and Tenasserim, with devastating effect. They have systematically cleared villages suspected of harbouring insurgents, destroying houses and food stocks and hunting down people hiding in the jungle."

Heppner, September 2000:

"The SPDC has implemented the Four Cuts policy more systematically and brutally than did its predecessors. In areas of Burma such as the Karen, Karenni (Kayah), and Shan States where opposition groups continue to fight, the SPDC's current tactic is massive forced relocations of the civilian population. Forced relocation was used as a military tactic in the past, but only on a localized scale. In 1996, however, the junta began delineating regions of resistance and forcing hundreds of villages at a time to move to army-controlled sites along main roads or to camps near major towns. In hill villages throughout Karen State, residents are now being ordered to move into the center of their villages, meaning that they are only to go to their fields between dawn and dusk under threat of being shot if they violate curfew. This restriction disrupts the entire crop cycle because villagers are used to staying in field huts far from the village for much of the growing season. Many of them find that they can no longer produce enough food for themselves.

[...]

Under military control, rural Burma's subsistence farming village is losing its viability as the basic unit of society. Internally displaced people are usually thought to have fled military battles in and

around their villages, but this paradigm doesn't apply to Burma. In the thousands of interviews conducted by the Karen Human Rights Group with villagers who have fled their homes, approximately 95 percent say they have not fled military battles, but rather the systematic destruction of their ability to survive, caused by demands and retaliations inflicted on them by the SPDC military. Where there is fighting, it is fluid and sporadic, and most villagers can avoid it by hiding for short periods in the forest. Once the SPDC occupies the area around their village, however, the suffering is inescapable. Villages, rooted to the land, are defenseless and vulnerable, and villages can be burned--destroying rural life in southeastern Burma."

Nancy Hudson-Rodd, Myo Nyunt, Saw Thamain Tun & Sein Htay, 2003, p. 28:

"These relocations have often been accompanied with other forms of human rights abuses. After relocation orders have been issued and people have been expelled from their homes, SPDC has declared expansive areas as "free-fire zones"— anyone who tried to remain in their homes can be shot on sight. Relocated persons are not compensated for their homes nor are they given enough time to collect all of their belongings. Nearly all of the villagers must leave behind the majority of their belongings, including their livestock. Often people must also leave behind elderly and sick relatives. Once they leave their village, SPDC troops pillage the villages' homes and burn them to the ground."

HRW, Annual report 2005:

"The Burmese army continues to commit gross abuses against civilians, particularly members of ethnic minorities associated with various resistance movements in the country. In its campaigns against ethnic minorities, the army engages in summary executions, torture, and rape of women and girls.

The SPDC's eight-year campaign of forcibly relocating minority ethnic groups has destroyed nearly three thousand villages, particularly in areas of active ethnic insurgency and areas targeted for economic development. Hundreds of thousands of ethnic minorities have been forced into as many as 200 internment centers, and those who have passed through these sites report forced labor, extrajudicial executions, rape, and torture committed by government troops."

Forced relocation is closely linked to forced labour (August 2005)

- Forced portering, the most difficult and egregious form of forced labour in Myanmar, has dramatically increased since the rapid expansion of the tatmadaw and occurs on a regular basis in counter-insurgency areas
- Both women and children are routinely forced to perform compulsory labour at the hands of the tatmadaw
- Ethnic minority civilians are forced to work on infrastructure projects, including roads, bridges, and railways as well as to build military barracks and cultivate land which the military has confiscated from them for its own use
- Forced labour has led to the deprivation of several rights, including the right to work, the right to free choice of employment, and the right to an adequate standard of living
- The UN Special Rapporteur on Myanmar strongly condemns the continuing practice of forced labour as well as fees or severe punishment for those who are unable or unwilling to work

AI, 8 September 2005, Leaving Home, part II:

"Forced portering

Ethnic minority civilians living in counter-insurgency areas continue to be taken as porters for the army, although the practice has decreased since ceasefires were agreed. The most difficult and egregious form of forced labour in Myanmar is forced portering, when the *tatmadaw*, or Myanmar army, forces civilians to carry heavy loads for several days or weeks at a time. Since ceasefires with armed opposition groups have been agreed, the use of forced portering has significantly decreased. It should be noted at the outset however, that forced labour on infrastructure construction projects has dramatically increased since the rapid expansion of the *tatmadaw* to all areas of Myanmar. As the army began to occupy most of the country, its troops forced ethnic minority civilians into forced labour duties on motor and railroads; building barracks and other military installations and working on military farms, which had been confiscated from the very civilians who once farmed that land. Forced labour still occurs on a regular basis in counter-insurgency areas, which include the southeastern Shan State; and areas of the Mon and Kayin States; and parts of Tanintharyi Division. Remnants of armed opposition groups operate in all these regions, which have subsequently become counter-insurgency areas with an increased *tatmadaw* presence.

[...]

Forced labour involving women and children

Both women and children are routinely subjected to forced labour at the hands of the *tatmadaw*. Parents normally spend most of their time earning a living for their families, which often means that only children are available for such duties. The impact of forced labour on women and children is especially acute. CEDAW, to which Myanmar is a state party, provides for the health and safety of women, and the CRC, to which Myanmar is also a state party, provides for the protection of children, including girls. Several young Mon girls living in counter-insurgency areas told Amnesty International that good-looking young women and girls were regularly harassed by SPDC troops.

[...].

According to widespread and reliable reports, these human rights violations committed by the *tatmadaw* against Mon women and children continue. Amnesty International is concerned by the army's ongoing violations of the rights of women and children in counter-insurgency areas, particularly those which amount to violence against them at the hands of troops in the field.

Forced labour on infrastructure projects

Ethnic minority civilians are forced to work on a variety of infrastructure projects, including roads, bridges, and railways. Construction and maintenance of roads is by far the most common form of forced labour. Civilians often must maintain these roads on a regular basis after their completion, which can include rebuilding the entire road which is often destroyed during the rainy season. Civilians are also required to build military barracks and cultivate land which the military has confiscated from them for its own use. However forced labour on infrastructure projects is generally less arduous than forced portering, as it does not entail travel or *de facto* detention by the *tatmadaw*. Ethnic minority civilians are usually able to return home after a day's forced labour, although they in fact receive no pay, food, or water, and must normally bring their own tools. Sometimes however if the job takes longer than one day, the villagers must stay by the side of the road until the work is finished.

Forced labour was particularly prevalent in areas of heightened counter-insurgency activity, such as southern Ye township, as described above. In southeastern Shan State the SSA-South reportedly commands hundreds of troops, resulting in the *tatmadaw*'s frequent patrols in the area.

[...]

Forced labour also occurs, although to a much lesser degree, in areas which are now peaceful.

The impact of forced labour on the civilian population

The continuing practice of forced labour in Myanmar has several impacts on the civilian population, including the deprivation of the right to work, the right to free choice of employment, and the right to an adequate standard of living. Moreover, the practice has had extremely detrimental effects on women and children who are forced to perform forced labour. As seen above, girls as young as five years old have been made to perform forced labour duties, and women have been forced to serve and otherwise entertain troops against their will.

Amnesty International is concerned that forced labour, including forced portering, continues in many parts of Myanmar and calls on the SPDC to ensure that the military do not take people for forced labour duties. To this end, the SPDC should enforce Order No 1/99 and Order Supplementing 1/99, which makes the practice illegal and provides for punishments for both military and civilian officials found responsible. Although several people have made complaints against the military about forced labour, they often face reprisals from the authorities, including by being arrested and sentenced to terms of imprisonment. According to reports, some civilian SPDC officials have been sentenced under the provisions of Order No 1/99 and Order Supplementing 1/99, but it is not known if any members of the military found responsible for forced labour have been brought to justice."

The UN Special Rapporteur on Myanmar has strongly condemned the continuing practice of forced labour:

UNGA, 12 August 2005:

"66. The Special Rapporteur is seriously concerned at ongoing allegations of forced labour throughout Myanmar, and particularly in ethnic minority states. The Government issued two orders prohibiting the practice of forced civilian labour by military and civilian authorities in 1999 and 2000, stating that it was a punishable offence. This notwithstanding, it is reported that men, women and children are forcibly made to perform duties such as road repair and construction, portering for the military, sentry duty, transport of military supplies, forced rice and tea cultivation, rock-breaking, digging, gathering of firewood, construction, bush and scrub clearance, fencing of military barracks and compounds and digging of military bunkers and trenches. Civilian vehicles and their owners are frequently requisitioned to transport military supplies.

67. In many instances, those who are not in a position to undertake forced labour duties are allegedly obliged to pay a sum to cover the hire of another to go in their place. Fees such as a "porter" or "self-reliance development" fee for road construction are regularly extorted by Government forces in lieu of forced labour.

68. Civilians living in counter-insurgency areas who are unable to carry out their forced labour duties are particularly vulnerable to reprisals and collective punishment. Cases of severe punishment of those who are unable, unwilling or too weak to carry out orders continue to be received. Several cases have been brought to the attention of the Special Rapporteur of persons who have been conscripted as porters and have become too weak to carry their loads or keep up with the military column (owing to a lack of food, water or medical care) often being beaten and, in some instances, summarily executed.

69. The Special Rapporteur is particularly concerned at the assertion made by the Government at a recent press conference that anyone making what it deemed to be false allegations of forced labour, or found to be reporting such allegations to the International Labour Organization (ILO), would face prosecution. He is also disturbed to note the increased restrictions placed on the ILO liaison officer and calls by Government-affiliated organizations for the Government to consider withdrawing from ILO.

70. The Special Rapporteur is concerned to note that ceasefire groups have also allegedly insisted upon forced labour by the civilian population for tasks including clearing tracts through the jungle and preparing land for crop cultivation."

See next envelope for ILO information on forced labour

Since 1998 ILO has documented a pervasive use of forced labour in Burma (September 2005)

- ILO Commission of Inquiry confirmed pervasive use of forced labour imposed on the civilian population throughout Myanmar by the authorities and the military in 1998
- After examining SPDC's compliance with ILO Convention No 29 and with its own regulations against forced labour in 2005, the International Labour Conference (ILC) concludes that the extent of forced labour has not significantly changed in most areas
- Despite international scrutiny, forced labour continues to be imposed in various forms and is still widespread in ethnic minority areas - legal prohibition on forced labour has not been effectively implemented
- The continued use of forced labour in Burma led the ILO Applications of Standards Committee to hold a special sitting on Burma where it urged tripartite members to review their relations with Burma during June 2005

In a 1998 report, ILO presented its findings which have been the reason for sanctions against Myanmar by ILO.

ILO 2 July 1998, Paras. 528-535 & 542-543:

"There is abundant evidence before the Commission showing the pervasive use of forced labour imposed on the civilian population throughout Myanmar by the authorities and the military for portering, the construction, maintenance and servicing of military camps, other work in support of the military, work on agriculture, logging and other production projects undertaken by the authorities or the military, sometimes for the profit of private individuals, the construction and maintenance of roads, railways and bridges, other infrastructure work and a range of other tasks, none of which comes under any of the exceptions listed in Article 2(2) of the [Forced Labour] Convention [No. 29].

[...]

Failure to comply with a call-up for labour is punishable under the Village Act with a fine or imprisonment for a term not exceeding one month, or both, and under the Towns Act, with a fine. In actual practice, the manifold exactions of forced labour often give rise to the extortion of money in exchange for a temporary alleviation of the burden, but also to threats to the life and security and extrajudicial punishment of those unwilling, slow or unable to comply with a demand for forced labour; such punishment or reprisals range from money demands to physical abuse, beatings, torture, rape and murder.

Forced labour in Myanmar is widely performed by women, children and elderly persons as well as persons otherwise unfit for work.

Forced labour in Myanmar is almost never remunerated nor compensated, secret directives notwithstanding, but on the contrary often goes hand in hand with the exaction of money, food and other supplies as well from the civilian population.

Forced labour is a heavy burden on the general population in Myanmar, preventing farmers from tending to the needs of their holdings and children from attending school; it falls most heavily on landless labourers and the poorer sections of the population, which depend on hiring out their labour for subsistence and generally have no means to comply with various money demands made by the authorities in lieu of, or over and above, the exaction of forced labour. The impossibility of making a living because of the amount of forced labour exacted is a frequent reason for fleeing the country.

The burden of forced labour also appears to be particularly great for non-Burman ethnic groups, especially in areas where there is a strong military presence, and for the Muslim minority, including the Rohingyas.

All the information and evidence before the Commission shows utter disregard by the authorities for the safety and health as well as the basic needs of the people performing forced or compulsory labour. Porters, including women, are often sent ahead in particularly dangerous situations as in suspected minefields, and many are killed or injured this way. Porters are rarely given medical treatment of any kind; injuries to shoulders, backs and feet are frequent, but medical treatment is minimal or non-existent and some sick or injured are left behind in the jungle. Similarly, on road building projects, injuries are in most cases not treated, and deaths from sickness and work accidents are frequent on some projects. Forced labourers, including those sick or injured, are frequently beaten or otherwise physically abused by soldiers, resulting in serious injuries; some are killed, and women performing compulsory labour are raped or otherwise sexually abused by soldiers. Forced labourers are, in most cases, not supplied with food -- they sometimes even have to bring food, water, bamboo and wood to the military; porters may receive minimal rations of rotten rice, but be prevented from drinking water. No clothing or adequate footwear is provided to porters, including those rounded up without prior warning. At night, porters are kept in bunkers or have to sleep in the open, without shelter or blankets provided, even in cold or wet situations, often tied together in groups. Forced labourers on road and railway construction have to make their own arrangements for shelter as well as all other basic needs.

[...]

The Commission considers that the impunity with which government officials, in particular the military, treat the civilian population as an unlimited pool of unpaid forced labourers and servants at their disposal is part of a political system built on the use of force and intimidation to deny the people of Myanmar democracy and the rule of law. The experience of the past years tends to prove that the establishment of a government freely chosen by the people and the submission of all public authorities to the rule of law are, in practice, indispensable prerequisites for the suppression of forced labour in Myanmar.

This report reveals a saga of untold misery and suffering, oppression and exploitation of large sections of the population inhabiting Myanmar by the Government, military and other public officers. It is a story of gross denial of human rights to which the people of Myanmar have been subjected particularly since 1988 and from which they find no escape except fleeing from the country."

AI, 8 September 2005, Leaving Home, part II:

"From 21 to 23 February 2005 in accordance with the ILO Governing Body's recommendations, the ILO dispatched a very High Level Team (vHLT) to Myanmar in order to examine the SPDC's compliance with ILO Convention No 29 and with its own regulations against forced labour. The vHLT reported its findings to the March 2005 Governing Body about its trip to Myanmar, during which the SPDC Chairman Senior General Than Shwe was not available.⁽¹⁷⁾ They had sought this meeting as a matter of urgent priority with the Senior General, as only he is believed to have the authority to ensure that the *tatmadaw* chain of command functions properly. In the vast majority of cases, civilians are seized for forced labour by the army in spite of its prohibition under

both international and domestic law. In its report to the Governing Body the vHLT recommended *inter alia* that the SPDC issue direct orders to all its commanders forbidding the practice of forced labour by the military.

In its March 2005 meeting the ILO Governing Body invoked the resolution adopted in 2000 by the International Labour Conference (ILC), which called on all ILO members, including governments, employers, workers, and all international organizations to review their relations with the SPDC to ensure that the SPDC "*could not perpetuate or extend the system of forced or compulsory labour...*" in Myanmar.(18) On 21 April 2005 the ILO Director General wrote to all these parties asking them to ensure that their relations with the SPDC does not foster the use of forced labour in Myanmar.(19) On 4 June 2005 in Geneva the ILC considered Myanmar and concluded that "*the extent of forced labour had not significantly changed in most areas including ethnic areas, and its worst forms – including forced labour for the army and forced recruitment of child soldiers continued*".(20) Moreover, Order 1/99 and Order Supplementing Order 1/99, which provides for judicial punishment for civilian and military officials found responsible for forced labour, is "*not effectively implemented*", according to the ILO."

Despite international scrutiny, forced labour continues to be imposed in various forms and is still widespread in ethnic minority areas:

ILO, Global Report, October 2005, p. 25:

"The case of Myanmar continues to represent the different ways in which forced labour can be exacted by the State, and also military authorities, for multiple purposes.

[...]

As regards actual practice, while some improvements in the situation have occurred in central parts of Myanmar, forced labour continues to be imposed in various forms, in particular in remote areas under the authority of the army. As regards the situation in law, the continued prevalence of forced labour is not due to the form and content of the amended Administrative Orders which prohibit the exaction of forced labour. In fact, the population seems increasingly ready to use this legal remedy. But the legal prohibition on forced labour has not been effectively implemented.[...]

[...]

Negotiations led to agreement in May 2003 on a Joint Plan of Action between the Government and the ILO. Components were to include: awareness raising and information dissemination on the abolition of forced labour; the establishment of an independent Facilitator, with the role of assisting possible victims of forced labour in Myanmar to seek redress; and a pilot programme in a special focus region where the prohibition on forced labour would be strictly enforced and an ILO-assisted labour-intensive road construction project would serve to demonstrate the feasibility of this approach without recourse to forced labour.[...] As at early 2005, the ILO is not yet in a position to move forward with implementation of the Joint Plan of Action.

[...]

at the time of writing of this Report, no real breakthrough for effective action against forced labour in Myanmar has taken place."

The ILO Governing Body has regularly condemned forced labour practices in Burma:

ILO, Global Report, October 2005, p. 25:

"The ILO has been following the situation intensively since the Commission of Inquiry on Forced Labour in Myanmar (Burma) published its report and recommendations in 1998. [...] "The issue has been discussed at virtually all sessions of the International Labour Conference and the Governing Body."

ILO, 18 November 2005, Press Release:

"The Governing Body of the International Labour Office (ILO) concluded its 294th session

[...]

The Governing Body expressed grave concern about the degradation of the situation in Myanmar. It firmly rejected attempts to influence the ILO's position through various forms of pressures and intimidation, including threats against the Liaison Officer in Yangon as well as announcements that the country was preparing to withdraw from the ILO."

The continued use of forced labour in Burma led the ILO Applications of Standards Committee to hold a special sitting on Burma where it urged tripartite members to review their relations with Burma during June 2005:

ILO, June 2005:

"In the conclusions it adopted [in 2004] at the close of the special sitting concerning the application by Myanmar of the Forced Labour Convention, 1930 (No. 29), the Committee on the Application of Standards, inter alia, noted that the measures taken by the Government had not brought about significant progress in actual practice and forced labour continued to be exacted in many parts of the country. It further noted its grave concern at the convictions of three persons for high treason, including on grounds of contacts with the ILO, and agreed with the Governing Body that this situation clearly was not one in which the Plan of Action could be credibly implemented. The Committee also noted with appreciation the continued cooperation extended to the Liaison Officer by the Government and the freedom of movement that he enjoyed. As regards the increasing numbers of individual complaints of forced labour being received by the Liaison Officer, this demonstrated the usefulness of the ILO presence. The Committee had to note with concern, however, that the response so far was inadequate and this cast serious doubt on the willingness of the authorities to take the concrete steps necessary to ensure the elimination of forced labour in practice.

[...]

The Director-General constituted a very High-Level Team (vHLT) [...]. The vHLT arrived in Myanmar on 21 February. On 23 February, having failed to secure the necessary meetings at the highest level in order to complete its mandate, and having had discussions and making its views known to the Minister for Labour and the Prime Minister, the vHLT decided to depart the country.

[...]

[The 292nd Session (March 2005) of the Governing Body] In its consensus conclusions, the Governing Body noted that the most largely shared sentiment was one of condemnation over the failure of the highest authorities to take advantage of the unique opportunity that the visit of the vHLT represented to resume a credible dialogue on the issues of concern, and also the feelings of grave concern over the general situation that this revealed.

[...]

Although some concrete developments appeared to go in the right direction, in particular the prosecutions and punishment of authorities responsible for having recourse to forced labour as well as the establishment of a focal point in the army, in the circumstances the overall assessment fell far short of the Governing Body's expectations. The Governing Body noted the growing feeling that the .wait-and-see. attitude that prevailed among members since 2001 appeared to have lost its *raison d'être* and could not continue. It therefore unanimously agreed to transmit its conclusions to all those to whom the 2000 resolution was addressed . including relevant agencies . with a view to them taking the appropriate action."

ILO, 16 June 2005:

"As part of ILO efforts to end the use of forced labour in Myanmar, the Committee again held a special sitting on the application by Myanmar of the Forced Labour Convention, 1930 (No. 29), following up measures taken in the context of Article 33 of the ILO Constitution. This was the fifth time such a special sitting has been held.

The Committee urged tripartite members to urgently review their relations with Myanmar, including foreign direct investment and state and military-owned enterprises, and report back before the Governing Body meeting in November. Depending on developments in Myanmar the Governing Body should then be ready to consider new and further steps.

The Applications Committee placed its conclusions on Myanmar in a special paragraph for continued failure to implement Convention No. 29. In addition, the Committee concluded that, given that the persistence of forced labour could not be disassociated from the prevailing situation of a complete absence of freedom of association, the functions of the Liaison Officer should include assistance to the Government to implement fully its obligations under Convention No. 87."

Forced recruitment of child soldiers a cause for displacement (August 2005)

- Burma has one of the highest numbers of forcibly recruited children within governmental armed forces in the world
- Human Rights Watch estimated that children may account for 35 to 45 percent of new recruits into the national army, and 70,000 or more of Myanmar's estimated 350,000 soldiers
- Orphans and street children particularly vulnerable to forced recruitment by the Burmese Army

UNGA, 12 August 2005:

"71. The Special Rapporteur continued to receive reliable reports of forcible recruitment and training of children for the Government armed forces and non-State armed groups. Lamentably, because of his lack of access to the country, he was not in a position to assess the extent of these alleged practices. He is aware that the dialogue between the Government and UNICEF on issues such as child soldiers has been limited owing to changes in ministerial leadership, with whom a new dialogue has had to begin. While there has been discussion on the need to further develop and operationalize the national plan of action to prevent the recruitment of child soldiers, cooperation on this issue has yet to be seen."

CSUCS, 2 January 2004:

"The Burmese army, the Tatmadaw, continued to recruit large numbers of child soldiers, despite government statements to the contrary.¹ Human Rights Watch estimated that children may account for 35 to 45 percent of new recruits into the national army, and 70,000 or more of Myanmar's estimated 350,000 soldiers.[...] Children, some as young as eleven, were forcibly recruited, brutally treated during training, used in forced labour by the army and forced to participate in armed conflict. Children were also used to commit human rights abuses against civilians and other child recruits.[...]

[...]

Human Rights Watch found that nearly all armed groups in Myanmar recruited and used child soldiers. According to some estimates the combined non-state armies contain between six and seven thousand soldiers under the age of eighteen.[...] The United Wa State Army (UWSA), which agreed a ceasefire with the authorities in 1989, was estimated to have 2,000 child soldiers, often conscripted by force. The Democratic Karen Buddhist Army (DKBA) worked with the support of the Burma Army and SPDC authorities and regularly engaged in skirmishes with the Karen National Liberation Army (KNLA).[...] It was unclear whether the DKBA had a policy on the minimum age for recruitment to the army. One former DKBA soldier interviewed by Human Rights Watch believed that 40 to 50 percent of new recruits to the DKBA were under eighteen. The Kachin Independence Army (KIA), another ceasefire group, also forcibly recruited children, including girls, who were used for labouring on roads and farms. Although it claimed not to have any child soldiers, witnesses reported that some children served in support roles.[...] The Mon National Liberation Army, the armed wing of the New Mon State Party, which agreed a ceasefire with the authorities in 1995, was also reported to use child soldiers.[...] The Karen National Liberation Army (KNLA), the armed wing of the Karen National Union in conflict with the authorities for more than 50 years, set eighteen as the minimum age of recruitment, but was

known to accept children who actively sought to enlist, and allowed them to participate in combat. The KNLA was estimated to have up to 500 child soldiers.[...]
[...]

While KnA policy specified the minimum recruitment age as eighteen, KnA officials openly admitted that the rules were often broken. In March 2002, a KnA general told HRW that an estimated 20 per cent of the soldiers in his army were under 18 years old, suggesting a total figure of about 250 child soldiers. Other sources provided similar estimates."

Religious persecution in Burma's border areas on the rise (August 2005)

- Religious persecution in Burma continues to be closely linked with ethnic and political conflicts, with the military regime controlling state-permitted religious activities
- Ongoing discrimination against the Rohingya ethnic minority in northern Rakhine state threatens to exclude the group from citizenship, leaving them de facto stateless

Rogers, 17 August 2004:

"Widespread religious freedom violations by the Burmese government continue, with Christians from the ethnic Karen, Karenni, Chin and Kachin nationalities and Muslim Rohingyas suffering particularly badly, [...]. It remains difficult to gather reliable information from inside Burma, but it is estimated that about 300 Buddhist monks and novices are in jail for protesting against the ruling military regime. Regime troops have pulled down the last remaining Christian cross on public display, and the regime has often forced Christian villagers to construct Buddhist pagodas in place of Christian crosses. Christians in the cities have more freedom than in rural areas and according to a Burmese church leader in Rangoon, "we cannot say we are persecuted for our faith - but there are a lot of restrictions". Religious persecution continues to be closely tied to ethnic and political conflicts, and the military regime tightly controls state-permitted religious activity."

UNGA, 12 August 2005:

"79. The Special Rapporteur has taken note of allegations of ongoing incidents of religious persecution. In Chin state, the reported destruction of a Christian cross by Government troops and the coercion of Chin Christians to contribute money and labour for the construction of a Buddhist monastery are to be regretted. He remains very concerned about reports of ongoing discrimination against the Rohingya ethnic minority in northern Rakhine state, including the destruction of mosques by Government forces and the forced labour practice of ordering civilians to construct "model villages" to resettle Buddhists onto Muslim land.

80. He is concerned that the 1982 Citizenship Law, which recognizes the right to nationality for those defined as indigenous, excludes the Rohingya minority from citizenship, leaving them de facto stateless."

Shan State

Displacement ongoing in Shan State (February 2008)

- Systematic human rights violations have forcibly displaced over 15,000 people in Shan State from their homes in 2006-2007
- Forced relocations of entire villages by the Burmese army are ongoing in Shan State
- Villagers are under pressure from authorities to grow physic nut plant or leave their village

TBBC, October 2007, p. 32:

"During the past year, SPDC has increased pressure on ethnic ceasefire groups, harassment of the civilian population and control over private enterprise in southern Shan State. This has resulted in militarization and state-sponsored development projects becoming more significant factors of displacement and insecurity. Systematic human rights abuses across 12 townships alone have forcibly displaced over 15,000 people from their homes during the past year [...] In areas where the compliance of ceasefire authorities has decreased, the Burmese army has deployed more troops to maintain control. For example, after the United Wa State Army (UWSA) refused SPDC orders to relocate back to their original base on the Chinese border, Burmese army patrols into Mong Ton township on the Thailand border increased. 2,500 villagers in the UWSA territory are reported to have fled from their homes rather than face the harassment of SPDC troops."

SHRF, January 2007:

"Forced relocation of whole villages by the Burmese junta's troops [...] are still occasionally taking place at one place or another in Shan State during 2006. Forced relocations often have to be completed within a few days' time, or sometimes even immediately on the same day as the issuance of the order, often coupled with threats and intimidation. The following incidents are 2 examples of how forced relocations are usually carried out:

VILLAGERS FORCED TO MOVE WITHIN 3 DAYS IN LARNG-KHUR

In November 2006, villagers of Paang Mai Kut village in Paang Tawi village tract, Larng-Khur township, were forced to relocate within 3 days by the SPDC troops from LIB525. On 3 November 2006, a patrol of SPDC troops from LIB525 came to Paang Mai Kut village in Paang Tawi village tract and forced all the villagers to relocate to Huay Hur village in Nawng Long village tract, Larng-Khur township, within 3 days. The villagers were required to move all their belongings, including all their crops and livestock, in 3 days. Whatever remained in Paang Mai Kut village, which comprised more than 20 houses, after 3 days would be burned to ashes, said the order. The reasons for the relocation were the accusations made by the SPDC troops against the villagers of harbouring Shan soldiers, because the village was quite far from the town, and providing rice for the Shan soldiers. Although displaced villagers who had relatives at Huay Hur village were able to stay with their relatives, those who did not have any relatives had nowhere to stay and had to sell their belongings cheaply and flee to other places, including Thailand.

VILLAGERS FORCED TO MOVE IN A SINGLE DAY IN LARNG-KHUR

In early 2006, another forced relocation had already taken place in the same area, carried out by a patrol of people's militia under the command of LIB525, in which Nyawng Paang village in Wan Haad village tract was forced to move to Paang Tawi village, in Larng-Khur township, in a single day. Sometime in February 2006, at about 9 o'clock in the morning, a patrol of people's militia led by a man named Gan-Da-Ma, working on the order of LIB525, came to Nyawng Paang village and ordered all the villagers, about 52 households, to move to Paang Tawi village immediately. The movements were required to be completed on the same day. Villagers' possessions that still remained in the village on the next day would be burned to ashes, said the militia."

SHRF, August 2007:

"In early 2007, villagers in Haai Phak village tract in Nam-Zarng township were forced by SPDC troops of IB247 to grow more physic nut plants and forced to sign a document promising to look after them and replace every plant that did not grow properly. In February 2007, SPDC authorities of IB247 called a meeting of village and village tract headmen of Haai Phak village tract in Nam-Zarng township and issued an order requiring all the villagers in the village tract to grow more physic nut plants in addition to those that were grown in the previous years. Each household was ordered to grow 500 more physic nut plants apart from those they had been forced to grow during the previous years. Those who did not want to follow this order could leave the village tract, and those who for some reasons were unable to comply but wanted to remain in the village tract had to pay a fine of 5,000 kyat per household, said the order."

Shan state: Massive forced relocation due to armed struggle (October 2005)

- Massive internal displacement has occurred in Shan State since the 1950s
- Since 1996 forced relocations have affected more than 80,000 villages in 18,000 square kilometres in the heart of Shan State – displacing over 300,000 civilians
-

AI, 13 June 2001:

"During negotiations between Britain and Burma about independence, Shan and other ethnic minority leaders demanded guarantees of minority rights in return for an agreement to join in a Union of Burma. These were conceded in an agreement between the Burmese Government and the Shan, Kachin, and Chin representatives in 1947 in Panglong, a Shan town. After Burmese independence in 1948, however, disputes arose between some Shan political figures and the central administration in Rangoon over the handling of Shan affairs. In 1958 the first Shan armed opposition group was organized, and since then various other groups took up arms."

RI, 22 June 2004:

"Shan state is the largest ethnic state in Burma, with a population of approximately eight million people. Thousands of Shan have been seeking refuge in Thailand, especially since 1996, when the Burmese army began forcibly relocating hundreds of villages and towns, expelling about 300,000 people from their homes. People have also fled their communities to avoid being caught in the crossfire between the Shan ethnic army, Shan State Army (SSA), and the Burmese army. The situation has worsened in recent years, with the arrival of the Wa people, who have been forcibly relocated to southern Shan state by the Burmese government from their original homes along the border with China. At present fighting goes on between the SSA and the Burmese army, with the latter attempting to use the Wa to fight the Shan resistance forces. Further displacement of Shan villagers occurs as additional land is confiscated or villages relocated in Shan state by the State Peace and Development Council (SPDC), the junta that rules Burma."

TBBC, October 2005:

"Since 1989, Shan state has basically consisted of various ceasefire areas in the north and east compared to areas of armed conflict in the south where the Shan State Army-South (SSA-S) is active. This has begun to change since February 2005 when leaders of the legal Shan political opposition were arrested and pressure increased on ceasefire parties to surrender their arms. In April the Palaung State Liberation Army and two brigades of the Shan State National Army (SSNA) surrendered their territories in northern Shan State. This was soon followed by the remainder of the SSNA declaring that they had broken off their ceasefire agreement and joined forces with SSA-S. However, the national authorities have continued to pressure the SSNA and the other main ceasefire party, the Shan State Army-North (SSA-N) to surrender by threatening to

forcibly relocate villagers away from their areas of influence. The government has also succeeded in pressuring some of the ceasefire groups to begin actively fighting against the SSA-S in southern Shan State."

According to a Shan human rights group, forced relocations have affected more than 80,000 villages in the Shan state:

Christian Aid May 2004:

"Forced relocation is a central strategy of the army. Between 1996 and 1998, for instance, it implemented a major forced-relocation programme in Shan state. As revealed by the Shan Human Rights Foundation (SHRF),⁸ 1,478 villages in central and southern Shan state were relocated between 1996 and 1998, a process affecting about 300,000 people. This process was intended to force the villagers into government-controlled relocation sites. Instead, according to estimates made at the time, at least 100,000 went into hiding and about 100,000 fled to Thailand. [...]

To deter people from returning to their home villages, the Burmese army shot those found outside the main relocation centres. The SHRF gathered evidence from Shan state to show how the Burmese army had carried out extra-judicial killings of at least 664 displaced people in 1997. In one incident, soldiers killed and beheaded 26 villagers and laid out their bodies on the main Keng Lom-Kun Hing road as a warning to others not to leave the relocation centre."

Shan state: resettlement of 128,000 Wa caused further displacement (February 2004)

- Some 125,000 Wa and other villagers from northern Shan State were forcibly relocated, and settled around existing villages near the Thai border in southern Shan State, forcing the original inhabitants to leave
- The United State Wa Army (UWSA) is loyal to the SPDC and has reportedly 20,000 troops
- Abuses against original inhabitants both by the SPDC and UWSA
- Estimated that at least 4,500 have become internally displaced in other areas of Shan State because of the arrival of the Wa
- In September 2003, there were reports of the displacement of 3,000 Wa

"The Wa were left almost untouched by the British and also by the Japanese. Although the British Shan States also included the Wa States, they were not part of the federation formed in 1922. After World War II there was fighting between Wa and Chinese Muslims in the north and among Wa themselves in the south, when the Kuomintang, freshly driven out from the Mainland stepped in. The area was cleared of the Kuomintang only in 1954, when the Wa area and its northern neighbor, Kokang, were jointly created into a special district, with Hopang as its capital, and Mongmai and Panyang as sub-capitals.

In 1968, the Communist Party of Burma (CPB) it a drug entered eastern Shan State and established the People's Army, in which the Wa constituted the major force.

Following mutiny against the CPB by the Kokang on 12 March 1989, the Wa revolted on 17 April and drove out the communist leadership. Soon after, they formed the Burma National Solidarity Party, which was later renamed the United Wa State Party (UWSP), with a military wing, the United State Wa Army (UWSA).

The Wa leadership began negotiations with Rangoon, and UWSP publications state that a ceasefire agreement was reached on May 18, 1989.

In 1989 war broke out with the Shan Mong Tai Army (MTA), led by warlord Khun Sa, for control of the Doilang-Mongyawn area in southern Shan State, which fell into Wa hands after the MTA, shattered by mutiny, surrendered to the Burmese military in January 1996. However, Shan troops who refused to surrender reassembled as the Shan State Army - South, which continues to operate as an active armed resistance group in the southern Shan area.

The UWSA is reportedly 20,000 strong and boasts to be the largest force among the existing non-junta armed forces. It is also reported to enjoy good relations with the Chinese government." (LNDO, April 2002, pp. 1, 3, 6, 14)" In 1999, around 50,000 families (about 250,000 Wa people) were forcibly moved from the northern Shan State (Wa State) to the Muang Yone- Muang Hsat area of southern Shan State. In 2000, between 100,000 - 200,000 Wa have been relocated. Many of the relocations, carried out by the pro-SPDC United Wa State Army (UWSA), were on short notice. Families were suddenly broken up when relocations came during the absence of husbands or wives. Many villagers had become homeless and landless by Wa mass resettlement programme.

Upon arrival in the south, the Wa are allocated one small bamboo hut per family and given one small milk tin of rice per day. Oil and salt are rarely available, and meat and vegetables less so. Sanitation is poor and disease is rampant. Between 1999 - 2000, over 7,500 died of malaria, typhoid and anthrax. The closed border makes delivery of medicine difficult and medical vaccination almost impossible.

[...]

Both the UWSP and the junta [SPDC], have official stated that the mass Wa resettlement program is aimed to eradicate opium production by enabling villagers to grow alternative crops in the more fertile land of southern Shan State. However, evidence in this report shows that the resettled villagers are planting new opium fields, with the support of SPDC and UWSP officials.

[...]

On the arrival in the south, the [126,000 Wa] villagers were settled mainly around existing villages in the townships of Mong Hsat, Mong Ton and Tachilek, lying opposite Thailand's Chiang Mai and Chiang Rai provinces and Laos[...]

The lives of the original inhabitants of these areas, mainly Shan, Lahu and Akha, have been gradually disrupted. Theirs lands and property have been seized by the newcomers, and they have had to face abuses committed by both SPDC and UWSP troops. The report estimates that the number of original inhabitants affected by the resettlement program is approximately 48,000. Of these, it is estimated that at least 4,500 have fled to other areas of Shan State, while another 4,000 have fled to Thailand[...]" (LNDO, April 2002)

"Most recently, forced transfers of population have allegedly been taking place from northeast Shan State adjacent to China to designated areas of southern Shan State, involving mostly Wa farmers and combatants and their families, as well as several hundred Lahu families and ethnic-Chinese. Shan and Lahu residents who used to live in these relocation areas have allegedly been dispossessed of their houses and lands and become internally displaced or refugees."(Pinheiro, 28 March 2002)

"In most parts of Burma, the primary agent of displacement is the *Tatmadaw*. However, non-state armed groups have also been responsible for forcible relocation and the creation of IDPs, the most prominent in recent years being the United Wa State Army (UWSA).

Between 1999-2002, at least 125,000 Wa and other (Lahu, Haw Chinese etc.) villagers were relocated from 'Wa Special Region 2' in the north of Shan State, to the UWSA's Southern Command area, opposite Thailand's Chiang Mai and Chiang Rai provinces. Between 5-10,000 of these people reportedly died of treatable conditions. Informants agree that relocated villagers received some support from the UWSA, in the form of rice and cash. However, they disagree as

to the fate of the original - mostly Shan and Lahu - inhabitants of sites in the south, to which villagers from the north were moved. As many as 48,000 of these people have been displaced or otherwise affected by the new arrivals. There is also disagreement regarding the Wa authorities' motive in relocating such large numbers of people, as well as those of the SPDC and (state and private) Chinese interests.

Most 'source' villages lacked sufficient rice farming land, were located in deforested areas, and were often very poor and dependent on opium cultivation. Therefore, many of those relocated were at first not displeased to move to better land in the south. However, few people were given a choice in the matter, and since 1999 most of those relocated have been forced to move - sometimes at gunpoint. Relocates are mostly moved in whole villages, which probably helps to maintain existing community structures. However, villagers are given between zero and a few weeks advance notice, and - while the majority were transported at least part-way in trucks - some have had to walk all the way (400 Km) to the Southern Command area.

The lack of consultation with 'source' or 'host' communities reflects the UWSA's 'top-down' approach to policy and action. This command style - and associated distrust of autonomous community organisations - owes much to Burmese political culture, to the under-developed nature of Wa social structures, and to ideas of the 'leading role of the party' inherited from the Communist Party of Burma (of which the UWSA was an element, until 1989)." (South/BBC, September 2002)

There are continued reports of forced relocations of Wa villages:

"September- 3,000 Wa villagers were forcibly resettled in Tangyan, Mongyawn, Monghsat township; and Mongjawd and Hoyawd-Hopang, Mongton township, Shan State. On 9 December 147 of the Wa settlers had died from outbreaks of malaria, diarrhea and other diseases." (ALTSEAN, March 2004, para 41)

See the [internet site of the Shan Human Rights Group](#) for further information on the background and patterns of displacement in Shan State (including 'Map of Shan State'; LNDO, 'Aftershocks Along Burma's Mekong: Reef-blasting and Military-style Development in Eastern Shan State', August 2003)

Shan state: thousands displaced due to military operations during 2005 (December 2005)

- The conflict in Shan state has intensified with the SSNA (Shan State National Army) breaking its ceasefire with the military government and joining forces with the SSA (Shan State Army)
- SPDC counter insurgency activities have displaced thousands of civilians - IDP estimates more than doubled during 2005

Fighting intensified after two of Burma's ethnic Shan rebel groups, the Shan State National Army (SSNA), and the SSA merged – the latter breaking a cease-fire with the military government:

AFP, 22 May 2005:

"The Shan State National Army (SSNA), which signed the ceasefire in 1995, and the Shan State Army (SSA) agreed the merger at a ceremony Saturday at the SSA's base at Doi Talaeng, near the Myanmar-Thailand border, the Bangkok Post said.

[...]

Military leaders from the merging Shan armies called on ethnic Shan in Myanmar and overseas to unite and fight the junta which has ruled the impoverished country for more than 40 years.

The SSNA's leader Colonel Sai Yi will bring between 5,000 and 6,000 troops in exchange for being promoted to become the SSA's top military leader, the paper said.
The SSNA signed its ceasefire agreement with Yangon in 1995, after splitting from the now disbanded Mong Tai Army."

SPDC counter insurgency activities have displaced thousands of civilians. IDP estimates more than doubled during 2005:

UNGA, 12 August 2005:

"85. Following the renunciation by the Shan State National Army of its ceasefire agreement in April 2005, there has been increased military activity and increased deployment of Government forces to restrict contact with the Shan State Army (South). As a result, it is understood that over 10,000 civilians have been displaced by conflict in southern Shan state between March and June 2005. During this period several villages were forcibly relocated, burnt or abandoned, allegedly as a result of the military strategy of Government forces and its adverse impact upon the civilian population."

TBBC, December 2005:

"During the past six months, the impacts of counter insurgency activities on civilians were arguably most severe in Shan State. The Shan State Army was again declared an "unlawful association" with whom contact could be punished with a fine and / or imprisonment, while the deployment of more Burmese Army battalions resulted in a series of military victories for the national government. This increased militarization resulted the estimated number of internally displaced persons hiding in southern Shan State more than doubling in the past year."

TBBC, October 2005:

"The United Wa State Army (UWSA) launched a military offensive to try and seize the SSA-S headquarters along the Thai border during April 2005. Similarly, an ethnic PaO ceasefire group, the Shan State Nationalities People's Liberation Organisation (SSNPLO), joined forces with SPDC to militarily engage SSA-S forces in the townships surrounding Mawksmai. This fighting has led to the displacement of over 3,000 villagers during March and April 2005.

However, more civilians have been displaced by forced relocations and other human rights abuses than by fighting. The forced relocation of a further 17 villages during the past year was aimed at cutting strategic links between SSA-S bases on the Thai border and their areas of influence deeper in Shan state. Mong Pan township has been heavily reinforced by SPDC troops as it is a strategic point for SSA-S troops to pass through and for official access to the planned 3,600 megawatt hydro-electric dam at Ta Hsang. In townships west of the Salween River, displacement was partly due to the harassment of civilians as the Burma Army tried to prevent SSNA troops moving further south to join up with SSA-S. Displacement was also related to the declaration by some politicians in exile in April 2005 of an independent Shan government. Villagers accused of rallying to support these opposition politicians were subjected to arrest and punishment by SPDC troops. As a result of this increased harassment, estimates for the number of civilians hiding in southern Shan State have doubled during the past year. Even though some people have returned to their original villages, they still flee into hiding when SPDC patrols approach their area."

New relocation orders issued in eastern Shan state (March 2006)

SHRF, 7 March 2006:

"The Burma Army has ordered fresh relocation of several villages in Monghsat and Monghpyak townships, eastern Shan State, last month, said sources.

Although details are still lacking, at least 10 villages in Mongloong tract, Mongkok sub-township in Monghsat township, are said to have moved out to relocated sites by the end of last month:

- o Wankoon and Wanlong to the subtownship seat Mongkok and Tachilek
- o Khopien to Wan Homong in Mongloong tract
- o Mong Ann and the rest to other sites

The order was issued by the Mongkhark-based Light Infantry Battalion 579 on 19 February.

Several villages in the neighboring Monghai tract, Monghpyak township were also reported to have been relocated lately.

The object of the exercises has not been determined. Speculations so far have focused on three factors:

- o The Shan State Army's increasing activities in the area
 - o The discovery of antimony deposits in Mongloong
 - o The Memorandum of Understanding between Bangkok and Rangoon on 24 February 2004 to construct reservoirs in the Kok and Maesai river basins.
- Both rivers originate in the Mongkok sub-township"

Karen State

Worst offensive in 10 years in Karen State displacing thousands (February 2008)

- The worst military offensive in a decade has displaced more than 40,000 people in Karen State since late 2005
- The military attacks are linked to its attempts to consolidate control over parts of Karen State
- Many of the newly displaced IDPs have fled to the Thai-Burma border and are living in settlements on the Burma side
- The districts of Toungoo, Papun and Nyaunglebin have been particularly hard-hit by the offensive
- The military has increased its presence in these three districts which has led to more human rights abuses of civilians

RI, May 2007:

"The worst Burmese military offensive in 10 years has displaced at least 27,000 people in eastern Burma's Karen State since November 2005. The displaced are civilians who have been targeted by the army and are living in exceptionally vulnerable conditions. [...] The Karen National Union, the indigenous political leadership in Karen State, has not entered into a ceasefire agreement with the SPDC and conflict and displacement are not new phenomena there. However, the intensity and spread of the *Tatmadaw* offensive in recent months are estimated to be the worst in more than a decade. The attack is linked to the military's attempt to consolidate its control over parts of Karen State and the districts of Toungoo, Papun and Nyaunglebin have been particularly hard-hit by the offensive.

According to a community-based organization assisting the internally displaced, the recent attacks differ from previous ones in that the military did not withdraw during the 2006 rainy season but continued to attack the same areas repeatedly. The military has planted a large number of landmines in and around villages so people are unable to go beyond a certain area, and at the time of harvesting many do not have access to their crops. In some parts of Karen State the army has set rice fields on fire. According to the estimates of a community-based

organization assisting the internally displaced, 25,000 people have lost their harvest for the entire year, and in Lerdo Township alone, 2,800 civilians are believed to have been taken away from their villages and fields by the *Tatmadaw* to relocation sites where they are being forced to dig trenches and build fencing. Since 2006, the military has also placed a prohibition on trading in some areas of Karen State and prevented villagers from selling or buying certain products around harvest time. After harvest time, villagers are allowed to sell their products, but at half the normal price and only to the military, contributing to food insecurity.

In terms of medical assistance, Karen internally displaced people are relying largely on traditional curative techniques or on mobile teams, back pack health workers, and Karen medical units who may be able to access them only after navigating their way through heavily militarized territory.

Many of those displaced in the recent attacks in Karen State who have been able to reach the Thai-Burma border are living in settlements on the Burma side. One of these, the Ei Tu Hta camp, set up in April 2006, is home to 3,000 persons mostly from Toungoo district. Approximately 5,000 recently displaced Karen have also crossed the border into Thailand.”

KHRG, May 2007, p. 1:

“Toungoo District, situated at the northernmost end of Karen State has suffered some of the heaviest military attacks against civilians since the intensification of State Peace and Development Council (SPDC) military operations in late 2005. As part of the ‘northern Karen State offensive’, the SPDC has worked to extend and consolidate its military structures in the forested mountains of Toungoo which it has not previously been able to control. By attacking rural villages, upgrading and constructing new vehicle roads, forcibly relocating local populations into military-controlled villages and relocation sites and establishing new army camps and bases, the SPDC has managed to extend its authority over formerly autonomous civilian communities living in this area.”

KHRG, January 2007, p. 1:

“Over the past two years, however, the SPDC has been increasing its military presence in Nyaunglebin District as part of its broader northern Karen State offensive against the civilian population. As components of this offensive the SPDC has been deploying more troops and establishing new bases throughout the district.

This increased militarisation has directly impacted the mostly rural villagers of Nyaunglebin District from whom local SPDC forces have sought to exploit labour, money, food and other supplies. The villagers of Nyaunglebin District, however, have resisted this exploitation in numerous ways and fled where possible in order to avoid compliance with military demands altogether. As local SPDC personnel are unable to extract labour, money, food and other supplies from those civilians whom they cannot catch, the Army has deemed the entire population to be legitimate military targets and sought to forcibly relocate all civilians into military-controlled relocation sites. Despite the ability of many villagers to evade this forced relocation the SPDC has nevertheless managed to inter large numbers of civilians at these sites.”

Karen state: the Karen have been subject to repeated displacement (June 2005)

- Karen nationalists have resisted the domination of the Rangoon government for 50 years, but internal divisions have never allowed them to articulate a consistent message on behalf of their ethnic group
- Since the provisional ceasefire in 2003, KNLA offensive operations have caused virtually no displacement

- Conflict-induced displacement has been widespread across Karen state since 1995, but has stabilised in the past couple of years
- Karen IDPs seldom mention armed conflict among the main reasons they fled their homes. Instead, the causes usually stated are human rights abuses committed unilaterally by military and civil authorities when the opposing side is not around

"The five to seven million Karen in Burma and approximately 350,000 Karen in Thailand speak twelve mutually unintelligible, but related, dialects. Between 80-85 percent of Karen are either S'ghaw (mostly Christian and animist living in the hills) or Pwo (mostly lowland Buddhists). About 25-30 percent are Christian, 5-10 percent are animist, and the rest are Buddhist. An estimated 30 percent of Karen people live in urban settings and 70 percent in rural areas. About 40 percent are plains dwellers and 60 percent live in the hills.[...]

As demarcated by the government, Karen State consists of seven townships (Pa'an, Kawkareik, Kya-In Seik-Gyi, Myawaddy, Papun, Thandaung and Hlaingbwe), with a population in 1995 of approximately 1.3 million.[...] The percentage of Karen living in Karen State has decreased considerably due to the outflow to Thailand.

Rejecting the government's administrative boundaries, the KNU has organized the Karen "free state" of Kaw Thoo Lei[...] into seven districts, each of which corresponds to a Karen National Liberation Army (KNLA) brigade area.[...] The districts are divided into twenty-eight townships and then into groups of villages administered as a unit by the KNU—that is, in areas where the KNU still exercises some influence. This civilian structure is paralleled by an often more extensive KNLA military administration.

The majority of the Karen live in Tenasserim Division (KNU Mergui-Tavoy District), eastern Pegu (or Bago) Division (which overlaps with Nyaunglebin District), Mon State (which overlaps with parts of Duplaya and Thaton Districts), and the Irrawaddy Division, areas that are mostly government-controlled....] Neither the government nor the KNU has ever conducted a reliable population survey. However, a report issued in 1998 estimated the population of Kaw Thoo Lei at between 2-2.4 million people, or about half the Karen population of Burma.[...]

The Karen have been subject to repeated displacement. For example, following the introduction of the "Four Cuts" in 1974-5, approximately forty-three villages in the Nyaunglebin District were forcibly relocated at least twice.

[...]

Similarly, in Papun District, a "Four Cuts" operation beginning in the mid-1970s displaced an estimated fifty thousand people.[...]Further *Tatmadaw* operations caused about nine thousand refugees to flee to Thailand in 1996 alone.

[...]

After a series of military setbacks, dating back to the 1970s, and with greatly diminished support from the Thai government and army, the KNU today is a greatly weakened force. The KNLA still has some five thousand-seven thousand soldiers, but it no longer represents a significant military threat to the SPDC.[...] However, the KNU's longevity alone brings it considerable credibility among the wider Burmese opposition. It is also still considered a key player by elements within the SPDC.

[...]

The establishment of the Democratic Karen Buddhist Organization (DKBO) and Army (DKBA) in December 1994, which may have taken place with encouragement from local *Tatmadaw* units, also reflected legitimate grievances among the KNU rank-and-file regarding the Christian-dominated organization's alleged discrimination against the Buddhist majority in Kaw Thoo Lei.

The emergence of the DKBA consolidated a major split in the Karen insurgent ranks. The DKBA command-and-control structure is weak, and many of these units enjoy almost complete autonomy, and/or answer to local *Tatmadaw* commanders. DKBA troop strength is difficult to gauge. Informed sources suggest that the number of active soldiers is about three thousand-four thousand. It currently fields three brigades.[...]

The DKBA often acts as a proxy militia army for the *Tatmadaw*, deflecting some criticism for the state's harsh policies. Like the *Tatmadaw*, it uses displacement as a means of controlling populations and resources and undermining its rivals. " (HRW, June 2005, p. 21)

"Internal displacement in Karen areas is usually labelled "conflict-induced" (Hynes, 2003:10-18), yet Karen IDPs seldom mention armed conflict among the main reasons they fled their homes. Instead, the causes usually stated are human rights abuses committed unilaterally by military and civil authorities when the opposing side is not around, i.e. primarily in the *absence* of direct fighting. When armed clashes occur in or around a village, people usually escape into the bush overnight and return when the soldiers have departed. Immediate causes of longer-term displacement in conflict and non-conflict areas tend to take two main forms: deliberate forced relocation orders, and combinations of human rights abuses unintentionally leading to displacement. Since 1995 relocation orders have been the Tatmadaw's main military tactic, ordering the people of entire regions to move to state-controlled spaces regardless of whether their village actually has contact with resistance forces [...]

Sometimes hundreds of villages at a time are involved, affecting tens of thousands of people in areas with only a few hundred resistance soldiers. Even with the Karen-SPDC conflict presently in an informal ceasefire, forced relocation of Karen villages continues (KHRG, 19 2004a:1), suggesting that forced relocation has become more a tool of civilian control than a weapon of war.

Unintentionally-caused displacement occurs when people suffer "repeated, multiple, mutually reinforcing shocks" (Blaikie et.al., 1994:5) in the form of consecutive and simultaneous abuses (such as forced labour and extortion) which undermine their lives and livelihoods. The most vulnerable, usually those with the least economic or social security, are driven to flight first - hence statements by many people that their village still exists but has lost the poorest segment of its population (see KHRG, 1999a:38-39; 1999c:7). As the abuses continue, focusing on fewer people as others flee, the less vulnerable become progressively more vulnerable and are gradually forced into flight themselves. Once all livestock and valuables have been sold to replace lost crops or pay bribes to evade forced labour, flight becomes the only feasible response to military demands[...]

The main abuses mentioned usually include forced labour at military camps and on profitmaking projects of military officers, extortion for the profit of local officials, and similar abuses, caused not by the armed conflict but by militarisation and the operation of military bases with complete impunity. Even in non-conflict areas, "villagers who have never seen fighting now find their villages flanked by three or four army camps. These camps function mainly to control village civilians, who must regularly provide the army with money, food, and unpaid labor on projects designed to improve infrastructure" (Heppner, 2000:18). This explains data gathered by the Burmese Border Consortium, which shows a higher average frequency of displacement for families in townships with relatively low levels of armed conflict (Bilin, Shwegyin, Kyauk Kyi and Thandaung), while Papun township, with much more intense armed conflict, has lower displacement frequencies (BBC, 2003:49-50)." (Heppner, March 2005)

Human rights abuses and forced evictions reported in Pa'an and Thatoon districts of the Karen state (December 2006)

KHRG, 26 December 2006:

"In Pa'an District of central Karen State, Burmese authorities impose strict controls on the movements and activities of all villagers while also taking their land, money and livestock, using them as forced labour, and forcing them to join state paramilitary organisations. Muslims are

being forcibly evicted from their villages into relocation camps to make way for new SPDC army camps. Simultaneously the Democratic Karen Buddhist Army (DKBA) acts on behalf of the SPDC in many areas, extending the regime's control in return for impunity to exploit and extort from the civilian population. The double burden of forced labour, extortion, restrictions and forced conscription imposed by two sets of authorities takes a heavy toll on the villagers, yet in a cruel irony they are also being forced to give money and unpaid child labour to prepare New Year festivities where the DKBA plays host to foreigners and Rangoon movie stars.

[...]

The Karen National Union (KNU) and Karen National Liberation Army (KNLA) are also present in the area, but armed conflict is low-intensity and very sporadic."

KHRG, 21 December 2006:

"With the onset of the cold season the State Peace & Development Council (SPDC) has been able to push ahead with military attacks against villages and displaced communities in the northern districts of Karen State. In Thaton District and other areas further south, however, the military is more firmly in control, fewer displaced communities are able to remain in hiding, and SPDC rule is facilitated by the presence of its ally the Democratic Karen Buddhist Army (DKBA). By increasingly relying on DKBA forces to administer Thaton, the SPDC has been able to free up soldiers and resources which can then be deployed elsewhere. To force the civilian population into submission, the DKBA has scoured villages throughout Thaton - detaining, interrogating and torturing villagers and conscripting them to serve as army porters. Commensurate with its increased control over the civilian population, DKBA soldiers have subjected villagers to regular extortion, arbitrary and excessive 'taxation', forced labour, land confiscation and restrictions on movement, trade and education which all serve to support ongoing military rule in Thaton. By systematising control over local villagers, the SPDC and DKBA have been able to implement 'development' projects that financially benefit and further entrench the military hierarchy. Amongst such initiatives, the construction in Thaton District of the United Nations supported Asian Highway, connecting Burma with neighbouring countries, has involved uncompensated land confiscation and forced labour."

Karen state: reports about displacement in the Toungoo, Nyaunglebin and Papun districts during 2006 (November 2006)

- Attacks intensified during 2006, displacing thousands in the Papun, Toungoo and Nyaunglebin districts
- 500-600 SPDC Army troops are active in Toungoo District, regularly launching patrols through various parts of the district to seek out IDPs and villagers who refuse to move out of the hills and into SPDC controlled relocation sites
- The use of landmines has also increased as the Burma Army try's to block all trade and travel from the mountains
- The attacks are occurring in a North-South line stretching from Toungoo to Shwe Gyin and seem to be aimed at cutting off all support for the resistance as well as stopping all rice, medicine and other needed material from reaching the displaced people
- One of the causes for the military offensive is allegedly to secure the new capital of Pinyinana against KNU rebels
-

Attacks intensified during 2006, displacing thousands in the Papun, Toungoo and Nyaunglebin districts. Below are some reports about displacement during this period:

KHRG, 20 November, 2006:

"It is now rice harvest season, and following the end of the monsoon rains the SPDC has sent more troops into northern Karen areas to force all villagers out of the hills. Having already shelled and burned the villages, their present tactic is to patrol the rice fields to keep the villagers away from harvesting their crops so that the rice will be destroyed, while in some cases their troops trample or uproot the crop themselves. Knowing that this crop is essential to the continued survival of villagers in the region, the SPDC hopes to force them out of the area by destroying it and has ordered its

battalions to establish several 'new towns' along the roads where villagers are to be interned, controlled, and exploited for forced labour. Most villagers, however, are more likely to flee toward Thailand than submit to life in these internment camps."

KHRG, 6 October 2006:

"As the rainy season nears its end, SPDC operations in northern Papun District persist. Civilians living in Lu Thaw township in northern Papun District who fled from military attacks on their villages earlier in the current offensive have been joined by those more recently displaced. So long as military forces remain active in the area of their abandoned homes, these villagers are unable to return to tend their crops, collect possessions and reclaim their land. In these situations of displacement, villagers confront daily food shortages, unhygienic conditions and the constant threat of detection by military forces. With the establishment of new army camps, the likely construction of more roads and a possible large-scale relocation site at Pwah Ghaw, the ability of displaced villagers to maintain their livelihood, evade military forces and retain some measure of control over their land is becoming highly restricted. Nevertheless, the threat of regular abuse and ceaseless demands in military-controlled areas prompt villagers living in hiding to continue to evade capture and military subjugation."

KHRG, 20 September 2006:

"In March and April 2006, SPDC and DKBA units deliberately targeted and destroyed dozens of hill fields belonging to villagers from three villages in Bilin township of Thaton District in the southwest of Karen State. Burning the fields too early in the growing cycle severely restricts the proportion of the field that can be planted, which in turn limits the size of the harvest. Both the SPDC and the DKBA know this and the burning of these fields represents a systematic campaign of crop destruction intended to obstruct the villagers' access to food and in effect starve them out of the hills. The villagers already suffer from food shortages, and this latest move by the military will only aggravate the situation. The next paddy harvest due in November will be severely reduced as a result, and these villagers will face even more serious food shortages for the coming year."

KHRG, 11 September 2006:

"Despite the difficulty of sustaining regular military operations under rainy season conditions, the SPDC has continued to press its soldiers to continue the northern Karen State offensive that began in November 2005. Rather than a campaign against armed opposition groups, however, the SPDC has been engaged in hostilities against rural villagers living outside of direct military control in areas of Toungoo, Nyaunglebin and Papun Districts. Soldiers have bombarded villages with high-powered mortars, razed homes and food stores, burned crops and shot fleeing civilians on sight. By attacking in this manner, the SPDC has attempted to force all villagers into military-controlled villages and relocation sites in the plains, along car roads and near army bases. At these sites the military can more easily exploit civilians for the food, labour, finances and supplies needed to support individual military personnel and the wider structures of militarisation. However, the SPDC has so far been unsuccessful in bringing all civilians under their control as villagers have consistently fled to evade advancing troops. In such situations of displacement, villagers have employed their own strategies to resist the militarisation of their lives and retain their dignity in the face of systematic human rights abuses. This report presents information on SPDC military attacks against villages in Nyaunglebin and Papun Districts of northern Karen

State as well as the responses and resistance strategies of local villagers during the period of March to June 2006."

TBBC, August 2006:

"Further to last month's KORD report, the Committee for Internally Displaced Karen People reports that a further 22 villages were targeted by SPDC military operations in Papun township of Karen state between April and June 2006. (KNU recognize this area as Hsaw Mu Plaw, Naw Yo Hta, Ler Mu Plaw and Kay Pu village tracts in Lu Thaw township of Mu Traw District). Over 5,000 civilians are spread between these villages, which are located north of the Kyaukgyi-Saw Hta car road, beside Yunzalin river and east of the Pegu Division. Villagers in this area usually hide in surrounding forests when SPDC patrols approach."

KHRG, 10 July 2006:

"Villagers living in Nyaunglebin District (Kler Lweh Htoo in Karen) have for years faced direct harassment at the hands of the State Peace and Development Council (SPDC). Despite a decreasing engagement between SPDC forces and the Karen National Liberation Army (KNLA), rapid militarisation of the region continues. Since November 2005, the SPDC has sustained a military offensive focused on the rural areas of northern Karen State. The pattern and location of attacks in Nyaunglebin District described in this report link them with the broader SPDC offensive throughout northern Karen State. This campaign has been directed not against insurgent forces, but rather Karen villagers living in rural areas outside of complete SPDC control. Widespread and systematic abuses have been central to this campaign as the SPDC seeks to relocate the Karen population living in the hills to military controlled villages along motor roads and in the plains of western Karen State. These abuses include forced relocation, destruction of homes, confiscation of food and livestock and arbitrary execution. Those who do relocate to SPDC-controlled sites face more regular abuses by military units such as arbitrary arrest and detention, extortion, restricted movement and forced labour alongside food and water scarcity and absent prospects of a sustainable livelihood."

KHRG, 30 April 2006:

"Since November 2005, SPDC forces have increased their activities in all three townships of the [Nyaunglebin] district. This has included detention and killing of villagers, destruction of villages and forced relocations both in strongly SPDC-controlled areas of the western plains and in the hills to the east. More troops have been sent in since February 2006 to depopulate the hills and force the villagers down to SPDC-controlled plains areas, and as this is written in April more columns are still being sent out to destroy villages, force villagers to SPDC-controlled sites, and kill any who disobey. Medical relief teams of the Free Burma Rangers in the area estimate that since February over 8,000 villagers have been forcibly displaced in Nyaunglebin district – 4,000 in Mone township, and more than another 4,000 in Kyauk Kyi and Shwegyin townships."

COE-DMHA, 26 April 2006:

"According to The Irrawaddy yesterday (Tuesday, April 25), at least 11,000 people are now displaced in what Karen rebels and aid workers are saying is the worst offensive by the military junta in eastern Karen state since 1997. The rebel Karen National Union (KNU), as well as the NGO, Free Burma Rangers (FBR), and aid agencies working in relief camps along the Thai border, have reported an increase in internally displaced persons (IDPs) since late last year. The KNU told Reuters that 2,000 people were displaced earlier this month, on top of 9,000 already displaced."

FBR, 24 April 2006:

"There are now over 11,000 Internally Displaced People (IDPs), who are in hiding from or fleeing Burma Army attacks in Nyaunglebin and Toungoo Districts, Karen State. These attacks started in February, intensified in March and keep building up now in April."

COE-DMHA, 30 March 2006:

"The number of internally displaced persons (IDPs) from attacks by Myanmar's military junta on villages in Myanmar's eastern Karen state has risen to 5,000, up from 3,400 reported last week. The news was based on reports from the NGO, Free Burma Rangers (FBR), via Mizzima News, well as Myanmar opposition groups. The FBR said that the IDPs were being forced from their homes in Karen state's Toungoo and Nyaunglebin districts. "Since November 2005, the [military junta] started a strong offensive close to...Pyinmana," said Saw Kweh Say, head of the Burmese Issues civic group.

[...]

Villagers are reportedly being forcibly conscripted into labor, and soldiers are burning down crops and laying landmines in their areas. In the past week, there have been reports from the FBR, the rebel Karen National Union (KNU), as well as the Karen Refugee Committee (KRC) at a refugee camp in Thailand's northern Mae Sot province, of an influx of IDPs. Observers have said that the operations were being carried out by the military in order to allegedly protect the military junta's secretive and sudden move of the capital from Yangon (Rangoon) to the central jungle town of Pyinmana. Toungoo and Nyaunglebin districts lie between Yangon and Pyinmana."

KHRG, 16 March 2006:

"For the past several months, the situation facing the villagers in Toungoo District has been rapidly deteriorating. There has been a dramatic increase in the number of State Peace and Development Council (SPDC) Army troops operating in the area and along with this increased militarization has come a commensurate increase in human rights violations being committed against the civilians living there.

[...]

A KHRG field researcher estimates there to currently be as many as 500-600 SPDC Army troops active in the district. In addition to this number are several Dam Byan Byaut Kya ('Guerrilla Retaliation') units, two Karenni ceasefire groups – the Karenni Solidarity Organization (KnSO) and the Karenni Nationalities People's Liberation Front (KNPLF), and two small Karen splinter groups – the Nyein Chan Yay A'Pwet ('Peace Group') and the recently identified Aye Chan Yay A'Pwet ('Cold Peace Group').

With so many militarily active soldiers in the region, the situation now facing the villagers of Toungoo District is a desperate one. SPDC Army battalions are regularly launching patrols through various parts of the district to seek out internally displaced persons (IDPs) and villagers who refuse to move out of the hills and into SPDC controlled relocation sites.

[...]

As a result of the spate of recent attacks on villages in southeastern Toungoo District approximately 2,000 IDPs have fled their homes over the past four months. Many villages in the area such as Hee Daw Khaw, Sho Ser, Wa Soe, Kho Kee, Klay Kee, Ho Kee, Hsaw Wah Der, and Ha Toh Per have emptied as their inhabitants have fled for their lives. Approximately half of this number has fled to Thailand to become refugees in one of the camps located along the border."

FBR, 27 March 2006:

"[...] there are now over 5,000 people displaced in Toungoo and Nyaunglebin Districts due to ongoing attacks by Burma Army troops of the 66th and 99th Divisions.

These attacks have intensified and now there are over 2,000 people in hiding in Toungoo District alone. These are mostly from 16 villages in the Southern part of Toungoo District, (Tantabin Township, mostly west of the Kler La/Baw Ga Lee Gyi to Busakee Road). In Nyaunglebin District there are over 3,000 people now in hiding; in Mon, Kyauk Kyi and Shwey Gyn Townships. The Burma Army is attacking in 1-4 battalion sized force and chasing people into the jungle. Homes are then looted, sometimes burned and then landmines are left behind to terrorize the population. Their purpose is to cut off the people from their lively hood, cut all support for the pro-democracy Karen resistance, and gain control over the population.

The Burma Army wants the people to be completely under their domination and acquiesce to their demands or move to relocation sites. When people refuse to leave their land, they are attacked. The use of landmines has also increased as the Burma Army try's to block all trade and travel from the mountains (where most the Karen they cannot control live), to the plains. It is the feeling of the Karen leaders here, that as the hot season progresses the attacks will increase. The greatest need the people here have now is security, food, medicine and support to continue their children's education-even when they are on the run."

FBR, 21 March 2006:

"[...] on 20 March, the Burma Army attacked the hiding places of displaced people in the Ler Wah area causing over 400 people to flee and increasing the number of newly displaced people to over 3,400 when added to the newly displaced 3,000 people in the north. All of these attacks are occurring in a North-South line stretching from Toungoo to Shwe Gyin, roughly at the junction of the plains and mountains. They seem to be aimed at cutting off all support for the resistance as well as stopping all rice, medicine and other needed material from reaching the displaced people who are living in these areas."

Karen state: thousands displaced during 2004 - 2005 despite informal ceasefire (December 2005)

- Despite an informal ceasefire between SPDC and KNU the number of displaced by war, human rights abuses and forced labour in Karen state was estimated at more than 60,000 in 2004
- 47,000 internally displaced persons were reportedly hiding in de facto free-fire areas
- SPDC-KNU ceasefire agreement in January 2004 has led to a reduction in the number of villagers hiding in the southern half of Karen state, but displacement in Hlaing Bwe, Myawaddy, Kawkaeik and Kyain Seikkyi townships remains at a high level
- Civilians had to flee their villages along the boundary of Shwegyin river after SPDC forces violated the ceasefire in September 2005 attacking KNLA headquarters
- "Black villages", allegedly controlled by insurgents, were attacked and burned down by Burmese troops

During 2004 - 2005, displacement was reported regularly, also during and after the ceasefire talks:

TBBC, October 2004, p. 32:

"An informal ceasefire between SPDC and KNU has even been established in 2004, with a series of high level meetings held to specify rules for troop locations and deployment and to plan for the return and resettlement of internally displaced persons. However, over 200 skirmishes still occurred in the first six months after the ceasefire was Announced. [...] Over 60,000 people are estimated to have been displaced by war and human rights abuses during the past two years and approximately 47,000 internally displaced persons are reportedly hiding in areas that remain de facto free-fire areas.

Recent displacement is most pervasive in the northern townships of Papun and Thandaung adjacent to the Karenni State border. This mountainous area is the largest and most populated area affected by conflict in eastern Burma, with thick forest cover protecting supply routes for the armed opposition and dirt roads restricting the rapid deployment of SPDC troops. Counter-insurgency operations are predominately marked by the destruction of shelters, crops and food stocks, forced relocations into road-side villages, and forced labour to upgrade bullock cart tracks

into sealed roads crossing from Pegu Division to the Thailand border. Over 26,000 people are estimated to have been displaced by war and human rights abuses in the past two years, and a comparable number are believed hiding from SPDC forces in free-fire areas, while approximately 10,000 are in SPDC relocation sites.

Further south, population displacement has been more associated with the counterinsurgency efforts of combined SPDC and DKBA forces and development-induced displacement. The complicity of DKBA is most evident in Hlaing Bwe and Myawaddy townships where mortar shells have reportedly been launched onto villages and landmines laid to restrict access to fields during the past year. These attacks have contributed to the displacement of over 20,000 people in the past two years, with approximately 13,000 people estimated to still be hiding in free-fire areas.

Forced labour and arbitrary taxation have been more prominent causes of displacement in Kawkaik and Kyain Seikkgyi townships. This has been associated with road construction on dirt tracks connecting Kawkaik to Kyain Seikkgyi to Three Pagodas Pass, although the harassment of villagers between the Zami River and Thailand border has also contributed to the displacement of over 13,000 Mon and Karen people in these townships during the past two years.

New Mon State Party (NMSP) has two ceasefire areas in southern Karen State and both continue to report a steady influx of new arrivals fleeing from human rights abuses in SPDC controlled areas and conflict-affected areas. The southern ceasefire area is based around people who were formerly refugees in Thailand, while the core population of the northern area was originally people who had fled from Mon state. 30,000 people in these areas are still denied humanitarian assistance for their resettlement and reintegration."

KHRG, 21 February 2005:

"Since the informal ceasefire between the State Peace and Development Council (SPDC) and the Karen National Union (KNU) began in January 2004, the situation in Bilin, Thaton, Kyaikto and Pa'an townships in Thaton District has remained bleak. KHRG researchers have seen that the SPDC and Democratic Karen Buddhist Army (DKBA) soldiers are still abusing the villagers with no decrease in the suffering of the villagers. Between June and November 2004, the SPDC and DKBA continued committing human rights violations by demanding forced labour from the villagers in the area such as carrying rations and constructing roads, restricting the movements of the villagers, extorting money, and demanding building materials and food from the villagers."

TBBC, October 2005, p. 36

"Despite the informal ceasefire agreement in January 2004, a reduction in military skirmishes and ongoing negotiations between the Karen National Union (KNU) and SPDC, human rights abuses continue in Karen State. The Burma Army have used the increased freedom of movement to extend control by deploying troops and building new camps further into remote areas. Villagers in SPDC-controlled areas have had to do more forced labour improving roads and hauling rations to support this expansion of control. Meanwhile, villagers who have fled their villages to hide in the forests now find it more difficult to avoid Burma Army patrols and being relocated into SPDC controlled areas.

[...]

Decreased restrictions on movement out of relocation sites have enabled villagers to attempt return or resettlement in 13 former villages in Papun township. Many of the civilians originally evicted from these villages still remain in 31 locations designated by the SPDC south of Papun. However given the increase in choice, these locations have not been identified as forced relocation sites in 2005.

The SPDC-KNU ceasefire has led to a reduction in the number of villagers in hiding in the southern half of Karen state. Significant falls have also been estimated for the populations living in ceasefire areas controlled by the Democratic Karen Buddhist Army (DKBA) and the Karen Peace Army (KPA). This was caused partly by a decrease in the area effectively controlled by the ceasefire groups, as well as by increased restrictions they imposed on movements which led to some villagers fleeing to mixed administration areas.

Although the populations in hiding have decreased, displacement in Hlaing Bwe, Myawaddy, Kawkareik and Kyain Seikkgyi townships remains comparable to last year. The main causes have been ongoing forced labour, extortion and land confiscation committed by SPDC and DKBA authorities to support their local troops. This is depriving villagers of the material resources and time needed to work their farms and pursue their other livelihoods. Fear of landmines restricts the opportunities for villagers to cope by reclaiming vacant fields."

KHRG, 9 December 2005:

"In late September 2005, State Peace & Development Council (SPDC) forces violated the ceasefire by openly attacking the 9th Battalion headquarters of the Karen National Liberation Army (KNLA) 3rd Brigade in Nyaunglebin District. On September 21st, SPDC troops occupied the 9th Battalion headquarters on the Shwegyin River and remained there until early November. Civilian villages in the area along the boundary of Shwegyin (Hsaw Tee) and Kyauk Kyi (Ler Doh) townships, including Kwih Lah, Ler Wah, and Tee Thu Kee, were deliberately shelled, and villagers fled eastward into the hills. Women, children and the elderly moved higher into the hills, where they immediately set up a temporary school and shared out available rice, while men set up shelters closer to the Shwegyin River where they could monitor and report back on SPDC movements. KNLA units sporadically shelled the SPDC troops and made preparations to lay landmines if they should attempt to cross the Shwegyin to pursue the villagers. As a result of all these activities, the SPDC forces never dared cross the Shwegyin, and completely withdrew by November 3rd. The villagers rushed back to complete their rice harvest, which was already overdue. Though some of the rice had already been destroyed by weeds and wild pigs, they have been working day and night to complete the harvest. Those whose fields lie west of the Shwegyin River have been doing this at great risk, because SPDC forces left landmines behind which the KNLA has only partially been able to clear. These villagers have a long history of evading the SPDC columns that come several times each year to destroy their livelihoods and to attempt to force them to state-controlled areas."

COE-DMHA, 30 November 2005:

"At least 1,000 people have been displaced after Myanmar troops reportedly launched attacks on ethnic rebel villages near the Thai-Myanmar border. Mhan Shar La Pan, Secretary General of the rebel Karen National Union (KNU) group, told reporters by phone today that government forces raided six villages in eastern Karen and Kaya states over the weekend, burning homes and farms, and detaining some civilians. The local NGO, Free Burma Rangers, which is based in Thailand, is reportedly providing medical assistance for the displaced. The raids occur shortly a week before the resumption of the government-run National Convention, aimed at creating a new constitution, beginning on December 5 in Yangon." (COE-DMHA, 30 November 2005)

The Irrawaddy, 30 November 2005:

"Some 2,000 Karen villagers have been forced to flee five villages in Karen State after Burmese troops carried out a mortar attack and then burned them down on November 26, according to a senior official of the Karen National Union. The villagers are now living in the jungle with little food and no shelter, KNU secretary general Mahn Sha told The Irrawaddy.

He said the villages were "black villages," meaning they were not recognized by the government, claiming they were controlled by insurgents."

KHRG, 4 May 2005:

"[...] many villagers who live in Saw Theh Kee and Tee Blah village tracts east of Shwegyin town [in southern Karen state] are now hiding in the forest. They return to rebuild their houses in the village and sometimes stay there for short periods, but they don't dare to stay long in their villages and they must always watch for SPDC landmines. These villagers have been displaced several times by the SPDC military in recent years, but their current displacement began in November 2004 when SPDC Light Infantry Battalion (LIB) #589 (battalion commander Zaw Aung), LIB #350

(battalion commander Than Naing), LIB #264, and Infantry Battalion (IB) #57 (battalion commander Aung Ko Hla) sent about 400 soldiers into Saw Theh Kee and Tee Blah village tracts. The soldiers burned Khaw Hta, Klaw Lu, and parts of other villages, including villagers' houses, hill fields, farmfield huts, and paddy storage barns, and before leaving they planted landmines in several villages. The villagers had to flee suddenly without taking most of their food and belongings. Civilians living in villages in that area which were not burned also had to flee into the forest, and some of their paddy was burned.

[...]

Since January 2005 the SPDC columns have not returned to these villages, but the villagers continue to live in fear that there could be troops still in the area and they could return at any time. The villagers remain on constant alert.

The Irrawaddy, 25 February 2004:

"Despite the talks, in January [2004] about 3,000 Karens in Papun district fled their homes to the jungle because of Burmese military operations, according to Hla Henry, secretary of the Committee for Internally Displaced Karen People. "The fighting is still going on and forced labor and portering is continuing," claimed Hla Henry."

See the internet site of the [Karen Human Rights Group](#) for further updated information about the situation facing IDPs in these areas.

Karen state: demands for forced labour has increased in several districts (June 2005)

- In the Nyaunglebin district, villagers are forced to build, rebuild, and upgrade roads for the military and to support other mechanisms of military control
- Demands for forced labour has reportedly decreased in the Papun district, but unarmed sentry duty at the Army camps, maintaining the camps, clearing scrub along the roadsides and various other tasks. are still being requested on a regular basis
- Ongoing forced labour and extortion demands by SPDC and DKBA are leading to food shortages and lack of money for health in the Pa'an district
- In the Toungoo district, northern Karen State, the military subject villagers to forced labour to secure control of roads and to supply troops in the hills
- In the Thaton district Karen villagers are used to build bridges and perform road construction by SPDC and DKBA; the use of convicts as porters and labourers around Army camps has become widespread in the district
- Forced labour is also continuing in the Dooplaya district of southern Karen state due to the heavy militarisation of the district

In the Nyaunglebin district, villagers are forced to build, rebuild, and upgrade roads for the military:

KHRG, 4 May 2005:

"Roads are a key component of SPDC control in the [Nyaunglebin] district, so villagers under their control are forced to build, rebuild, and upgrade roads for the military. Most of the roads are unpaved and must be rebuilt and repaired after each rainy season, so every year villagers are forced to rebuild and repair the roads from Kyauk Kyi to Mu Theh, Mu Theh to Pwa Ghaw and Kyauk Kyi to Shwegyin.

[...]

All of these improved roads mean better communications and transportation for the SPDC military, but more hardship for civilians – who face more forced labour on road maintenance, more Army checkpoints restricting their movements, and more forced labour at new Army posts

and checkpoints which are set up along every road. The SPDC claims to have banned all forced labour since 2000 [...], and points to the recent convictions of a handful of civilian officials for demanding forced labour in other parts of the country as evidence of its sincerity; but not a single case has yet been brought against any Army officer, and these are the people most responsible for forced labour. As a result, its prevalence in Nyaunglebin district is increasing. Forced labour is demanded not only on roads, but also to support other mechanisms of military control."

Demands for forced labour has reportedly decreased in the Papun district, but is still being requested on a regular basis:

KHRG, 20 May 2005:

"Papun district is a region mainly made up of forested hills and small villages in northeastern Karen State [...], and includes Lu Thaw township in the north, Bu Tho township in the east and Dweh Loh township in the southwest [...]. Areas which are close to SPDC Army camps are under SPDC control, while in remoter areas SPDC columns have destroyed many of the villages and much of the population lives in hiding beyond their control; in these latter areas the Karen National Liberation Army (KNLA) has a strong presence. Villagers living near some of the Army camps in all three townships have recently been reporting that they are being summoned for less forced labour, particularly as porters and road workers, because convict labour is now being used and SPDC soldiers themselves are doing much of the local road improvement and repair work. However, villagers are still forced to do unarmed sentry duty at the Army camps, maintain the camps, clear scrub along the roadsides to protect SPDC troops from ambush, and do various other tasks. In the process of doing their road work the soldiers have been destroying villagers' irrigated ricefields and the dikes and canals needed to properly irrigate the crops. Though some SPDC units are not demanding as much money from villagers as before, they still demand so much bamboo and roofing thatch for their camps that villagers complain they have little time for other work. They also continue to loot the villagers' livestock and belongings. Democratic Karen Buddhist Army (DKBA) units make similar demands and also force the villagers to work in their logging operations."

Forced labour in the Pa'an district:

KHRG, 30 March 2005:

"Villagers in eastern Pa'an District, part of central Karen State which borders on Thailand [...], are facing serious problems with food and livelihood security, leading to food shortages and lack of money for health and other expenses. The causes are ongoing forced labour and extortion demands by State Peace & Development Council (SPDC) and Democratic Karen Buddhist Army (DKBA) authorities, SPDC orders for farmers to produce crops in dry season, and encroachment on villagers' land and villages to establish camps and farmfields for SPDC Army units.

[...]

Overall, civilians in the plains areas say that forced labour has reduced somewhat, mainly because SPDC troops are bringing convict porters into the region instead of using local villagers as porters. Villagers in the mountainous areas of T'Nay Hsah and Dta Greh townships, however, report that they still have to do forced labour all the time, most often under the orders of the DKBA. In the plains and the mountains, but particularly in the mountains, villagers are reporting that they are now facing food shortages and have no money to buy medicines for the sick, because the combination of forced labour, extortion, and encroachment on their land is depriving them of the material resources and time needed to work their farms and pursue their other livelihoods."

In Toungoo district, northern Karen State, the military subject villagers to forced labour to secure control of roads and to supply troops in the hills:

KHRG, 22 March 2005:

"Ongoing dry season military operations to consolidate the Army's penetration into remote areas since December 2004 have led to further forced relocation and displacement, and SPDC troops are increasing their use of villagers as forced labour to secure control of roads and to supply troops in the hills. As the military's freedom of movement increases, it uses its increased control of travel routes to reduce the freedom of movement of villagers and internally displaced people (IDPs), blocking their access to vital food supplies or making it conditional on their compliance with forced labour orders.

[...]

This has already led to frequent armed clashes between SPDC and Karen National Liberation Army (KNLA) forces despite the ceasefire.

[...]

The forms of repression discussed above have been forcing people to flee their villages into the forests, particularly since the SPDC stepped up operations in December 2004. This level of military activity will probably continue until the rains in June.

[...]

Internally displaced villagers are scattered at hidden sites throughout the district, but at present there is no hiding place that SPDC troops cannot reach. At present, there are at least six of these hiding sites which KNLA forces are in a position to defend, but if a full SPDC column approaches they can do little more than fight a delaying action while the villagers escape. The main form of protection they give the IDPs is information, by passing on intelligence about SPDC movements. Some IDP leaders have told KHRG researchers that one of their key needs is for walkie-talkies to improve communications so they can stay one step ahead of SPDC columns."

Forced labour in the Thaton district:

KHRG, 21 February 2005:

"Between June and November 2004, the SPDC and DKBA continued committing human rights violations by demanding forced labour from the villagers in the area such as carrying rations and constructing roads, restricting the movements of the villagers, extorting money, and demanding building materials and food from the villagers.

The SPDC still forces villagers to accompany them as porters, but their methods have changed. The SPDC now usually takes villagers from one village to the next, where the porters are changed for new villagers. More commonly, the soldiers demand only two people from a village to go with a column as *lan pya* [guides]. The *lan pya* have to guide the soldiers as well as carry things for them. When the Army needs to use many porters to carry their things they usually use convicts brought in from prisons in other parts of Burma. The use of convicts as porters and labourers around Army camps has become widespread in the district.

[...]

The SPDC is using Karen villagers in Thaton township for its own benefit to build bridges and perform road construction.

[...]

The DKBA has also been very active in Thaton District. KHRG researchers from the area assert that the demands for forced labour and the extortion which the villagers have to face from the DKBA are worse than from the SPDC. "

Forced labour is also continuing in the Dooplaya district of southern Karen state:

KHRG, 2 June 2005:

" Regarding forced labour, villagers in Dooplaya have told KHRG researchers that the only difference under the ceasefire is that they don't have to go as longer-term porters on military operations. Other common forms of forced labour such as sentry duty, *set tha* (messenger duty), repair and maintenance of military camps, rebuilding roads, clearing scrub along roadsides, cutting and hauling logs and bamboo for the Army, and providing roofing thatch to military camps

are still practised. These forms of forced labour are only likely to stop if there are no more military camps in the area.

Since the beginning of 2005 only a minority of villagers in Doooplaya district have enough rice and paddy, and even this minority will continue to shrink if the present circumstances persist. Most villagers have no access to 'modern' medicines and are reliant on traditional herbal and spiritual treatments, which often prove insufficient. Most villages are too poor to build a good school or hire qualified teachers, so many children miss out entirely on formal education and the majority never have a chance to study beyond primary school. For many children who want to proceed beyond primary school, the only option is to leave their family and try to get to a refugee camp in Thailand, where they can attend middle school while staying in a boarding house for unattended children.

The informal SPDC-KNU ceasefire has brought little change for villagers in Doooplaya District. Not only does fighting continue, with the attendant effects and reprisals on civilians, but people must still face forced labour, restrictions on their activities, and the possibility of being abused or killed at any time with complete impunity. The civilians are not considered parties to the ceasefire, and the increased freedom of movement it has created for SPDC forces has made civilians more vulnerable than ever to abuse. There is no sign that the ceasefire will impede or decrease the militarisation of the district; but as long as Doooplaya remains heavily populated by soldiers the lives and livelihoods of the civilian villagers will be in danger."

Read also The Burma Issues Special report, "[From Prison to Front line](#)" which includes an overview of the plight of IDP's during the 7th Brigade offensive in Eastern Karen State.

Karenni State

Displacement in Karenni State (February 2008)

- The most vulnerable IDPs, numbering 10,000, are living in hiding from detection by joint military and ceasefire party patrols
- Almost 5,000 villagers remained at eight relocation sites in Karenni State in 2007

TBBC, October 2007, p. 34:

"81,000 people are estimated to currently remain internally displaced in Karenni State with the majority of these living in chronic poverty in ceasefire areas administered by the Karenni National People's Liberation Front (KNPLF) and others. However, the most vulnerable internally displaced communities amount to 10,000 people who are living from detection by joint SPDC and ceasefire party patrols in Shadaw, Pruso and Pasaung townships.

While the ceasefire areas may have offered the promise of greater protection for villagers when first established over ten years ago, the ceasefire parties have lost much of their autonomy and must largely comply with SPDC orders. While the ceasefire parties depend on mineral extraction, logging and taxes [...] villagers in Pruso and Demawso townships have been coerced into cultivating opium poppy for the first time to supplement their subsistence livelihoods.

Even greater threats to lives and livelihoods are prevalent in the contested areas in Pasaung township, where construction work continues along the Mawchit to Taungoo road. The imposition of forced labour to repair the road and restrictions on movements to secure the road from sabotage have resulted in decreased access to field, forests and markets for local villagers.

Government controlled relocation sites were first established in 1996 and, although the majority of residents have since moved elsewhere, almost 5,000 villagers remain spread across eight relocation sites in Karenni State in 2007. This is mainly due to fear of returning to their original villages due to ongoing human rights abuses."

Karenni state: large-scale displacement of civilians since the 1990s (October 2006)

- Fighting between rebel groups and the government army as well as government-initiated development schemes, aimed at separating people from non-state groups by forcing them into relocation sites, has resulted in most displacements since 1960s
- Major forcible relocations of complete villages took place in 1992 and in 1996
- The largest conflict area in Karenni state is east of the Salween River, but this area has largely been depopulated since the late 1990s due to the fighting
- Internal displacement in Karenni state has recently been most intense in the southwestern township of Pasaung, which borders Karen State

TBBC, October 2006, pp.34-35:

"Karenni (or Kayah) State is ruled by the SPDC's Eastern Military Command, who delegated authority in 2006 to the Regional Control Headquarter (RCH) based in Loikaw and Operational Control Headquarter (OCH) based in neighbouring Pekon. There are currently 16 SPDC battalions spread throughout Karenni state, while another 7 battalions are also patrolling the area though they are based in Shan state. These battalions generally conduct joint patrols with the ceasefire groups of Karenni National People's Liberation Front (KNPLF) and the Karenni National Solidarity Organisation (KNSO).

When there are skirmishes with the armed opposition of the Karenni National Progressive Party (KNPP), the SPDC forces commonly retaliate against local villagers.

[...]

The most contested part of Karenni state is along the Karen state border in Pasaung and Pruso townships where the SPDC, KNPLF and KNSO are jointly struggling for control of the Mawchi – Taungoo road. "

TBBC, October 2004, p.28:

"Prior to the deployment of Burma Army troops during the ceasefire period of 1996, areas east of the Salween River in Shadaw township had been strongholds of the KNPP. However these forests have been depopulated since the late 1990's due to armed conflict and intense militarization, including the proliferation of landmines. So while the largest free-fire area in Karenni state is east of the Salween River, there are very few internally displaced persons hiding in this area."

A May 2000 report by the BERG group states fighting and public infrastructure projects as main causes of displacement:

BERG September 2000:

"The on-going conflict between State and non-State armed groups has led to the large-scale displacement of civilians in Karenni. The causes for this include: the widespread presence of State and non-State armed groups which threatens the security of civilians; military operations undertaken by all sides, including relocation policies of the State; human rights infringements; and a prevailing climate of impunity throughout. The conflict has also influenced the way other displacements have been carried out since the State's response has been a military one in which

policies are implemented without consultation, participation or even within the civil-legal framework.

[...]

Land ownership is extremely fragmented and a significant proportion of the population is landless in Karenni State. There are large numbers of displaced connected to economic interests in the area. With an economy based on access to teak resources - and of equal importance, hydro-electric power and mining concessions - the government has in some cases taken steps to pacify areas, quelling so-called 'insurgency' problems before undertaking investment in the areas. Much of this displacement is carried out in military style outside any civil or legal framework. Moreover, the deterioration of the formal economy has fostered the growth of an extra-legal state economy, focused on the extraction of natural resources that all groups, including the state, rely on.

In the absence of lasting and substantive peace, the displacement of civilians is likely to continue. The current cease-fire agreements in the state appear to be ad hoc economic deals rather than a process aimed at political resolution and peaceful reintegration. The cease-fires in fact have allowed armed groups to legitimise their the extra-legal state economy and added to further factionalism in the competition for increasingly scarce resources."

Karenni state: reports of displacement between 2004 - October 2006)

- During ceasefire talks with KNU, the Burmese army moved 15 new battalions into Karen and Karenni areas
- The Karenni claim the SPDC took advantage of the unofficial ceasefire with the Karen
- Thousands were also displaced by army raids in Karenni State

Displacement reported in southern Karenni State (as of October 2006):

Thousands of villagers were displaced during 2005 due to army offensives:

FBR; 16 January 2006:

"The Burma Army burnt villages, and displaced over 1,200 people in attacks against villages and IDP hide sites in Southern Karenni State.

[...]

The people of this area of Southern Karenni State have been under constant attack since December 2002 when over 2,000 Karenni and 3,000 Karen were attacked by 10 battalions of the Burma Army. (The Karen were from villages near the Karenni border who were also attacked by the Burma Army).

[...]

The attacks occurring now are focused on IDP populations who had returned to their homes from hiding after the earlier attacks. The stated purpose of the Burma Army in this area to clear all villagers out of the Karenni-Karen border areas and force them into relocation areas under Burma Army control.

In late November 2005 the Burma Army began the current operation in this area of Southern Karenni State with attacks against villages and IDP hide sites. They also launched attacks against villages and IDP sites to the west across the border in Toungoo District, Karen State."

Mizzima News, 20 December 2005:

"State Peace and Development Council and pro-military forces have accused villagers in areas controlled by the KNPP of supporting the group. Junta forces are known to have committed human rights violations in the area, have forcibly removed villagers from their homes and stolen property.

[...]

There are an estimated 90,000 internally displaced person or IDPs in Karenni State as people flee the fighting director of Karenni Social Welfare Committee Khu Hteh Pu said.

TBBC, October 2005, p. 34:

"The greatest area of instability is in Pasaung township where around 5,000 villagers are constantly hiding in forests. Out of 1,500 people who had fled from SPDC patrols into Karen state in early 2004, around 1,000 have returned to hide in areas surrounding their former villages. However due to insecurity, they are only able to cultivate small plots of land which yield just 3-4 months' supply of food. SPDC troops have planted landmines around water sources and jungle paths, so the villagers do not dare search for forest vegetables. Burma Army commanders forcibly relocated around 500 people from Mawchi into KNPLF administered areas of Mehset during the past year. The SPDC issued an order and also warned that in the event of a skirmish between SPDC and KNPP forces in the Mawchi areas, nearby villages would be burnt and civilians forcibly evicted.

In Shadaw township, internally displaced persons are in relocation sites near the town as well as villages further north. Over 2,000 people have attempted to resettle in 16 northern villages during the past year. They have not had official permission, but the SPDC authorities have ignored these movements. However, the villagers are susceptible to eviction at any time and flee whenever SPDC patrols approach, only to return again after the troops have passed. The areas north of Shadaw and Loikaw have also provided refuge to over 500 people who fled from the PaO ceasefire areas of Maw Mai and Hsi Hseng townships in neighbouring Shan state. These villagers fled due to conflict which broke out between joint forces of the SPDC and their ceasefire allies the SSNPLF against the SSA-S in June 2004. These displaced persons attempted to resettle next to existing villages along the Shan-Karenni border, but this is dangerous as the area is designated as a "black area" by the SPDC."

Internal displacement during 2004 was most common in areas bordering Karen State:

TBBC, October 2004, p.28:

"Internal displacement in Karenni state has recently been most intense in the southwestern township of Pasaung, which borders Karen State. Since the surrender of KnSO, SPDC has initiated another round of troop deployments and forced relocations to clear these mountainous areas which have never been controlled by Rangoon and are strategically important for road access from central Burma through Taungoo and Pasaung to the Thailand border. Approximately 7,000 people have been displaced by war or human rights abuses during the past two years and 4,000 people are estimated to remain hiding in free-fire areas along the Karen-Karenni state border.

There has been a high rate of non-compliance against relocation orders, with only 500 people estimated to reside in relocation sites in Pasaung township. The unsustainable nature of, and population turnover rate in, relocation sites is exemplified by Daw Tama Gyi and Htee Poh Kloh in Demawso township which were established in 1996, abandoned by 2000 and re-populated again in 2004. Reports from Pasaung also suggest that people are increasingly attempting to resettle in KNPLF ceasefire areas in other townships rather than following orders to move to, or remain in, SPDC relocation sites which are not economically viable.[...] However the extent to which people have been forcibly relocated by non-state actors into ceasefire areas can not be discounted, especially given that KNPLF and KnSO soldiers reportedly continue to escort SPDC' search and destroy patrols in the free-fire areas outside of Loikaw and Pasaung respectively."

Mon State

Despite ceasefire human rights violations leading to displacement (February 2008)

- Despite a ceasefire in Mon State, human rights violations are leading to internal and external migration
- In areas where a splinter group is fighting the Burmese military, brutal treatment of those suspected to be rebel collaborators is causing the local population to flee
- Many displaced are moving to the Mon ceasefire zones and refugee resettlement sites in search of protection

HURFOM, July 2007, p. 5:

"Though technically illegal under SPDC law No.1/99, forced labour is a main contributor to the problems of increased migration flow. From January 2007 to the present, the conscription of forced labour by the local authorities and commanders of the Burmese Army continues in southern Mon State and Tenasserim Division. This increase is due to the increased number of military troops in the areas."

Since the last week of January 2007, villagers who live in Khaw-zar Sub-Township, Mon State, have been forced by Infantry Battalion No. 31 to work on government infrastructure projects. These projects include bridge construction, road maintenance and gas pipeline fencing along the Ye-Tavoy motor road. Consequently, villagers could not do their own work and started to flee from their village.

Torture, arrest and ill-treatment are common in Southern Ye Township. The local ethnic villagers accused of being rebel supporters are subjected to brutal treatment by both the army and local authorities. Unknown numbers of people have died as a result of torture at their hands. In areas where armed groups opposing the government operate, dead bodies have been found showing obvious signs of torture. This serious human rights abuse contributes to the local population fleeing from their villages to becoming migrant labourers."

COHRE, November 2007, p. 59:

"Before the NMSP-SLORC ceasefire, under the *Tatmadaw's* 'Four Cuts' policy, forced relocation was common in many areas. Since 1996, brutal counter-insurgency campaigns have been reintroduced by the *Tatmadaw*, in areas where fighting has broken out again - most severely and recently (since late 2001), in Ye and northern Yebyu Townships.

In 1994, there were three *Tatmadaw* battalions based or operational in Ye Township; ten years later there were between 11 and 14. In 1999, the *Tatmadaw* forcibly relocated nine villages (seven Karen and two Mon) in eastern Ye Township. Such continuing rebel and counter-insurgency activity in southern Mon State has caused thousands of villagers to move to the Mon ceasefire zones and refugee resettlement sites, seeking the limited protection offered by the NMSP, and access to humanitarian aid provided by Thailand-based INGOs."

Mon state: land confiscation and demands for forced labour lead to displacement (October 2006)

- Conflict induced displacement decreased significantly in southern Mon State after 1995, when a ceasefire agreement was concluded between the NMSP and the Burma Army

- Forced labour and development projects continued to displace people, while conflict displaced people after the breakdown of the ceasefire during the late 1990s
- In 1998, 8,000 acres of land in the southern Mon State was confiscated by the SPDC
- SPDC has reportedly resumed its forced relocation program for villages outside NMSP ceasefire areas
- In addition, villagers are terrorized by militia opposition groups
- At least 16,000 people in Ye township have been internally displaced between 2002-2004
- 25,000 people remain displaced in NMSP cease fire areas after they returned from Thailand eight years ago
- Displacement and ethnic conflict in Mon State is still compounded by land confiscation and the transfer of people from central Burma by the Burmese Army
- Land continues to be confiscated during 2005 to build army bases

TBBC, October 2006, pp. 40-44:

Northern Mon and Karen states

"The northern townships of Mon state and the central townships of Karen state are, politically, relatively stable. As the Democratic Karen Buddhist Army (DKBA) and the Burmese Army have expanded their control across the area in recent years, armed conflict has significantly reduced. This has resulted in a decrease of 7,000 people in the internally displaced population estimates for these townships during the past year, with approximately 18,000 people remaining primarily in DKBA administered ceasefire areas in August 2006. However, the prevalence of human rights abuses committed by both SPDC and DKBA forces continues to undermine human security.[...]

Southern Mon and Karen states

There is relatively little armed conflict in the south of Mon and Karen States, due to the New Mon State Party (NMSP) ceasefire agreement and the expansion of SPDC control respectively. Villagers are still punished by SPDC's counter insurgency operations supposedly against the KNU in Kyain Seikkgyi township and the Mon splinter groups in Ye township. However, it is the systematic abuse of human rights in government controlled and mixed administration areas that is the primary cause of vulnerability and displacement.

The Burmese Army has controlled most of southern Karen state since a major offensive in 1997 against the KNU was followed by a campaign of confiscating lands and forcibly relocating remote villages. While over 10,000 villagers fled to refuge in Thailand, the lowland agricultural terrain made it difficult for those who remained to hide from the SPDC for long.

People are no longer allowed to live in scattered villages or remote houses, but rather villages must be compact and centralized for easy control. Most of the farms are still far from settlements, but villagers are not allowed to go there for more than a few days at a time, for which they must obtain an SPDC pass. Villagers traditionally live in farm-side huts while crops are cultivated, but these travel passes are not sufficient for farmers to protect crops from wild animals and stray livestock.

During the past year, local human rights activists have conducted over 100 interviews with villagers and obtained more than 100 written orders from local SPDC authorities in Kyain Seikkgyi to document the effects of expanded militarization. The findings include forced membership of SPDC-affiliated groups; land confiscation without compensation; forced labour without payment on army farms, roads and other infrastructure; forced portering of military supplies; arbitrary taxation, outright extortion and theft; as well as direct personal violence including rape and

execution. Karen Human Rights Group, Report 2006#4, "Setting up the Systems of Repression : The Progressive Regimentation of Civilian Life in Doooplaya District", 7 September 2006, www.khrq.org

In southern Mon state, the majority of internally displaced persons are dispersed across the ceasefire areas under the administration of NMSP. These are the safest place for people, with a greater degree of protection from human rights abuses. However when Burmese Army troops patrol nearby, villagers are still subject to abuses such as the forced conscription of porters and extortion of food. There has been a small population increase in the Mon ceasefire areas during the past year. New arrivals have mostly reported forced labour in mixed administration areas or restrictions on movement in conflict affected areas as the causes of displacement.

Conflict-induced displacement is primarily related to the deployment of 10 SPDC battalions in Ye Township for counter-insurgency operations against a Mon splinter group. In order to cut off support to the splinter group, the Burmese Army has applied its 'four-cuts' strategy against local civilians. Entire villages have not been forcibly relocated in this area, but the houses of alleged rebel supporters have been burnt. Travel outside of villages to work on farms, plantations or fishing boats has also been restricted. Villagers who violate these orders and pursue their livelihoods are subject to summary execution, arbitrary arrest and detention, or inhumane treatment.

However, villagers also continue to be punished for unsubstantiated support to the armed opposition in areas controlled by the SPDC as well.

[...]

Like in many areas of Burma, the local SPDC authorities have forced the people in most townships of Mon state to grow castor oil plants with the objective of producing bio-diesel as an alternative source of fuel. Individual households have been ordered to plant at least 10 of these palms in their home gardens. Some farmers have had lands confiscated, only to then be ordered to begin cultivating new plantations of castor oil plants on their former lands.

Insufficient food rations for SPDC soldiers are another reason that land continues to be confiscated by the Burmese Army in Mon state. For example, around 200 acres was recently confiscated from Mon farmers in order to support a Burmese Army Training School near the Thanbyuzayat-Ye junction with the road to Three Pagodas Pass.

[...]

In order to control the southern part of Ye Township, the Burmese Army has established a sub-township administration center in a Mon village called Khaw-zar. This has resulted in SPDC authorities forcing villagers in the area to build, without payment, administrative offices and a 20 kilometer long road to Ye. The authorities and army commanders also pressured teachers in the area to cease teaching Mon language in Mon National Schools. In effect, the sub-township is another form of Burmanisation."

TBBC, October 2005, p.39:

"[...] Mon splinter groups maintain armed resistance in southern Ye township. Similarly, the KNU is still active in the Karen populated areas of Thaton and Bilin townships. Since the SPDC deployed an additional five battalions into Ye township and negotiated the informal ceasefire with KNU, the intensity of counterinsurgency operations have decreased in 2005. However, human rights abuses in SPDC controlled and mixed administration areas continue to cause high rates of displacement into the NMSP ceasefire areas.

The harassment of villagers in southern Ye township suspected by SPDC as sympathizers of the splinter group continued during the past year. Over 150 houses were burnt in April and May 2005 near the border with Tenasserim Division in retaliation for the house-owners supposedly supporting the rebels. Farmers were restricted from leaving villages and travelling to their farms and plantations without travel permits. In some cases, villagers suspected of supporting the

splinter group were beaten and targeted for conscription as porters. All of these factors created food shortages which in turn led to displacement.

In the year leading up to the wet season of 2005, around 10, 000 people have been displaced from their homes in Ye Township. Displacement was primarily caused by land confiscation, arbitrary taxes and the conscription of forced labourers which all undermined livelihoods. However forced conscription of villagers into military training, summary arrest of community activists and sexual violence against women were also common. Mon human rights groups documented the rape of 19 girls and women by SPDC commanders and soldiers during 2004. This led to an increased fear of sexual assault, which in turn contributed to further displacement. The majority of these newly displaced people fled to the shelter of the NMSP's ceasefire areas. Upon discovering the mountainous terrain and limited livelihood opportunities in the Mon ceasefire areas, some villagers migrated further into Thailand. Other families moved into cities and towns, where they thought that abuses would not be as violent. A few families returned to their former villages, but this decision was only a sustainable option for a small number of households at any location. However, most stayed in the ceasefire areas despite the livelihood constraints.

There was no fighting in Thanbyuzayat and Mudon townships but human rights abuses were also widespread. Even though civilians were not forcibly displaced in these townships, thousands of young people migrated into Thailand to search for work. The situation is similar in the northern townships of Thaton and Bilin, where most of the area is a mixed administration area. People are still facing with various kinds of forced labor and extortion, not only for the Burma Army but also for the DKBA. The construction of a car road from Thaton to Kamamaung on the Salween River has been a key cause of deprivation, with demands for construction materials and labour undermining livelihoods."

Episodes of displacement and land confiscation are regularly reported:

Kao Wao News, 16 July 2004:

"Local civilians fled from their villages in Southern Ye of Mon State after the Burmese Army ordered them to build roads linking villages in the areas. Village headman from the area said, "We cannot work for our family because we have to work for their (State Peace and Development Council's) need".

[...]

The road is for the use of the SPDC's troops to attack Mon guerilla group according to the villagers who just arrived at the Halockhanee camp waiting to enter Thailand.

Army Commander Colonel Myo Winn and Nyi Nyi Swe ordered the road to be completed since the military offensive began in December 2003."

Kao Wao News, 19 April 2005:

"About six hundred plantations and private gardens were confiscated in Mon State by SPDC and local junta authorities. The land will be set aside for the building of new artilleries for the Burma Army, a source from Ye township said.

The troops are to be based on higher ground in the area or on the British mountain (Day Halae in Mon), the site of old British battalions during World War 2nd, the source said. The BA is planning to confiscate the whole surrounding area which includes Mon plantations and gardens in the western part of Ye township, Mon State.

[...]

"The owners are allowed to travel to their plantations to pick vegetables and some fruits, but they have to pay 2500 Kyats for per acre to the (SPDC)," a local Mon politician said.

[...]

Receiving no compensation from the Burmese junta, the farmers and their families face an uncertain future and will add to the thousands more internally displaced in the country."

Kao Wao News, 26 January 2005:

"Sangkhlaburi -- About a hundred families fled to Mon resettlement camp near Thai Burma border during this month after their homes were destroyed by Burma Army, Mon Relief and Development Committee reported.

The majority of newly arrived IDPs (Internally Displaced Persons) are from Pauk Pinkwin (Wae Kwao), Ma Kyi (Mang Glong) and Hoay Kyar villages of southern Ye and Yebyu Townships after some houses were uprooted by the Burma Army."

Mon State: Human rights violations continue unabated (December 2005)

"Some destroyed Mon villages were re-established after ceasefire. However the ceasefire is not the final solution for the armed struggle and political settlement in Burma. Although the Burmese Army ceased their fighting against the MNLA, but on the other hand, they have violated various types of human rights violations. Even after the Mon ceasefire with the regime, thousands of Mon civilians have been forced to contribute their labour in the government's development projects.

Some former Mon soldiers from MNLA, who dissatisfied on the constant use of forced labour especially in the construction of 110 miles long Ye-Tavoy motor road, also resumed fighting against the military regime. They started their fighting in early 1998 again outside of NMSP and the regime agreed ceasefire zones. Therefore, the small scale armed fighting have occurred against in Ye Township (in Mon State) and Yebyu Township (in Tenasserim Division).

[...]

The Mon villagers outside of the regime's firm control area and NMSP's 12 permanent ceasefire zones are still accused as 'rebel-supporters'. In this situation, thousands of Mon villagers still displaced similarly to other ethnic people in the various parts of eastern and southern part of Burma." (HURFOM, May 2003)

"The Mon ceasefire agreement became more tenuous due to the New Mon State Party deciding to only send

observers to the National Convention. Village leaders were ordered to increase surveillance of NMSP members' activities and the Burmese Army deployed 5 more battalions into NMSP areas during 2005. In ceasefire areas, the tension has primarily manifested itself through restrictions on travel to markets and fields. However, outside of ceasefire areas, there has been an increase in state violence directed at Mon communities suspected of supporting the armed opposition. Over 1,000 Mon civilians from a village near the border between Mon state and Tenasserim Division were punished with mass detentions, beatings and forced labour during December in retaliation for a nearby ambush of Burma Army forces." (TBBC, December 2005, p.8)

See also " [Socio- economic condition of Mon IDPs in southern Burma](#)", by Woman and Child Rights Project, 30 September 2004 and [monthly reports](#) by the Human Rights Foundation of Monland

Other states

Tenasserim (Tanintharyi) Division: forced relocation during the 1990s directly linked to construction of gas pipelines (October 2005)

- Linked to development projects, over 140 villages have been forcibly relocated since 1996

- Attempts to return people to their former villages have been thwarted by further displacement
- Conflict and human rights abuses have displaced 30,000 people between 2002-2004
- Fighting between SPDC and a Mon splinter group has displaced people into a NMSP ceasefire area in the northern part of the Tenasserim Division
- In the Tavoy and Palaw townships, around 12,000 people remain in relocation sites while an estimated 2,000 are hiding in the hills
- People from over 50 villages have attempted to return during the past two years, only to again be displaced upon arrival
- Further south, 10,000 people are estimated to have been displaced by ongoing counter-insurgency efforts and demands for forced labour during the past two years

NCGUB, September 2002, "*Internally Displaced People and Forced Relocation*:"

"The population of the villages and towns along the Andaman coast is a mix of Burman, Karen, Mon, Tavoyan and some villagers of Indian descent; some villages and areas are almost exclusively Karen or Mon, while others are various mixtures. Villages further inland, in the hills and river valleys nearer the border with Thailand, are predominantly Karen with some Mon villages in the north of the area and a mixture of Mon, Karen, Thai and Burman in the far south. Travel in the region is difficult; the 'main' road along the coast is often little more than a wide dirt track, and roads heading into the interior are often more like oxcart tracks. In the hills most travel is on foot, or by canoes (powered by paddles or motors) along major rivers such as the Tenasserim, which are dotted with rapids and can be treacherous.

The region has long been a world unto itself in the struggles between Burmese regimes and the resistance groups."

TBBC, October 2006, p.45-48:

Northern Tenasserim Division

The current situation in Yebyu, Tavoy and Thayetchaung townships in northern Tenasserim Division is symptomatic of the flux caused in the mid 1990's. That was when investment interests in the Yadana gas pipeline pressured the NMSP into a ceasefire agreement, but the lack of a political settlement has subsequently led to various frustrated groups splintering away from NMSP. Then in 1997, the Burmese Army launched a major offensive to occupy areas previously controlled by the KNU. The civilian population was targeted for eviction from their homes and forcibly relocated to areas under Burmese Army control. Tens of thousands of villagers either fled for refuge in Thailand or to hide in the forests surrounding their land. In August 2006, approximately 32,000 internally displaced people were located in these townships, representing a slight increase compared to last year. The vast majority of these villagers are residing in government controlled relocation sites and consolidated villages, although over 5,000 people are in the NMSP ceasefire area and more than 1,000 villagers are hiding from the Burmese Army.

The Mon splinter group has less than a hundred members, but they continue threatening and ambushing both military and civilian transportation along the Ye-Tavoy road in northern Yebyu township. Although the splinter group does not appear to have a political agenda, and can not claim much grassroots support, its activities provide a pretext for the Burmese Army to conduct counter-insurgency patrols in this area. Two villages were forcibly relocated by the Burmese Army due to suspicions that the villagers had assisted the splinter group.

[...]

Even civilians who have obeyed orders to relocate or consolidate into larger villages under SPDC control are subject to restrictions on movement.

[...]

These townships have also been affected by development-induced displacement and land confiscation in particular. Under the orders of SPDC's Coastal Military Command, thousands of

acres in Tenasserim Division have been confiscated without providing any compensation to the landowners

[...]

Southern Tenasserim Division:

The combined scale of displacement remains greater in the southern townships of Palaw, Mergui, Tenasserim and Bokpyin than in northern Tenasserim Division. Over 57,000 villagers are estimated to be internally displaced, primarily in government controlled relocation sites primarily along the main roads north of Tenasserim town and on the banks of the Tenasserim river. However, there also remain over 4,000 villagers hiding in remote areas who are constantly subject to counter insurgency operations attempting to isolate the KNU from its constituents.

The proximity of villagers in relocation sites to SPDC authorities constantly subjects them to the imposition of human rights abuses, and in particular forced labour, arbitrary taxes and travel restrictions. Forced labour is most commonly associated with road construction, the transport of military supplies and for general maintenance tasks in SPDC military camps. However, even the promotion of education in relocation sites is conditional upon villagers providing the labour free of charge. The SPDC has either not provided funds for the construction of schools, or those funds have diverted for personal profit by local authorities.

[...]

The vulnerability of civilians in hiding deteriorated in June 2006 when the new Coastal Regional Commander instructed his troops in Palaw, Tenasserim and Bokpyin townships to intensify "search and destroy" operations against the KNU and its supporters. After almost a decade of survival in hiding, the increased frequency of SPDC attacks and the lack of distinction made between soldiers and civilians is beginning to exhaust the coping strategies of villagers.

TBBC, October 2005, p. 40:

"The Mon ceasefire areas in Yebyu township have seen an influx of 3,000 new arrivals fleeing conflict and human rights abuses during the past year. Similar to the situation in Ye township, this has primarily been in response to SPDC harassment of suspected supporters of the Mon splinter group's armed opposition. However, given less livelihood opportunities in the ceasefire areas of Yebyu, most of these new arrivals have continued their search for refuge into Ye or Thailand."

See the [internet site of the Mergui-Tavoy District Information Department](#), for background and further information on displacement in Tenasserim Division (including photographs of IDPs, relocation sites and destroyed villages, plus 'Map showing mass forced relocation program against the Karen population by Burmese troops in Tenasserim division'

Eastern Pegu Division: forced relocation is the main cause of displacement (October 2006)

- As the conflict-affected area most accessible from Rangoon, villages in eastern Pegu Division have been targeted for forced relocation since the mid 1970's
- The harassment of internally displaced persons has largely been attributed to a government sponsored local para-military group: Sa Thon Lon
- The SPDC generally patrol relocation sites and the immediate environs in the plains, while Sa Thon Lon forces more commonly patrol upland areas to search for internally displaced persons hiding in free-fire areas and to destroy any crops found along their path
- Villages in areas beyond SPDC's control have been forcibly relocated along the Shwegyin-Kyaukgyi-Tantabin road while villages within close proximity to SPDC bases have been subjected to forced labour and arbitrary taxes

TBBC, October 2005, p. 38:

"Villagers in the three most eastern townships of Pegu Division have been subjected to the counter-insurgency strategies of the Burma Army since the mid 1970s. The general pattern has been to undermine the livelihoods of villagers in upland areas along the Karen State border and forcibly relocate them into the lowland areas along the Sittaung River. This trend and the construction of a network of roads has continued to cause displacement during the past year. While road construction generally improves access to markets, the main purpose in eastern Pegu Division is to support the Burma Army's military strategy [...]

Apart from the use of forced labour to upgrade the roads, the deployment of additional SPDC outposts has increased demands for civilian porters to transport rations and ammunitions. However, the main cause of displacement during the past year was the forced relocation of over 4,000 villagers from four village tracts in Kyaukgyi township. Apart from being evicted from their homes, these villagers are now vulnerable to a range of SPDC demands for fees to compensate anything from porters to sentries, development projects, emergencies and sports. Apart from portering and clearing roads, SPDC troops also conscript labourers to collect bamboo, wood and thatch for housing, dig their bunkers, build their barracks, build perimeter fences, and work in military-confiscated rubber plantations and paddy fields. Food supplies and livestock are also liable to be extorted by Burma Army troops.

Villagers remain in hiding from SPDC patrols in the upland areas of Kyaukgyi and Shwegyin townships. Between January and March in 2005, the Burma Army joined forces with the Democratic Karen Buddhist Army (DKBA) to try and clear these areas by searching for and destroying food supplies, crops and settlements. Over 2,000 baskets of paddy were destroyed or confiscated by the Burma army. A similar amount had to be abandoned by villagers in paddy barns they dare not return to. The combined effect, which is equivalent to over 500 people losing their rice supplies for the whole year, undermined the food security of thousands of internally displaced persons. Informal markets where lowlanders and uplanders trade goods were also disbanded and logging companies moved into some of the forests after the villagers had scattered."

TBBC, October 2006, p. 37: (also including Papun)

"While SPDC patrols to search for civilians and destroy settlements in the Taungoo hills intensified at the end of 2005, it was not until February 2006 that the focus shifted south to Kyaukgyi, Papun and Shwegyin townships. Patrols by over 30 battalions targeted civilians and were jointly coordinated by Operation Controls #16 and 21 under SPDC's Southern Command and Operation Controls #10 and 15 under the South Eastern Command. By August, SPDC patrols had resulted in the abandonment of over 100 villages in these 3 townships. More than 22,000 civilians were either relocated to SPDC controlled areas or fled the approaching SPDC troops to hide in mountainous forests.

This was the largest military operation in this area since 1997-1999. In northern Papun township, many civilians who previously lived in Ler Mu Plaw and Saw Mu Plaw village tracts were displaced to more remote areas of Kay Pu and Na Yo Hta where they remain today. Similarly, many villagers from Phla Kho fled to the mountainous Na Yo Hta and Yeh Mu Plaw village tracts and have been depending on shifting cultivation for subsistence there ever since.

[...]

SPDC patrols in Kyaukgyi's highland areas have been particularly brutal north of the Kyaukgyi - Saw Hta road and east of Mone. Between March and May, villages in lower lying mixed administration areas were prohibited from leaving their villages to prepare fields for the wet season rice crop or any other reason. These restrictions and the forced recruitment of porters were followed by the advance of SPDC patrols into the highlands. These patrols did not distinguish between the armed KNLA opposition and ordinary civilians, but rather were ordered to shoot on sight. 9 villagers were killed in separate incidents by these patrols, bringing the total number of extra-judicial killings in this area between January and May 2006 to 17 deaths. "

Kachin state: land confiscation leads to displacement (June 2005)

- Estimates suggest that there were around 67,000 internally displaced in the Kachin State prior to the signing of a ceasefire
- While conflict-related displacement has decreased, the impoverishment of many rural dwellers following three decades of strife have led to significant rural displacement
- Following the ceasefire, villagers have continued to be displaced by the Burmese Army, and as a consequence of natural resource-extraction
- However, local groups have been formed in many displaced communities, and have started to work with local and international NGOs to reconstruct Kachin society

BERG September 2000, "Kachin State":

"While the situation of internal displacement is not reported and hence the scale of the problem not well known in Kachin state, 30 years of internal conflict between the various Kachin independence movements and the Burmese army has resulted in large-scale displacement of the Kachin population. Figures from Kachin State suggest that perhaps 100,000 were forcibly relocated from their homes by counter-insurgency operations between the 1960s and 1990s, while other estimates suggest that in 1994 - prior to the signing of a cease-fire - there were around 67,000 internally displaced. More recent estimates suggest that although conflict-related displacement has decreased, the impoverishment of many rural dwellers following three decades of strife have led to significant rural displacement. As no peace dividend followed the cease-fire agreements, leaving the issue of resettling previously displaced groups obscure, many rural populations in Kachin State have become landless and forced to seek a livelihood in the extractive natural resources (mining) sectors or in the service sector in urban areas.

Indeed despite the negotiated cease-fire arrangements between the central government and the Kachin Independence Organisation (KIO) and the Kachin Democratic Army (KDA) there continue to be problems of displacement and land confiscation. As has been remarked by numerous civilians in Kachin State, cease-fires have allowed the different armies to retain their arms and territory, controlling and taxing the populace, while basically prioritising business for themselves through the extraction of natural resources. These complaints are not solely levied at the rebel groups, but more importantly at government, as the army has claimed much farmland, principally to grow food. Recently the government put up 27,000 acres of fallow land for paddy production and has opened a land-title registration office in Myitkyina to facilitate the transfer of such land to new owners."

Ratana Tosakul-Boonmathya, 28-8-2002:

"During the civil war, many rural inhabitants were forced to relocate. They were deprived of their home communities, farmlands and other property. The majority of them today are poor, illiterate, and plagued by fatigue and famine.

[...]

The cease-fire between the Kachin Independence Army (KIA) and the Burmese military on February 24, 1994, has brought a moment of peace and political stability to Kachin State and its people, particularly to the majority in the rural countryside.

[...]

During the civil war, villagers had moved from one place to another for their survival. They have been displaced and lost their occupations, education, health and self-esteem. After the cease-fire in 1994, many returned to resettle in relocation areas near and around Myitkyina, the capital city of Kachin State, but have no security in life. In relocation areas, members are from diverse ethnic and religious groups and from different home communities. The majority are Christians and very

few are Buddhists and animists. Generally, people form their own factions of kinsmen and close friends whom they have met regularly at local religious services. Different ethnic and religious factions tend not to unite or trust each other easily. Villagers are generally very poor and live from hand to mouth. They have uncertain employment. They have hardly enough food or money to live on.

[...]

To avoid confrontation with the military, many of them fled from the relocation settlements and hid themselves in the San primary forest. After the cease-fire agreement in 1994, villagers were not allowed to return to their home villages. They had to rebuild their lives, families, communities and cultures from scratch. In relocated communities, there were no roads, no schools and no public health stations.

Villagers in the vicinity have relied on the San forest for their livelihood. They have hunted wild animals and collected forest products, such as mushroom, bamboo, vegetables, medicinal herbs, rattan and fuel woods for home consumption and use and for market. They cut down trees and converted about two to three hundred acres of the forest area into farmland for shifting cultivation yearly. Since villagers have no knowledge of alternative occupations and in any case lack capital to invest in any other occupational alternatives or permanent paddy fields, they find it difficult to give up their traditional methods of shifting cultivation. As a result, the San virgin forest protection project became a local initiative for halting shifting cultivation, which was originally believed to be the prime factor contributed to deforestation in the San forest area.

[...]

To help escape this vicious cycle of poverty and pattern of exploitation [local development workers] have initiated diverse small-scale community development projects such as micro credit unions (MCUs), rice banks, and buffalo banks in their respective areas.

[...]

The case of the micro-crediting system has initiated alternatives to borrowing from private moneylenders who charge exorbitant interest rates. The Kachin Rural Women Development Center has provided a new economic and cultural space for rural women from remote areas to rebuild their collective identities as being dignified women with capabilities to sustain their lives and families, communities, and culture. Lastly, the virgin forest protection project has demonstrated how villagers can sustain their economic livelihoods in a sustainable environment."

HRW, June 2005, Kachin State:

"The main cause of post-ceasefire displacement in Kachin State is land rights. Although counter-insurgency motivated forced relocations have stopped, communities continue to still lose their land, due to:

- Post-ceasefire militarization, and farmland confiscated by the *Tatmadaw*. Before the ceasefire, there were four battalions in Bhamo District, southern Kachin State; by 2004, there were eleven, each of which had reportedly confiscated three hundred-four hundred acres of land.
- Up to four thousand people have been displaced by large-scale jade mining around Hpakhant in western Kachin State. Increased post-ceasefire logging and gold mining activities have also brought environmental damage to several areas, as well as charges of corruption against officials of different ceasefire groups.
- Large-scale agriculture projects have also often involved unlawful land confiscation, as has development-induced displacement, such as road, bridge, and airport construction in the state capital of Myitkyina, all of which have been carried out without regard for international standards on forced eviction.

All of these factors have been causes of continued forced displacement since the ceasefire—people are still being displaced, although the reasons have changed. In many cases, the abuses outlined above—particularly land loss, plus the prevalence of forced labor—have undermined villagers' livelihoods so severely that they have had little choice but to migrate either within

Burma, or to a neighboring country. Indeed, food insecurity, loss of livelihood, and lack of access to basic services (such as education and health) are probably the most widespread and chronic causes of forced displacement in Burma."

GW, October 2003, p. 97:

"The ceasefires have led to a vast improvement in the human security of the average person in Kachin State. This includes a very significant decrease in the loss of life and significant decreases in the most serious human rights abuses such as forced portering, rape, and torture. In addition for the first time in three decades of war many families were able to plant crops again and come out of hiding in the jungle. There have also been small improvements in education and healthcare, freedom of movement and trade. A small number of Burmese and a handful of international NGOs have been allowed to operate in a limited way to implement health and development work. The KIO is said to have prioritised resettlement programmes for tens of thousands of displaced Kachin people but it is not certain how much resettlement has actually taken place.

However, forced labour as well as indiscriminate killing still takes place in Kachin State. There are also manifold problems with the way that the ceasefires have been implemented, that go a long way to undermining the immediate benefits derived from the cessation of fighting and may ultimately lead to the breakdown of the ceasefire agreements themselves. For instance, there are serious problems of natural resource depletion, health and land rights issues. Since the ceasefires the nature and scale of natural resource extraction has changed radically. Some of these changes may have been written into ceasefire agreements, whilst other changes have resulted from power struggles within and between ceasefire groups and the SPDC. There is also concern about the increasing number of SPDC troops based in Kachin State.

[...]

It has also been reported that the NDA(K) [*ceasefire group*] has a policy of moving villagers down from the mountains towards roads, so that they can be resettled in larger villages. Whether this is to facilitate logging, or if it is a crude method of social control is unclear. The NDA(K) has claimed that this is done to 'protect' the forest from shifting cultivation carried out by the villagers. A logger from Pian Ma told Global Witness investigators that the Chinese government is helping these displaced villagers with agriculture."

See the 'The Kachin Post' [internet site](#) for further information on the background to displacement issues in Kachin State

Internal Displacement in the Chin State and Nagaland (February 2004)

- The situation in the Chin State is not well known, but estimates by the Chin population reflect large-scale displacement
- Thousands have fled to Rangoon and other areas inside Burma, while at least 50,000 have crossed the border to India
- In the Sagaing Division, the Naga have suffered significant conflict-related displacement in recent years
- In addition to conflict-induced displacement, border area 'development' programmes have forcibly resettled people
- Numerous Naga villages have been displaced after fighting between SPDC and Naga insurgent forces

"It is already apparent that the genocide campaign is taking a toll on the Chin society. Families are increasingly separated and more people are feeling [sic.] the Chinland to seek safety elsewhere. More than 50,000 Chin refugees have fled to India since the 1990s when the military junta began sending thousands of troops to Chinland. Thousands of Chin families have made their way to Rangoon and elsewhere to escape conditions at home, becoming internally displaced persons (IDPs).

[...]

Fifty thousands Chin refugees living in Mizoram [India] are not recognized as refugees by the Indian government and are considered illegal immigrants. Thousands of them have been arrested and forcibly returned to Burma." (CHRO, February 2004)

"The situation in Chin State has also not been well reported, hence the scale of the problem is not generally known. However, estimates by Chin people themselves reflect large-scale displacement of population. The Chin National Front (CNF), a pan Chin nationalist movement, reports displacement taking place. Members also estimate that there are 40-50,000 persons displaced from their homes, many of whom have fled to Mizoram State in north-east India.

In addition to conflict-induced displacement, many states have introduced border area 'development' programmes, entailing resettlement of populations and carried out under the auspices of the Ministry for the Development of Border Areas and National Races, set up in May 1989. Initiated in border states where successive central governments have been involved in long-standing conflicts with ethnic armies, its objectives among others, are to carry out 'all round development', promote national unity and stamp out poppy cultivation. This programme was to extend to 19 distinct border zones with an estimated population of four million [...]. In these zones two groups were eligible for resettlement: former insurgents who laid down their arms in so called 'welcome' sites and populations displaced by military action between the army and insurgents.

In the seven largely Burman-inhabited divisions, with the exception of Tenasserim Division, the displacement situation is little better despite the absence of any insurgent activity there. Evictions for reasons of city beautification, urban development and infrastructure construction (particularly roads, railways and dams) are likely to be the same as in the seven ethnic majority states. The construction of the Kalyan-Gangaw railway line in Sagaing Division illustrates clearly that the problems of forced displacement are not only confined to the war-affected zones. The line crosses mostly flat farmland and paddy fields; these were destroyed without any compensation being paid by the national government." (BERG September 2000)

"In the Chin State there were reports that 3,000 Naga villagers fled the country into northeastern India in May [2001] when the army launched an offensive against Naga separatists. Army troops reportedly burned villages and laid landmines to discourage villagers from returning.

[...]

Authorities have attempted to prevent Chin Christians from practicing their religion. Military units repeatedly located their camps on the sites of Christian churches and graveyards, which were destroyed to build these camps; local Chin Christians were forced to assist in these acts. In addition the army reportedly also has taken over churches to use them for bases in remote areas.

[...]

Since 1990 government authorities and security forces have promoted Buddhism over Christianity among the Chin ethnic minority in diverse and often coercive ways. This campaign, reportedly accompanied by other efforts to "Burmanize" the Chin, has involved a large increase in military units stationed in Chin State and other predominately Chin areas, state-sponsored migration of Buddhist Burman monks from other regions, and construction of Buddhist monasteries and shrines in Chin communities with few or no Buddhists, often by means of forced "donations" of money or labor.

[...]

There also were a number of credible reports that the army continued to force Chin to porter for it, both in Chin State and Sagaing Division. In addition the Army reportedly no longer takes rations with it, and rather lives off of local villagers often by force, although villagers reportedly were permitted to provide monetary compensation in lieu of such work. Local government officials ordered Christian Chins to attend sermons by newly arrived Buddhist monks who disparaged Christianity. In addition there were reports during the year that many Christian Chin were pressured and some were forced to attend monk school and Buddhist monasteries and then encouraged to convert to Buddhism." (US DOS 4 March 2002, sect. 1g & 2c)

NAGALAND

"Moreover, as is the case in Sagaing Division, the designated administrative boundaries of the division conceal the ethnic diversity within its borders and internal displacement which has occurred. Many Naga people, estimated to be around 100,000 strong in total, populate the four northern townships of the division, near the town of Khamti and the Patkai mountain range [...]. Fighting for an independent Nagaland in both India and Burma, and facing increased internal divisions, the Naga have suffered significant conflict-related displacement. In the last six years particularly along the Khamti-Tekai road, numerous Naga villages have been displaced after fighting between SPDC and Naga insurgent forces. It is estimated that up to 1,300 villagers have been displaced and fighting seems presently to have increased." (BERG September 2000, "Other States and Divisions of Burma")

"Delegates of the Relief Team from NPMHR and NSF have just returned from Chen Mohu, Mon after delivering the relief materials to the Nagas from Eastern Nagaland who has been displaced following the Myanmar military crackdown on their villages. The team comprising of eight members from both the aforementioned organizations left for Mon on the 1st of June, 2001 and returned on the 4th of June, 2001.

Many villagers from Chen Hoyat, Throilo and Nyanching have taken refuge in the neighbouring villages of Mon district of Nagaland state, while many are still hiding in the jungles in Eastern Nagaland. According to the refugees we met at Chen Mohu the atrocities meted out on them were gruesome. A couple caught by the Myanmar army suffered excruciating tortures leading to the death of the husband. The wife was raped for two days and released at another village. Their five children had fled with the rest of the villagers. Several had gone missing while the bodies of at least three who had starved to death had been discovered. Those who escaped also do not know how the people are sustaining themselves in the jungles in the rainy weather of the summer season.

Except for some few houses and granaries in the outskirt of Throilo village, all the three villages have been burnt to ashes. Many of the cattle were eaten up by the Myanmar army in the campaign. The others were just shot and left to rot in the jungles.

After burning down the three villages, the Myanmar army left several mines inside as well as around the burnt villages. As of now, nobody has fallen victim to the landmines. Only a bear, a pig and two cows has been killed by the landmines. For this reason the villagers are unable to go back and rebuild their villages." (NPMHR/NSF June 2001)

See the [internet site of the Chin Human Rights Organisation](#) for further information on the background and patterns of displacement (including forced labour) in Chin State.

Rakhine state: Confiscation of land and establishment of "model villages" leads to numerous cases of forced evictions and relocations (June 2003)

- Construction of model villages for Buddhist settlers and new military camps force Muslim Rohingya to move to less fertile lands
- Arbitrary confiscation of land without compensation still continues
- Settlers have been transported to Rohingya lands from Kachin State and Rangoon.

Confiscation of land and establishment of "model villages" leads to numerous cases of forced evictions and relocations:

AI May 2004:

"The confiscation of land in Northern Rakhine State is related to the establishment of "model villages"; the construction or expansion of NaSaKa, military, and police camps; and establishing plantations for the security forces and also for new settlers. More recently, a number of forced evictions have taken place when people were accused of having built houses on land that local authorities claim is officially registered as farmland or rice fields, not residential land.

[...]

The building and the extension of military camps, mainly for the NaSaKa, have also led to land confiscation. Moreover the NaSaKa has on numerous occasions confiscated land for commercial purposes, mainly to establish shrimp farms but also rice fields for themselves. People reportedly receive no compensation, and are sometimes also forced to work on the same fields that were confiscated from them. In other cases the NaSaKa has rented out confiscated land as shrimp farms or rice fields to the local population.

Forum Asia 15 June 2003, pp.9-10:

"Arbitrary confiscation of land without compensation continues, either to provide land for new Buddhist settlers or to build and enlarge military camps, including plantations to grow crops for the military for their own food as well as for commercial purposes. In 2002, at least two new "model village" for Buddhist settlers were established in Maungdaw Township and several military camps have been constructed or expanded to consolidate the border between Burma and Bangladesh in the aftermath of the September 11 attack and the global anti-terrorist campaign.

[...]

The Rohingya in Northern Arakan State continue to face constant humiliation and systematic discrimination, and are subject to widespread human rights violations. They are living in a climate of fear and oppression. Despite the presence of UNHCR and international agencies, conditions have hardly improved. As one NGO representative in Rangoon recently stated: "The presence of UNHCR and some international NGOs has only provided limited relief, but not a structural change."

NCGUB, September 2002, "Internally Displaced People and Forced Relocation":

"According to villagers still living in Rathidaung, out of the 53 Muslim villages existing in the district before 1995, only two remained in 1999. The construction of model villages for Buddhist settlers in the north of the state also entails the forced relocations of Muslims who are moved to less fertile lands, usually without adequate time to prepare or any compensation."

Narinjara News, 17 May 2004:

"The people about 20,000 who were forcibly shifted in late 1990 by SPDC Burma military government to new plots outside Akyab, the capital of Arkan, in the name of reconstruction and modernization of the city, now are undergoing untold inhumane suffering living without supply of electricity and water, learnt from a resident living there.

It is 10 years over, the people who are residing in newly allotted area are deprived of all the civic facilities like electricity, water, street, link roads, health complex etc."

Settlers have been transported to Rohingya lands from Kachin State and Rangoon.

Narinjara News, 7 November 2002:

"Members of a Kachin ceasefire group were brought into Rakhine State, in the western part of Burma for settlement on 22nd October, according to our correspondent.

A total of thirty three ethnic Kachin families from the northern part of Burma were moved to be settled at Ngaraing-chaung model village under Maungdw Township, bordering with Bangladesh. The village formerly called as Kathay model village, where a wide scale forced labour was used, has been renamed as Ngaraing-chaung by the Burmese junta (SPDC).

[...]

Before this batch of settlers, about one thousand families from Burma proper have been settled by the Burmese junta in the area close to Bangladesh."

Population of Arakan (Rakhine) State vulnerable to violations and forced displacement (February 2008)

- The Rohingya of Arakan State remain the most persecuted ethnic minority in Burma, and vulnerable to forced migration
- The Burmese government's policy of relocating Buddhist Rakhine to model villages in northern Rakhine State has resulted in confiscation of land from the Rohingya
- Besides the Rohingya, local sources estimate there are approximately 80,000 IDPs in hiding or living in temporary settlements in the jungles and mountainous areas of Arakan State

USDOS, September 2007:

"Muslims in Rakhine State, on the western coast, and particularly those of the Rohingya minority group, continued to experience the severest forms of legal, economic, educational, and social discrimination. The Government denies citizenship status to Rohingyas because their ancestors allegedly did not reside in the country at the start of British colonial rule, as required by the country's citizenship law. The Muslims assert that their presence in the area predates the British arrival by several centuries. On April 2, 2007, five U.N. Special Rapporteurs and an Independent Expert called on the Government to repeal or amend its 1982 Citizenship Law to insure compliance with international human rights obligations. Without citizenship status, Rohingyas do not have access to secondary education in state-run schools because the Government reserves secondary education for citizens only. Since 1988 the Government permits only three marriages per year per village in the primarily Rohingya townships of Maungdaw and Buthidaung in northern Rakhine State, and requires the approval of the Regional Military Commander. Muslims in the country also have difficulty obtaining birth certificates. A local official in Sittwe, Rakhine State, reportedly issued a verbal order in 2005 prohibiting the issuance of birth certificates to Muslim babies born in the area."

Amnesty International, 2004, p. 11:

"The SPDC policy of relocating Rakhine Buddhists and other non-Rohingyas to especially established "model villages" in Northern Rakhine State has resulted in the confiscation of land from the Rohingya population. Before 1992 several model villages were built in Rakhine State, mainly in Maungdaw and Buthidaung townships. After the formation of the NaSaKa in 1992, the building of model villages reportedly intensified. In practice the NaSaKa is responsible for implementing the model village program in Rakhine State. However, officially the programme is under the supervision of the Ministry for Development of Border Areas and National Races, better known under its Myanmar acronym "NaTaLa". Therefore model villages in Rakhine State are locally known as "NaTaLa villages". The majority of the population of model villages are poor Rakhine people from other parts of Rakhine State. Others include poor *Bama* from the central plains; retired civil servants; former prisoners; former insurgents (Communist Party of Burma and Rakhine armed groups); and ethnic minorities such as the Kamein, Daingnet, Mro and Thet, who

live in the highlands near the border with Bangladesh and Chin State. There are 26 model villages in Buthidaung and Maungdaw townships.

A model village is usually built to house about 100 families. Each family reportedly receives one to four acres of land, a pair of oxen and a house. The large majority of these model villages have been built on land that was confiscated from the Rohingya population. Houses and other facilities such as schools and health centres in the model villages are often built by forced labour by the Rohingya population. The majority of people in model villages do not cultivate the land allocated to them, and instead rent it out to Rohingya farmers, in some cases the same people from whom the land was originally confiscated. Although according to an official decree of 1997 the renting of land by inhabitants of model villages is no longer allowed, the practice continues.”

COHRE, November 2007, p. 58:

“In addition to several hundred thousand repatriated and/or displaced *Rohingya*, local sources estimate that there are approximately 80,000 IDPs in hiding or living in temporary settlements in the jungles and mountainous areas of Arakan (Rakhine) State. Low-level armed conflict continues between the Arakan Liberation Army (ALA) and *Tatmadaw*, with associated human rights abuses (including rape and murder). IDPs in Arakan have insufficient food and clothing, no schooling, and almost no international contact or support. A particularly worrying aspect of the situation in Rakhine is the construction of dozens of new villages in border areas that have been populated with migrants from elsewhere in Burma.”

Rakhine (Arakan) State: human rights abuses against the Rohingya population is increasing (February 2007)

- In 2001 certain townships in the Arakan State had become "Muslim-free zones", where Muslims were not permitted to live, mosques were destroyed, and lands confiscated
- The Rohingya population were forcibly moved to the northern part of the districts of Maungdaw and Buthidaung
- During 2003, violence between Muslim communities and Buddhist Rakhine increased, resulting in the displacement of thousands of Rohingya
- Human rights violations against Rohingyas continue, and land confiscation continues to be common practice

UNGA, 12 February, para.59:

In western Myanmar, the Muslim minority has long been discriminated against, and is denied citizenship under the 1982 Citizenship Law. Muslim minority asylum-seekers continue to flee to Bangladesh. They are subject to serious abuses, especially forced labour (e.g. construction of roads, bridges, model villages and military facilities, camp maintenance, portering) and arbitrary taxation. They also suffer skyrocketing rice prices. Since January 2006, the government-imposed policy of cultivating physic nut plantations is causing new hardships, including forced labour, extortion and land confiscation. New developments have been observed in recent months, including increased restrictions on movement as it became very difficult to obtain a travel pass after the new village-level administration was put in place, and the closing of a number of mosques which had been repaired or enlarged without permission. The Special Rapporteur praises the international humanitarian organizations and their expatriate staff in northern Rakhine State who have been very helpful in protecting the Muslim minority from the Myanmar military and border security forces.

WFP, 10 January 2002, Executive Summary, & pp. 6-7:

"North Rakhine State (NRS) is one of the remote border regions of Myanmar. Geographically separated from the rest of the country by mountains in the east, the inhabitants of NRS share close ethnic and cultural links with neighbouring Bangladesh. The NRS has a population of 800,000, 82 percent of whom are Muslims of Indian sub-continent origin. The area has one of the highest population densities in all of Myanmar and is subject to seasonal heavy rainfall and tropical storms, all of which can adversely affect livelihoods. The economic and social indicators in the NRS show the local population as being some of the most vulnerable in the country.

[...]

Unfavourable conditions in the NRS have spurred two mass departures of Muslims to Bangladesh. The first took place in 1978, involving some 200,000 persons. The incident repeated itself in 1991/1992, where the numbers reached some 250,000. No major population exodus has occurred since then, although an intermittent outflow of households to Bangladesh continues to be reported by agencies working in the NRS and Bangladesh. Food insecurity linked with poverty factors and little hope for economic improvement were the major causes for the mass departures."

AI, May 2004:

"Several Rohingya armed groups have been established during the last decades. These include the Rohingya Solidarity Organisation (RSO), and the Arakan Rohingya Islamic Front (ARIF), both of which in 1996 jointly formed the Rohingya National Alliance (RNA).(9) In 1998 two RSO factions and the ARIF merged into the Arakan Rohingya National Organisation (ARNO).(10) After the arrival of Rohingya Muslim refugees during 1991-92 in Bangladesh, some of the Rohingya armed groups became active in the refugee camps there, where they reportedly attempted to recruit people. Since then these groups have split into several small factions. They are reportedly operating from small bases in the Bangladesh-Myanmar border area, and do not appear to have a large number of troops, mostly a few dozen each.

There are also a number of other armed groups which remain active in the Bangladesh-Myanmar border areas. These include the National Unity Party of Arakan (NUPA) and the Arakan Army, both of which are mostly based among the Buddhist Rakhine population. Another force, the Communist Party of Burma (Arakan), has signed a cease-fire agreement with the SPDC and in some cases its followers have been resettled in "model villages" established by the Myanmar authorities. All of these groups, however, have a very limited number of troops and the conflict with the Myanmar army in the northern Rakhine State is believed to be extremely limited in scope."

Human rights violations against Rohingyas continue, and land confiscation continues to be common practice.

ARNO, 21 September 2005:

"From August 2005, the military administration has created artificial price hike of the rice and other essentials causing the Rohingya villagers to suffer or die from hunger. Particularly the authorities have blocked carrying of rice into Rohingya majority area of northern Arakan from other parts of the country. Rohingyas are prohibited to carry or engage in purchase and sale of rice. But the Buddhist and other communities of the region are exempted from this scourge.

The SPDC armed forces have virtually controlled all the trade and business in northern Arakan. They are the only rice dealers who sell it to the Rohingyas in exorbitant prices. In the townships of Maungdaw, Buthidaung and some parts of Rathedaung Township 1 kg of rice is now sold at Kyat 400 to 450 while the same is sold at Kyat 120 to 140 in Akyab (Sittwe), the provincial capital of Arakan. Many Rohingya villagers have been reported suffering starvation and malnutrition.

[...]

It may be mentioned that since many years the Rohingyas have been subjected to large-scale persecution day in, day out. The SPDC has unjustly deprived them of their Burmese citizenship.

The humiliating restrictions imposed on their freedom of movement, even within the same locality, has seriously affected all their national activities. Acquiring of education, trade and business, farming, gardening and agricultural activities are seriously restricted to them. On the other hand, criminal atrocities, rape, murder, loot, forced labour, forced relocation, confiscation of their properties, farmlands, destruction of settlements, houses, mosques and religious schools, unprecedented taxation on houses (roof tax), domestic animals, fowls or birds, fruits and vegetables are daily phenomenon in Arakan. The rohingyas have to pay a tax for fishing in the river and collecting firewood in the jungles. During recent weeks the marriage of the Rohingya has been totally banned for 4 years. Besides, the Rohingya villagers have to pay to the army for pasturing their cattle on hills or any grasslands."

IPS, 6 December 2005:

"We know of at least five couples who were arrested and jailed this year for getting married without permission from the local authorities," says Chris Lewa, lead researcher in 'The Arakan Project', an independent group monitoring human rights violations in the area. "No marriage permission has been granted to a Rohingya since March 2005."

[...]

Consequently, the backlog of marriages, delayed and denied in the Arakan state, runs into thousands, Ahamed estimates. "Since the beginning of 2004, there are at least 10,000 marriage applications pending with authorities".

[...]

Other restrictions, such as severe limits to stop food items being moved into the Arakan region and a harsh travel ban on the Rohingyas, have prompted community leaders to accuse Rangoon of "ethnic cleansing".

[...]

The Rohingyas, largely rice farmers and labourers, are presently facing a "food crisis" due to a poor rice harvest and restrictions on the movement of food, said Lewa. "The NaSaKa and the military (have banned) rice trade within and beyond the area (the northern Arakan state) and even between villages."

In August, following a visit to Burma, the head of the WFP revealed how restrictions on food distribution had led to "serious" malnourishment among children in the country's border regions.

Only a fifth of the 5,500 metric tons of rice that the WFP had purchased for the hungry in the Arakan state had been distributed, James Morris, the head of the U.N. food relief agency, told reporters recently.

[...]

The SPDC's hostility towards this largest concentration of Muslims in Burma was amply clear in the early 1990s, when it stripped Rohingyas of citizenship by stating that they do not belong to the 135 national races that Rangoon recognises as Burmese.

[...]

Bangladesh, Pakistan and India are home to some 300,000 Rohingyas displaced by the abuse and violence, while others have found refuge in Malaysia and Saudi Arabia."

The UN Special Rapporteur on Myanmar remains especially concerned about the human rights situation in the Rakhine state in reports from visits to the country:

UN CHR, 2 December 2004 paras. 38-39:

"38. The Special Rapporteur is particularly concerned by the situation in one ethnic area, namely, north-western Rakhine state. During the reporting period, mosques continued to be demolished, the freedom of movement of the Bengali-speaking Muslim minority remained excessively restricted and the vast majority of that minority remained de facto stateless.

39. Recent reports on the situation in Rakhine state indicate that, subsequent to the recent dismantling of military intelligence (MI) structures, a large part of the NaSaKa border forces, comprising the military, MI, police, immigration and customs, has been disbanded and replaced by units from other sections of the Myanmar armed forces. The NaSaKa forces were allegedly a major perpetrator of human rights abuses with respect, in particular, to taxation, extortion and forced labour. Some reports indicate that the early consequences of the dismantlement of the NaSaKa forces and MI have been decreases in taxes, marriage fees and travel authorization fees, and reduced in extortion and corruption. The Special Rapporteur cautiously welcomes those developments and will continue to follow the situation closely."

"The Muslim ethnic minority, generally known as the Rohingyas, who live in northern Rakhine State, western Myanmar, continue to suffer from several forms of restrictions and human rights violations. The Rohingyas' freedom of movement is severely restricted and the vast majority of them have effectively been denied Myanmar citizenship. They are also subjected to various forms of extortion and arbitrary taxation; land confiscation; forced eviction and house destruction; and financial restrictions on marriage. Rohingyas continue to be used as forced labourers on roads and at military camps, although the amount of forced labour in northern Rakhine State has decreased over the last decade.

[...]

Although forced labour is still a major burden on the Rohingya population, there is evidence that it has decreased over the last decade. This appears to be as a result of the presence of UNHCR in Rakhine State. The World Food Program (WFP), which commissioned the building of some of the infrastructure projects, and through "food for work"(46) programs is also believed to have contributed to its decrease. The fact-finding mission of the ILO High Level Team in Rakhine State during September 2001 also resulted in less forced labour for the Rohingyas; a number of interviewees testified that forced labour has decreased after the ILO visit. Some people said that there also have been cases of paid labour. However, even though the labour is paid it remains forced, and the payments are well below the market rate."

UN CHR, 4 January 2004, para 41:

"In 2003, incidents of religious intolerance reportedly started in May and it appears that there has been an escalation of religious violence across the country since October, including the alleged burning of villages, mosques and houses as well as the killing and wounding of people. It is reported that these acts of religious violence have been mainly carried out against Muslim communities and were deliberately instigated. According to some reports, "bogus" monks were used during these events, some of them reportedly seen carrying mobile phones and guns. The Special Rapporteur has also received information that although complaints had been lodged with the relevant authorities, no legal action, including investigations, was apparently ever taken. Reportedly, as a result of these incidents, Muslim communities have been displaced. The Special Rapporteur was able to verify during his last mission the nature and source of this violence. He therefore wishes to note that it is still too early for him to say whether the recent expressions of religious intolerance and violence are more than unacceptable cyclical events or have a political dimension."

Further reading:

Refugees International (RI), 'Forgotten People: The Rohingyas of Burma', 15 March 2003
BCN 'Caught Between a Crocodile and a Snake: The Increasing Pressure on Rohingyas in Burma and Bangladesh & The Impacts of the Changing Policy of UNHCR', April/May 2003
Forum Asia, 5 April 2004: [Burma's Displaced People in India and Bangladesh](#), by Chris Lewa
Forum-Asia, June 2003, [We are like a soccer ball, kicked by Burma, kicked by Bangladesh](#), by Chris Lewa
National Coalition Government of the Union of Burma (NCGUB), Situation in Arakan State - in [Human Rights Yearbook Burma 2003-2004](#)

Rakhine (Arakan) State: human rights abuses against the Rohingya population is increasing (December 2005)

- In 2001 certain townships in the Arakan State had become "Muslim-free zones", where Muslims were not permitted to live, mosques were destroyed, and lands confiscated
- Riots during February 2001 in Arakan capital Sittwe, where over 50 Muslim homes burned to the ground
- The Rohingya population were forcibly moved to the northern part of the districts of Maungdaw and Buthidaung
- During 2003, violence between Muslim communities and Buddhist Rakhine increased, resulting in the displacement of thousands of Rohingya

WFP, 10 January 2002, Executive Summary, & pp. 6-7:

"North Rakhine State (NRS) is one of the remote border regions of Myanmar. Geographically separated from the rest of the country by mountains in the east, the inhabitants of NRS share close ethnic and cultural links with neighbouring Bangladesh. The NRS has a population of 800,000, 82 percent of whom are Muslims of Indian sub-continent origin. The area has one of the highest population densities in all of Myanmar and is subject to seasonal heavy rainfall and tropical storms, all of which can adversely affect livelihoods. The economic and social indicators in the NRS show the local population as being some of the most vulnerable in the country.

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There are also a number of other armed groups which remain active in the Bangladesh-Myanmar border areas. These include the National Unity Party of Arakan (NUPA) and the Arakan Army, both of which are mostly based among the Buddhist Rakhine population. Another force, the Communist Party of Burma (Arakan), has signed a cease-fire agreement with the SPDC and in some cases its followers have been resettled in "model villages" established by the Myanmar authorities. All of these groups, however, have a very limited number of troops and the conflict with the Myanmar army in the northern Rakhine State is believed to be extremely limited in scope."

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Religious intolerance against Muslims is again on the rise:

UN CHR, 4 January 2004, para 41:

"In 2003, incidents of religious intolerance reportedly started in May and it appears that there has been an escalation of religious violence across the country since October, including the alleged burning of villages, mosques and houses as well as the killing and wounding of people. It is reported that these acts of religious violence have been mainly carried out against Muslim communities and were deliberately instigated. According to some reports, "bogus" monks were used during these events, some of them reportedly seen carrying mobile phones and guns. The Special Rapporteur has also received information that although complaints had been lodged with the relevant authorities, no legal action, including investigations, was apparently ever taken. Reportedly, as a result of these incidents, Muslim communities have been displaced. The Special Rapporteur was able to verify during his last mission the nature and source of this violence. He therefore wishes to note that it is still too early for him to say whether the recent expressions of religious intolerance and violence are more than unacceptable cyclical events or have a political dimension."

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National Coalition Government of the Union of Burma (NCGUB), Situation in Arakan State - in [Human Rights Yearbook Burma 2003-2004](#)

POPULATION FIGURES AND PROFILE

Global Figures

Estimates of internally displaced persons in Burma (February 2008)

- An estimated three million people have been forced to migrate within and outside of Burma due to conflict, persecution, human rights violations and repressive government measures
- A million people are estimated to have become internally displaced in Burma over the past decade
- The estimated number of IDPs in eastern Burma in 2007 is at least 503,000, the number could, however, be more than a million

RI, May 2007:

"An estimated three million people have been forced to migrate in Burma as a result of conflict, persecution, human rights abuses, and repressive government measures that prevent people from earning a livelihood. Instead of fulfilling its responsibility to protect its citizens, the Government of Burma, known as the State Peace and Development Council (SPDC), is the biggest perpetrator of violations in the country."

FMR, July 2007, p. 46:

"The Thailand Burma Border Consortium – an alliance of NGOs working together with displaced people of Burma to respond to humanitarian needs – estimates that in eastern Burma a million people have been internally displaced over the past decade. Of the estimated 350,000 refugees in Thailand, around 150,000 are in refugee camps. The Thai government does not recognise the refugee statues of more than 200,000 Shan refugees in Thailand. Around a million Burmese migrant workers are also estimated to live in Thailand."

COHRE, November 2007, p. 8:

"The Thai Burma Border Consortium (TBBC) and its partners estimated that in 2007, approximately 76,000 people had been newly displaced by armed conflict and associated human rights abuses. The majority of new incidents of forced migration and village destruction were concentrated in northeast Karen State and adjacent areas of Pegu Division — areas that were still subject to armed conflict. Across much of southern and central Karen State, the situation for most villagers was relatively stable. The total number of IDPs in eastern Burma recorded by TBBC and its partners in October 2007 was 503,000. These included 295,000 people in ceasefire zones, 99,000 IDPs 'in-hiding' in the jungle and 109,000 IDPs in relocation sites.

The above estimates do not include IDPs who choose not to make themselves available to armed opposition groups, nor the large numbers of people who have achieved (at least semi-) durable solutions to their plight, especially those living in peri-urban areas. The estimates also exclude hundreds of thousands of IDPs in other parts of Burma (especially Kachin and Shan States, and the west of the country, as well as in some parts of Karen State). Including these figures would bring the total to over a million internally displaced people."

Thailand Burmese Border Consortium (TBBC) estimates of IDPs in eastern Burma in 2007 (February 2008)

- According to the TBBC, more than 3,000 villages have been destroyed, forcibly relocated or otherwise abandoned in eastern Burma since 1996
- In the last year 76,000 people were forced to leave their homes as a result of armed conflict and human rights violations
- Forced migration was most concentrated in 2006-2007 in northern Karen State and eastern Pegu Division where 43,000 civilians have been displaced
- 503,000 civilians remain displaced in eastern Burma
- These population figures are considered conservative as it has not been possible to collect data from urban areas and certain townships

TBBC, October 2007, p. 22:

"Field surveys conducted by indigenous humanitarian and human rights groups and collated by TBBC have previously indicated that more than 3,000 villages were destroyed, forcibly relocated or otherwise abandoned in eastern Burma between 1996 and 2006.

The [October 2007] survey estimates that during the past year alone, 76,000 people were forced to leave their homes as a result of, or in order to avoid, the effects of armed conflict and human rights abuses. This includes people from 167 villages that have been documented as having been completely displaced in the past 12 months. The number of people displaced was slightly lower than last year, which was primarily related to a relaxation of restrictions in Tenasserim Division. Forced migration was most concentrated in northern Karen State and eastern Pegu Division where counter-insurgency operations displaced approximately 43,000 civilians.

RATE OF DISPLACEMENT BETWEEN 2002 AND 2007

States and Divisions	Civilians displaced by armed conflict or human rights abuses					
	2002-3 ⁴²	2003-4 ⁴³	2004-5 ⁴⁴	2005-6 ⁴⁵	2006-7	annual average
Southern Shan	15,500	15,500	23,100	16,200	15,400	17,100
Karen	6,100	6,100	12,500	7,400	2,800	7,000
Eastern Pegu	3,050	3,050	5,900	13,400	11,500	7,400
Karen	30,500	30,500	29,500	30,100	43,400	32,800
Mon	8,150	8,200	10,000	1,100	1,200	5,700
Tenasserim	15,200	15,150	6,000	13,800	1,700	10,400
Overall	78,500	78,500	87,000	82,000	76,000	80,400

The total number of internally displaced persons who have been forced or obliged to leave their homes and have not been able to return or resettle and reintegrate into society is estimated to be at least half a million people. The population is comprised of 295,000 people currently in the temporary settlements of ceasefire areas administered by ethnic nationalities, while 99,000 civilians are estimated to be hiding from the SPDC in areas most affected by military skirmishes and approximately 109,000 villagers have followed SPDC eviction orders and moved into designated relocation sites.

While the overall figures are comparable to last year, the estimates for internally displaced persons in relocation sites have decreased while those in ceasefire areas, and to a lesser extent, hiding sites have increased. Decreased estimates for relocation sites primarily reflect villagers' attempts at returning to former villages or resettling nearby in Tenasserim Division and Shan State. However, it is not known how sustainable these movements will be, while SPDC campaigns to forcibly relocate and consolidate villages have intensified in northern Karen State, eastern Pegu Division and northern Mon state. Increased estimates for the internally displaced in ethnic ceasefire areas are largely attributed to the expansion of authority exercised by the Democratic Karen Buddhist Army (DKBA) and the newly formed KNU/KNLA Peace Council. A slight population increase reported from hiding sites reflects the protracted emergency for the most vulnerable communities in eastern Burma.

From a longer term perspective, the internally displaced population estimates for 2006 represent a decrease of over 130,000 people compared to the first border wide reports that TBBC documented in 2002. This decrease can be explained in part by improved survey techniques, but other factors also include sustainable return or resettlement, flight into refugee and migrant populations in Thailand, and forced migration into Burma's urban communities beyond the reach of these field surveys.

These population figures are considered conservative due to constraints in the methodology. While estimates have been derived from the rural areas of 38 townships most affected by internal displacement, it has not been possible to include approximations from urban areas and from other townships. Similarly, there remain difficulties distinguishing between formerly displaced persons who have successfully returned or resettled into mixed administration areas compared to those who still dare not expose if SPDC patrols approach. This survey has generally discounted such populations in mixed administration areas, as it was not possible to verify how many have reintegrated into society and how many remain in a state of internal displacement."

In 2007, satellite imagery confirmed evidence of human rights violations in eastern Burma consistent with what groups such as TBBC have been reporting.

Science Daily, September 2007:

"A new analysis of high-resolution satellite images -- completed by the American Association for the Advancement of Science (AAAS) -- pinpoints evidence consistent with village destruction, forced relocations, and a growing military presence at 25 sites across eastern Burma where eye-witnesses have reported human rights violations [...] AAAS precisely mapped the locations of 31 of some 70 reported human rights violations [...] satellite image analysis then revealed physical evidence to corroborate reported instances of human rights violations at 25 of the 31 accurately mapped sites."

No national estimate exists for the total number of internally displaced in Burma (February 2007)

- While there is a good monitoring system in place in Eastern Burma, the extent of internal displacement in other states is not known
- Difficult to distinguish between conflict-induced displacement and development-induced displacement which has led to forced eviction of thousands of families
- Independent monitoring or assistance to IDPs has so far not been authorised by the SPDC

RI, June 2006:

"There is a dearth of information on the numbers and conditions of IDPS in Burma. The IDP issue is political because in most cases people have become displaced as a result of government

policy and military action, and the government of Burma does not allow international agencies access to the IDPS.

[..]

Most of the public information on internal displacement in Burma focuses on the eastern part of the country, where agencies based in Thailand have limited access. The research has primarily centered on people who have become displaced due to armed conflict or human rights violations. There is little information available on those who have been displaced due to economic vulnerability. In western Burma, displacement results less from open conflict between the military and ethnic groups than from religious and cultural persecution, and abuses associated with increased militarization. There are not as much data available on the scope of displacement in western Burma, because cross-border assessments are not possible by way of India and Bangladesh, Burma's neighbors to the west. For the same reason, there is little information available on displacement in northern Burma."

South, February 2007, p. 4-6:

"Most research and publications on forced migration in Burma (e.g. Amnesty International 2002; Burma Ethnic Research Group 1998, 2000; Burma Issues 2003; Christian Aid 2004; Cusano, in Vincent & Brigitte Refslund 2001; Grundy-Warr & Yin 2003; Heppner 2005; Humanitarian Affairs Research Project 2003; Human Rights Watch 2005; Shan Human Rights Foundation 2003; Thailand-Burma Border Consortium 2004, 2005, 2006) have a strong human rights orientation, focusing on armed conflict and its impacts in the eastern border zones. Such approaches are obviously important given the widespread violations involved. However this concentration on parts of eastern Burma accessible to agencies working cross-border from Thailand has tended to obscure assessments of forced migration in Burma as a whole. Much less is known about the situations in other geographic areas, or about displaced populations not accessible to the armed opposition groups with which crossborder aid agencies cooperate. One consequence has been a lack of data and analysis on military occupation- and 'development'-induced displacement, or on livelihoods vulnerability-induced displacement (exceptions include Hudson-Rodd, Myo Nyunt, Saw Thamain Tun & Sein Htay 2003; Human Rights Foundation of Monland 2003; Lambrecht 2004).

[...]

The subject of IDP numbers is problematic. Counting only people who have been forcibly displaced since 2004, the number of IDPs in eastern Burma will probably be no more than 100,000 people. However, the number of previously displaced people for whom no durable solution has been found must be calculated in the millions, including vulnerable communities that have been living in displacement for decades."

Systematic estimates for the total number of IDPs in Burma are not available,

"There is no acknowledgement from the military regime regarding IDPs. Consequently, there are a plethora of difficulties in obtaining statistics regarding IDPs from Burma.

The overlap between the concepts of conflict-induced displacement and development-induced displacement is great when IDPs are viewed." (FMO, 2003, p. 14)

"Estimates on the total number of IDPs range from 500,000 to 3 million, depending on the inclusiveness of the tally." (Heppner, March 2005)

One often quoted estimate is one million are displaced nationwide:

"There are an estimated one million internally displaced persons (IDPs) in Burma, and several hundred thousand Burmese refugees in Bangladesh, India, Malaysia, and especially neighboring

Thailand. The Burmese government has refused international access to areas of ongoing conflict, cutting off humanitarian assistance to IDPs in violation of international humanitarian law." (HRW, Annual report 2005)

The Christian Post, 12 January 2006:

"There are an estimated one million IDPs in Burma as the military regime continues to wage a "slow genocide" against the ethnic groups, commented CSW."

Thailand Burma Border Consortium estimates at least 500,000 IDPs in eastern Burma as of October 2006

- 500,000 estimated in displaced in eastern Burma as of October 2006- a conservative estimate as many areas have not been surveyed due to lack of access
- Between October 2005- October 2006, 82,000 people were forced to leave their homes as a result of, or in order to avoid, the effects of armed conflict and human rights abuses
- 3,077 villages in the surveyed area have been documented as forcibly displaced since 1996 - only 150 of them have been repopulated
-

TBBC, October 2006 pp. 20, 22:

"Field surveys conducted by indigenous humanitarian and human rights groups and collated by TBBC have previously indicated that more than 2,800 villages were destroyed, forcibly relocated or otherwise abandoned in eastern Burma between 1996 and 2005. TBBC, 2005, "Internal Displacement and Protection in Eastern Burma", www.tbtc.org Based on the refugee exodus into camps and migrant communities in Thailand and estimations of the internally displaced population, over a million people are understood to have been forcibly displaced from their homes in eastern Burma during that period.

This survey estimates that during the past year alone, 82,000 people were forced to leave their homes as a result of, or in order to avoid, the effects of armed conflict and human rights abuses. This includes people from at least 232 villages that have been documented as having been completely displaced in the past 12 months. While the distribution of forced migration was widespread, the most significant concentration was in four townships of northern Karen State and eastern Pegu Division where counter-insurgency operations displaced over 27,000 civilians. The overall rate of displacement in eastern Burma remains critical and is consistent with previous field surveys which have indicated that on average over 81,000 civilians have been forced to leave their homes each year since 2002.

RATE OF DISPLACEMENT BETWEEN 2002 AND 2006

States and Divisions	Civilians displaced by armed conflict or human rights abuses				
	2002-3 ³⁴	2003-4 ³⁶	2004-5 ³⁶	2005-6	annual average
Southern Shan	15,500	15,500	23,100	16,200	17,600
Karen	6,100	6,100	12,500	7,400	8,000
Eastern Pegu	3,050	3,050	5,900	13,400	6,400
Karen	30,500	30,500	29,500	30,100	30,200
Mon	8,150	8,200	10,000	1,100	6,800
Tenasserim	15,200	15,150	6,000	13,800	12,500
Overall	78,500	78,500	87,000	82,000	81,500

The cumulative impact of SPDC's forced relocation campaigns between 1996 and 2002 reflects the extent of the Burma Army's expanded presence. This period followed the fall of KNU's headquarters, Khun Sa's surrender of the Mong Tai Army and ceasefire agreements in Mon and Karenni states. The Burma Army substantially expanded its control over contested areas in the late 1990's by establishing new bases in strategic locations and forcing rural villages to relocate into towns or consolidated villages. By 2002 few rural villages had not already been subjected to forced relocation orders, although in many cases civilians had resisted these attempts to subjugate customary land ownership. The main form of civil disobedience against the imposition of forced eviction and relocation has been to hide in surrounding fields and forests as close as possible to former villages and ancestral lands.

While 3,077 villages have been documented as forcibly displaced since 1996, some of these villages have been at least partly repopulated. This survey has identified 155 locations where civilians have attempted to re-establish a village during the past year. The vast majority of these attempts have been in Shan state where villagers have quietly been allowed to leave relocation sites in some areas. However, the sustainability of such return and resettlement is restricted not only by livelihood constraints but also by the lack of official authorisation. Indeed, documented attempts to re-establish over 100 villages during 2003 and 2004 have already been thwarted by harassment leading to further rounds of forced displacement.

[...] Internally displaced Population Estimates in 2006

The total number of internally displaced persons who have been forced or obliged to leave their homes and have not been able to return or resettle and reintegrate into society as of October 2006 is estimated to be at least 500,000 people. The population is comprised of 287,000 people currently in the temporary settlements of ceasefire areas administered by ethnic nationalities, while 95,000 civilians are estimated to be hiding from the SPDC in areas most affected by military skirmishes and approximately 118,000 villagers have followed SPDC eviction orders and moved into designated relocation sites.

DISTRIBUTION OF INTERNALLY DISPLACED PERSONS IN 2005 AND 2006

States and Divisions	IDPs in Hiding		IDPs in Relocation Sites		IDPs in Ceasefire Areas		Total IDPs	
	2005	2006	2005	2006	2005	2006	2005	2006
South Shan	20,800	13,300	23,700	31,300	174,500	131,000	219,000	175,600
Karenni	9,500	9,300	7,500	6,400	75,500	63,600	92,500	79,300
East Pegu	13,400	17,400	7,900	6,400	0	0	21,300	23,800
Karen	38,800	49,100	6,100	4,300	45,000	45,900	89,900	99,300
Mon	2,500	300	6,200	500	40,000	41,000	48,700	41,800
Tenasserim	7,000	5,600	56,600	69,100	5,000	5,500	68,600	80,200
Overall	92,000	95,000	108,000	118,000	340,000	287,000	540,000	500,000

Overall, this represents a decrease of approximately 40,000 internally displaced persons since October 2005. This reflects a substantial decrease in the population estimates for ceasefire areas. Population movements have been recorded out of areas administered by the United Wa State Army (UWSA) due to lack of livelihood opportunities. Estimates in other ceasefire areas of Shan and Karenni states have also decreased, reflecting how the areas administered by non state actors have effectively been reduced by the expansion of SPDC control. While many of these villagers may remain internally displaced, it has not been possible to track their current status. Conversely, estimates for relocation sites have increased significantly, partly as a result of a broader survey reach in Tenasserim Division and partly due to new incidents of forced

relocation in Shan State. Population estimates for hiding sites increased slightly overall, due to a major Burmese Army counter-insurgency operation which targeted civilians in northern Karen state."

2005 figures from TBBC:

TBBC, October 2005 pp. 22, 24:

"The total number of internally displaced persons who have been forced or obliged to leave their homes and have not been able to return or resettle and reintegrate into society as of September 2005 is estimated to be at least 540,000 people. The population is comprised of 340,000 people currently in the temporary settlements of ceasefire areas administered by ethnic nationalities, while 92,000 civilians are estimated to be hiding from the SPDC in areas most affected by military skirmishes and approximately 108,000 villagers have followed SPDC eviction orders and moved into designated relocation sites.

[...]

between May 2004 and May 2005, a further 87,000 people were forced or obliged to leave their homes by the effects of war or human rights abuses. Southern Shan State recorded the most substantial increase in displacement during the past year, which is consistent with increased political harassment and militarisation. Border-wide, a further 68 villages were destroyed, relocated or otherwise abandoned during this twelve month period, including a number which had recently been established by displaced persons without official permission. These figures suggest there has been a relatively steady rate of around 80,000 civilians per year having been displaced by war or human rights abuses over the past three years in eastern Burma.

[...]

As hinted above, these population figures are considered conservative due to constraints in the methodology. While estimates have been derived from the rural areas of 37 townships most affected by internal displacement, it has not been possible to include approximations from urban areas and from other townships. Similarly, there remain difficulties distinguishing between formerly displaced persons who have successfully returned or resettled into mixed administration areas compared to those who still dare not expose themselves if SPDC patrols approach. This survey has generally discounted such populations in mixed administration areas, as it was not possible to verify how many have reintegrated into society and how many remain in a state of internal displacement."

DISTRIBUTION OF INTERNALLY DISPLACED PERSONS IN 2004 AND 2005

States and Divisions	IDPs in Hiding		IDPs in Relocation Sites		IDPs in Ceasefire Areas		Total IDPs	
	2004	2005	2004	2005	2004	2005	2004	2005
South Shan	9,300	20,800	21,800	23,700	185,000	174,500	216,100	219,000
Karenni	7,000	9,500	6,400	7,500	75,000	75,500	88,400	92,000
East Pegu	13,500	13,400	4,500	7,900	0	0	18,000	21,300
Karen	46,900	38,800	13,400	6,100	75,000	45,000	135,300	89,900
Mon	2,300	2,500	3,800	6,200	25,000	40,000	31,100	48,700
Tenasserim	5,000	7,000	27,100	56,600	5,000	5,000	37,100	68,600
Overall	84,000	92,000	77,000	108,000	365,000	340,000	526,000	540,000

Comments on the TBBC figures:

RI, June 2006:

The most recent TBBC survey shows that as of September 2005 the total number of internally displaced people in eastern Burma who have been forced or obliged to leave their homes over the past decade and have not been able to return or resettle and reintegrate into society is at least 540,000, a reduction from the number estimated in the initial survey of 2002.

[...]

A 2005 report by Human rights Watch puts the estimates of IDPS even higher. According to this report, as of late 2004, as many as 650,000 people were internally displaced in eastern Burma.

[...]

Staff of some international agencies based in Burma dispute the figure of more than half a million IDPS, believing the number to be significantly lower. They maintain that the data are skewed because they are collected by ethnic groups themselves and claim that their local staff, who are able to access sensitive areas, have not found relocation sites identified by Thailand-based agencies. Some expatriate humanitarian staff in Burma argue that the Thailand-based agencies magnify the numbers of IDPS in order to secure funding from donors for cross-border activities.

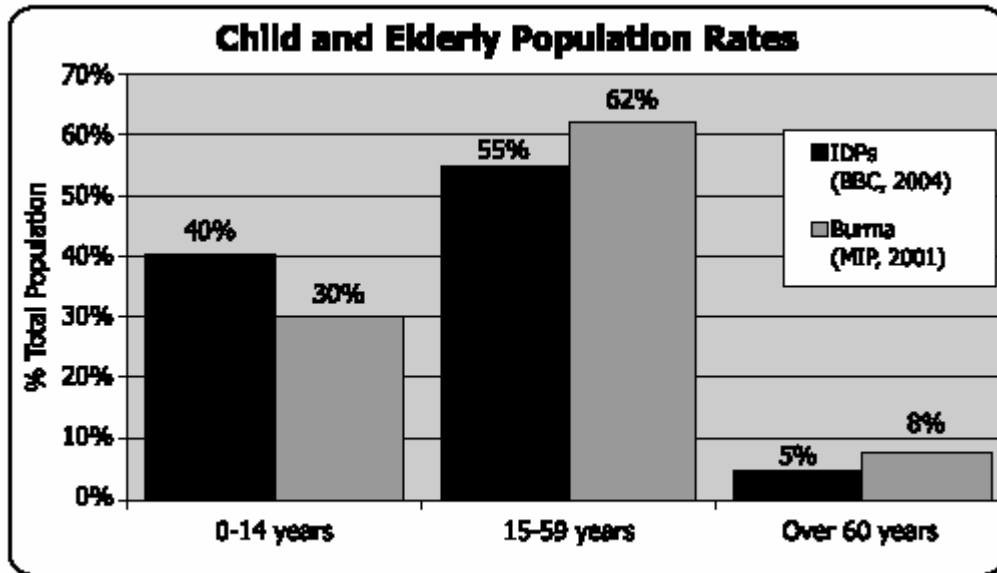
Almost all of the agencies and people disputing the IDP estimates by Thailand based agencies have themselves not been able to access the conflict and sensitive areas in eastern Burma, where IDPS are living in exceptionally vulnerable conditions. They therefore lack a firm basis for disputing the figures. As for the accusation that the Thailand- based NGOs exaggerate the numbers with an agenda of increasing their funding, their studies suggest that the majority of the displaced live in government or ceasefire areas, and so are not accessible from across the border even if their programs were to expand. Any response to the needs of the majority of the displaced would have to be the responsibility of Burma-based organizations."

Geographical distribution

Demographic profile of the internally displaced population in Eastern Burma (October 2004)

- The IDP population is characterised by higher proportions of children and fewer adults, due to higher birth rates and lower life expectancy than among the general population

"The documented structure of the internally displaced population consists of a greater proportion of children, lower population rates of working age and a lower percentage of elders compared to the general population in Burma. These higher levels of dependency on a smaller adult population are associated with lower life expectancy and higher birth rates amongst the internally displaced, as well as resettlement of the aged into safer and more convenient environs. Disaggregated by area, the lowest proportion of children amongst the internally displaced population was recorded in Shan state while the highest percentage was in Tenasserim Division. Age distribution was found to be similar for sub-groups in free fire areas, ethnic ceasefire areas, SPDC relocation sites and mixed administration areas.



(Comparative Source : Ministry of Immigration and Population, 2001, *Myanmar Fertility and Reproductive Health Survey*, with UNFPA, Rangoon, 2003)

(TBBC, October 2004)

Shan State: least 163,000 IDPs in 2007 (February 2008)

- At least 163,000 people are estimated to be internally displaced in southern Shan State in 2007
- Reports of over 1,400 villages relocated throughout 7,000 square miles in central Shan State since 1996
- Over 300,000 people have been ordered to move into strategic relocation sites
- Displacement of new villages in southern Shan State on the Thai-Burma border since 1999

The TBBC estimates that 163,000 people were internally displaced in the southern Shan state as of October 2007.

TBBC, October 2006, pp. 30-32:

In Central Shan State

"Over 58,000 internally displaced people are estimated to currently be in ceasefire areas, relocation sites or hiding sites across Namzarng, Loilem, Laikha, Mongkung, Kehsi and Kunhing townships of central Shan state. This represents a decrease of approximately 18,000 people compared to the results of last year's survey. The main reason for this apparent decrease is the expansion of SPDC influence into the Shan State Army-North (SSA-N) ceasefire areas. This does not mean that these villagers are no longer displaced, but rather that it was no longer safe to assess displacement in areas which are now partly administered by SPDC. Indeed, following the arrest of Shan political opposition leaders and increased pressure on ceasefire groups to surrender their arms in 2005, SPDC control has strengthened and human security weakened during 2006.

[...]

In Southern Shan State

Approximately 118,000 people are internally displaced in the townships of Monghsat, Mongton, Mongpan, Langkher, Mawkmai and Mongnai in southern Shan State. The vast majority of these

villagers are located in ceasefire areas administered by the United Wa State Army (UWSA) and Shan Nationalities Peoples' Liberation Organisation (SNPLO). The forced and unsustainable relocation of villagers from northern Shan State into the UWSA areas prior to 2002, pressure from SPDC on UWSA and SNPLO to actively fight the SSA-S since 2005, and a leadership split in the SNPLO in 2006 have all contributed to insecurity and displacement during the past year.

In Monghsat and Mongton townships there has continued to be a steady rate of migration out of the UWSA ceasefire areas due to the lack of livelihood opportunities. Independent assessments estimate that 125,000 people were forcibly relocated into these areas prior to 2002 Lahu National Development Organisation, 2002, *Unsettling Moves: The Wa Forced Resettlement Program in Eastern Shan State*, however it is estimated that over 40,000 have since migrated into Thailand or attempted to resettle elsewhere in Shan State to find work. The Burmese Army have also increased their harassment of villagers in the ceasefire areas, with 9 settlements having been forcibly relocated during the past year. The UWSA has not been able or willing to provide villagers protection either from these forced relocations or from the SPDC's counter-insurgency operations against SSA-S intruding into the ceasefire areas."

Over 300,000 persons were displaced between 1996-2000:

"In the last four years [1996-2000] over 300,000 civilians have been displaced by the *tatmadaw*, hundreds have been killed when they attempted to return to their farms, and thousands have been seized by the army to work without pay on roads and other projects. Over 100,000 civilians have fled to neighbouring Thailand, where they work as day labourers, risking arrest for "illegal immigration" by the Thai authorities." (AI, 10 July 2000)

"It is estimated that, since 1999, 125,000-plus people have been relocated from northern to southern Shan State, by the Wa authorities. Furthermore, some 75,000 people are currently residing in relocation sites in central Shan State, with a roughly equal number of people living in hiding or otherwise displaced in the state. This makes an IDP population in Shan State of some 275,000 people." (South/BBC, September 2002)

"It has not been possible to update population estimates for the UWSA ceasefire areas to quantify how many people have sneaked out, but over 120,000 people were relocated into these areas prior to 2002." (TBBC, October 2004, p. 26)

Fighting and forced relocations displaced thousands more during 2005:

"[...] fighting has led to the displacement of over 3,000 villagers during March and April 2005.
[...]

However, more civilians have been displaced by forced relocations and other human rights abuses than by fighting. The forced relocation of a further 17 villages during the past year was aimed at cutting strategic links between SSA-S bases on the Thai border and their areas of influence deeper in Shan state.

[...]
Population estimates for ceasefire areas in southern Shan state have slightly decreased. This is partly because some of the Wa villagers who were forcibly relocated from northern Shan state into Mong Hsat township have attempted to resettle elsewhere. It is also related to the breakdown of SSNA's ceasefire agreement with the SPDC." (TBBC, October 2005)

See also: [Resettlement of 128,000 Wa cause further displacement in the Shan state \(1999-2002\)](#)

Karenni State: 81,000 IDPs in 2007 (February 2008)

- There were an estimated 81,000 IDPs in Karenni State as of October 2007
- Government-initiated development schemes, aimed at separating people from non-state groups by forcing them into relocation sites, has forcibly displaced people since the 1960s
- NGOs reported thousands of displaced due to an army offensive as well as forced relocations in northern Karen and Karenni states starting in December 2003

The TBBC estimates that 81,000 IDPs were internally displaced in Karenni State by October 2007.

TBBC, October 2006, pp. 34-36:

"Restrictions on access to agricultural land continues to cause food shortages for residents of government controlled relocation sites.

[...]

One of the results of this has been that over 1,000 people from Shadaw relocation site attempted to return to their former villages during the past year. Although this was not officially permitted, local SPDC authorities allowed this movement as the villages were close to military outposts or the car road.

[...]

Political tensions between SNPLO, SPDC and the SSA-S in southern Shan state have resulted in villagers fleeing into Shadaw township during the past year. These people reported fleeing from the conscription of soldiers, arbitrary taxation and travel restrictions imposed by several armed groups. Nearly 3,000 villagers are now hiding along the Karenni – Shan state border.

[...]

The most contested part of Karenni state is along the Karen state border in Pasaung and Pruso townships where the SPDC, KNPLF and KNSO are jointly struggling for control of the Mawchi – Taungoo road. Despite the risks of detection by joint patrols searching for settlements in the surrounding forests, over 5,000 civilians remain in hiding close to their former villages on Karenni side of the border. Villagers who had fled into Karen state during 2004 and 2005 returned to hide in Karenni state during the past year.

[...]

Across the Karen state border, over 5,000 people have been displaced in Thandaung township during the past year and over 13,000 villagers continue hiding in the forests surrounding their abandoned villages.

[...]

21 villages in Thandaung township were displaced during the year and more than 2,000 people have fled to the Thailand border. However, the majority of villagers remain in hiding in the forests close to their former villages."

Previous estimates said around 50,000 -70,000 were internally displaced:

"[...] the number of Karenni IDPs is about 50,000. Very little help is getting through to the majority of them. It is also getting more difficult for Karenni refugees to cross over into Thailand due to increased border security. About 1000 managed to cross over between January and May 2000; since then it has been only a trickle. Furthermore, once they arrive in Thailand, refugees are now held in a transit area in Camp 2 for up to 4 months before they are released into the general camps. Thailand has stated that all refugees along the Burmese border are due to be repatriated within 3 years from early 2000." (CSW November 2000, p.4)

"Karenni sources estimate that there are some 50,000 IDPs in Karenni State, plus at least 6,850 people in relocation sites, making a total Karenni IDP population of about 56,850 people."(South/BBC, September 2002)

Karen State: 116,900 IDPs in 2007 (February 2008)

- As of October 2007, approximately 116,900 people were displaced in Karen State, with numbers on the increase since the army's counter-insurgency operation from 2005 onwards
- War and human rights abuses are estimated to have displaced over 60,000 people between 2002-2004
- TBBC reports a decline in IDP figures in 2005, from 135,300 in 2004 to 89,900 in 2005
- More than 11,000 displaced in Karen state between February and May 2006

The TBBC estimates that there were 116,900 IDPs in Karen State by October 2007.

While Thailand Burma Border Consortium reported a decrease in IDPs in Karen state as of October 2005 (89,900 against 135,300 in 2004) the number of displaced increased rapidly during the months from February to May 2006:

COE-DMHA, 4 May 2006

" Since November 2005, between 11,000 to 13,000 Karen civilians have been displaced in operations carried out by the military junta in northern and western Karen state to secure its new capital of Pyinmana against KNU rebels."

KHRG, 30 April 2006:

" since February over 8,000 villagers have been forcibly displaced in Nyaunglebin district – 4,000 in Mone township, and more than another 4,000 in Kyauk Kyi and Shwegyin townships."

COE-DMHA, 26 April 2006:

"According to The Irrawaddy yesterday (Tuesday, April 25), at least 11,000 people are now displaced in what Karen rebels and aid workers are saying is the worst offensive by the military junta in eastern Karen state since 1997. The rebel Karen National Union (KNU), as well as the NGO, Free Burma Rangers (FBR), and aid agencies working in relief camps along the Thai border, have reported an increase in internally displaced persons (IDPs) since late last year. The KNU told Reuters that 2,000 people were displaced earlier this month, on top of 9,000 already displaced."

FBR, 24 April 2006:

"There are now over 11,000 Internally Displaced People (IDPs), who are in hiding from or fleeing Burma Army attacks in Nyaunglebin and Toungoo Districts, Karen State. These attacks started in February, intensified in March and keep building up now in April."

COE-DMHA, 30 March 2006:

"The number of internally displaced persons (IDPs) from attacks by Myanmar's military junta on villages in Myanmar's eastern Karen state has risen to 5,000, up from 3,400 reported last week."

FBR, 27 March 2006:

"[...] there are now over 5,000 people displaced in Toungoo and Nyaunglebin Districts due to ongoing attacks by Burma Army troops of the 66th and 99th Divisions."

The Thailand Burma Border Consortium estimates that at least 135,300 people are internally displaced in Karen state as of October 2004:

TBBC, October 2004, executive summary, p.32:

"Over 60,000 people are estimated to have been displaced by war and human rights abuses during the past two years and approximately 47,000 internally displaced persons are reportedly hiding in areas that remain de facto free-fire areas.

Recent displacement is most pervasive in the northern townships of Papun and Thandaung adjacent to the Karenni State border. [...] Over 26,000 people are estimated to have been displaced by war and human rights abuses in the past two years, and a comparable number are believed hiding from SPDC forces in free-fire areas, while approximately 10,000 are in SPDC relocation sites.

[...]

Further south, population displacement has been more associated with the counterinsurgency efforts of combined SPDC and DKBA forces and development-induced displacement. [...] attacks have contributed to the displacement of over 20,000 people in the past two years, with approximately 13,000 people estimated to still be hiding in free-fire areas.

[...]

the harassment of villagers between the Zami River and Thailand border has also contributed to the displacement of over 13,000 Mon and Karen people in these townships during in the past two years.

[...]

New Mon State Party (NMSP) has two ceasefire areas in southern Karen State and both continue to report a steady influx of new arrivals fleeing from human rights abuses in SPDC controlled areas and conflict-affected areas.[...] 30,000 people in these areas are still denied humanitarian assistance for their resettlement and reintegration."

South/BBC, September 2002:

"Based on data collected between 2000-02, by the CIDKP and several other organisations, the number of IDPs in hiding in Karen areas in 2002 is estimated at 103,067 people, broken down as follows:

Karen IDPs in Hiding or Temporary Settlements 2002

District	Families	Persons
Toungoo	1,641	9,662
Nyaunglabin	1,755	10,590
Thaton	1,899	10,580
Papun	6,617	37,007
Pa'an	2,488	13,630
Duplaya	2,727	15,000
Mergui-Tavoy (Tenasserim Division)	1,278	6,598
Totals	18,405	103,067

There are 127 known relocation sites in these areas (i.e. not including Mon, Karenni or Shan States), containing an estimated 158,061 people. Therefore the IDP population in Karen State

and Tenasserim Division combined may be 261,128 people (some of whom are in hiding outside the official boundaries of Karen State)."

Mon State: 49,400 IDPs in 2007 (February 2008)

- As of October 2007, there were an estimated 49,400 IDPs in Mon State and a total of 70,000 displaced civilians in Mon areas
- The TBBC estimated in October 2004 that at least 31,000 people were displaced in Mon State

The TBBC estimates there were 49,400 IDPs in Mon State by October 2007 and 70,000 displaced civilians in Mon areas

TBBC, October 2007, p. 40:

"Although the new Mon State Party (NMSP) negotiated a ceasefire with the national authorities in 1995, the lack of a subsequent political settlement has led to ongoing human rights violations and the resumption of armed resistance by frustrated Mon splinter groups. As a result over 70,000 civilians in ethnic Mon majority areas are estimated to remain internally displaced in 2007. The vast majority of these people reside in NMSP ceasefire areas in Ye township of Mon State, Kyain Seikkgyi township of Karen State and Yebyu township of Tenasserim Division."

The Thailand Burma Border Consortium estimates that at least 31,100 people are internally displaced in the Mon state:

"Over 8,000 acres of land paddy, rubber, betel nut and orchards have been confiscated by SPDC in southern Mon State since 1998. Apart from not being compensated, farmers have often been forced to work on their former properties and construct military barracks to support the resettlement of newly deployed SPDC soldiers and their families. [...] The combined effect has contributed to the displacement of approximately 16,000 people in Ye township during the past two years.

[...]

Eight years after the refugees returned from Thailand,[...] there has not been an end to displacement for 25,000 people currently residing [in NMSPceasefire areas]." (TBBC, October 2004, Executive summary, p. 34)

In 2003, the Mon Relief and Development Committee reported 40,000 displaced:

"MRDC [Mon Relief and Development Committee] reports that there are about 40, 000 Mon villagers (including the IDPs in its resettled villagers) have been displaced in Mon territory. However, MRDC could not get access into all areas to help the IDPs and they have helped the IDPs who arrived into their resettled IDPs villages."(HURFOM, *Population Displacement is Humanitarian Crisis in Burma*, May 2003)

Some hundred Mon families reported to have fled to a resettlement camp in January 2005:

"About a hundred families fled to Mon resettlement camp near Thai Burma border during this month after their homes were destroyed by Burma Army, Mon Relief and Development Committee reported.

The majority of newly arrived IDPs (Internally Displaced Persons) came from Pauk Pinkwin (Wae Kwao), Ma Kyi (Mang Glong) and Hoay Kyar villages of southern Ye and Yebyu Townships after some houses were uprooted by the Burma Army." (Kao Wao News, 26 January 2005)

Tenasssarim Division: 61,000 IDPs in 2007 (February 2008)

- There are an estimated 61,000 IDPs in Tenasserim as of October 2007

The TBBC estimates that there were an estimated 61,000 IDPs in Tenasserim Division as of October 2007.

TBBC, October 2007, p. 42:

"There are currently 46 Infantry and Light Infantry battalions spread throughout Tenasserim Division. Amongst other social, economic, and political problems, military rule has resulted in approximately 61,000 villagers remaining internally displaced in 2007. This includes almost 2,000 people who have been forced to move from their homes during the past year alone.

[...]

Thousands of acres of land have been also been confiscated by the Burmese Army for commercial agriculture. Some of this land has been appropriated for joint ventures between Thai and Malaysian investors and local Burmese Army commanders for palm oil and rubber plantations. However land confiscation, forced labour and extortion related to the national initiative to cultivate castor oil is also becoming increasingly common.

During the past year, villagers from over 20 relocation sites in Tavoy, Thayetchaung and Tenasserim township have attempted to either return to their original villages or resettle on nearby lands. This has been done on the basis of local agreements with SPDC authorities, but without any official permission. So there is no guarantee that these villagers will not be obliged to move back to the Burmese Army's designated sites, nor that efforts to re-establish livelihoods and reintegrate into society will be sustainable. Nonetheless, given the voluntary movement, estimates for the number of people in relocation sites have been cut by 18,000 people compared to last year."

Eastern Pegu Division: number of internally displaced Karen as of October 2006

- There are reports that between 18,000 and 29,807 people are displaced in eastern Pegu Division, although the number may be higher

TBBC estimated 23,800 internally displaced in the East Pegu Division as of October 2006.

TBBC, October 2006, pp. 37-38:

"[...]it was not until February 2006 that the focus shifted south to Kyaukgyi, Papun and Shwegyin townships. [...]

By August, SPDC patrols had resulted in the abandonment of over 100 villages in these 3 townships. More than 22,000 civilians were either relocated to SPDC controlled areas or fled the approaching SPDC troops to hide in mountainous forests.

[...]

The vast majority of those displaced in northern Karen State and eastern Pegu Division during the past year have remained as close as possible to their ancestral lands. However, a minority have joined villagers from Thanduang township who fled to the Thailand border. Approximately 3,000 people have sought protection in Mae Ra Ma Luang refugee camp and more than 1,400 villagers are residing in temporary shelters at EeThuHta on the Burmese side of the border.

[...]

Kyaukgyi township includes highlands to the east and lowlands adjacent to the Sittaung River.

[...]

almost 10,000 people are estimated to have been displaced in Kyaukgyi township the past year.

[...]

More than 6,000 people are estimated to currently be residing in SPDC controlled relocation sites in Kyaukgyi township.

[...]

Over 6,000 civilians survive while hiding in the forests of Shwegyin township, despite being regularly targeted by SPDC patrols over the past few years."

HRW, June 2005, p. 22:

"According to the highly respected Thailand Burma Border Consortium (TBBC), there were eighteen thousand IDPs in eastern Pegu Division in mid-2004, while a community-based organization working inside Burma reported as many as 29,807 people displaced in the same area at government-controlled sites alone."

PATTERNS OF DISPLACEMENT

General

Two thirds of the displaced are unable to find a durable solution (October 2005)

TBBC, October 2005, p.52:

"Amongst households who acknowledged they have been displaced, 84% were forced or obliged to leave by forced relocations or other human rights abuses, while 54% have fled from fighting. When disaggregated by location type, it is only households in hiding who have fled from military skirmishes more than counter-insurgency strategies targeted against civilians. These findings illustrate the severity of the threats to lives for internally displaced persons in hiding sites compared to other areas of eastern Burma. Yet, they also represent the extent to which displacement is caused by the effects of war, rather than actual fighting.

Amongst households forced or obliged to leave their homes during the past ten years, two thirds reported that they remain in a state of internal displacement. These respondents have not been able to return to former areas of residence nor resettle into another part of the country voluntarily, in safety and with dignity. The findings suggest that resettlement elsewhere in the country is a more likely solution than return to former homes in the current climate. While experiences of sustainable return or successful resettlement were negligible amongst those in hiding, half of the displaced households in ceasefire and mixed administration areas reported having re-established a livelihood. Significant rates of sustainable resettlement were also identified after forced migration into relocation sites. This finding contradicts stereotypes of relocation sites as internment camps, and may reflect relatively better access to markets and social services at some relocation sites. However, claims of sustainable resettlement may be slightly exaggerated as the extent to which these re-established livelihoods can cope with stresses and shocks was not challenged."

Ceasefire areas host the biggest number of IDPs (February 2008)

- The largest category of IDPs in eastern Burma, 295,000 people, live in areas administered by ceasefire groups

TBBC, October 2007, p. 29-30:

"People in ethnic administered ceasefire areas represent the largest category of internally displaced persons in eastern Burma. 295,000 displaced people are residing throughout areas administered by ceasefire groups in eastern Burma who have each been granted a relative degree of autonomy by the Burma Army. The authority is generally formalised by the demarcation of special regions, with the main exceptions being in the areas of southern Shan State which are claimed by the United Wa State Army (UWSA). Authorities in ceasefire areas can generally be divided into three types. There are former members or allies of the Communist Party of Burma, militias who split from the main political party representing their ethnic group and former members of the armed opposition's National Democratic Front.

77,000 people are estimated to remain in areas nominally governed by the UWSA along the Thailand border. This population primarily consists of villagers who were evicted from their homes in northern Shan state between 1999-2001 and forcibly relocated for strategic and supposedly

drug eradication purposes. Autocratic rule and the ongoing suppression of rights by the UWSA has obstructed opportunities for people to re-establish their livelihoods, while at the same time inducing further displacement amongst former land owners whose property has been seized to accommodate the new arrivals. Harassment from SPDC patrols has also increased during the past year, especially since the UWSA refused orders to relocate its troops and constituents back to their original base on the Chinese border. 2,500 villagers are estimated to have fled from UWSA areas in Mong Ton and moved to Mong Hsat as a result of this harassment by SPDC troops.

In contrast, ceasefire areas where the legitimacy of ethnic nationality authorities is less disputed provide a relative degree of protection from displaced communities. Over 60,000 people are currently residing in the New Mon State Party's (NMSP's) 12 designated ceasefire areas. This includes former refugees who were repatriated from Thailand back into a situation in flux over ten years ago as well as villagers from SPDC controlled areas who have fled from systematic human rights abuses. Over 1,000 new arrivals have been reported seeking refuge in the NMSP ceasefire areas during the past year alone. However these areas can not provide a sustainable solution for the internally displaced due to population density with limited access to suitable agricultural land, SPDC restrictions on travel outside of ceasefire areas, and the inability of ethnic nationality authorities to support resettlement or compensate for livelihood assets lost. The Rangoon-based international community's attempts to access and assist these displaced communities have been largely ineffective since the International Committee for the Red Cross (ICRC) was forced to suspend operations from field offices in October 2006.

Other ceasefire parties include the Karenni National People's Liberation Front (KNPLF), the Shan State Army-North (SSA-N), the Democratic Karen Buddhist Army (DKBA) and the Shan Nationalities' Peoples Liberation Organisation (SNPLO). However, the boundary between areas primarily influenced by non state actors and those under the administration of Burmese authorities is porous. SPDC's expansion into ceasefire areas during the past year has effectively reduced the displaced population under the administration of KNPLF, SSA-N and SLPLO in particular. This expansion has manifested in various ways including orders for villages to be relocated, confiscation of land and property, imposition of forced labour, and restrictions on trade and travel. As long as the human rights dividends accruing from ceasefire agreements remain negligible, their sustainability continues to be undermined."

An estimated 99,000 civilians are hiding in the most military contested areas (February 2008)

- 99,000 IDPs are living in hiding in the most militarily contested areas located in remote and mountainous forests and fields

TBBC, October 2007, p. 26-27:

"An estimated 99,000 civilians are hiding in the most militarily contested areas, which are generally located in remote and mountainous forests and fields. This type of geography strengthens the ability of the armed opposition forces to move undetected and weakens the logistical advantage of the government forces. Forest growth also provides shelter under which internally displaced populations can hide their temporary settlements.

This population has fled from their homes to avoid contact with SPDC military patrols due to fear of harassment under the pretext of counter insurgency activities. People in hiding may not move far from their homes, which is a key motivating factor for remaining despite the risks of being detected by SPDC or paramilitary patrols. However, while there may be opportunities for people

to return periodically to nearby villages and fields, the risks prohibit the possibility of a more sustainable return or resettlement.

The categorisation of these people as members of the armed opposition for disobeying relocation orders contravenes the government's obligations under international humanitarian law to distinguish between civilians and combatants. Threats to lives include heavy artillery shelling of civilian settlements, landmines, summary execution and inhumane punishment if captured. If settlements are discovered uninhabited, livelihoods are commonly undermined by the burning of civilian dwellings and the destruction of theft of crops and food stocks. Offences documented in this report constitute not merely many examples of human rights abuses which are widespread in Burma, but rather are indicative of the crimes against humanity that are committed against people hiding in conflict-affected areas.

Counter-insurgency military operations during the past year have particularly targeted civilians in northern Karen and eastern Pegu Division. At least 38 civilians have been killed by Burmese army patrols in Thandaung township alone during 2007 to date, while over 60,000 villagers are currently hiding from government forces. This denotes an increase of approximately 7,000 people since 2006, and represents the number of people who were previously living with the tacit approval of local SPDC authorities in mixed administration areas. However, local arrangements became null and void when the Southern and South Eastern Military Commands coordinated patrols by over 40 battalions to search for civilian settlements and destroy their means of survival. This level of coordination is illustrative of the systematic nature of the Burmese Army's crimes against humanity."

An estimated 109,000 IDPs are living in relocation sites (February 2008)

- Approximately 109,000 villagers are residing in designated relocation sites after having been evicted from their homes and villages
- There are two major types of relocation site: large relocation sites and relocation villages
- Entry to and exit from relocation sites - and access to work and farmlands - is tightly controlled by the Burmese Army
- Larger relocation sites are often situated close to car roads
- Conditions in relocation sites vary, but access to services is often poor or non-existent, and residents are often subject to forced labour (e.g. road construction) and other abuses

TBBC, October 2007, p. 28-29:

"The third category of internally displaced persons in eastern Burma consists of approximately 109,000 villagers who currently reside in designated relocation sites after having been evicted from their homes. Government relocations sites are generally situated on barren land near a town or village and in close proximity to roads and SPDC army bases. Relocation sites can result from either the forced transfer of villages to a newly constructed centre, or the forced consolidation of dispersed villages into a more densely populated pre-existing settlement.

Population estimates for internally displaced persons in relocation sites have decreased by 9,000 people since 2006. This is primarily due to movements out of relocation sites in Tenasserim Division, and to a lesser extent in Shan State, related to a relaxation in restrictions imposed by local SPDC commanders. Rather than reflecting increased freedom, this is illustrative of

expanded SPDC control over surrounding mixed administration areas. As villagers in surrounding areas become resigned to complying with Burmese army orders, the SPDC's perceived need for relocation sites becomes redundant.

Conversely, a renewed campaign of forced evictions and village relocations has been reported in the contested areas of northern Karen State, Pegu Division and northern Mon State. This campaign is part of SPDC counter-insurgency operations which attempt to divide upland and lowland Karen communities in order to undermine the armed opposition of the Karen National Union.

Villagers were generally obliged to dismantle their houses and carry whatever property and food stocks were transportable to the designated relocation site within a few days notice. There is commonly no assistance provided for the reconstruction of shelters and tenancy is usually not officially registered. Restrictions on movement outside of relocation sites vary, with travel passes for between a day or a week generally available for purchase from SPDC military commanders. These passes guarantee passage through checkpoints and into markets but single day passes are often not long enough to enable people to return to their homes and fields.

Apart from the fundamentally coercive nature of population movements into SPDC relocation sites and the loss of property as a result of displacement, possibilities for resettlement and reintegration are also restricted by limited livelihood options. Limited access to suitable agricultural land results from relocation sites being located close to towns, adjacent to SPDC army bases where lands have been confiscated to support the livelihoods of soldiers, or due to population density and barren soil. Proximity to SPDC bases results in orders to work without compensation, taking time away from earning an income, as well as demands for payment of arbitrary taxes at irregular and short notice."

HRW, June 2005, pp.47-50:

"In reality, consolidating control means placing IDPs in *Tatmadaw*-run relocation sites. These are found across central and southern Shan State, in Karenni, Karen and Mon States and Tenasserim Division, as well as in parts of central Burma. The TBBC recorded one hundred government-controlled relocation sites in Karen areas, and the overall site population in those areas is probably in excess of 125,000 people. For the purpose of analysis, these sites may be divided into Relocation Centers and Relocation Villages, which vary with respect to the degree of *Tatmadaw* control.

The distinction between different types of relocation sites and organic settlements in Burma is rather arbitrary, particularly in an historical context where some villages in the hills relocate periodically for socio-economic reasons, such as to gain access to new land. Furthermore, it is by no means clear when a relocated settlement stops being a relocation site. Most villages in eastern Burma have experienced displacement at some time over the past half-century, in the context of a protracted civil war and wider state-society conflict. In many cases, people have rebuilt their lives and integrated in new settlements.

"In mid-2004 the TBBC and partner groups detected "a significant decrease in the number of villages forcibly relocated since the mid-late 1990s ... [due to the *Tatmadaw*'s] consolidating rather than expanding areas of control."[...] In reality, consolidating control means placing IDPs in *Tatmadaw*-run relocation sites. These are found across central and southern Shan State, in Karenni, Karen and Mon States and Tenasserim Division, as well as in parts of central Burma. The TBBC recorded one hundred government-controlled relocation sites in Karen areas, and the overall site population in those areas is probably in excess of 125,000 people. For the purpose of analysis, these sites may be divided into Relocation Centers and Relocation Villages, which vary with respect to the degree of *Tatmadaw* control.

[...]

Relocation Centers

Relocation Centers are designated, constructed settlements rather than “natural” villages. Typically found in lowland areas near infrastructure projects and Tatmadaw bases,[...] the residents of these centers usually come from a dozen or more outlying villages after they are forced to move by the Tatmadaw.

Relocation is usually difficult because new arrivals have no money or possessions and cannot find regular paid work. In addition, many Relocation Centers require residents to hand over their remaining rice stocks to the local authorities, which then ration these back to villagers. Even in sites where residents retain control over their own food stocks, these are likely to be insufficient for subsistence, due to regular looting by the Tatmadaw, restricted access to agricultural land[...], and poor soil quality. Unless the new arrivals have money or relatives in the area, they often cannot acquire any land at Relocation Centers. As a result, food is often quite expensive and there appear to be high rates of chronic malnutrition in Relocation Centers.

Access to water, clinics, medicines, and other social services remain minimal or non-existent. IDPs—even though destitute—are likely to be charged for any medicines available. Large numbers of people are reported to have died of treatable illness, and suicides are apparently also common. While the Relocation Centers do afford some access to state-funded schools and buildings, teachers and books are often in short supply. In addition, school fees are typically charged, and, as is the case in the rest of government-controlled Burma, ethnic nationality children may not study their own languages in school.

People living in Relocation Centers are liable to various—official and unofficial—taxes, and are also often subject to extensive bouts of forced labor on state-sponsored projects, such as roads. Such depredations leave families with little time and human resources to devote to their own survival. In some cases, the amount of labor demanded is so great as to occupy entire families full-time. The only alternative is to pay others to go on their behalf, which most cannot afford.

Relocation Center residents would obviously rather not be displaced again, and therefore many opt to stay in the centers, even after departure becomes an option. Some stay because there are greater market and work opportunities than in their original isolated villages.[...] Conditions at some sites—typically those that have been established for longer periods of time—are better than others. In some cases, there are schools, some paid work, and communities are able to reestablish their lives. In such cases, residence is often no longer, or not entirely, a product of coercion, and it is debatable whether such new villages should still be considered relocation sites. However, the lack of food and extremely difficult conditions eventually drive large numbers of residents to flee. In many cases, as in Karenni State in 1999-2002, authorities turn a blind eye to these departures and IDPs are able to return to—and attempt to rebuild—their old villages. In others, such as Tenasserim Division in the same period, departing Relocation Center residents cannot go back to their villages and they join the IDP population hiding in the jungle, among whom are likely to be fellow-villagers who fled following the original relocation orders and chose to take their chances in the hills. Many of these people are subject to further rounds of forcible relocation. A few make it to the uncertain refuge of neighboring Thailand.

Relocation Villages

In addition to Relocation Centers, the SPDC has also used pre-existing settlements as “Relocation Villages.” These are found across large swaths of rural Burma, and in some areas, such as the Tenasserim Division, they are the only villages remaining. The occupants of these villages usually include people who have not been displaced from the area, people moved from nearby hamlets, and IDPs from other previously relocated villages.

Relocation Villages are smaller than Relocation Centers, and more difficult to document and map. They may be situated in areas firmly controlled by government forces, with Tatmadaw bases nearby, but are sometimes also found in brown areas, where insurgent forces have some operational capacity. Residents are in general subject to less strict control than those of the big Relocation Centers. While the Tatmadaw controls entry and exit, and residents are often forced into labor, they do usually have some opportunity to tend their farms due to greater geographical proximity to their former homes. Some Relocation Villages have schools, though most do not. In

some areas, Relocation Villages are allowed to remain in situ—households are moved from the periphery to the centre of the relocation village—if they pledge not to have contact with insurgent forces. The *Tatmadaw* frequently warns such villages that, if any fighting should occur in the area, they will be forced to move.

However, Relocation Village inhabitants suffer the same problems with respect to land confiscation, overcrowding, and disease.. [...]"

Displacement patterns by state or division

Patterns of displacement in the Karen State (December 2005)

- While some IDPs migrate and resettle elsewhere after being displaced, others attempt to hide in the jungle for up to several years
- Displaced villagers in hiding are targeted and subjected to human rights abuses, including extra-judicial killings, on suspicion of being rebel supporters
- A Karen Human Rights Group report from the Toungoo District says thousands are internally displaced
- In Southern Karen State, troops either go to the village or summon the village head to their camp, and order the villagers to move within one or two weeks, then loot and burn houses, and return later to ensure that no villagers have gone back

HRW, June 2005, pp. 45-46:

"The relocation process usually begins with a *Tatmadaw* column issuing a relocation order. Previously, this was likely to have been a written document, constituting evidence of state-sanctioned abuse. However, relocation orders are more likely to be issued verbally, often at a meeting of village headmen. Villagers are usually given between zero-seven days warning to leave their homes. Sometimes they are told to move to a designated relocation site, but villagers are not told where to go, just to vacate their homes. As Cusano notes, often "people assume a subtly defiant wait-and-see attitude...[and] ignore the first notice." [...] When the soldiers return, they usually enforce their orders with vigor.

[...]

Often, the relocation area is declared a free-fire zone. Houses, animals and crops are looted and destroyed, and people are raped or shot. Villagers in armed conflict zones are usually prepared to flee at short notice. Karen IDPs typically move as one or two families together; in other cases, whole villages move but split up to avoid *Tatmadaw* patrols. Most have bundles of possessions ready to move quickly, and have often prepared secret rice stores, hidden in the jungle, though the military often searches for and destroys these.

Previous surveys have estimated that IDP households in hiding had to move three to four times per year, although the number of displacement incidents has declined significantly since the announcement in December 2003 of a ceasefire between the KNU and SPDC.[...]

When fleeing, displaced Karens reported they could only move on foot. They hid in the jungle and walked only at night, even in the rain. They carried small pots, pans and rice to cook with on the

way, and sometimes some clothes. Often they were afraid of lighting a fire, fearing it would attract *Tatmadaw* attention.

[...]

Some people hide in the forest for few days during the immediate displacement crisis, and then return to their village. *Tatmadaw* columns often return repeatedly to cleared areas, to ensure that they are not re-settled. In the event the military does not return, some villagers will return to re-build their burnt and looted homes and rice barns.

While some IDPs migrate and resettle elsewhere—in temporary jungle settlements, in nearby towns or villages, or as refugees in Thailand—others attempt to hide in the jungle for up to several years. Displaced villagers in hiding are targeted and subjected to human rights abuses, including extra-judicial killing, on suspicion of being rebel supporters. Their temporary shelters, often little more than bamboo lean-tos, are scattered in remote locations, to avoid *Tatmadaw* patrols. They clear small areas of jungle to grow rice, tapioca, yams, and other vegetables, forage for supplementary food, and fish in the streams.[...] When they run out of rice, they often resort to drinking the much less nutritious boiled rice soup,[...] though the communities in hiding are known for sharing resources and especially food with each other.[...] They are also at times able to communicate with family and friends in relocation sites and other government-controlled areas, which sometimes allows them to gain access to food and other items.

[...]

Villagers along the Shwegyin River have been displaced since 1975:

KHRG, 9 December 2005:

"The Shwegyin River lies just east of the Sittaung River and Burma's central plain, between the plains and the hills (see map). There used to be several large villages of 50 or 100 households along the Shwegyin River north of Shwegyin town. However, the Burmese Army always found it hard to control these villages, and in 1975 they came and burned Ler Wah and other villages along the river. The villagers kept fleeing and returning, but the Burmese Army also returned almost monthly to burn houses and shoot villagers, until by 1982 the larger villages along the river lay abandoned. Many of the villagers drifted eastward, to the Bilin River valley and the remoter hills of Papun District, while some villagers set up small scattered settlements of 3 or 4 households in the forest a short distance east of the Shwegyin River or along the river itself. Some of these scattered settlements have now been stationary for over 10 years but the villagers still live only in semi-permanent bamboo houses, some with incomplete roofs or walls, because since 1999 Burmese troops have come up the river two or three times per year on average so the villagers regularly have to flee into the forest for 10 days or a month at a time. According to villagers in these settlements, two of the worst times were 1997-98, when SPDC forces found and burned most of their temporary houses and laid landmines throughout the area, and 2002, when the SPDC repeated a similar operation. On other occasions the villagers have temporarily fled but the SPDC columns have not reached their houses. Whenever these operations occur some villagers are shot on sight or killed by mines, but most escape into the hills to return after the SPDC troops have withdrawn. Villagers told KHRG that they can no longer build proper villages along the river with good houses, because these will only be destroyed by SPDC forces.

[...]

Te SPDC wants villagers in this area to move to sites in the plains, along vehicle roads which are garrisoned and controlled by the military. As explained by a KHRG researcher, however, "Villagers who live under SPDC control have to work for the SPDC as porters, loh ah pay [other forced labour], and pay many taxes and they suffer a lot from this oppression. So when they order civilians in rural villages to move to relocation sites, the villagers don't want to move there because they know they would have to stay under SPDC control, do labour for the SPDC and give taxes. They don't want to suffer this oppression so they don't move there." The villagers

therefore avoid SPDC contact by leaving their village whenever military columns enter the area, then returning when the military has withdrawn."

For information about IDPs coping mechanisms, consult:

Nyaunglebin district: SPDC operations along the Shwegyin River, and the villagers' response

<http://www.ibiblio.org/freeburma/humanrights/khrq/archive/khrq2005/khrq05f8.html>

See also Heppner, March 2005 - [Survival strategies](#), pp. 22-25 for an overview of Karen response to internal displacement

PHYSICAL SECURITY & FREEDOM OF MOVEMENT

Protection needs of civilians in conflict areas

IDPs remain vulnerable to landmines (February 2008)

- IDPs in eastern Burma are four times more at risk of becoming a mine victim than non-displaced people
- The Burmese army and its allies continue to use landmines to relocate populations and prevent their return
- Burmese soldiers have used civilians as human minesweepers, forcing them to walk in front of troops
- Non-state armed actors also use antipersonnel mines extensively
- The intense conflict in Karen State has led to a sharp increase in the use of mines in parts of the state leading to casualties

LMR, November 2007, p. 3:

"Myanmar's military forces and non-state armed groups have used antipersonnel mines consistently throughout the long-running civil war. Mine use continued in 2006 and 2007 in Karen (Kayin), Karenni (Kayah) and Shan states and the Tenasserim (Tanintharyi) division.

In February 2007 the Special Rapporteur on the Situation of Human Rights in Myanmar, in his final report to the UN Human Rights Council, continued to voice his concern about the impact of the use of landmines in the country: "Among the most appalling features of the military campaign in ethnic areas is the disproportionate effect on civilian populations. In addition to the heightened risks posed by ... anti-personnel mines, the killing, terrorizing or displacement of civilians is often part of a deliberate strategy to separate ethnic armed groups from their civilian populations."

The Free Burma Rangers (FBR), an evangelical organization offering medical and other assistance to internally displaced people in some conflict areas, have reported numerous incidents of mine-laying by the Myanmar Army in and near areas where FBR have activities. The FBR reported the following instances of mine use by SPDC forces:

- Between May and November 2006, 900 villagers were moved to a relocation site at Maladawin Mon township, Karen state, as a part of counter-insurgency actions by the SPDC; the Myanmar Army issued a warning that it had placed landmines around the site.

- In November 2006, four columns of the Myanmar Army laid landmines in Saw Thay Der area; the Karen National Liberation Army removed 16 of the mines.

- On 3 November 2006, Myanmar Army units from Ko La Wah Lu army camp placed landmines in Nwa Lay Ko village; returning villagers stepped on some of the landmines.

- During an offensive in late 2006 in Mone township, 60 families were displaced from their villages because of landmines. Myanmar Army units planted hundreds of landmines of which 11 were discovered on paths used by the villagers (three in Thay Kay Lu village and eight in the Nwa Hta area).

- On 17 March 2007, the Light Infantry Brigade 590 laid mines along the eastern edges of Tai Pin, Myet Ye, Po Thaug Su, Nye Loud Teh, U Chit Kin, Thit Chat Zeik and Kyaung Bya villages in Mone township of Taungoo district, in order to prevent villagers from accessing their fields in the planting season.

- On 3 January 2007, SPDC units placed 15 landmines near mile 6 of the Mawchi road in Karenni state.

On 6 July 2006, Light Infantry Brigade 568 of the army laid antipersonnel mines around Saw Wah Der village. Two landmines were found on 7 July near villagers' homes and one was found near the bathing area.

In April 2007 the Karen Human Rights Group (KHRG) reported that the SPDC was alleged to have planted landmines along the Day Loh river in Than Daung township to prohibit movement through the area. A June 2006 KHRG report contained numerous allegations of mine use. [...] In Taungoo district, the SPDC is alleged to have laid mines to prevent civilian commerce between the plains and hill areas, and warned the populace that it had mined all pathways into the hills. The KHRG alleges that SPDC units enter villages from which inhabitants have fled or been relocated and plant landmines to discourage return. The mines are alleged to be laid where returnees would likely travel, such as at the base of the ladder leading into a house, in the village plantation, in front of their rice storage barns or in schools.

The Thailand Burma Border Consortium reported that in August 2006, to the east of Bokpyin town, Tenasserim division, SPDC patrols laid antipersonnel mines near rice fields to force displacement of the population. In the same month SPDC units are alleged to have mined travel routes and cultivation areas in Than Duang township, Karen state, in order to prevent resettlement of people who fled the area.

According to staff working with a development organization in Shan state, SPDC troops not only used antipersonnel mines in perimeter defense of their camps, but also used them on paths which units of the rebel Shan State Army-South use. Throughout 2006 police and other units of the security forces were sent to Pyin Oo Lwin Army Engineering School to receive training in mines and booby-traps.

[...]

Given the intensity of conflict in Karen state, it is likely that the KNLA was the NSAG using mines most extensively in this reporting period. According to the Karen Human Rights Group, there was a sharp increase in the use of mines across Taungoo district by all groups, leading to casualties."

[...]

Landmines in Burma are concentrated mainly on its borders with Thailand, Bangladesh and India, and in eastern parts of the country marked by decades-old struggles by ethnic minorities for autonomy. However, 10 of Burma's 14 states and divisions suffer from some degree of mine contamination, primarily antipersonnel mines. The tri-border area between India, Burma and Bangladesh is also reported to be extensively mined. Burma is also affected by explosive remnants of war (ERW).

[...]

A survey of 2,000 households in eight regions in eastern conflict zones found that people displaced by conflict are four times more at risk of becoming a mine victim than non-displaced people in the same area."

HRW, December 2006:

"Burmese soldiers have on many occasions used civilians as human minesweepers, forcing them to walk in front of government troops. Refugees and internally displaced persons call this "clearing the way" for Burmese soldiers; the UN special rapporteur for human rights has called this "atrocious demining," borrowing the phrase used by Landmine Monitor. Human Rights Watch has received reports that, to demine areas to be traversed by the Burmese army, soldiers from the 66th Light Infantry Division forced civilians from 12 villages in Toungoo district in December to walk or ride tractors ahead of troops on the road between Toungoo and Mawchi.

The Burmese government has sometimes charged people who have stepped on landmines a "fine" for destroying state property. If they die, their family must pay the levy, which amounts to approximately US\$10, a large sum in Burma."

Landmines are used extensively both by the Burmese army and insurgent armies (December 2006)

- Nine out of fourteen states and divisions in Burma are mine-affected, with a heavy concentration in eastern Burma

HRW, 10 December 2006:

"The widespread use of landmines by the Burmese army against civilians to terrorize them and hamper the annual harvest season should cease, Human Rights Watch said today. The Burmese government is the only government in the world that has used antipersonnel mines on a regular basis throughout 2006.

Villagers and relief workers told Human Rights Watch that since the start of the harvest season in November, Burmese army soldiers have been laying increasing numbers of antipersonnel landmines in front of houses, around rice fields, and along trails leading to fields in order to deter civilians from harvesting their crops. They believe this has caused an alarming rise in civilian casualties in Mon township and the rest of northern Karen state. Human Rights Watch has grave concerns over the safety of civilians in conflict zones and their deteriorating food security as a result of widespread landmine use by the Burmese army.

"In order to separate ethnic armed groups from their civilian population, the Burmese army lays landmines and other explosive devices in order to maim and kill civilians," said Brad Adams, Asia director at Human Rights Watch. "This is a concerted policy aimed at denying people their livelihoods and food or forcing them to risk losing limbs or lives."

Landmine Monitor Report, November 2005:

"Key developments since May 2004: Myanmar's military forces, the Tat Ma Daw, and at least 12 non-state armed groups have continued to use antipersonnel mines. This includes two groups newly identified as mine users, the Karenni People's National Liberation Front and Karenni National Solidarity Organization, which have undertaken some armed activities in collaboration with the Tat Ma Daw. In the absence of official information, informal interviews with officials and civilians reveal that mines pose a significant threat to communities in nine of 14 states and divisions. Forced demining by civilians ("atrocity demining") was reported in 2004-2005, as in previous years. No humanitarian mine clearance has taken place in Burma. No military or village demining has been reported since May 2004. At a UNHCR seminar in November 2004, the mine threat was identified as one of the most serious impediments to the safe return of internally displaced persons and refugees. Mine risk education is carried out by NGOs on an increasing basis, in refugee camps and within other assistance efforts. The number of mine incidents and casualties remains unknown, but NGOs providing assistance to mine survivors indicate that casualties have increased. Mine action and other humanitarian assistance programs were disrupted by changes in the government in October 2004.

[...]

Myanmar's military forces and non-state armed groups have used landmines extensively throughout the long-running civil war. Landmine Monitor Report 2004 identified the SPDC as one of only two governments to have used antipersonnel mines consistently in the previous five years.

[...]

Following the internal purge in the junta in October 2004, there was increased military action in Karen (Kayin), Karenni (Kayah) and Shan states, with allegations of mine use by all combatants.[12] Thousands of Karen and Shan people were forced into internal displacement due to SPDC operations.[13] Use of mines by the SPDC was also reported in Tenasserim (Tanintharyi) and Pegu (Bago) divisions. In some instances, the SPDC conducted joint military operations with non-state armed groups (see below).

From October 2004 to January 2005, and in March 2005, the Myanmar Army reportedly laid mines along the sides of the Kushaw-Shwekyin road, which runs between Papun in northern Karen State and Shwekyin, in order to interdict insurgent use of the road.[14] In December 2004, the UN Commission on Human Rights Special Rapporteur voiced his concern about the impact of landmines in ethnic minority areas.[15]

[...]

More than 30 different ethnic and rebel political organizations, with an estimated 45,000 combatants,[21]exist within the country. The SPDC lists various non-state armed groups (NSAGs) within the country on the national website.[22] The National Democratic Front, an alliance of armed opposition groups, has claimed that the use of landmines is necessary for defense against Army attacks on their territory.[23]

[...]

Mine contamination is most heavily concentrated in eastern parts of the country.[38] The borders with Thailand and Bangladesh are extensively mined; the border with India is more lightly mined.[39] United Nations assistance programs, which have grown in size and coverage in recent years, have started encountering mine-affected communities. In February 2005, UN field staff reported that areas around Kalaw in Shan State, the area from Mong Pan to Mongton, and east of Lashio are mine-contaminated.[40] Areas where gem mining takes place, and infrastructure such as the Lawpita hydroelectric power station in central Karenni State, have often been mined."

Landmines are used extensively in the Karen state - maiming and killing hundreds of civilians:

KHRG, September 2004:

"Both the SPDC and the KNLA lay landmines in Toungoo District, but it is often the villagers who are the victims. Many villagers have been maimed or killed after stepping on them in their fields or on paths. SPDC military units have placed landmines in villagers' fields and beside houses in villages after they have ordered them to be relocated. This is becoming more common as a way of denying the villagers the ability to go back to their village without having to burn it down which creates evidence. SPDC soldiers have also placed them in the fields of displaced villagers and on the trails in the forest that they know internally displaced villagers use to carry rice back to their hiding places.

[...]

The SPDC has been planting landmines on the paths that *Nyein Chan Yay* villagers and internally displaced villagers use when going to buy food from the markets, to collect water, or to go to their plantations. Often, a number of mines are planted in the same area, so when one person is wounded or killed after stepping on one of the mines, those who come to their aid will also be injured or killed when they step on one of the other mines. Many mines have also been planted in the fields and plantations of both *Nyein Chan Yay* and displaced villagers. For this reason many fields and plantations are left unharvested. Failure to harvest their crops leaves a lot of villagers without the food or the cash that they would have made from selling the harvest in the local markets. This makes it difficult for the villagers to buy enough rice to feed their families and to pay the endless array of fees imposed upon them. In March 2002, the Strategic Operations Command in Kler Lah issued an order to villagers in the area prohibiting the villagers from using the paths to a specific village in Tantabin township. The order clearly says that landmines would be placed on the paths [...]. The SPDC's stated intention is to keep 'insurgents' from entering the village, but it will also force villagers to enter through checkpoints where they will be forced to pay bribes. It has the added effect of blocking internally displaced villagers hiding in the surrounding hills from coming down to buy rice. Orders like these are rare as armies on all sides often do not tell the villagers where they have laid their landmines."

KHRG, 22 March 2005:

"SPDC forces plant landmines all around their camps, so villagers are wary of walking anywhere in the vicinity of SPDC camps. KNLA forces use landmines both defensively and offensively. Unlike the Tatmadaw, they inform local villagers where they have planted the mines, and sometimes remove them when no longer needed. The Karenni Solidarity Organisation (KnSO), a breakaway group from the Karenni National Progressive Party (KNPP) which now works with the Tatmadaw, sometimes send troops into eastern Toungoo District and has reportedly been laying landmines.

The Tatmadaw does not share information on mines with local villages, nor do they remove mines once planted, even when their battalions rotate. SPDC troops are known to have laid many mines over the past three years near the Day Loh river, especially in Naw Thay Der area (north of Kler Lah), so many people dare not go to that area anymore. In 2002 and 2003 SPDC forces also heavily mined the hills around Kaw Thay Der and several villagers were subsequently wounded or killed by these mines, so villagers there no longer dare use the paths to their fields.

[...]

Most villagers' fields are located on hillsides some distance from their village, so mines are a constant danger and many no longer dare work their old fields. Few people dare use the main paths going from the hills to Kler Lah or down to the plains, because SPDC troops patrol those paths and people believe that they have landmined many of them."

New wave of landmines laid out in Karenni state:**FBR, 3 May 2005:**

"Karenni National People Liberation Front (KNPLF) and Karenni National Solidarity Organization (KNSO) troops placed landmines in villages in Southern Karenni State. The Burma Army supplied the landmines, whose manufacturer is unknown.

These landmines were discovered on trails used by internally displaced people (IDPs) in Southern Karenni State. They were placed by the KNPLF and KNSO in order to terrorize Karenni IDPs and block their return to their home areas. These mines are anti-personnel mines and are copies of the US M-14 anti-personnel mine. They are the same size as the US made M-14 landmine and are now being used extensively by the Burma Army. An estimated 1,000 landmines have been placed by the SPDC and KNSO in the area South of Mawchi to the Karen border."

Ethnic minority women face human rights violations (February 2008)

- Ethnic women in eastern Burma remain exceptionally vulnerable to sexual violence, forcible recruitment as porters and beatings and torture
- In western Burma's ethnic areas, increased militarization has brought new troops in the area who have carried out sexual violence

KWO, February 2007, p. 16:

[...] "Despite the verbal ceasefire agreement with the KNU in January 2004, human rights violations against the civilian population have not only continued but in many areas have increased in intensity. Forced labour, forced relocations, arbitrary killings, torture including the rape of women and girls have not ceased. Militarisation and oppression have not come to an end. Villagers continue to be the targets of systematic military abuse and exploitation. Brutal attacks on villages continue, women and girls continue to be raped and murdered. Villages and crops are looted and burned. Women, men, girls and boys continue to be forcibly recruited as labourers and porters. Harassment and torture continue. More and more villagers are forced to flee their villages to the jungle in search of places to hide and to forage for food. Those who are able make their way across the border into Thailand and seek shelter in the already overcrowded border camps.

Women and girls are at particular risk of being forcibly recruited since men and boys often flee from the villages and hide in the jungle in order to avoid, arrest, torture or killing by the SPDC soldiers. Women both young and old from across Karen State report having been recruited as porters and forced labourers. This includes aged and frail women, pregnant and breast feeding women and school girls often as young as 11.

[...]

Many women and girls taken as porters, in addition to the deprivation of liberty, food and water, experience rape and sexual harassment as well as beatings and other forms of torture. Rape and sexual violence perpetrated by the SPDC soldiers against civilian women and girls in the Ethnic States of Burma including Karen State has been well documented. Recent reports include, *License to Rape*, *Shattering Silences* and *Catwalk to the Barracks*. *Shattering Silences* in particular, highlights the risks facing women forcibly recruited as labourers and porters. There is overwhelming evidence that rape and sexual abuse of civilian women has been one of the key strategies of civilian control used by the Burmese Military Regime."

WLC, March 2007, p. 3:

"Cases in this report confirm patterns of state-sanctioned sexual violence detailed in earlier reports by other women's organizations from Burma, showing that under the military regime women and girls are at constant risk of being raped. The regime, the State Peace and Development Council (SPDC), has been expanding its army throughout the country since 1988. Particularly in the ethnic areas, it has been building up its troop presence to subjugate resistance movements and secure control of natural resources and border trade. Whereas 20 years ago, there were only two Burma Army battalions operating in Chin State, there are now eight battalions based in the state, with army camps scattered in numerous villages and patrols constantly roaming the hills. These troops are using rape as a "weapon" to terrorize local communities. Women and girls as young as 12 are being raped in their homes and farms, while traveling outside their villages and when conscripted as forced labour by the army."

Displaced women suffer from army's widespread use of sexual violence in the Shan state and other conflict areas (October 2005)

- Women and children terrorized by army soldiers in emergency zones and relocation sites (2000-2002)
- Burmese military regime is allowing its troops systematically and on a widespread scale to commit rape with impunity
- Majority of rape cases in the areas of Central Shan State where the rural populations have been forcibly relocated, but victims also from the Karen, Karenni, Mon, and Tavoyan nationalities.
- 6% of the rape incidents documented in this report occurred while the villagers were in the process of being forcibly relocated and another 6% within relocation sites

TBBC, October 2005, pp. 46-47:

"Local human rights and women's groups have comprehensively documented sexual violence and concluded it is commonly perpetrated as a weapon of war by SPDC troops in a climate of impunity.⁴¹ Focus group discussions conducted with women during this survey suggested that domestic violence is also not uncommon in conflict-affected communities. Women described an increasing incidence of physical and sexual violence committed by husbands against their wives, and explained the causes in terms of men's increasing frustration and anger at being abused by warring parties."

UNGA, 12 August 2005:

"72. The Special Rapporteur is distressed that sexual violence committed by Government personnel against women and children allegedly continues. Civilians in ethnic minority areas such as Shan, Kayin, Kayah and Mon states have allegedly been particularly vulnerable to such violations. Documented reports of rape, sexual slavery and forced marriage continue to be received. Such incidents have resulted in the restricted movement of women, who allegedly are often fearful of working in the fields or travelling unaccompanied. It is reported that prosecution of the alleged perpetrators rarely takes place."

HRW, Annual report 2005:

"Local and international nongovernmental organizations have documented widespread and continuing sexual violence against ethnic women by the military in Burma, including new reports by the Women's League of Burma (WLB) and the Karen Women's Organization (KWO) in 2004.

[...]

The WLB reported sexual violence in 2003 and 2004 in all provinces with significant ethnic minority populations as well as in central Burma. Abuses included rape of women and girls, gang rapes, murder, sexual slavery, and forced marriage. The report implicated senior and junior military personnel as being perpetrators or complicit in the majority of documented rapes. The SPDC has denied the findings of these reports, and women's organizations have reported intimidation of survivors and witnesses."

Women in the Karen state are frequently sexually abused:

HRW, annual report 2005:

"The KWO [Karen Women's Organization] documented 125 cases of sexual violence committed by the SPDC's military troops in Karen State from 1988 until 2004, half committed by high-ranking military officers. According to this report, 40 percent of the cases were gang rapes. In 28 percent, women were raped and then killed."

UN CHR, 2 December 2004, para. 42:

"The Special Rapporteur has received reports of allegations of sexual violence against ethnic women, including, inter alia, Karens. In October 2004 the Special Rapporteur received information concerning preparations that were being made by the Myanmar Government to dispatch investigative teams to all the areas and sites connected with or relevant to the investigation of each alleged case. In view of the seriousness of those allegations, the Special Rapporteur offered, in his speech at the General Assembly on 28 October 2004, to carry out an independent assessment of such allegations in relevant parts of the country. In its memorandum of 29 October 2004, the Government noted that the allegations, "contained in expensive dossiers, are circulated by well-funded NGOs with links to armed terrorist groups and expatriate organizations". The Government further claimed that the allegations "are part of an anti-governmental agenda and are, in fact, propaganda of war waged with ill intent to slander and discredit the Myanmar Armed Forces, and to cause disunity and distrust among the national races". At the time of writing, the Special Rapporteur had no further information regarding investigation of the above allegations. It should be recalled that he made a similar offer to the Myanmar authorities with respect to the allegations of sexual violence against Shan women, which the authorities failed to take up."

A report by the Shan Human Rights Forum documented systematic rape of Shan women:

SHRF/SWAN May 2002, pp.1, 15, 18:

"This report details 173 incidents of rape and other forms of sexual violence, involving 625 girls and women, committed by Burmese army troops in Shan State, mostly between 1996 and 2001. It should be noted that due to the stigma attached to rape, many women do not report incidents of sexual violence. Incidents may also not have reached SHRF, as information on human rights

abuses in Shan State is gained from refugees arriving at the Thai-Burma border. Therefore the figures in this report are likely to be far lower than the reality.

The report reveals that the Burmese military regime is allowing its troops systematically and on a widespread scale to commit rape with impunity in order to terrorize and subjugate the ethnic peoples of Shan State. The report illustrates there is a strong case that war crimes and crimes against humanity, in the form of sexual violence, have occurred and continue to occur in Shan State.

The report gives clear evidence that rape is officially condoned as a 'weapon of war' against the civilian populations in Shan State. There appears to be a concerted strategy by the Burmese army troops to rape Shan women as part of their anti-insurgency activities. The incidents detailed were committed by soldiers from 52 different battalions. 83% of the rapes were committed by officers, usually in front of their own troops. The rapes involved extreme brutality and often torture such as beating, mutilation and suffocation. 25% of the rapes resulted in death, in some incidences with bodies being deliberately displayed to local communities. 61% were gang-rapes; women were raped within military bases, and in some cases women were detained and raped repeatedly for periods of up to 4 months. Out of the total 173 documented incidents, in only one case was a perpetrator punished by his commanding officer. More commonly, the complainants were fined, detained, tortured or even killed by the military.

[...]

The maps accompanying this report [...] show clearly that the majority of rape cases documented (76%) were in the areas of Central Shan State where the rural populations have been forcibly relocated.

The Burmese military regime has long had a practice of forcibly relocating villages in rural areas in order to prevent local people from providing support to resistance armies. The most extensive forced relocation program in Shan State (which is continuing until the present) was carried out between 1996-1997, when the regime ordered over 1,400 villages (over 300,000 rural people, mostly farmers) to move at gunpoint to strategic relocation sites near main roads and Burmese army bases. These villagers, deprived of their lands and livelihoods, were given no support at all by the regime, and many were forced to become day labourers or beggars. As a result, an estimated 150,000 Shans have fled to Thailand to try and survive as migrant labourers. Tens of thousands have hidden in the forests near their old villages.

[...]

When villagers were forcibly relocated, they were usually given a verbal or written order to move out of their village within a specified number of days (in most cases 3-7 days). They were told that if they were found in their village after the deadline, they would be shot on sight. However, in a number of cases, the regime's troops did not even wait until the deadline, and began inflicting violence on the villagers either immediately after the relocation orders were given, or while the villagers were in the process of moving.

Violence inflicted on the villagers included beatings and other forms of torture, and being burned alive in their houses. It also included rape.

6% of the rape incidents documented in this report occurred while the villagers were in the process of being forcibly relocated.

[...]

It is ironic that 6% of the rape incidents took place actually within the relocation sites, where villagers are supposed to be "safe" if they obey the orders of the Burmese military. This indicates clearly that the regime's troops were so sure of impunity with regard to rape, that they did not even need a pretext of "punishment" to commit rape. The proximity of most of the relocation sites to the Burmese military bases thus increased the vulnerability of the relocated villagers to rape."

See also: *The Karen Women's Organization (KWO)*, April 2004, [Shattering silences: Karen Women speak out about the Burmese military regime's use of rape as a strategy of war in the Karen State](#)

Deliberate violence against civilians remains a serious threat in conflict zones (October 2005)

TBBC, October 2005, pp. 46-47:

"Deliberate physical violence remains a threat to personal safety across all location types in conflict-affected areas. The risks of military attack and landmines are especially acute for households hiding in the most contested areas. However, a comparably high proportion of households reported a member being subjected to torture or beatings and arbitrary detention during the past year in relocation sites as for those in hiding. These responses support the assessments of human rights groups that the primary perpetrators of violence against civilians are authorities and soldiers from the SPDC. For humanitarian agencies, these findings highlight the imperative of responding to primary needs for protection along with food aid and health care so the people for whom assistance is targeted do not end up well-fed, but dead."

NCGUB, 15 January 2005:

"Violence committed against children is unfortunately common in conflict zones. Children are slaughtered by the army and security forces, and are victims of rape, torture, and landmines. Children doing forced labor, especially clearing roads and working as porters, have often been forced to act as human minesweepers and shields. In free fire zones, known as "Black Areas", troops regularly shoot at villagers and into homes, regardless of the presence of children. Even when a child is not the direct target of violence, children living in areas of armed conflict are subjected to numerous hardships that mark their entire lives. Family, community, and cultural life in these areas are continually disrupted by violence and insecurity. Children witness killings and violence directed against family, neighbors, and community members, and the emotional, mental toll over how long it will take for them to recover is impossible to calculate."

Military recruitment is the biggest risk facing children in conflict areas (October 2005)

TBBC, October 2005, p.49:

"Responses from the focus group discussions suggest the main threat of violence specifically targeted at children is military recruitment. Previous comprehensive assessments have estimated that while all warring parties recruit children into the army there are 70,000 soldiers under 18 years of age in the Burma Army, and that these constitute the "overwhelming majority of Burma's child soldiers".⁶⁰ However, villagers in this survey reported that the Burma Army's child soldiers are more likely to come from central Burma or other borders rather than the conflict-affected communities of eastern Burma. The internally displaced recognized that in many cases, desperation or destitution drives children into volunteering for military service with the armed opposition. Further, it was noted in the Karen and Mon areas at least, that the armed opposition generally supports children to continue their education rather than recruit them immediately into the armed forces. However, despite pledges to the contrary from both the SPDC and various armed opposition forces, villagers reported that all sides continue to recruit children into military service."

Reports document human rights abuses in relocation sites (August 2003)

- Reports of relocated people searching for food outside their relocation areas being killed

- People at the relocation sites are being used by the SPDC troops as porters for carrying military supplies as well as build and maintain army camps

In 2003 a Burma Issues researcher interviewed relocated IDPs who were detained by the Burmese Army in the Kamoethway Area, Tenasserim Division:

"In 51% of cases torture was used upon those detained. 91% of cases involved arbitrary detention and in 22% of cases the victim was extrajudicially killed. 40% of those who were arbitrarily detained were confined to a military base. Another 40% were detained in various structures within their village such as temples, schools and other villagers' houses. Victims either died or were killed in custody, or were detained for days, months or indefinitely, with some disappearing without a trace. All forms of treatment violated international legal instruments designed to protect people's basic rights. In many cases torture was used to extract information and confessions of guilt. It was also used as a deterrent.

This report finds that in all cases no legal or judicial procedures were complied with when carrying out these detentions. In only three of the 46 cases were those accused formally charged. These three, and the other 43 cases, received no fair trial. The ethnic areas of Burma are administered under an illegitimate military rule where the Burmese military acts as its own judicial and policing system. This allows the perpetration of numerous human rights abuses and political oppression within a culture of impunity.

[...]

The SPDC has frequently used the presence of armed and political opposition groups in these areas as justification for its abuses. The SPDC has deliberately targeted the civilian population in its attempts to

eradicate these non-Burman ethnic nationality opposition groups.

[...]

The Burmese military often accuses villagers of having a relative who is a member of a non-Burman ethnic nationality opposition group. The accusation implies that families should take responsibility for other family members' actions. This creates division amongst families and uses family members as bait to capture those who are members of non-Burman ethnic nationality opposition groups. Villagers are repeatedly targeted if they are known to have a relative who is a member of a non-Burman ethnic nationality opposition group. They are often drilled for information regarding the activities and movements of the relative and his/her group. Many villagers revealed that this continual harassment caused them to flee their villages and was a major cause for family displacement. Families would be split up and those that were members were often restricted in their ability to see their families again."(BI/ ALTSEAN, August 2003, p. 15)

IDPs in the Shan State face similar conditions in the relocation sites:

"Those in relocation sites must fear the violence of SPDC troops at all times. Villagers are terrified of leaving the site for fear of being beaten, raped, or killed. Across Shan State the testimonies of people living inside relocation sites echoes a palpable fear of soldiers, who have taken people off the streets of relocation sites and beaten them in surrounding forests. Many families, particularly the men, hide when they hear that soldiers are coming through the camps for fear that they will be captured for use as military porters. Forced labour is a constant burden for all villagers in the relocation sites; the SPDC has forced civilians to build military camps, roads, and railways across Shan State since the mass relocation operation began in 1996. The time required to work for the military is also a major factor preventing people from farming their own fields or earning money to feed their families." (KHRG 5 April 2000)

Lack of protection for returning refugees

Concerns over safety of refugees forcibly repatriated from Thailand (March 2003)

- Numerous instances of Thai authorities - and particularly Royal Thai Army Ninth Division - forcibly returning refugees and asylum seekers to insecure location,
- Repatriated refugees generally have with no access to humanitarian assistance
- In 200 Human Rights Watch warns against repatriation of Burmese refugees in Thailand

"The Asian Legal Resource Centre ... has become particularly concerned by the tendency of neighbouring countries to forcibly repatriate persons crossing the border from Myanmar, in utter disregard to the circumstances from which they have fled, and in violation of international legal principles on forcible repatriation. In its written statement on extrajudicial killings of migrant workers and impunity in Thailand to the fifty-ninth session of the Commission, the Asian Legal Resource Centre has noted a growing tendency by the authorities in Thailand to treat all people arriving from Myanmar as "illegal migrants". With already around 140,000 persons from Myanmar languishing in refugee camps that were first established in 1984, and with perhaps at least a million more elsewhere within its borders, it is understandable that the Government of Thailand is reluctant to simply open its doors to all-comers. Notwithstanding, there have been numerous flagrant instances of the Thai army forcing small numbers of genuine refugees back into conditions of extreme danger.

In one illustrative case recently brought to the attention of the Asian Legal Resource Centre, 63 persons who attempted to gain sanctuary in Thailand during late 2001 were forcibly repatriated by troops of the Thai Ninth Infantry Division. The group--comprising 15 families and including many children and the elderly--had fled from a forced relocation site. They reportedly had at first tried to eke out a living in the jungle, but were located by Myanmar army troops and were forced to flee again after one of their members was shot. An elderly woman died along the way, and many others were seriously ill and chronically malnourished on their arrival at the border--a fact admitted to by the commander of the Ninth Infantry Division when indicating that he had permitted the group to stay and receive medical assistance for two weeks. Presumably the commander felt this an adequate humanitarian gesture towards starving and frightened children, after which they were forcibly sent back into Myanmar. The commander rejected the group's right to asylum on the grounds that--in accordance with strict policy--it was not actually fleeing from fighting. The group was taken by truck, without the presence of representatives of the High Commissioner for Refugees or other independent agencies, and deposited in another equally insecure location on the Myanmar side of the border. In early January 2002, some members of the group are believed to have again desperately tried to enter Thailand, this time to be refused entry outright by the Ninth Infantry Division. The group has since scattered into the jungle and has been lost to the outside world.

The above account is supported by numerous other documented cases indicating remarkably similar series of events, in total involving hundreds if not thousands of people over the last few years. The Ninth Infantry Division has in particular been implicated in many of these incidents, and its commander has not been afraid to voice his contempt for those coming as refugees, nor express his willingness to send them back by force at every available opportunity and without any outside involvement. The Asian Legal Resource Centre is also extremely concerned by an as yet unconfirmed report that 55 men, consisting of 19 former members of an armed group and 36 civilians, have been disappeared by the Ninth Infantry Division. It is similarly concerned by recent credible reports of forced repatriation of political opponents to the military regime where at least 15 of those sent back have been disappeared by the Myanmar authorities, and are believed to have been summarily executed."(Asian Legal Resource Centre, 30 January 2003)

Volatile human rights situation facing returning Rohingyas in the Rakhine (Arakan) State (June 2003)

- Rohingya refugees repatriated from UNHCR-run camps in Bangladesh, often under considerable pressure from the authorities
- International observers concerned about security of Rohingya refugees returning from Bangladesh as human rights situation is difficult to monitor
- More than 212,000 returned to Burma under a controversial UNHCR supported repatriation program during 1992-1995

"In May 2003, the number of refugees being repatriated [from Bangladesh] rose dramatically (704 people in May against 93 in April). At the same time, disturbing reports denouncing forced repatriation, intimidation and coercion suddenly began pouring out of the two Rohingya refugee camps in Bangladesh. Such complaints had started filtering out in October 2002, decreased for a while, then began shooting up again in May 2003. This sharp increase in incidents follows the announcement, earlier this year, of a UNHCR plan to phase out its responsibilities for the camps and to disengage from the repatriation process after 30 June 2003. As a result, the Bangladesh authorities are now speeding up the repatriation of refugees cleared by the Burmese Immigration, regardless as to whether they are willing or not.

[...]

The Rohingya in Northern Arakan State continue to face constant humiliation and systematic discrimination, and are subject to widespread human rights violations. They are living in a climate of fear and oppression. Despite the presence of UNHCR and international agencies, conditions have hardly improved. As one NGO representative in Rangoon recently stated: 'The presence of UNHCR and some international NGOs has only provided limited relief, but not a structural change.'"(Forum Asia, 15 June 2003, p. 5 & 10)

Appendix VII of the 1998 ILO report on forced labour contains numerous summaries of testimonies from individuals who describe the use of forced labour as well as the human rights situation in general.

See also: "Forced Relocations, Displacement and Abuse of Muslims the Rakhine State and other areas (1997-2003)

More reading:

HRW(July 2002): "Crackdown on Burmese Muslims"

Refugees International, 'Forgotten People: The Rohingyas of Burma', 15 March 2003

BCN 'Caught Between a Crocodile and a Snake: The Increasing Pressure on Rohingyas in Burma and Bangladesh & The Impacts of the Changing Policy of UNHCR', April/May 2003

SUBSISTENCE NEEDS

General

Field visits document that internally displaced in hiding sites suffer from serious health problems and hunger (April 2004)

- A Thailand-based NGO reports from two visits inside Burma where it provided medical help and documented human rights abuses

Assessment of situation for internally displaced based on a trip to the the Mergui–Tavoy district by a relief team from Free Burma Rangers:

"The relief team from [Free Burma Rangers] visited 8 IDP hiding sites and provided medical care to 67 IDP patients. The IDP population in this area the team visited was 366 people.

IDPs in this area are villagers from near the Tenassarim River and Paw K'lo River [in the Mergui – Tavoy district]. They moved to their present locations when the Burma Army launched a major offensive in 1977. Because they need new places to grow rice and because they have no guarantee of security, many IDPs move around to new sites every year. They often hide in spots along the river with a few families sharing one hiding site. Each family prepares a secret hiding spot, where they put the things they do not need every day.

IDPs in this area use swidden farming to survive. The IDPs who do have enough rice share with others who are less fortunate. Some IDPs create a small income from hunting, selling chillies or honey. Rice prices at Paw K'Toe forced relocation site is one sack (3 tins) is equal to approximately US\$15.

Because the IDPs from west of the Paw K'lo River are further from an international border, they are rarely, if ever, visited by medical workers. It is difficult to transport the medicine to them and the security for the workers to arrive to those sites is poor. The IDPs in those hiding sites use traditional medicine, and don't have the option of buying medicine from the forced relocation site as it is too expensive.

[...]

There is no security guarantee for IDPs in this area. The Karen Army tries to protect them but they are not a large enough force to protect the scattered IDP population. Every IDP family has a place in the jungle prepared in case they need to run from the Burma Army. They keep extra rice and all non-essential possessions there. Animals sometimes find and destroy their places in the jungle, so they have many different problems to deal with." (Free Burma Rangers, April 2004)

Assessment of situation for internally displaced based on a trip to the Pa'an district of the Karen State by a relief team from Free Burma Rangers:

"The Paan FBR team went on a relief and human rights documentation trip to Paing Kyone and Hlaing Bwe Township in Paan District, Karen State.

[...]

The villagers in this area have consistently suffered the abuses of forced portering and looting of their possessions. They are under the constant threat of having these things happen, so they are weakened and struggle to survive.

[...]

The villagers have insufficient medical care, do not have high standards of personal health and hygiene, and have not had the opportunity to attend school in most cases. The IDP situation in this area depends largely upon the Burma Army activities. During this relief mission, the Burma Army was quiet because of the ongoing cease-fire negotiations between the State Peace and Development Council (SPDC) and the Karen National Union (KNU).

The people in the IDP hiding places can continue to barely survive by farming the hills around their hiding sites. The villagers are forced to endure the Democratic Karen Buddhist Army (DKBA) stealing, looting, and eating of their food with no permission. The IDPs do not have enough medical care. They suffer a lot from diarrhea and stomach troubles at the beginning of every rainy season." (Free Burma Rangers, March 2003)

Internally displaced in eastern Burma are extremely vulnerable (October 2004)

"This report [TBBC report from October 2004] presents indicators which suggest there is a public health emergency amongst internally displaced persons in eastern Burma. A third of households surveyed had not been able to access any health services during the past year, contributing to high mortality rates from infectious diseases which can be prevented and treated, such as malaria. Child mortality and malnutrition rates are double Burma's national baseline rate and comparable to those recorded amongst internally displaced populations in the Horn of Africa. The population structure shows significantly more children dependent on a smaller proportion of working age adults compared to official data sources for Burma. This working age adult population consists of a high proportion of women representing greater rates of mortality, economic migration, flight from abuse and military conscription amongst young adult men. Low levels of access to durable shelter are recorded and associated not only with limited protection from the climate but also adverse impacts on health and human dignity. Similarly, low levels of educational attainment are likely to restrict the capacity of internally displaced persons to cope and recover from all of these aspects of vulnerability." (TBBC, October 2004, Executive summary)

For an extensive overview of the level of vulnerability among internally displaced in Eastern Burma, see the report by Thailand Burma Border Consortium: [Internally displaced and Vulnerability in Eastern Burma](#)

Karen displaced during army attacks in November- December 2004, faced dire humanitarian conditions (December 2004)

- Nearly 5,000 Karen people have been displaced since November 2004 as a result of ongoing army offensives
- These villagers are now hiding in the jungle and mountains in dire living conditions
- Most fled the attacks without any supplies and are suffering from cold and exposure, making them more susceptible to dysentery and respiratory infections, as well as malaria
- Children and pregnant women are particularly at risk

"Due to the Burma army's ongoing attacks since 14 November 2004, 4,781 Karen people became new Internally Displaced Persons (IDPs) and 19,425 baskets (about 388,000 kilos) of paddy rice have been burned in Papun Township, Karen State, Burma up to now. The affected village tracts are: Bla Ko, Mae Ya Kee, Mae K'Tee, Saw Per Kee and Htee Blu (Bleh). The actual number of IDPs and burned rice baskets will increase as the army operation continues. All of the villagers in this area are Internally Displaced Persons- IDPs, and had recently moved back into this area to reestablish the homes and fields that they had lost in 2000. They are now in hiding again.

At midnight, 14 November 2004, four Burma army battalions (LIB 350, IB 57, LIB 20 and one troop from LIB 264) launched attacks against villagers in Papun Township, western Karen State. The four battalions divided into two forces and launched simultaneous attacks in the Ya Aung area and the Htee Blu area. LIB 589 later joined the military operation and LIB 28 is delivering supplies to the battalions for those attacks. The army burned over 30 homes, destroyed over 2,000 baskets of rice, looted homes and livestock, and drove over 800 people into the jungle. Most of the people had only a one hour warning that the army was coming and fled in the middle of the night with few possessions or food. Many were sleeping in their fields during this harvest time and could not return to their homes at all.

The villagers are now living in fear deep in the jungle and mountains, while the Burma army is occupying the high ground near the abandoned villages and continues to burn rice barns and homes as well as to eat the livestock the villagers were forced to abandon. The villagers can only cook at night in hidden places so that army patrols cannot find them. Most of them fled the attacks with only what they had on their backs and are now suffering from cold and exposure during the night. Many of them are beginning to suffer from dysentery and respiratory infections due to their being crowded into small hiding places with limited water supplies. This also makes them weaker and more susceptible to other diseases such as GI/UT tract infections and malaria. The most at risk are babies and small children, many of whom are already sick.

There are also women who are pregnant and close to giving birth staying in the IDP hide sites and if they have to stay there much longer they will give birth in the jungle. The weather is getting colder and there has been some rain. They are also under constant pressure to always be ready to move if the Burma army troops come near this hiding place. Food, shelter, health and security are their biggest problems right now.

It was reported that the army moved to Su Mu Hta on November 19, and then to Ya Aung area (three villages in this area are Ya Aung, Ger Hee Day, Nya Lee Pu). Altogether more than 400 IDPs had to flee from these three villages and are still hiding in the jungle. Many of them were suffering from malaria, diarrhea, hepatitis and other illnesses." (AHRC, 29 December 2004)

Health

Malaria leading cause of IDP deaths in eastern Burma (February 2008)

- Malaria is the leading cause of IDP deaths in eastern Burma
- The spread of malaria in eastern Burma is linked to the Burmese military's practice of forced displacement and destruction of villages

OSI, July 2007, p. 93-109:

"Health indicators along Burma's eastern border with Thailand, which stretches over 2,400 km and is overwhelmingly populated by ethnic non-Burmans, are some of the worst in Asia. Infant, child, and maternal mortality rates in internally displaced (IDP) communities of eastern Burma are more akin to rates seen in other humanitarian disaster zones such as Sierra Leone, Angola, and the Democratic Republic of the Congo. Most deaths are due to infectious diseases that are both preventable and curable. Also, narcotics have been and continue to be an export across this border to Thailand and markets beyond, fueling addiction and infections. [...]

Malaria is endemic on both sides of the Thai-Burma border and is particularly rampant in IDP communities in Burma. This border also suffers from some of the highest rates of drug-resistant malaria in the world.

[...]

The health situation in IDP communities in eastern Burma is dire. In a report released recently by the Back Pack Health Worker Team, IDP communities along the frontier with Thailand had infant, child, and maternal mortality rates far higher than Burma's official rates.

[...]

Most deaths recorded by the Back Packer teams were from infectious diseases, especially malaria which accounted for almost half the identified deaths of the internally displaced in eastern Burma. In IDP communities, the Back Packer team surveys demonstrated widespread violations of human rights and international humanitarian law, including the high prevalence of forced displacement, food seizure and/or destruction, and forced labor. These abuses were found to be directly linked to adverse health outcomes...

[...]

A survey by the Back Pack Health Worker Team, published in 2006, found that malaria was the cause of almost half the deaths in internally displaced communities in eastern Burma. Of all age groups, young children were particularly vulnerable.

[...]

The Back Pack Health Worker Team has concluded that the spread of malaria in eastern Burma is linked to the Burmese military's practice of forced displacement and destruction of villages and food stores. During a recent survey, the group found that households of internally displaced persons that suffered food destruction or confiscation by the military had higher odds of having malaria, as they were forced to forage in the jungles for longer periods of time without shelter or protective equipment, and thus were at a higher risk of contracting malaria."

The health situation is catastrophic in conflict affected areas (September 2006)

- In the eastern areas of Burma, standard public health indicators such as population pyramids, infant mortality rates, child mortality rates, and maternal mortality ratios more closely resemble other countries facing widespread humanitarian disasters
- Survey concludes that human rights abuses in eastern Burma were found to be closely tied to adverse health outcomes
- As many as one in 12 women will die from pregnancy-related complications
- In villages situated in SPDC-controlled areas, malnutrition and serious health problems are common

Back Pack Health Worker Team, 14 September 2006, executive summary:

"Disinvestment in health, coupled with widespread poverty, corruption, and the dearth of skilled personnel have resulted in the collapse of Burma's health system. Today, Burma's health indicators by official figures are among the worst in the region. However, information collected by the Back Pack Health Workers Team (BPHWT) on the eastern frontiers of the country, facing decades of civil war and widespread human rights abuses, indicate a far greater public health catastrophe in areas where official figures are not collected.

In these eastern areas of Burma, standard public health indicators such as population pyramids, infant mortality rates, child mortality rates, and maternal mortality ratios more closely resemble other countries facing widespread humanitarian disasters, such as Sierra Leone, the Democratic Republic of the Congo, Niger, Angola, and Cambodia shortly after the ouster of the Khmer Rouge. The most common cause of death continues to be malaria, with over 12% of the population *at any given time* infected with *Plasmodium falciparum*, the most dangerous form of malaria. One out of every twelve women in this area may lose her life around the time of childbirth, deaths that are largely preventable. Malnutrition is unacceptably common, with over 15% of children at any time with evidence of at least mild malnutrition, rates far higher than their counterparts who have fled to refugee camps in Thailand. Knowledge of sanitation and safe drinking water use remains low.

[...]

Using epidemiologic tools, several human rights abuses were found to be closely tied to adverse health outcomes. Families forced to flee within the preceding twelve months were 2.4 times more likely to have a child (under age 5) die than those who had not been forcibly displaced. Households forced to flee also were 3.1 times as likely to have malnourished children compared to those in more stable situations.

Food destruction and theft were also very closely tied to several adverse health consequences. Families which had suffered this abuse in the preceding twelve months were almost 50% more likely to suffer a death in the household. These households also were 4.6 times as likely to have a member suffer from a landmine injury, and 1.7 times as likely to have an adult member suffer from malaria, both likely tied to the need to forage in the jungle. Children of these households were 4.4 times as likely to suffer from malnutrition compared to households whose food supply had not been compromised.

For the most common abuse, forced labor, families that had suffered from this within the past year were 60% more likely to have a member suffer from diarrhea (within the two weeks prior to the survey), and more than twice as likely to have a member suffer from night blindness (a measure of vitamin A deficiency and thus malnutrition) compared to families free from this abuse. Not only are many abuses linked statistically from field observations to adverse health consequences, they are yet another obstacle to accessing health care services already out of reach for the majority of IDP populations in the eastern conflict zones of Burma.

This is especially clear with women's reproductive health: forced displacement within the past year was associated with a 6.1 fold lower use of contraception. Given the high fertility rate of this population and the high prevalence of conditions such as malaria and malnutrition, the lack of access often is fatal, as reflected by the high maternal mortality ratio—as many as one in 12 women will die from pregnancy-related complications.

This report is the first to measure basic public health indicators and quantify the extent of human rights abuses at the population level amongst IDP communities living in the eastern conflict zones of Burma. These results indicate that the poor health status of these IDP communities is intricately and inexorably linked to the human rights context in which health outcomes are observed. Without addressing factors which drive ill health and excess morbidity and mortality in these populations, such as widespread human rights abuses and inability to access healthcare services, a long-term, sustainable improvement in the public health of these areas cannot occur."

CSW, 26 April 2004:

"Standards of living amongst IDPs are usually very low: inadequate clothing (often one set of garments which is rarely washed) provides no protection against the cold nights. Fires are avoided as smoke may result in detection by SPDC soldiers. Hygiene is poor due to limited washing opportunities; skin disease, particularly scabies and extensive fungal infection are frequently complicated by bacterial super-infection which causes weeping sores and spreading infection (cellulitis).

[...]

Many people suffer injuries caused by gunshot and torture inflicted by SPDC soldiers. Many IDPs sustain simple and compound fractures, foot wounds from treading on sharp objects such as bamboo, and burns – especially children rolling near fire embers at night.

[...]

The health of IDPs is further endangered by the absence of standard medication and, at best, irregular availability of essential medicines. At times, dosage and duration of the course of treatment may be incorrect. This may cause complications such as overdose for children, or insufficient treatment which fails to eradicate an infection and which may lead to antibiotic resistance."

HIV/AIDS particularly affects the conflict zones (October 2005)

- UNCHR calls on the government to solve the AIDS crisis in partnership with all sectors of society
- ...while the exile government calls for "peace corridors" to facilitate access for international assistance
- The government blames internally displaced for the spread of AIDS

TBBC, October 2005, p.48:

"While estimates of the number of people living with HIV/AIDS nationally range from 340,000 to double that amount, the prevalence in conflict-affected areas of eastern Burma is unknown.⁴⁷ Thailand and Burma share a porous border which facilitates transmission of the virus into eastern Burma from both sides. It was mentioned in focus group discussions that young women seeking to supplement their families incomes by migrating to work in towns were at risk of being coerced into sex work and contracting the virus. However internally displaced persons did not recognise that young men were similarly at risk of being exposed to the virus through intravenous drug use if they migrated to search for work, especially in the mining industry."

The situation for internally displaced after army offensive in December 2003 reported to be critical (March 2004)

- In March 2004, the situation was reported to be critical for internally displaced in Karen and Karenni states who fled attacks an army offensive in December 2003
- Apart from protection concerns, reports highlight lack of food, adequate shelter and serious health problems

" Of the estimated 1,000 Karenni IDPs who have fled into Muthraw district, Karen State, 831 are accounted for.

The situation is very dangerous for these people and in the face of Burma Army patrols, they have to move frequently. The Burma Army has mined the area and has three battalions on patrol who shoot at any villagers they see. The IDPs cannot build fires at night in some places due to the nearness of the Burma Army and since nighttime temperatures are often at or near freezing in their hiding places, this is a severe hardship.

Within two weeks these IDPs will all be out of food unless they receive assistance. These IDPs cannot return now to their homes and fields in Karenni state and are relying on the rice they carried as they fled. The rice they harvested and collected in their barns is now under the control of the Burma Army. They were also forced to abandon their livestock and any property they could not carry.

The only medicine available is from mobile relief teams and this has been exhausted. The most common diseases among this population are malaria, urinary tract infections, acute respiratory infections and common cold. One woman died two hours after giving birth in her hiding place. No medic could arrive in time and she hemorrhaged to death." (ARMS 2 February 2004)

"Emergency medical supplies are now reaching a few of the Karen and IDPs (over 5,000 IDPs who fled the Burma Army attacks in Dec '03 and Jan-Feb '04). The relief teams who responded to the attacks of the Burma Army in Jan '04 ran out of medicine and had to return for resupply. Rice has also been provided by those concerned for these IDPs." (ARMS, 6 March 2004)

Limited capacity to respond to poor health situation facing Karen IDPs (April 2003)

- Children more susceptible than adults to diseases while hiding in the forest, and without medicine many have died
- Children are not spared by the SPDC soldiers and many have been shot or wounded by shrapnel
- In the past health workers used to be able to manage health care units in their own districts with support from NGOs based in Thailand
- Health service system within the Karen state collapsed after fall of KNU headquarters to junta forces (1998)
- Mobile medical trips has been the mainstay of health care for Karen IDPs since the 1997 offensive

"Health is a major concern for people in hiding. Life in the tropics without shelter or adequate food leads to high sickness and mortality rates from malnutrition, diarrhea, malaria, minor injuries and other easily preventable illnesses. With a complete absence of health care facilities, people mainly rely on herbs and traditional medicine. Although there are some healthcare teams which seek to reach IDPs, the medicine and care they are able to provide is insufficient for the numbers of IDPs in hiding across many border areas."(NCGUB, September 2002, *"Internally Displaced People and Forced Relocation"*)

"Families living as IDP's in the hills include many small children. Women often give birth in the jungle without the benefit of even a midwife to assist. Many babies do not live through their first year. The mothers are also at risk, both during their pregnancies due to malnutrition and vitamin deficiencies, and afterwards when they are forced to flee without adequate recovery time from childbirth. The children are more susceptible than the adults to diseases in the forest, and without medicine many have died. It is not as easy for the families with small children to run as the children have to be carried, and it also means the family can't carry as much rice or belongings. Children are not spared by the SPDC soldiers and many have been shot or wounded by shrapnel when the soldiers open fire on the villages. There have been many instances when the soldiers were close enough to see it was children they were shooting at, but they continued shooting anyway.

[...]

Medicine and people trained in medicine are almost nonexistent in the Papun hills and eastern Nyaunglebin District. Most villagers rely on traditional medicines made from roots, leaves and tree bark which can be foraged in the forest. People do occasionally come up into the hills and sell medicine to the IDP's, but it is usually only in small quantities and not very strong. Most of the medicine consists of Burmese patent over the counter drugs which are often of low quality. Injections and other high quality medicines, usually from Thailand, are difficult to obtain and very expensive. It is very risky for the people to come up to sell medicine because any villagers caught carrying medicine in the hills can be executed by the SPDC soldiers after being accused of aiding the resistance. " (KHRG October 2001, pp.40, 70)

"Prior to the fall of Manerplaw when the KNU still maintained district administrative structures to deal with health and welfare, various international NGOs working alongside the Karen managed to set up training for health workers. Many of these health workers were then able to manage health care units in their own districts with support from NGOs based in Thailand. Even large hospitals like at Htee Hta in Mergui-Tavoy district could be supported and used to build capacity for local staff. However, the focal point of most of this work was, naturally, in stable KNU-held areas since security and transport of supplies had to be carefully managed.

The Health and Welfare Department [of the KNU] had a mandate to carry out relief for refugees and displaced persons. Some training was occasionally given in community development and monitoring. With the fall of Manerplaw, and then the massive assault culminating in the capture of the two southern districts, much of this assistance to the indigenous population cross-border had to stop. With whole areas displaced from their homes, and people seeking sanctuary at the Thai border, the need became much more to help the IDPs who were by now in all seven districts.

Medical care in the form of mobile medical trips has been the mainstay of health care for Karen IDPs since the 1997 offensive. Two channels have been used -- that of a border-based clinic for Burmese and the KNU health department. A typical trip would last for six to eight weeks and be provided with a standard allocation of medicines. Funds came through Thai based NGOs.

In 1997, the two operations mounted 22 separate trips reaching on average 800 persons per trip. The KNU health department reported that at least one trip has reached every district; though of course no one area can receive continuous care, care being provided only when a team passes through the location." (BERG April 1998, p.50)

Poor health conditions in Karen relocation areas (2003)

"There is no community health center or program in Kamoethway area. There is only one health care clinic in Myitta village. The villagers have to buy their medicine. A woman in Myitta village said they get free medicine from the Burmese army medic, but not more than 2-3 takes (dosage). In other villages, the villagers survive in their own way. Villagers, who know about health care, treat the people in their village. It is not free. There also the medicine is very expensive. Some villagers said the main problem after the Burmese troops come is the follow-up of sickness. Some villagers get sick but they take no medicine because they do not have any."(BI, April 2003, p. 15)

See also: Beyrer: "The Health and Humanitarian Situation of Burmese Populations Along the Thai-Burma Border" Burma Debate, VOL. VI, NO. 3 FALL 1999

Nutrition and food

Food insecurity among IDPs worsened by army action (February 2008)

- The Burmese army destroys crops and forces people into hiding, disrupting their means of survival
- IDPs living in relocation sites may also face chronic malnutrition and be unable to secure minimum subsistence needs
- In Karen State, the army is increasingly targeting food supplies of civilians to force them into military-controlled villages and relocation sites

RI, June 2006, p. 10:

"Those living along the border areas are often dependent on slash and burn techniques to grow rice. Military attacks force people into hiding and disrupt this means of survival. The villagers are not able to tend to their crops, and after returning to what is left of their village, they may find their houses burned, and cooking pots, tools and seeds destroyed. Sometimes the military sets fire to crops. In other locations there is not enough land to cultivate. Even if the military does not destroy crops, it may restrict villagers from going to their field at harvesting time, and people lose the chance to reap their crop. Food shortages are experienced by many and to survive, people resort to eating yams, roots and non-nutritious jungle food such as bamboo shoots."

[...]

In certain [relocation] centres, residents are allowed access to their farms, but usually the distance involved and restrictions on time they can spend tending their fields mean that rice production is much less than it was prior to their displacement. Residents are sometimes allocated plots of land to farm, but this land is often underdeveloped and of poor quality. Even if people are able to produce rice, the army imposes 'rice taxes.' Many in relocation sites are faced with chronic malnutrition and have no means of securing even minimum subsistence needs."

KHRG, August 2007, p. 9:

"The destruction of food supplies, a widespread and systematic strategy employed by SPDC forces in Karen State, serves to undermine civilian efforts to survive outside of military control. Given the Army's efforts to relocate all civilians from this area into consolidated population centres alongside roadways and close to military camps and bases, the pursuit of subsistence by displaced communities in hiding directly challenges military authority. Such resistance undermines SPDC rule in Karen State and weakens military power, as the regime's armed forces rely on a controlled civilian population to sustain militarisation. For this reason, the SPDC military units operating in those areas where it lacks a consolidated hold on the civilian population - including much of Toungoo District and other areas of northern Karen State - target covert hill fields, food stores and food storage containers in an effort to starve the civilian population out of the hills and force them into military-controlled villages and relocation sites where they can be more easily exploited."

Poor nutrition status among displaced children and women of reproductive age (October 2003)

- Children are more likely to fall into the cycle of infection, weight loss, recovery and repeated infection
- Women of reproductive age are also at increased risk
- Internal displacement has a negative impact on breastfeeding
- Survey found that overall dietary intake of children in the IDP population was poor

"Children are at increased risk of under or malnutrition for a number of reasons. The biological demands of growing children are high, and even small changes in available household food resources can be rapidly reflected at the population level with increased under nutrition, protein energy malnutrition, and micronutrient deficiencies. During times of population stress, children are more likely to fall into the cycle of infection, weight loss, recovery and repeated infection, resulting in acute (wasting) and chronic (stunting) malnutrition. Malnutrition compromises the ability of the child to fight infection, resulting in increased morbidity and mortality, and children are particularly susceptible to iron-deficiency anemia and vitamin A deficiency. Poor nutrition over the long term can result in motor and cognitive developmental delays in children.

Women of reproductive age are also at increased risk, particularly during pregnancy and lactation – at this time, women have increased energy and micronutrient requirements. Internal displacement may increase the risk of protein-energy malnutrition, anemia, and vitamin A deficiency in women, through reduced household food availability, increased rates of malaria, decreased availability of vitamin A rich and other micronutrient-rich foods, and increased susceptibility to geohelminth infections.

Nutrition Survey :

In eastern Burma, backpack health worker teams conduct a primary health program in Karen, Karenni and Mon State, targeting a population of approximately 140,000 people, many internally displaced due to ongoing civil conflict. In order to assess the impact of internal displacement on

nutritional status, the team conducted a dietary intake survey during the months of July to December 2000. This was conducted in Taungoo, Papun and Paan township in Karen state, Kyaukgyi township in Pegu Division, Bilin township in Mon state, and in Tenasserim Division. Six hundred and thirty seven mothers were asked questions concerning their breastfeeding status, recent dietary intake, and recent health status of their youngest child under five years of age. For each child, mid-upper arm circumference (MUAC) was measured.

While breastfeeding rates are high (95% of children had been breastfed), and breastfeeding time is long (the median age at end of breastfeeding was 24 months), exclusive breastfeeding practices are insufficient. Approximately 67% (360/535) of mothers reported that their youngest child was exclusively breastfed for four months, and only 29.4% (157/535) of the children were exclusively breastfed for the first six months of life. Internal displacement likely decreases maternal nutrition status, resulting in disruption of normal lactation and a decrease in rates of exclusive breastfeeding.

Overall dietary intake of children in the IDP population was poor. In the week prior to the survey, among non-breastfeeding children, 39% did not receive a single serving of fish, 40% did not eat meat, 78% did not eat eggs, and 85% did not eat any beans. Twenty-six percent of children did not eat any of these protein-rich foods in the previous week. Intake of protein foods was associated with level of instability in the population. While all the sub-areas in the survey can be considered under stress, internal displacement was most common in Pegu and Tenasserim Division, with 65% and 37% (respectively) of the respondents reporting moving more than three times in the past twelve months." (BBC October 2003, pp. 38-39)

Internally displaced survive by hiding food (May 2004)

- Internally displaced by hiding and sharing food
- Displaced are also forced to forage for food - even in dangerous areas

"The most common survival strategy is to hide rice in jungle caches. The Burmese army launches regular patrols, aimed at seeking out displaced people, destroying their temporary shelters and rice supplies. If the military finds a store of rice, it takes it, destroys it or in some cases lays mines around it. Animals and insects are even more effective, and often consume the hidden grain.

[...]

Foraging for wild foods is a second vital lifeline in the absence of a regular food supply. It is a normal part of life for rural people in Burma, but it becomes a dangerous and unpredictable undertaking as the pangs of hunger force people to forage ever wider. Many executions, rapes or beatings occur during chance encounters between displaced people looking for food and small military units on patrol.[...]

[...]

Others surreptitiously return to their fields or cultivate small plots hidden in the dense jungle, using traditional 'slash and burn' methods. They risk attracting attention or potentially fatal encounters with soldiers. One army tactic is to locate jungle clearings in which displaced people have planted upland rice, then wait until harvest time to destroy the crops or lay landmines and shoot anyone coming out of the jungle to harvest them. Wild boars also often destroy the jungle plots. In many areas, necessity forces people out of the hills to trade or borrow from relatives in villages or relocation centres. Other food such as salt and fish paste, which they cannot produce themselves and is part of their main diet, is another problem for the IDPs [internally displaced people]. They try to sneak into the nearest relocated village to buy these foods. Many die along the way when they get caught in the middle of ambushes. There are no easy routes because these areas have been declared free-fire zones and the relocation sites are fenced in and watched by the People's Militia or Burma army. Villagers in the relocation sites have their

movements severely restricted. However, the IDPs and villagers at relocation sites have secret deals for selling food. Villagers at relocation sites sneak out and bring things to sell to the IDPs. This business is very dangerous and they cannot do it every time.[...]

Sharing food becomes an important survival strategy for many in the jungle. Most adults feed their children first, while they fast or eat only what they can forage. When rice supplies fail, wild tapioca cooked with bamboo shoots into a thin gruel becomes the staple food." (Christian Aid 2004)

Food scarcity on the increase - lack of food makes Karen IDPs vulnerable to diseases (February 2006)

- IDPs in hiding do not have regular access to food
- IDPs in relocations sites are often forced to hand food stocks over to the Burmese Army guards

BBC October 2003, p .18:

"Forced relocation of villagers has a disastrous impact on villagers' food security. Villagers are often forced to move to relocation sites which are far from their fields. They have to walk several hours to get to their fields and they are often not allowed to sleep in their field huts, making it very difficult to spend enough time working in the fields. Passes have to be obtained which cost 100 to 200 Kyat each and are usually only good for one day. Sometimes villagers are prohibited from going back to their fields altogether. Villagers caught sleeping in their field huts at night or working their fields without passes are arrested by Army patrols, accused of being rebels and often tortured and occasionally executed."

KHRG, September 2004:

"Food security has become a serious problem for almost all villagers in the hills. For those in the SPDC controlled areas, the forced labour and travel restrictions imposed upon them deny them enough time to go to their hill fields and plantations, leaving them short of food. The time granted to many villagers is often too short for them to be able to properly cultivate their fields. Some villagers are not even allowed to go to their fields. Regular demands for extortion money and forced labour fees rob them of any extra money with which to buy food. When villagers do have money to buy rice, the SPDC limits the amount that they are allowed to buy. For those living in hiding in the jungle, simply working their fields can be very dangerous as they are easy targets in their open hillside fields. The SPDC targets internally displaced villagers during the harvest season when they are far more visible in their fields. Having to constantly be on the run, needing to flee at a moment's notice also makes it extremely difficult for them to tend to a field. In order to get any food they must resort to planting small cash crops which they must carry to *Nyein Chan Yay* villages and sell in exchange for rice. By destroying their crops and shooting villagers in their fields, the SPDC is trying to starve the villagers out of the hills."

Food security is an acute problem in the Pa'an and Tongouu districts:

KHRG, 11 February 2006:

"Villagers in eastern Pa'an District, in central Karen state adjacent to the border with Thailand [...], have faced serious problems for many years and continue to do so now. At present their livelihoods are being seriously undermined because of forced labour, extortion of money and demands for livestock and materials by State Peace & Development Council (SPDC) and Democratic Karen Buddhist Army (DKBA) authorities who exert control over the region. The confiscation of villagers' land without compensation is a growing problem, particularly as part of

SPDC plans to expand Dta Greh (a.k.a. Pain Kyone) village into a town. Rape, arbitrary detention and torture are still committed by local authorities with complete impunity, making it difficult or impossible for villagers to resist these abuses and causing some of them to flee to areas protected by the Karen National Union (KNU) or to Thailand. This report will focus on events in Lu Pleh and Dta Greh townships in northern Pa'an district [...] throughout the year 2005.

Villagers living in these areas have told KHRG researchers that they can never prosper or feel safe while living in areas under the control of SPDC and DKBA forces, because the soldiers are constantly forcing and demanding things from them and threatening them. Since the ceasefire between the Karen National Union (KNU) and the SPDC began in 2004, armed conflict has slightly reduced but forced labour and demands by SPDC and DKBA forces have not been reduced at all.

[...]

the villagers are constantly forced to do work for the soldiers based in the camps, such as cleaning the camp compound, carrying water, cutting bamboo and trees to build huts for the soldiers, making fences around the camp compound, standing as sentries, acting as messengers, and doing whatever else the soldiers and officers request of them. This results in poverty and food shortages among the villagers, most of whom dare not complain because the soldiers sometimes physically abuse them or rape their female relatives.

[...]

In village tracts jointly controlled by SPDC and DKBA forces villagers face demands for forced labour, money and materials by both groups, but DKBA forces tend to be more in evidence so their demands are the heaviest."

KHRG, 19 August 2005:

"Most villagers in the area grow hillside rice and plantation crops such as durian, mangosteen, cardamom, betelnut and betel-chewing leaf. Every dry season the SPDC military burns back the bush along the sides of the vehicle roads to prevent ambushes and to make it impossible for villagers or resistance forces to cross the road without detection, and in doing this they burn many of the villagers' plantations and ricefields adjacent to the roads. According to KHRG researchers in the area, 2005 has been the worst year in memory for people living in villages along or near the vehicle roads[...].

SPDC troops have burned some of their hill rice fields, others have had to be abandoned because they are too visible to SPDC patrols, and their cardamom plantations are almost gone. Many do not have enough rice to eat or money to buy rice. They are forced to rely on finding daily paid labour to get money for food, but they cannot find paid work every day. Some of them have borrowed money or rice from their friends or their families and have fallen deeply into debt. As of June 2005, Karen relief organisations which supply covert aid to displaced villagers had not reached this region yet this year. The situation is now also worsening further north, in northeastern Than Daung township near the Shan State border, with the SPDC now building a vehicle road from Thauk Yay Ka to Htee Tha Saw to consolidate military control in that area as well."

KHRG, 22 March 2005:

"The increasing restrictions on movement of food within the District combined with the daily burden of forced labour and extortion fees ensure that many go hungry.

Thus, villagers hiding in the hills become reliant on buying food from those in SPDC-controlled villages, because their access to Kler Lah and the plains to the west is blocked by landmines and SPDC patrols; yet villagers in SPDC-controlled villages are themselves becoming more reliant on food brought in from Toungoo by traders, just when the SPDC is restricting the movement of traders and food. Displaced villagers risk arrest if they enter the SPDC-controlled villages, so sometimes traders have to bring rice to secret impromptu 'rice markets' in the forested hills. To get money to buy rice, the villagers in hiding try to grow cash crops like cardamom, but this dry

season SPDC units are seeking out and destroying their forest cardamom and betelnut plantations as well as their hidden rice storage barns."

Karenni IDPs in relocation sites have inadequate access to food (May 2003)

- IDPs leave relocation sites because of lack of food
- Reports of troops forcing villagers to hand over their rice but also that some rice distribution has found place
- Army distributes less than half of food needs to people in the displacement camps
- The economic subsistence situation, and basic social fabric, at relocations site has deteriorated significantly

"The latest and the most severe economic crisis in Mawchi is the result of the regime's 1996 forced relocation campaign. This program led to the total collapse of agricultural production in the area and the subsequent collapse of the rest of the economy. All the villagers from the surrounding areas were forced to move into the town of Mawchi. The cessation of agricultural production brought about a massive increase in the price of food and a large increase in unemployment. Now most people are more or less constantly hungry and spend their days scrounging around looking for food. All the children in the city are engaged in helping their parents obtain food - collecting birds, worms, frogs and insects to eat. Hardly any rice produced gets to market as it is kept for the family to eat and to pay back debts. The small amount of rice that does reach the market, which most cannot afford, is of the lowest quality and fit only for being boiled. This has caused most people to leave the township for Thailand and a number of the cease-fire areas.

[...]

The sets of prices that have arisen in Mawchi are such that market exchange is no longer possible. In fact, the local economy is non-viable, as there is no surplus produced. [...] output has been in long-term *decline*. This is due to the destruction of productive capacity coupled with large-scale human rights abuses by the central military regime. The economic situation in Mawchi, and the surrounding areas, means that there are only two resolutions possible for the inhabitants:

- i) self-production, that is, output not offered for sale
- ii) to leave the town and surrounding areas and move to other areas in Burma, to the refugee camps on the Thai-Burma border, or to become migrant labourers in Thailand.

[...]

There was no slash and burn farming in the Mawchi area prior to the relocation campaign, but afterwards, slash and burn agriculture (mostly for rice), began to take place on the outskirts of the town. However, the acreage under cultivation is very small and the yields much lower, than before the relocation campaign. The people involved in slash and burn agriculture are experiencing severe financial difficulties, because of high interest rates on loans for seed and fertilizer. When the debt is repaid there is hardly any rice left for the family to eat. The extremely high cost of inputs and credit is making it increasingly difficult for people to continue to engage (even) in this most basic form of agricultural production.

Meat is now very rare in Mawchi and is virtually never offered for sale. In fact, the only meat that is readily available for people are cats and dogs. On the rare occasions that meat is offered for sale, it is more than nearly everyone can afford, with prices for chicken, beef and pork now similar to those in Rangoon – 2,000 kyat for a viss of chicken, 1,500 kyat for viss a of beef and pork.

The shortages of meat and rice have come about for the same reasons. The last 'four-cuts' and relocation campaign exacerbated the following problems,

- i) lack of production because of the destruction of productive capital (the forced removal of people from agricultural land)
 - ii) the resulting lack of employment or production opportunities in the town and surrounding areas, ensures that no-one has any goods to exchange or income to buy food or other goods
 - iii) the high price of inputs induced by reductions in supply to the area
- This has not only ensured a dramatic decrease in absolute output levels, but also created a situation where increases in output are extremely difficult.

No Shops

The lack of shops or markets in the town is also evidence of a non-viable economy. Most of the shops in Mawchi closed down quickly after the forced relocation began in the area." (Alison Vicary/BEW14 May 2003)

"In the relocation sites, there seems to have been little attempt to mobilise or re-organise resources to support new arrivals. The inability or unwillingness to consider issues such as the availability of water, food supplies, cultivatable land and employment is largely a reason why communities who were relocated to these sites were not able to settle there. It is of course possible that the permanent resettlement of IDPs was neither intended nor planned for. At many sites, the unpreparedness of the site authorities and the insufficient services (such as the lack of household latrines and water) provided within them have forced IDPs to adopt ad-hoc approaches that may significantly compromise and endanger women's safety. The displacements [in 1996] occurred during a critical phase in the rice planting calendar, when rice seedlings were being transferred into the paddy fields. Because IDPs were not allowed back to their villages in the first few months after displacement except to collect stored rice, the rice crops in these areas failed. This led to an increased dependency on rice distributions in the following years, at a time when the delivery of rice rations had stopped in almost every site and there was a lack of viable employment for IDPs who are mostly farmers. Moreover, the splitting of communities and the displacement process — either into relocation sites or into hiding — may well have curtailed or changed access to the informal market sector further undermining income earning opportunities, which are operated largely by women.

[...]

Distribution of rice appears to have taken place in some camps at the beginning of the resettlement process. Two 'pyis' (about eight milk tins) worth per month seems to have been given out in most camps, although at some camps only half this amount was provided. In almost every case, the rations were stopped after a few months. In the relocation site at Nwa La Boe, which is the site closest to Loikaw city, rations were given out for a longer period. At this site, rations were given out free for the first year, although these were reportedly insufficient. For the second year, the authorities sold rice at subsidised prices. It seems that salt was also given out in this camp. A refugee who came from the relocation site at Mawchi maintained that rice intended for the IDPs was diverted and sold by local township authorities. Access to Shadaw relocation site was severely restricted and during 1996 transporting rice into the area was extremely difficult. There was also a lack of other essential foods, particularly protein foods which do not appear to have been distributed and it is not known how the diet of the IDPs was supplemented. " (BERG May 2000, pp.56, 80)

In the Shan State IDPs both in hiding and in the relocation sites have inadequate access to food (January 2004)

"A nutrition survey of 632 children in one region near the border by the Backpack Health Workers Team found that over 11 per cent of the children were seriously malnourished, with large numbers eating no meats, eggs or beans." (ALRC, 29 January 2004)

"The number of internally displaced people grows exponentially, as villagers are finding it increasingly difficult to survive in relocation sites. Lack of food is the all-consuming concern for uprooted villagers. Those in relocation sites must compete for work on land owned by other villagers, or farm fields at great distances from the relocation sites. They are issued one day travel passes which are only good from dawn to dusk, leaving them no time to work a distant field which may take hours to reach on foot. As a result their harvest never yields enough to sustain their families. Some farmers have been allowed to return to their villages on a temporary basis, usually during key phases in the rice growing cycle. Most often permission has been granted to villagers who own fields close to the relocation sites in town or along main roads." (NCGUB 2000, pp.131-2)

Destruction of agriculture reported in Shan State (January 2006)

COE-DMHA, 19 January 2006:

"The NGO, Shan and Relief Development Committee (SRDC), has released a report on decreased rice production in Myanmar's eastern Shan state as a result of forced military action. The report detailed the military rice quota system, forced relocation, the seizure of land and trading restrictions, which have led to the decrease. The report said that two-thirds of 57 villages have been relocated by the military to lower-lying areas since 1996, with more than 10,000 acres (4,470 hectares) of land seized. The military is now renting the land back to villagers for a fixed fee. "Mong Nai used to be a thriving agriculture center. Now fields are deserted and markets are empty," said Sai Leng, one of the report's authors. The report said that although Myanmar had abolished the rice quota system in 2003, farmers are still forced to sell their rice at lower-than-market prices, while the military still seizes portions of rice. As a result, many villagers were forced to move from the area or cultivate in the forests in secret. The area is home to about 25,000 Myanmar, Shan, Pa-o, Lisu, Kokang and Paluang ethnic groups, but the population has declined by 30 percent in the past 10 years. Rice is an important staple crop in the region and an important part of Myanmar's agriculture. Meanwhile, Mizzima News reports that authorities in northern Shan are forcing residents to grow castor oil plants as part of a military drive to develop bio-fuel for government use. Land was reportedly seized from farmers in the area for the project. Villagers are also being forced to work in the fields for the project, which was launched after fuel prices increased last year."

Click here for link to [report](#)

Internally displaced Mon face serious food shortage (October 2003)

"When the people fled from and displaced to escape from the above-mentioned human rights violation and racial persecution, they could not bring a lot of foods along with them. If they are arrested with over amount of foods, they could be killed or arrested. During their hiding situation, they also could not find food easily.

During the displacement, if they try to contact their relatives in villages, they or their relatives could be arrested and tortured as the Burmese Army always suspected them that they are bringing foods for rebels.

Foods are not available for almost displaced communities. Markets also are also far and dangerous when they try to get access to there. The relatives at villages or in the Burmese Army's set relocations are not dared to support them, otherwise, they could be punished.

Many restricted conditions created food-shortage problems to the displaced persons. They have to find the seasonal forest products to eat as foods. Banana, bamboo shoots, cassava, corns, papayas are available for foods during their displacement. However, as most ethnic people in Burma eat rice as their main foods, these fruits and forest products could not supplement them as main foods.

In some cases, the displaced families did not receive any rice at all and they need to eat forest products and vegetables. Then the displaced families tried to move to another place where they can get rice. Therefore, the displaced families have not stuck in one place for a long time, but move from one place to another gradually.

Sometimes, the displaced families receive small amounts of rice and then they mixed with other vegetables and forest products and use them as foods. These insufficient foods makes most women with small children and children under 18 years to be suffered from malnutrition problems." (HURFOM, October 2003)

Shelter

The UN Special Rapporteur says minimal preparations were made in advance of the arrival of IDPs in relocation sites (October 1999)

- IDPs required to build makeshift huts at relocation sites
- No particular arrangements are made by the authorities to receive the new forced arrivals at relocation sites

"According to testimonies received, relocation sites, as well as the living conditions in the sites, may vary from one place to another. Displaced persons in refugee camps in Thailand describe the sites as either a large, empty stretch of land surrounded by fences or barbed wire and near a military camp or as the centre of a large village where the army has forced villagers to congregate. The military outpost is normally in the centre of the village.

No particular arrangements are made by the authorities to receive the new forced arrivals. There seems to be a food and a health crisis and a general lack of adequate housing and basic services. Villagers have to build their own makeshift huts and provide their own food. Family members living in the relocation sites are often requested to do various tasks for the army. Each family also has to provide one person to work for the army. They perform various duties such as building the fences, cleaning the compound or guarding the site. The interviews did not make clear to what extent facilities for education and access to health care, especially for children, are available. Unemployment is a major problem in the relocation sites. The displaced are used to working their own land and it is difficult to start any sort of work to generate income. When they are able to find work, they are easily exploited. According to testimonies received, many displaced persons, including children, work as daily workers (porters), whose salaries are around US\$ 2 per week, for 12-hour working days. Others work in construction. Those who find such jobs are considered to be fortunate, since they have an income." (UN 22 January 1999, paras.64-65)

Mon state: shelter not adequate for displacement during the rainy season (October 2003)

"Recently (from 1988 to 1997) the Burmese Army launched the military offensives only in the dry season and stopped its operations in the rainy season. But later, the Burmese Army, which planned to overrun all bases of the rebel forces also has launched the offensives in the rainy season.

Therefore, the displaced families also have to flee even in the rainy season. When the displaced families are fleeing from one place to another, they cannot build a proper shelter, huts or houses, they just build a temporary shelter. Normally these temporary shelters are built with leaves and bamboo and when they heard the news of Burmese Army's activities, they need to abandon these shelters and fled to another place.

These shelters are not possible to prevent rainwater, snow, heat, wind and other natural disasters. The displaced families including many children with insufficient clothing have to stay in these shelters for many days and suffered from serious weather effects." (HURFOM, October 2003)

ACCESS TO EDUCATION

General

Limited access to education among IDPs (February 2008)

- In ceasefire areas, schools are run in the ethnic language while in areas under government control Burmese remains the language of instruction
- There are very few high schools in conflict areas and education gets disrupted when fighting breaks out
- At relocation centres, teachers and books remain in short supply

RI, June 2006, p. 12:

"The UN Development Program (UNDP) ranked Burma 138 out of 176 countries for combined primary, secondary, and tertiary gross educational enrollment ratios and 157 out of 175 countries for GDP per capita. A third of children attending school do not complete five years of elementary education. The UN Children's Fund (UNICEF) estimates that 55 percent of children go on to middle school and 25 percent enroll in high school. Children are not able to finish school because their parents are unable to afford the increasing fees or because falling family incomes make it necessary for the children to work. Moreover, government schools often lack adequate number of teachers and supplies.

In areas under government control, the Burmese language is the only medium for instruction permissible in state primary and secondary schools. Ethnic groups claim the government is forcing their children to learn Burmese and the curriculum disregards topics about local cultural heritage in order to "Burmanize" the next generation. Some of the ethnic education departments either teach Burmese language as a secondary subject or do not include it in the curriculum. In ceasefire areas, one of the benefits since the end of armed conflict has been the ability of ceasefire groups to run schools in their own languages. In Mon State, the NMSP education department and Mon CBOs provided Mon language teaching to over 100,000 students in 2004-2005, approximately 70 percent of whom live in government-controlled areas. This initiative would have been impossible prior to the ceasefire. A complication of using an ethnic language as the medium of education is that when students graduate to high schools and universities where courses are taught in Burmese, they may experience problems due to their limited language skills.

In conflict and war-affected areas, there are community schools and ethnic government-run schools and religious schools, but not many high schools. Frequently teachers themselves have not studied beyond 8th or 9th grade and there are no resources for teacher salary and educational materials. Out of more than 30,000 school age children living in conflict and border areas in one of the ethnic states, not more than 1,000 are reaching high school. Many children have to leave school after primary level. Education is disrupted when fighting breaks out, as the schools may be destroyed and classes may have to be held in forests.

While relocation centers do afford some access to state-funded schools and buildings, teachers and books are usually in short supply. Additionally, school fees are typically charged and, as in the rest of government-controlled Burma, ethnic nationality children may not study their own languages in school."

Conflict, poverty and language differences behind low school attendance in the ethnic states (March 2003)

- Government provides inadequate support to state school system in general
- The educational situation is particularly bad in ethnic minority-populated and conflict areas
- Only 10% of children joining school in the Karen, Karenni and Shan states
- SPDC rarely offers government schools in relocation camps
- Claimed that SPDC frequently uses education as a tool of Burmanization in conflict areas
- Mon language schools closed down after cease fire

"Burma was once considered one of the most literate countries in the world. Unfortunately today the education system at all levels is decaying – and along with it the future of Burma's next generations. The regime has neglected the education of children, allocating minimal resources to public education. In 1999, the World Bank found that state spending on education is among the lowest in the world, equivalent to 28 cents per child annually. Of the national budget, 40.1% is used for the military forces while less than 1% is used for all civilian education. [...]

In addition to dropping out of school for financial reasons, thousands of children are forced to drop out, or interrupt, their education for reasons associated with conflict due to: lack of an educational infrastructure; few teachers; security concerns; constant transience due to forced relocation; and 'Burmanization' policies that force the closure of non-Burman schools in ethnic areas. Other factors include: forced labor requirements; burning of villages by the military and subsequent free-fire zones; extra-judicial killing or arbitrary arrest of parents; and the general disruption of village life by military authorities who view all civilian activities as subordinate to military and state interests.

Reports from Karen State and an education study in Mon State provide evidence that the education policy of the regime promotes 'Burmanization' throughout the education system to the detriment of ethnic groups. Burmese is the only medium for instruction permissible for state primary and secondary schools. Ethnic nationality children rarely get the opportunity to study in their own language or topics related to their cultural heritage."(Burma UN Service Office, March 2003)

"Children in the ethnic nationality areas have little chance to learn at school. The most vulnerable areas are Karen, Karenni and Shans where only 10% of children can join school. Children in the areas of Mon, Kachin and Chin have more chance to get education compare with other areas. Some 25% of children in Naga area and 50% in Titain can join school. However, secondary school enrolment rate is very low. Poverty is a common reason. Parents cannot effort to pay for books and dresses for their children's schooling. Children help parents for family income. Some children are out harvesting and fishing. Some other children become drug addict. Children who lose their parents with several reasons are neglected for schooling. The tragedy is that these orphans come near school and look at children studying in the classroom through windows. They wish to learn but they need opportunity.

One of the reasons that children drop out of school is language problem. For example, Burmese-Muslim children quit Karen schools because they do not understand Karen language. Early marriage at the age of 14 and 15 in Lahu area stops their schooling. Poor health condition is also a common reason. Some schools ask for fees and parents do not reach it. For example, children in a Karen school disappear when the school asks for fee.

Curriculum

Curricula and syllabuses are varies in the ethnic nationality areas. Some areas use the curriculum prescribed by the regime. Some areas re-write their own curriculum. Some schools in Chin area use Indian curriculum. Medium of instruction in Mon schools is Mon language and all primary school textbooks are translated into Mon. Karen is now re-writing a new curriculum. Karenni schools use regime's curriculum except Burmese history. A Kachin teacher reveals that although they don not want to use the regime's curriculum, they_use it because Kachin students need to sit state exam. Another Kachin teacher says that they are not willing to teach Burmese history written by the military regime. Chin teachers also have the same idea that they do not want to teach history syllabus prescribed by the regime.

[...]

The ethnic vernacular languages are gradually disappeared by the fact that Burmese language is dominant for many years. According to the KNU education policy, Karen language is given priority in order that every Karen people masters the Karen language. English is a second language in Karen schools and Burmese is taught as a common language. The Karenni education committee has launched a five year project 2001-2005 that medium of instruction will be Karenni language in all Karenni schools.

The ABSDF school teaches Karen language as a subject where the majority are Karen students. An ABSDF teacher asks for help to other ethnic nationality groups to send language teachers to teach the children such as Shan and Mon studying in their school. Kachin schools teach Burmese language but they do not have enough teachers - Kachin children have never seen a Burmese. In Chin state, Hakha language (LAI), Phalam language (LAIZO) and Titain language (ZO) were allowed to teach at schools since 1925. However, it was limited by the regime in 1990. The religions groups have been trying to preserve these languages. In Naga area, Naga language is not allowed at all to teach at school." (NHEC, April 2001, pp. 13-14)

"The reasons for children not attending school and dropping out are varied. The main reasons are civil war, poverty and poor health condition. Schools are not stable because of fighting between the Burma army and ethnic armed opposition groups. Parents are poor and cannot afford to buy schoolbooks, clothes etc. Children are needed to help their parents' work such as harvesting and fishing. Older children look after small children when their parents go to work. Poor health and malnutrition also discourage children from joining school. In many cases schools are too far and children cannot go there." (NHEC, 2002, pp. 1-2)

Displaced children have limited access to education (June 2004)

- Children of ethnic groups have to restart their schooling upon arrival in the relocation sites because they are prevented from learning in their own language
- Impoverishment of the villagers caused by their loss of livelihood and the repeated relocation has disrupted both the formal and non-formal systems of education in the areas affected
- Forced relocation has disrupted both the formal and non-formal systems of education in the areas affected
- Some IDP communities have established poorly-equipped and vulnerable 'jungle schools', which are supported by local NGOs

"There were an estimated one million internally displaced persons, the majority in eastern Myanmar's ethnic Karen, Karenni, and Shan areas.

[...]

Thirty percent of the children in these areas had never seen a school and under-five child-mortality is about 30 percent. Neither Thailand nor Myanmar allowed humanitarian organizations to provide emergency aid to these populations."(USCR, June 2004)

"Resettlement sites equipped with school and medical facilities are a rarity, and the displaced people are not allowed to leave them without a military escort. [...] Living conditions in the jungle are obviously very tough, however some villagers have even managed to set up mini-schools that follow them as they move on to new places. They get the best-educated people to teach the alphabet and some of the "basics" to the children. Several NGOs and the exiled Burmese trade unions send brave activists into these jungle areas laden with bags of medicine and basic school supplies that they give to the displaced people. These "jungleschools", as the Burmese call them, are living proof of the determination of these people to provide a basic education to their children even in the most unlikely circumstances."(ICFTU, August 2003, p.13)

The Karen Teachers Working Group and KNU Education Department provide limited education services to IDPs in hiding:

"There are a number of international NGOs providing assistance and working in coordination with Karen educators in the refugee camps. Karen refugees have the opportunity to set up well organized schools for their children. Students are provided with materials, teachers receive a small annual allowance and some teacher training and curriculum development programs are under way.

The Karen Teacher Working Group (KTWG) was organized in 1997 in response to the needs of Karen teachers working in refugee camps along the Thai-Burma border and in the liberated area of Karen State, Burma.

We are a local Karen non-governmental organization (NGO) with no parent organization and our structure reflects our commitment to maximizing community participation in and ownership of all our programs. The KTWG currently has 32 active members, 31 Karen and 1 Canadian. Our members come from the communities in which we are involved.

We provide culturally-based and situationally relevant programs in Karen to ensure that local needs find local solutions. Our main goal is to equip teachers with skills which enable them to respond to the everchanging needs of our youth and our People. We advocate active student-centered classrooms which encourage problem solving, creativity and critical thinking. These are the skills that will enable us to build our future."(KTWG, 2003, *About KTWG*)

"The situation for schools inside Karen State, Burma is much more serious. There are schools in operation and teachers in place. The school year is often disrupted as villagers are forced to flee SPDC military offensives. Some schools are opened again in the jungle. SPDC destroy Karen paddies and livestock making it impossible for the community to provide for their teachers. Also, teachers who are charged with the childrens' education have little or no formal training themselves nor do they have educational texts to rely on for support. Teachers do their best to provide their students with a good education but their lack of experience, skills and/or lack of teaching materials means that children are suffering

In June 2001, twelve KTWG mobile teacher trainers entered Karen State on their first three-month training cycle throughout the 4 northern districts (Mutraw, Doo The Doo, Taungoo and Kler Lwee Htoo). As it was their first cycle, the MTTT (mobile teacher training team) focused on developing positive relationships with local teachers and communities while trying to identify specific needs."(KTWG, 2003, *Karen State Education Information*, paras 1&2)

"KTWG provided 442,000 Baht to Karen schools throughout Kawthoolei in June 2002.

Since October 2002, there has been a noticeable increase in SPDC presence and activities throughout Karen State. This has meant increased suffering, abuse, poverty throughout Karen lands. In terms of education, schools have been targeted as 'signs' of KNU presence in the community and are burned. School materials are destroyed and stolen. Teachers are becoming seen as KNU supporters and thus more in danger of SPDC brutality. Since January this year,

KTWG has distributed over 9000 school texts throughout Karen State as well as other school materials."(KTWG, 2003, *Latest education report from Karen State schools*, paras 1&2)

"Oppression of Culture and Literature

Although almost of the population in this area is Karen, the Karen children have to learn Burmese. The Burmese military government sent some teachers to teach in the school and the rest of the teachers the villagers have to hire by themselves.

[...] The building of schools and the teachers salary comes from the villagers, except for the government teachers. A former Karen schoolteacher told how one day he taught wearing a Karen sarong and a Burmese army officer saw him and called him aside. The officer asked him why he was wearing this sarong, didn't he know what kind of school this was. He replied that this is a government school. He asked do you know the village headman. He replied yes and asked the Burmese soldier asked him to go with him to the headman's house. He was absent from his teaching for one day.

After the Burmese troops occupied the area, they also try to build monasteries in Karen villages. Most of the villagers in Kamoetheway area are Christian. The Burmese troops have built two monasteries

in Myitta and Pway Poe Klah and plan to build in other villages as well.

In Myitta, the Burmese troops brought Burman people from Taung Thon Lon to settle in the land that they confiscated from Karen villagers. Many villagers fear that they will lose their lands and lose their culture when they hear of Burmese troops resettling the Burman people in their lands."(BI, April 2003, p. 14)

"IDPs hiding in the jungle are sometimes able to operate temporary makeshift schools with volunteer teachers. These schools lack any supplies, and are forced to shift from place to place depending on SPDC activity. With the increase in SPDC activity, in recent years, and the common occurrence of "search and destroy" operations, the number of these schools has been greatly reduced."(NCGUB, September 2002, *"Internally Displaced People and Forced Relocation"*)

The Karenni children face a similar situation:

"Basic education is also lacking in the relocation sites. Most of the relocation sites have no schools whatsoever. Space at the Shadaw School is limited and for the most part only Shadaw townspeople can send their children there. People in the relocation site must pay the full cost of schooling. Very few of them have money to do this, so very few of their children go to school. Even if children are able to get into one of the small number of schools that are available they are only permitted to study Burmese. Study of the Karenni language and culture are forbidden." (NCGUB 2000, p.144)

Displaced Karen communities make efforts to continue education

"Education is important for many villagers but finding time, teachers or books in the forest is not easy. Some villages had their own small unofficial primary schools, with one of the parents (who usually only had 3 or 4 years of schooling themselves) teaching the children part time. Since being displaced, many of these teachers have heroically continued their efforts, and in hiding places deep in the forest it is still common to see a group of children sitting on the ground with notebooks being taught by a woman holding her own baby, possibly writing on an impromptu blackboard. In some more established and larger IDP sites there may even be a temporary shelter serving as a school and a couple of teachers. These schools only go up to the 2nd, 3rd or 4th standard (grade). The only educational materials available are whatever has been salvaged from the village, which is not enough for all the students. The parents try to help, but their means are very limited. The instability of the situation means that the schools often have to close or be moved due to the movements of SPDC soldiers. Eventually the schools are rebuilt again in a new

place, but children will have already lost a few months or a year of education. Even this is better than the situation for most children in the region, who receive no education once displaced.

[...]

For most children even these schools are beyond their reach. If they receive any education it is most often from a more educated villager, usually someone with a third or fourth grade education, who lives in the same IDP site. The children gather together from the different families and learn in someone's shelter. For these children there are usually no books and no pencils. The children themselves often find it difficult to study after all the pressures of life on the run. Many of the children are eager to learn, but the situation and the weight of their problems make it very difficult. Often there is no time to study, as everyone in the family is needed to work the field or look for food. Many villagers have told KHRG that they did have schools in their villages before the Burmese soldiers arrived. Most of these were KNU-run or village-run schools, but most of these have been destroyed as the SPDC's path of destruction swept through the villages. A villager from Lu Thaw township explained to KHRG his disappointment that his children couldn't even read the Karen alphabet. " (KHRG October 2001, pp. 73-74)

ISSUES OF SELF-RELIANCE AND PUBLIC PARTICIPATION

Livelihood opportunities for the displaced

Forced labour and other abuses undermine livelihood opportunities for the displaced (October 2005)

BBC October 2003, pp. 19, 30:

"Much of the SPDC's counter-insurgency campaign in recent years has consisted of targeting the villagers' fields to starve them in to coming down from the hills as well as making the rice unavailable to the resistance forces. SPDC units that come across the fields of displaced villagers trample, uproot or burn the fields. Sometimes the fields are landmined to keep villagers from coming back and planting in them again. Many villagers have said they will not return to a field that the SPDC has been through out of fear of these landmines. Army columns are also burning off the cut brush left to dry in the fields before it is completely dry. This has the effect of causing an incomplete burn off making parts of the field unusable and limiting the amount of paddy the villager will be able to plant and later harvest. Rice storage barns hidden by displaced villagers in the forest are destroyed if found by SPDC soldiers. Hill fields are open places and villagers can easily be seen while working in them. SPDC columns routinely open fire on villagers with small arms, rocket propelled grenades and even mortars when villagers are seen in these fields. For this reason villagers usually flee when the news of an approaching Army column reaches them.

[...]

Crops are also indirectly destroyed by the Burma Army's troop patrols. Whenever the Burma Army approaches hiding sites, the internally displaced villagers shift to another place in the forest. If these patrols are during the dry season months of February to April, people in the area dare not to cut and burn the vegetation to prepare their upland plots for cultivation. The longer the duration of patrols, the narrower the plots. If villagers are forced to leave their fields during the wet season, their rice crops are often eaten and destroyed by wild animals such as pigs, rats, chickens and birds as well as insects. Patrols at the end of the wet season often scare farmers away from their fields when they had planned to be harvesting, so crops are liable to become over ripe and ruined. Therefore, upland farmers in hiding generally only harvest 40% to 50% of their crop for the year."

TBBC, October 2005, p.50:

"Despite the range of threats to personal security, the prevalence of threats to livelihoods is on a much greater scale. A third of households surveyed have been directly affected by arbitrary taxes and forced labour in the past year.

[...]

The proportion of households affected by arbitrary taxes and forced labour was highest in relocation sites, indicating the oppressive conditions associated with living in close proximity to SPDC soldiers. Yet the rate of arbitrary taxation amongst those displaced in hiding sites was also significant, and reflects the demands of the armed opposition forces upon their perceived constituents in exchange for security.

The deliberate impoverishment and deprivation of civilians as a counter-insurgency strategy is reflected in responses relating to the destruction or confiscation of food supplies. Overall, 17% of households were affected by these abuses during the past year which is comparable with the prevalence reported by last year's survey. The crops and food stocks of villagers hiding in the most contested areas were twice as likely to be destroyed or stolen as those in other areas. Field

reports suggest theft of food may be related to the cessation of full rations for SPDC frontline troops, but the burning of crops can only be intended to undermine the food security of civilians considered sympathetic to the armed opposition.

A quarter of households in hiding and relocation sites reported having had housing destroyed or having been forcibly evicted during the past year. Significantly lower rates amongst households in ceasefire and mixed administration areas indicate the extent to which forced eviction is used as a military strategy to relocate civilians away from contested areas in order to undermine the armed opposition."At all relocation sites in Burma, access to farmland and employment is a serious problem for the relocated villagers. In some sites, IDPs are able to access farmland around the relocation site, yet this allocated land is usually insufficient for basic survival or unsuitable for farming. In other sites, access to surrounding land is denied, especially when villagers are relocated to sites where local residents are already farming the land, either for themselves or for the military. New refugee arrivals at the Thai border in 1999 reported that they had been able to find daily labor at local farms near the relocation sites, earning between 40 and 120 kyats per day. In some cases, villagers are permitted to return to their former farms and plantations, yet due to the restrictions imposed on their trips out of the sites and the dangers these villagers face outside of the sites, most are unable to make a living in this way."

BI, April 2003, p. 11 & 14:

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Livelihood Insecurity and Poverty

Many people ask how the villagers survive while they face so many restrictions on earning their living and having to pay several extortions. For the villagers, as they struggle for justice, they are also struggling to survive and they use as many ways as they can to achieve this. They seemingly follow the Burmese troops so that they can have a little freedom of earning their living.

Some of the root causes of insecurity of livelihood and poverty of the villagers are the Burmese troops' restrictions in forced relocation sites, and targeting villagers' livelihood or property to eliminate the Karen resistance by the Burmese troops. Another is the soaring prices of rice and foods.

Villagers in relocation sites cannot go out freely to tend their plantations. It depends on the Burmese troops. If they go out, they have to get a permission paper from the village headmen and Burmese troop's officers. They cannot be away for more than five days. They go on Monday and return on Friday. They have to pay 100 kyat for a permission paper. Sometimes when the Burmese troops hear of the movement of the Karen resistance, the villagers are not allowed to go to their rice plantation at all. Sometimes because of this the villagers' rice plantations are ruined. Especially in harvest time, the absence of villagers on Saturdays and Sundays allows wild hogs and rats to come and eat the villagers' rice plantations. Therefore, the villagers get only a small amount of rice.

Sometimes if they are not allowed to tend their plantations for one or two weeks in harvest time all of their rice is destroyed by the wild hogs and rats. Many villagers said they only survive because of their betel nut plantations.

Many villagers said they got in debt after 1997, after their relocation. For the villagers who move to the middle of their village it is easier than the villagers who were moved from their village to another village. Villagers who were moved from their villages had to leave their betel nut plantation and other properties behind. They depend on their relatives and earn their living by collecting wild yam, making charcoal, labouring on other villagers plantations and selling out their properties. They got in debt higher than the villagers who were moved to the middle of their village. Villagers said they survived through the year only by borrowing money from other villagers or the wholesale store and returning it to them at the end of the year and then having to borrow again for the next year. They accumulate more and more debt each year and they grow poorer and poorer."

Reports of confiscation and destruction of crops and food shortages in Mon, Karen States, and Tenasserim Division (June 2005)

- Since the beginning of 1998, the local military battalions have confiscated nearly 8,000 acres of agricultural lands in Mon State, Karen State and Tenasserim Division
- In the Mon state, the main cause for land confiscating is the expansion of Burmese troop deployments
- Also, the Burmese army attempts to cut food supplies to insurgent army groups

Karen IDPs:

"Increasingly restricted access to land causes repeated forced migration. In a few cases, Karen IDPs moved in order to find better land for swidden rice farming. Under normal circumstances, this form of cultivation is rotational within traditionally-recognized village farmlands; not shifting or pioneering cultivation into new territory at the expense of old-growth forests. Although Karen villages do occasionally relocate to better land, this is traditionally done in a manner that many claim does not undermine environmental sustainability. However, armed conflict in these areas do undermine traditional and sustainable forms of agriculture, forcing IDPs to adopt more nomadic forms of subsistence.

Moreover, CBOs working inside the country also report that *Tatmadaw* battalions encroach upon and confiscate land to construct garrisons and produce food crops for government troops. Communities may be relocated shortly before harvest time, following which soldiers seize their crops.[\[...\]](#) Confiscated land is also sold or leased to private agri-companies.[\[...\]](#) Regardless of the purpose, the confiscation clearly contributes to displacement." (HRW, June 2005, p.44)

Mon areas:

"The main cause of land confiscating is the expansion of Burmese troop deployments in the Mon areas since 1998. As the number of military battalions increase, land confiscating and other human rights abuses were also increased in Mon areas. The numbers of Burmese troops has been double since 1998. As number of armed forces increase, the government does not have enough budgets to contribute food ration to their army and to pay for new constructing of army barracks. The government also has been facing shortage of rice, main food ration for the army, in recent years. In 1997, due to difficulties in collecting yearly paddy tax from the farmers and the decreases in paddy production in the country,[\[...\]](#) the government received less and less paddy tax from the farmers. Moreover, the decreases in paddy production with the combination of market control by rice traders caused the price increases in local rice markets. As the prices increase, the regime is not able to buy enough rice to feed their soldiers. The regime was not able

to provide sufficient food rations to some their local military commands including Southeast Region Military Command (also known as Southeast Command) based in Moulmein, the capital of Mon State. The Southeast Command controlled many battalions in both Mon and Karen State.

Since the government could not to provide sufficient food supplies to the local military battalions, the local battalions were ordered to support themselves or "self-reliance" for food supplies and battalions operating expenses.²⁴ But, the government provides salaries for all soldiers. As a result, the army and police confiscated thousands acres of land in Mon State to support themselves for food productions and battalions operation funds. Some lands owned by Mon villagers in Karen State and Tenasserim Division were also confiscated by the Burmese army. Since the beginning of 1998, the local military battalions have confiscated nearly 8,000 acres of agricultural lands in Mon State, Karen State and Tenasserim Division. Along with the farmland, hundreds million Kyats worth of plantations were confiscated and destroyed. Farmers from these areas have suffered from losses of their land, joblessness, and conscription of forced labor.

[...]

When most of local farmers or inhabitants' rice farms, rubber plantations and fruit gardens had been confiscated, they were left with nothing to continue their usual works and on the other hand, they had difficulty making other livelihoods which are not related to agriculture. Some families moved to other places to seek vacant lands in order to replace their lost lands. However, in most cases, it is not easy to find an uncultivated or vacant plot of land, as almost all of the lands in Mon State is already possessed by the local people.

Most families, who lost the lands could not find new lands, as most land belongs to the other people and because of security conditions. Even if there is land that is far from the local communities, there are threats from unknown robbers and armed groups, so that the land-loss families do not dare to seek lands in insecure areas. Most families who have left for other areas to seek uncultivated lands have become day-labourers for other land-owners after they could not find any land. In most situations, when they arrive to other places, they could not get jobs and then decided to move on to yet another place." (HURFOM, October 2003, No Land to Farm)

"The confiscation of lands and forced labour also contribute to food insecurity in government controlled areas of Mon state. About 2,000 acres of land have been confiscated from paddy farmers in Ye township alone, and redistributed to large scale fruit plantations since 1999. This increase in landless paddy farmers has resulted in the township no longer producing enough rice to support its population. At the same time, the demands for forced labour continue to prevent farmers from tending to their fields." (BBC October 2003, p. 16)

"Confiscation or Devastation of crops: The Burmese Army knows the available food supply or rice or paddy is very important for the rebel soldiers to survive and to have food during their military operations. By many ways, the Burmese Army tried to cut food supplies to not reach to the rebel soldiers.

Normally ethnic farmers have grown their paddy in 'slash and burnt' method in hilly areas and they could plant permanently in some lands but in some areas, they have to shift their farms on a regular basis, 3 or 4 years cultivation. In most situation, the farmers have to stay at their farms to take care the plants: such as uprooting other grass plants; preventing the attacks by animals and insects; providing natural fertilizer and other activities. While the farmers or sometimes including their families stay at their farms to do their daily works and thus, they have to keep foods, especially rice or paddy at their farms. But storage of these food supplies is dangerous for Burmese Army.

When the Burmese Army launched the military offensives against the rebel, they also tried to confiscate some foods from farmers in farms and collected in one place. The Burmese Army controlled all of these crops and they did not let the villagers keep them. They provided just food rations to the villagers.

Sometimes, during the harvest seasons when the paddy are getting ripe, if the Burmese Army could not bring all crop grains to their military bases, or to the villages where they could control, they just burn the crops down. The Burmese soldiers sometimes burnt down large area of paddy farms in hilly areas with a purpose to cut all food supplies that could be accessible for the rebel soldiers.

When they met the paddy stocked in the forest or in farms, they took some for their foods and then burnt down these supplies into ashes. Burning down the rice and other food supplies of the local farmers outside of the villages not only cut the supplies that could reach to the rebel soldiers, it also created suffering of food-shortage of the local farmers.

[...]

Related Food-shortage problems. There are many reasons that the IDPs could face food-shortage problems during they are displacing or in hiding situation. They access to foods would be cut when they are far from their native villages. The military offensives and the military operations launched by the Burmese Army could also prohibit their opportunity to get access for foods.

When they are in hiding place, they could contact the outside communities when they felt safe and when there is the military activity of Burmese Army, they could not contact to anyone. In many cases of displacement, the IDPs also faced serious food-shortage problems for many reasons.

Accordingly to MRDC, for Mon and Karen IDPs who arrived their set IDPs villages and even into NMSP ceasefire zones also faced food-shortage problems because of the following reason:

1. The new displaced villagers, who arrived into these Mon IDPs villages and NMSP areas from various parts of conflict areas in Ye Township, Yebyu Township, Kya-inn-seikyi Township and Kawkaik Townships are not so familiar with new area. It is quite difficult for them to seek work and to have income. Although they could seek a little of work in dry season, however, these works could not provide them with insufficient income for their families. If compared with other areas where there are conflicts, NMSP controlled areas are likely stable and therefore, they could stay safer than other areas.

2. Normal families in NMSP areas could communicate with outside communities for many businesses under the protection of NMSP. They are not afraid of being arrested by Burmese Army as they could claim to them that they are from ceasefire zones. Thus, the villagers in NMSP controlled areas have could have movement to the nearest towns and villagers. But for IDPs, they are very afraid of being arrested by the soldiers from Burmese Army because of their past experience in their villages. They fear for arrest, torture, arrest of porters as they were in their villages. At the same time, they could not get any job in the IDPs villages or NMSP ceasefire zones. Especially, Karen IDPs, who arrived into Mon IDPs villages and NMSP ceasefire zones are too afraid of re-arrested by Burmese soldiers and do not dare to go outside of the villages.

[...]

3. Normally, in many areas where IDPs are taking refuge, the local villagers just use 'slash and burnt' method of cultivation and they could produce the crops that are insufficient even for the villagers who remained in the area for such a long period. The villagers even in NMSP areas also tried to get food from the areas outside of NMSP control. When there are more IDPs arrived into one area, they could not have sufficient foods for all people and therefore, the IDPs could face food-shortage problem first.

4. Normally in the rainy season, the traveling from one place to another area is too difficult and the people and IDPs who stayed in the remote areas or in hiding areas could not get easy access to villages or areas where they could get foods. IDPs are very vulnerable in this situation to face food-shortage problems, because they are not familiar with the people in the area to get their helps and no money to buy food."(HURFOM, *Population Displacement is Humanitarian Crisis in Burma*, May 2003)

Local farmers forced to grow crops for the troops (October 2003)

- Reported in 1998 that SPDC no longer supplied troops with full rations
- Reports that SPDC troops are not only taking food from the villagers, but they are also taking their land and forcing them to work to grow food for the Army
- Reports from areas in the Karen State that the combination of the crop failures and the increased taxation and demands for food have made it impossible to survive

"The SPDC told its field units in 1998 that it would no longer be able to provide full rations and that the units would have to find alternative methods to get food. Since then, Army units have been confiscating land from villagers without payment. The villagers are then forced to plough, plant and watch over the crops for the Army. The food grown in these fields goes to the Army to supplement its rations and is also sold for a profit by the officers. Meanwhile the villagers have lost their best fields and are unable to get enough food to eat.

Army units are also notorious for demanding or stealing rice, poultry and livestock when they pass through or stay in villages. Nothing is usually given in compensation. Army camps throughout Karen State issue orders to the surrounding villages telling the villagers to provide them with rice, vegetables and meat." (BBC October 2003, p.18)

"The army is reported to be increasingly placing restrictions on the kinds of crops grown by the local farmers, forcing them to grow crops for the troops which they will either consume themselves or sell. On 4 May 1998, in Murng Pan, IB 66 [army unit] is reported to have ordered farmers to grow no more than a small amount of garlic, whereas farmers had traditionally grown this crop for export to Thailand. They were told they had to grow soya beans for the army instead. On 23 June, IB 286 [army unit] in Kaesee told villagers from Murng Nawng and Murng Nang (who had been forcibly relocated) that they needed licences to grow rice and if licensed, they had to give half their rice crop to the army. If they had no licence, their rice fields would be confiscated. [...]" (UN 22 January 1999, para. 50)

A report from the Karen State give further details about this practice:

"At the same time, something is happening which has never occurred to such a large extent before: an increasing number of villagers native to the Sittaung River plains, both Karen and Burman, are fleeing eastward into the hills, and some are fleeing southward along the main road through Pegu and Kyaikto, then eastward to the Thai border. In the past the prosperity of the Sittaung valley villages has always made it possible for them to survive even under the burden of SLORC/SPDC demands for extortion money and forced labour, but things have changed in the past two years. The SPDC has increased its military presence in the area in an attempt to increase its control in the hills to the east, and these troops are placing ever-increasing demands for extortion money, crop quotas and forced labour on the civilians. The SPDC in Rangoon is no longer sending them full rations and has ordered them to grow their own food or take it from the villagers; as a result, not only are they taking food from the villagers, but they are also taking their land and forcing them to work to grow food for the Army. At the same time, crop quotas which all farmers must hand over to the SPDC have increased and the corruption of the civilian authorities who collect the crop quotas has grown worse. The farmers might be able to survive this in good

years, but most of them have suffered partial or complete crop failures for the past two years running due to droughts when they need rain, followed by floods once the crop is planted. The combination of the crop failures and the increased demands has made it impossible to survive. As though this were not enough, many have found they have to flee a new SPDC force which has been introduced in the area: the *Sa Thon Lon* Guerrilla Retaliation death squads." (KHRG 24 May 1999)

A similar situation has been described in the Shan state:

"The number of internally displaced grows exponentially, as villagers are finding it increasingly difficult to survive in relocation sites. Lack of food is the all-consuming concern for uprooted villagers. Those in relocation sites must compete for work on land owned by other villagers, or farm fields at great distances from the relocation sites. They are issued one day travel passes which are only good from dawn to dusk, leaving them no time to work a distant field which may take hours to reach on foot. As a result their harvest never yields enough to sustain their families. Some farmers have been allowed to return to their villages on a temporary basis, usually during key phases in the rice growing cycle. Most often permission has been granted to villagers who own fields close to the relocation sites in town or along main roads. The SPDC usually has an alternative motive for sending people back; a case in point is Wan Lao village in Kun Hing township, where even non-native villagers were allowed to repopulate the area after the forced relocations had resulted in the SPDC Army being unable to confiscate sufficient rice from the villagers. The military distributed leaflets encouraging people to return, but when they did they were bound by the same limitations and restrictions that had applied in the relocation sites, with the additional burden of taxes and rice quotas to hand over to the SPDC at harvest time." (KHRG 5 April 2000, "Introduction")

Karen IDPs in hiding have potential to grow their own food if not discovered by SPDC troops (October 2003)

- IDPs in hiding sites depend on the shifting cultivation method of slash and burn farming to survive
- IDPs can generally survive in hiding as long as their rice crops are not damaged or destroyed by extreme weather, pests or SPDC troops
- Villagers from hiding sites risk arrest, detention or even execution when they approach government controlled relocation sites

"[Karen] IDPs in hiding sites depend on the shifting cultivation method of slash and burn farming to survive. Cultivating one crop of rice paddy requires attention from clearing the fields in January or February through to the harvest in October to November. Tapioca, yam and various vegetables are grown as supplementary crops, while bamboo shoots, wild yam roots and other edible vegetables can also be collected in season from the forest. Fish can be caught in streams and fermented into fish paste to last longer, so salt is the main product that needs to be sought from traders and relatives in relocation sites. When rice supplies are low, tapioca and bamboo shoots are mixed into rice porridge or eaten as a staple food instead of rice.

The forest soils are fertile so IDPs can generally survive in hiding as long as their rice crops are not damaged or destroyed by extreme weather, pests or SPDC troops. In general, one pyi (two kilograms) of seed can produce 15-20 baskets (480-640 kilograms) of paddy in one acre of land. After one basket (32 kilograms) of paddy is thrashed of its husk and cleaned, almost one tin (16 kilograms) of rice will remain from a normal crop. This is enough to feed one person for a month. So for a family of four to hide and survive in Tenasserim Division, they need to clear more than five acres of forest and plant at least five pyi (ten kilograms) of seed to harvest 100 baskets (3.2 metric tonnes) of paddy each year.

IDPs with a surplus from their harvest either sell, lend or share their paddy to others in hiding. Villagers in hiding can also access rice through contacting their relatives or traders in forced relocation sites. Some IDPs collect honey or hunt wild animals in order to trade with villagers in hiding, forced relocation sites or Thailand. However, villagers from hiding sites risk arrest, detention or even execution when they approach government controlled relocation sites. Villagers in the relocation sites also risk being punished if they sell food to villagers from outside of the area. These restrictions, plus the poor roads and distance from other states and divisions, have resulted in rice prices for IDPs hiding in the southern township of Tenasserim doubling over the past 3 years to 5,000 kyat per tin (US\$ 5 per 16 kilograms).

IDPs in hiding use many different ways to cope with food insecurity, but the main method is to store their paddy in different secret places. Some people store the paddy underground to prevent their food supply from being damaged or destroyed by the SPDC troops or wild animals and pests. The main risk with this is that the paddy becomes rotten, even if the Burma Army doesn't move into the area. In this case, IDPs try to minimise losses by sharing the remaining food amongst the community." (BBC October 2003, pp 13-14)

DOCUMENTATION NEEDS AND CITIZENSHIP

Legal status of ethnic minorities

Restricted freedom of movement for minority groups (October 2005)

TBBC, October 2005, pp.44-45:

"By Burmese law, all adult citizens should be issued with national registration identity cards while all babies born in hospitals should be registered. Identity cards are essential to purchase tickets for long-distance travel, pass checkpoints for local travel and for further education, while birth registration cards can at least vouch for a person's identity. Legal insecurity amongst internally displaced and conflict affected populations in eastern Burma is reflected by half of respondents possessing neither an identity nor birth registration card. 44% of the surveyed population have an identity card, but this proportion drops to just 12% amongst those civilians in hiding.

These findings reflect decades of conflict having restricted access to administrative bodies, widespread corruption in a system based on bribery rather than rights and the loss of documentation during displacement. Villagers lacking an identity card, in particular, are more vulnerable to extortion at check points, restricted access to markets and fields as well as harassment in contested areas. For internally displaced persons, the prospects for return to former villages or resettlement elsewhere in Burma are also further hindered by the lack of an identity card."

ISSUES OF FAMILY UNITY, IDENTITY AND CULTURE

General

Displacement and subsequent military control of civilians undermine community solidarity (August 2003)

- Villagers in conflict areas are increasingly facing distrust amongst each other
- Lack of contact with outside world has made the Burmese troops strong in their control over the villagers

"Creating distrust amongst communities

One thing that the villagers are increasingly facing is distrust amongst each other, toward each family and to the community. It is difficult for the villagers to unite and stand together to find the way to fight the oppressor or injustice. There are many reasons for this. One thing is that the villagers who live under Burmese control are closely watched by the Burmese troops or their spies and they also create different opportunities between communities. Another may be caused by the formation of the people militia's.

The villagers know which villagers they should be afraid of because they are Burmese troop's spies or suspect them of being Burmese troops spies. Villagers who followed the Burmese troops and try to please the Burmese troops get more opportunity than other villagers do, especially for the security of earning their living. Unlike before, Burmese troops also use a new way of spying on villagers. Reports from villagers stated that Burmese soldiers use groups of 4-5 people who walk around the village at night beside people houses and secretly listen to the villagers talking.

Communities also get different opportunities depending on how they cooperate with the Burmese troops or please them. Many villagers talk about one particular village that they hate or distrust because they found that this village gets more freedom for earning their living. The villagers try to cooperate more with the Burmese troops by forming people militia. There are also more rich people in the village so they make close relationships with the Burmese army officers for their business.

The forming of people militia has also created distrust among the community. Villagers fear if they do not follow the Burmese troop's orders or if they give help to the Karen resistance, the people militia will learn and will report them to the Burmese troops. Some villagers said that the forming of people militia is also good in some ways because when the Burmese troops patrol with the people militia outside the relocation sites, or if they arrest someone the people militia can recommend for his/her release. However, they also said some of the people militia are definitely being the Burmese troops' handle. Many villagers do not want to join the people militia. Recently villagers in Kamoethway area had to serve as people militia for 6 month terms. Each village had to send at least two people. Some people try to please the Burmese army officers by cooperating with them and trying to organize by force. Those people get leadership among the people militia and get the opportunity to extort from the villagers, to punish villagers and have power over the community. This causes distrust and also hatred among the community. It creates the conflict between the Karen soldiers and the people militia as well.

[...]

Contact with outside world

Lack of contact with outside world has made the Burmese troops strong in their control over the villagers. Even though human right abuses take place every day, no human rights worker can go there and report on it. The villagers also have no contact with human right groups inside Burma such as ILO and UN agencies. It is the same for human rights groups based in Thailand or other countries. Some villagers are able to listen to the BBC or VOA radio Burmese service. This lack of contact with the outside world can have a demoralising affect on the villagers."(BI, April 2003, pp. 14-16)

"Villagers are often accused of hiding opposition group personnel in their houses or merely providing them with shelter for the night. In many cases the person they accommodated was a family member as villagers have become increasingly wary of sheltering strangers due to the potential harassment they may face from the Burmese military. The Burmese military, through its military operations, has exacerbated the climate of distrust amongst villagers in the ethnic areas by encouraging and enforcing a culture of informing against those supporting non-Burman ethnic nationality opposition groups. This climate of distrust now permeates almost every level of the community. Villagers commonly find themselves accused and arrested for harbouring non-Burman ethnic nationality opposition group personnel, usually through information provided to the Burmese military by their fellow villagers and sometimes even family members.

[...]

The Burmese military often accuses villagers of having a relative who is a member of a non-Burman ethnic nationality opposition group. The accusation implies that families should take responsibility for other family members' actions. This creates division amongst families and uses family members as bait to capture those who are members of non-Burman ethnic nationality opposition groups. Villagers are repeatedly targeted if they are known to have a relative who is a member of a non-Burman ethnic nationality opposition group. They are often drilled for information regarding the activities and movements of the relative and his/her group. Many villagers revealed that this continual harassment caused them to flee their villages and was a major cause for family displacement. Families would be split up and those that were members were often restricted in their ability to see their families again. ." (ALTSEAN August 2003, pp 14-15)

While other communities remain together....

"Another problem affecting the displaced is the disintegration of families and communities. The Special Rapporteur noticed a large number of widows and orphans among the displaced in camps in Thailand. However, numerous communities have remained more or less together in spite of displacement and have maintained many of their cultural traditions. This helps to alleviate to some extent the acute problems of displacement and would no doubt facilitate the process of return to the areas of origin. However, very few returns to areas of origin seem to be taking place. Continued insecurity coupled with destroyed infrastructure suggest that displaced persons had compelling reasons for wanting to remain in the camps in Thailand.

[...]

Female-headed households were less able to become self-reliant and were therefore more in need of assistance. In some cases, they were assisted by other families, for example, in setting up shelters. The numerous children who had been orphaned or separated from their families constituted a particularly vulnerable group. In general, there was a willingness on the part of local families or other displaced persons to adopt the children, at least until their parents could be traced if they were still alive." (UN 22 January 1999, paras. 58 & 69)

Discrimination of followers of non-Buddhist religions (March 2002)

- Christian IDPs in relocation sites not allowed to build churches

"Some of the relocation sites have basic schools and Buddhist monasteries, but there appears to be a policy of forbidding the construction of Christian churches. Villagers have repeatedly been denied permission to build churches in the sites, even though a large proportion of the Karenni population is Christian, primarily Roman Catholics followed by Baptists. When the forced relocations first occurred, some of the Catholic priests and lay preachers from the villages were told to go to Loikaw and stay among the church representatives there rather than go to the relocation sites with the other villagers." (NCGUB 1999, p.127)

"There is no official state religion; however, the Government continued to show preference for Theravada Buddhism, the majority religion. State-controlled news media frequently depict junta members paying homage to Buddhist monks, making donations at pagodas throughout the country, officiating at ceremonies to open, improve, restore, or maintain pagodas, and organizing ostensibly voluntary "people's donations" of money, food, and uncompensated labor to build or refurbish Buddhist religious shrines throughout the country. State-owned newspapers routinely featured, as front-page banner slogans, quotations from the Buddhist scriptures. Buddhist doctrine remained part of the state-mandated curriculum in all elementary schools; however, individual children generally are permitted to choose not to receive instruction in Buddhism, although the Government at times deals harshly with those who do. The Government also funded the construction of the International Theravada Buddhist Missionary University in Rangoon.

[...]

The Government continued to discriminate against members of minority religions, restricting the educational, proselytizing, and building activities of minority religious groups. There is a concentration of Christians among some of the ethnic minorities (for example, the Karen and Kachin) against which the army has fought for decades, although groups that practice Buddhism (for example, the Shan) also have waged many of the ethnic insurgencies.

Christian groups continued to have difficulties in obtaining permission to build new churches, while Muslims reported that they essentially are banned from constructing any new mosques. Buddhist groups are not known to have experienced similar difficulties in obtaining permission to build pagodas or monasteries. In parts of Chin State, authorities reportedly have not authorized the construction of any new churches since 1997. The Government reportedly also has denied permission for churches to be built along main roads in cities such as Myitkina, the capital of Kachin State. In Rangoon during the year, authorities closed more than 80 home-churches (a traditional gathering place for many Christians) because their operators did not have proper authorizations to hold religious meetings. At the same time, the authorities have made it increasingly difficult to obtain approval for the construction of "authorized" churches." (US DOS, 4 March 2002, sect. 2c)

Gender issues

Women in conflict zones have reshaped their roles and relations within the Burmese society (November 2006)

KHRG, November 2006, pp. 3-6:

"While they are constrained by military abuse, Karen women have also been actively working to mitigate the harmful effects of militarisation and thereby maintain their dignity in the face of systematic oppression. Their responses go well beyond 'coping strategies' by including evasion, deliberate non-compliance and other elements of resistance used to retain control over their own lives.

Through these actions, these women have reshaped their roles and relations within society and influenced the prevailing balance of power.

[...]

Regular military abuses, their effects on villagers and the manner in which these villagers respond are all influenced by local understandings of gender, as a social and cultural construction of roles shaping the relations between men and women. Any understanding of the situation of Karen women living under systematic military oppression would be incomplete without an awareness of the traditional perceptions of, and expectations on, women and men. In this context, women's roles have traditionally carried much respect within the community. Divisions of labour, although not always rigid, have led them to take most of the responsibility for intra-household work such as childrearing, processing and preparing food, weaving, tending the household garden, raising small livestock and managing the family's finances. Beyond the household, they do most of the foraging for forest products, and spend a great deal of time working in the fields alongside male family members, particularly at labour intensive times in the crop cycle. Whether in the home or in farm fields, women's work has not traditionally required them to travel far beyond their native villages. Similarly, marriages typically occur between those from the same or adjacent villages. They thus retain a strong connection to the land of their birth. While women have always occupied informal leadership roles with the household, formal leadership positions, such as that of village head, have traditionally been occupied by men.

Within this framework of traditional gender roles, certain military abuses such as rape and sexual violence, detention and ransoming of women on accusations of being wives or daughters of 'rebels', and forced organisation into military-controlled women's associations, have specifically targeted women. Meanwhile, men have been specifically targeted for heavy forced labour such as portering, and for random torture on false accusations as 'insurgents' for purposes of extortion. To escape such abuses many men leave their villages when SPDC forces are around, leaving women to protect the children, the elderly and the household belongings and to confront the soldiers entering their villages. Women then face an even greater risk of being taken for forced labour in lieu of men, or accused that their missing husbands and sons are 'insurgents' and being detained and tortured as a means of pressuring their missing men to 'surrender'.

For the majority of abuses however, soldiers have not particularly selected out either women or men to be recipients of abuse. For example, attacks on villages leading to displacement, killing on sight of those in hiding, most forms of forced labour, restrictions on health care and education, and various forms of deprivation of livelihood such as extortion, looting, land confiscation and destruction of property have targeted women and men indiscriminately. The difference in gender roles, however, has caused these abuses to affect women and men differently. Deprivation of livelihood has undermined women's ability to continue caring for children and managing the family's welfare within the household, and has forced women to take on greater roles in family income generation and staple crop production to supplement the shortfall created by military looting, extortion and forced labour. Food shortages and difficulties accessing medicine and medical treatment brought on by SPDC blockades on trade and travel have also challenged women's role of caregiver for their family. As men are already engaged primarily in subsistence agriculture, it is women who have been most burdened by the additional workload needed to support their families where military abuses have undermined their family's livelihood. Some of this involves extremely risky labour, such as increased

foraging for forest foods in areas densely polluted with landmines. Demands on women's labour are even more severe where male family members have been killed or are absent due to flight or involvement in the armed opposition.

These situations require women to compensate for the lost labour of an absent husband or father. Overall, the prevailing human rights situation has at least doubled the workload of most women, while also forcing them into greater mobility and forms of work which are physically dangerous. This takes a toll on women both directly, as when women are raped, shot, or maimed by landmines, and indirectly, as the increased workload and worsening living conditions combine to erode women's health and deprive girls of education.

While gender roles have shaped the character of military abuse and its effects on villagers, the fluidity of such roles means that individuals can play an active part in redefining them. Women in Karen society have responded to abuse in ways which have challenged traditional gender roles. As there is a perception that men are more harshly treated by soldiers, women have increasingly taken on the position of village head, in which they serve as intermediaries between the village and military. In this role they have successfully exploited traditional norms of respect for women in order to negotiate reduced military demands on their communities. As military extortion and restrictions have severely hindered the provision of education and medical care at the village level, women have increasingly taken on roles as teachers, medics and midwives, both as means to support their own families and as a service to their communities. Given the vagaries of life for those who attempt to persevere under the SPDC's economic restrictions, blockades of trade routes, destruction of crops and food stores, extortion and systematic exploitation, women have broadened the family's subsistence base by adding cash crops that can be grown in hidden forest clearings, or by getting involved in small-scale trading. They have also developed new forms of inter-community mutual support. Covert 'jungle markets', for example, allow women living in hiding and those in military-controlled communities to exchange goods and thereby evade SPDC restrictions on trade. In their roles as caregivers in the family, women fleeing attacks on their homes have had the primary responsibility to manage their family's flight and relocation into the forest. They have coordinated the rapid packing and evacuation of the family's food, belongings and children, constructed temporary shelters, foraged for food, organised education for the children in displaced communities and worked as midwives, medics and teachers in these situations as well.

[...]

What becomes evident through this examination of the abuse and agency of Karen women is that these individuals are not the passive recipients of abuse that they are so often made out to be. Rather, by responding to abuse and working to claim their rights, these women are making political statements about society and the way in which it should change. This active engagement with the structures of power is missed when they are portrayed as helpless victims whose situation is solely determined by factors external to themselves, such as the abuses of military forces or the provision of international aid. The full achievement of their rights therefore requires that their agency be recognised and their voices included in any relevant decision-making process."

PROPERTY ISSUES

General

Housing, land and property rights violations (February 2008)

- Burma's most pressing housing, land and property rights violation relates to militarisation of the State and the military relocating civilian population and confiscating their lands
- Under legislations dating back to the 1950s - and reinforced under military rule - the state has extensive rights over, and ownership of land
- The state has told villagers what to grow, often taxed them excessively, and confiscated the land of those unable to comply
- More recently, the SPDC has acquired large tracts of land and transferred it to commercial companies

COHRE, November 2007, p. 56:

"The most pressing HLP issues relate to the militarisation of the State, and the Burma Army's and its proxies' forcible relocation of civilian populations and confiscation of their land, often in the context of brutal counter-insurgency campaigns. Further HLP violations occur as a result of:

- forced labour
- inappropriate infrastructure development and taxation policies
- widespread and unsustainable natural resource extraction
- 'environmental protection' policies, and
- in the context of opium eradication.

Chronic poverty and widespread misgovernance are also drivers of forced migration, especially from remote areas."

TBBC, October 2005, pp. 45-46:

"[...] it is clear that village leaders and customary ownership remain the main sources of authority in terms of land management in conflict-affected areas. Despite the legal vacuum, the proximity of conflict-affected populations to forests, and the common use of shifting cultivation as a primary means of livelihood, only 10% of households admitted to arbitrary land claims. This suggests there remains a high degree of social capital, or networks of trust, at the local level amongst internally displaced and resident communities.

Given this climate of insecure land tenure, internally displaced persons were asked about the motives for land confiscation during focus group discussions. It was reported that properties are taken both out of political grievance and economic greed. The confiscation of land and economic assets to facilitate the strategic deployment of Burma Army troops has been a factor of counter-insurgency operations for decades. This has been exacerbated since the late 1990's by the migration of soldiers' families into border areas and by the cessation of full rations for frontline troops. In contrast, the appropriation of land for business purposes has been a more recent trend associated with larger tracts of land. Such is the case in Tenasserim Township where thousands of acres of land have reportedly been confiscated during the past year to establish an export-oriented oil palm plantation and refinery."

Nancy Hudson-Rodd, Myo Nyunt, Saw Thamain Tun & Sein Htay, 2003, pp. 3-6 & 13:

"The majority of people in Burma depend on the land for their livelihood. Land is a major source of wealth and power. Control of land has therefore been the focus of successive ruling bodies in Burma from the British colonial rulers (1931-1948), to the independent/ democratic government (1948-1962), to the various guises of military regimes: the Revolutionary Council (1962-1974), the Burma Socialist Programme Party (1974-1988), the State Law and Order Restoration Council (1988-1997) and the State Peace and Development Council (1997-present).

Through successive forms of governing bodies, there has been a process by the State of taking land thought to be useful for commercial or infrastructure projects, ignoring the customary system of land use and the rights of individual citizens. Rice is the staple crop, staple food and staple export production. Just as in pre-colonial times, governments in Burma have procured rice to provision the army and to sell at discount price to civil servants and quota rice is also sold on the international market. Since 1988 there has been a renewed emphasis on agricultural production for export and the people of Burma are forced to support the ever increasing military presence. The most significant land problems in Burma remain those associated with landlessness, rural poverty, inequality of access to resources, and a military regime that denies citizen rights and is determined to rule by force and not by law. When rural households are driven off their lands, or are gradually and continually impoverished, then the ability to improve the family's condition is denied and the survival of the family is jeopardized.

[...]

The Agricultural Lands Act 1953, section (9) and (10) dictate that, landowners can transfer or partition their land only on receiving permission from the authorities. Under section (11) and (12) of the same act, they are not permitted to cease agricultural work, let the land lie fallow, or lease the land to others. There are clear indications that cultivators do not really possess the land they own.

[...]

The military junta, which took power in 1962, rice production was nationalized. The government attempted to redistribute productive lands under nationally administered, locally managed collective farming.

[...]

The Tenancy Act 1963 promulgated by the Revolution Council and By Laws relating to the Tenancy Act 1963; Protecting the Right of Cultivators Act 1963; and the Tenancy Amendment Act 1965 further took control of land from the farmers into the hands of the State. [...] authority to issue regulations for the tenants working on the lands leased from the state. The cultivators who under the Land Nationalization Act 1953 possessed the right to own land now became lessees under the laws.

[...]

The Protection of the Right of Cultivation Act, 1963, stated that the following were protected: (1) agricultural land; (2) cattle and ploughing implements; (3) tractors and machinery; (4) other implements whether animate or inanimate; (5) prohibition from confiscation for any reason of agricultural produce and arrest of cultivators. However, at the same time it was stipulated that such protection would not apply in the case of: (a) non-payment of dues owing to the state; (b) disputes arising from inheritance cases or actions taken by the state for security reasons.

[...]

The Constitution of 1974 states clearly that the State is the ultimate owner of all natural resources and also of land; and it shall develop, extract, exploit and utilize the natural resources. In 1974, the government implemented a new procurement system which was actually a "compulsory delivery system". According to this system, a quota of paddy which had to be sold at a fixed price to the government depot was set for each farmer according to the size of his holding for paddy, the yield per acre, his family size and the amount of paddy to be paid to hired labor.

[...]

Prior to the State Peace Development Council (SPDC) coming to power in 1997, the State Law and Order Restoration Council (SLORC) adopted all the agrarian policies issued by the Burmese Socialist Programme Party ruling from 1974-1988. Under SLORC, which seized power in 1988,

all land within Burma---fields, forests, mountains, and reserved lands belonged to the State and were controlled by SLORC. There was no freedom for farmers to grow crops in a sustainable manner or to improve the economic and social well-being of the households or communities. All land set aside for paddy fields must grow paddy only, and there was no programme to redistribute land to the poor.

[...]

The socialist-era reassignment of arable land to productive farmers has taken a new twist in the late 1990s: corporate rice farming. In January 1999, the SPDC announced that 200,000 acres of paddy land in Irrawaddy, Rangoon, and Magwe Divisions had been transferred to nine unnamed entrepreneurs licensed by the SPDC to reclaim "wetlands and vacant, fallow and virgin lands."

Confiscation of land a central element in the army's campaign to control the ethnic minority areas (August 2003)

- Very few legal titles to land exist, so the military confiscates the land that traditionally belonged to peasants and farmers living in Karenni, Karen and Shan States
- Confiscation of land, of either agricultural land or 'real estate' has become common and widespread
- No compensation paid to the Shan, Lahu, and Akha farmers who were displaced by the arrivals of Wa settlers
- The military has confiscated vast areas of farmland to build army bases, and to feed soldiers and their dependants

"The confiscation of land and property was another recurrent abuse. It was alleged that often the Tatmadaw units entering villages would just take whatever they wanted. None of the persons interviewed declared having received any compensation for the loss of land or property. Confiscation of property often went hand in hand with forced relocations. Some people had left because they had felt intimidated by large numbers of Wa people moving into their areas.

The main reason for this practice by the Tatmadaw would seem to be to deny people the possibility to survive in areas where they thought armed opposition groups were active. A number of people who had been forcibly relocated earlier said that they had stayed in hiding in the jungle until the Tatmadaw was gone. After that, they had built new houses and were able to survive there for a while, but when the Tatmadaw returned and again destroyed their houses and food, they had had no choice but to leave. These abuses seem to be related to the fact that the Tatmadaw units in the field lacked logistical support from their command. This could have led to an increase in the confiscation of land and property of villagers."(UN GA 5 August 2003, paras 50-51)

"A further concern about the link between strategic resources and warfare which has had a crucial impact on many groups displaced in border states, is that counter-insurgency campaigns and continued turmoil have led to the confiscation of traditional and ancestral lands from many members of ethnic minorities. The Special Rapporteur's 1998 report on Burma commented:

very few legal titles to land exist. This permits the military to confiscate the land that had traditionally belonged to peasants and farmers living in Karenni, Karen and Shan States and to redistribute it to military officials and soldiers.

While the extent of these confiscations remains undocumented, in one township in Karenni State it was estimated that at least 2,400 acres of farmland had been confiscated in 1993 alone. In some cases families whose traditional lands had been confiscated were compelled to work as

unpaid labourers on that same land. This then contributed to further displacement, as in such circumstances it is very difficult for families to earn even a subsistence wage.

The arbitrariness of the confiscation of farmland without compensation of any kind has been also been described by the Mon Information Service:

confiscation of land, of either agricultural land or 'real estate' has become common and widespread. There are no instances of the authorities' provision of compensation for any confiscation of farmland or real estate ... according to the 1954 Agricultural Land Nationalization Act, all cultivated lands of the country are owned by the State, and can be repossessed by the State (1998).

[...]

The lack of any rule of law or independent judiciary offers opportunities - in logging, mining, fishing, road building, construction or the beautification of tourist sites - to make money for anyone involved. The land laws offer little protection to the rural farmer who in any case often fears taking any action against the military in case of reprisals.

Without the rule of law, or an independent judiciary free from interference by political or military personnel, displacement of this type is likely to continue both in rural and urban areas." (BERG September 2000)

"Beginning in late 1999 the UWSA began to move segments of the civilian population under its control from northern Shan State to southeastern Shan State. This displacement was undertaken allegedly to prevent Wa farmers from growing opium poppies. The Wa civilians reportedly did not have a choice about moving, and thousands are believed to have died from preventable diseases during and after the move. The SPDC reportedly sold tracts of land in the southeastern Shan State to the UWSA to distribute to the settlers; however no compensation was known to have been paid to the Shan, Lahu, and Akha farmers who were displaced by the new arrivals. In addition Shan civilians living in parts of Mung Hsat township where the UWSA are present are subjected to threats if they do not comply with UWSA demands. In February 2002 Amnesty International interviewed several of these people who had fled to Thailand because they had lost their homes, their livelihood, and their possessions." (AI 17 July 2002, pp16-17)

Farmland confiscated by the Burmese Army, to grow crops and build garrisons

"In 1997 over 1,000 acres of land between Kayon Taung and Kaw Bwee Taung villages, Kyeikmaraw Township, Mon State were confiscated by the South-eastern military Commander. The land was allocated to the military Battalions under the command of government departments, the Navy and the police force for self-reliant agricultural projects and the villagers of these areas to cultivate for them. As the civilians also have their own land to work for their survival, the village headmen collected money and hired people who were able to work on the military run projects; therefore, each village tract spends approximately 300,000 Kyats every year for hiring people and other expenses.

And in early 1999, SPDC troops of IB 245 confiscated 60 acres of rice fields from the Shan villagers of Wan Pawm, Tin Thaat and Waeng Sun villages in Kaeng Taung, Shan State. After that, the troops forced the villagers in the area to lease the land to grow rice at the rate of 2,000 Kyats per acre per year or for one harvest. (Source: SHRF)"(Nancy Hudson-Rodd, Myo Nyunt, Saw Thamain Tun & Sein Htay, 2003, p. 3).

PATTERNS OF RETURN AND RESETTLEMENT

General

An estimated 40,000 forcibly displaced people have returned to their villages since 1996 (October 2005)

"While over 2,800 villages have been forcibly displaced since 1996, some of these villages have been at least partly repopulated. This survey has identified 88 previously abandoned villages which have been partially re-established during the past year. It is also estimated that 40,000 people who had previously been forcibly displaced have returned to their homes in this period. However the sustainability of such return and resettlement is restricted not only by livelihood constraints, but also lack of official authorisation. This was illustrated by findings last year that attempts to re-establish over 100 villages during 2003 and 2004 were thwarted by harassment leading to further displacement." (TBBC, October 2005, p.22)

Return in the Tenasserim Division has been thwarted by new displacement:

TBBC, October 2004:

"While over 140 villages have been displaced since 1996, and nominal SPDC control now extends through much of the area, recent attempts to return and re-establish more than 100 such villages have been thwarted by further displacement.

[...]

Reports from relocation sites suggest that after forced eviction in the late 1990's, villagers were not allowed to return to their villages until 2002 when travel passes were introduced with a week long permit costing 1,000 kyat. However leaders of some relocation sites have purportedly been ordered to only issue travel passes for a single day since the end of 2003, which has decreased the opportunities for villages to return to their fields and plantations. Relocation sites can not be sustained without SPDC allowing this access to livelihoods, but the counterinsurgency strategy of separating villagers from the armed opposition remains in force."

Return often impossible due to landmines and confiscation of land (June 2005)

- When the conflict has died down, many IDPs are still unable to return to their villages due to the presence of landmines and the confiscation of land and other resources, as well as massive infrastructure projects

"Even after conflict has died down, many are unable to return to their previous farms and settlements, due to the prevalence of landmines and confiscation of land or other resources. Plans for massive infrastructure projects in border areas—including dams and new roads—will also prevent the resettlement of IDPs and repatriation of refugees." (HRW, June 2005, p. 18)

HUMANITARIAN ACCESS

General

Humanitarian response to IDPs from Burma-based agencies (February 2008)

- Few international organizations in Burma have programs explicitly targeting IDPs
- The Burmese government prevents all agencies from giving humanitarian aid to civilians in conflict areas
- NGOs working inside Burma can reach IDPs who would otherwise not receive assistance
- Some local NGOs and aid groups have set up low-profile aid programmes in a number of relocation sites and some ceasefire areas in eastern Burma
- Local NGOs providing assistance to relocated populations help to build community networks and develop capacities
- There is still relatively little overlap in the populations assisted by groups from within Burma and those from Thailand
- Humanitarian access for Burma-based agencies has shrunk since 2005
- Limitations on ICRC's work inside Burma in the last two years are particularly problematic

DFID, July 2007, p. 19-20:

"Currently there are 48 international NGOs with Memoranda of Understanding with the Burmese government. For a brief window between November 2003 and September 2004, the space for humanitarian and development actors to operate in Burma opened up a little, due to the relatively co-operative approach of Prime Minister Khin Nyunt. However, since his removal from power in October 2004, NGOs have had to carry out their support to IDPs and other vulnerable groups in an increasingly repressive climate. Restrictions on their work were made explicit in the draft *Guidelines for UN Agencies, International Organisations and NGO/INGOs*, produced by the Ministry of National Planning and Economic Development in February 2006. Conditions include that state officials should accompany UN and international NGO (INGO) staff on all field trips and the enforcement of restrictions on employing Burmese staff.

Few international organisations operating in-country have programmes explicitly targeted at IDPs. DFID perceived the reasons for this to lie partly in the sensitivity of the issue and partly in the fact that a large proportion of conflict-affected people in Burma have been displaced at some point, so it is often very difficult to distinguish IDPs from other vulnerable groups. The State Peace and Development Council (SPDC, the Burmese regime) technically prevents all NGOs and UN agencies working inside Burma from giving humanitarian aid to civilians in conflict areas. However, in practice, NGOs—mainly local organisations—do have some limited access to conflict zones, and also have low-profile aid programmes in some SPDC-controlled areas, relocation sites and ceasefire areas in eastern and northern Burma.

[...]

Whilst 10 years ago INGOs were only present in Rangoon and the north, the gradual pushing of boundaries set by the regime has resulted in an increased INGO presence across the country (although coverage is still far from even). It is clear [...] that NGOs working from inside Burma can reach IDPs who would not otherwise receive assistance. Their work is crucial to providing basic social services such as education and health to vulnerable populations, and we believe that they deserve increased support from donors."

COHRE, November 2007, p. 125:

"International agencies do not have access to the more tightly controlled relocation sites. Therefore, most humanitarian and other assistance reaching relocation sites comes from the affected communities themselves. This may take the form of 'self-help' initiatives undertaken by extended family and ethnic nationality networks, often organized and mediated by local religious leaders. A more systematic approach has been adopted by some CBOs and local NGOs, which have established low-profile aid programmes in a number of relocation sites (and some ceasefire areas) in eastern Burma.

Local access to relocated populations must be negotiated with local *Tatmadaw* (and less problematically,

DKBA) commanders and officials, usually by local or national religious leaders. Groups involved in such activities may be accused of abetting the State's draconian forced relocation programme. However, in providing relief in partnership with relocated populations, local NGOs help to build community networks and develop capacities. Such humanitarian efforts strengthen local civil society and human capital, in ways that contribute towards peace making and conflict transformation capacities, and indirectly support processes of political transition. Some welfare activities cross the 'front-line' of conflict, and are implemented by Burma-based groups, in areas of on-going armed conflict. Similarly, some cross-border aid reaches populations in relocation sites and ceasefire areas. However, there is still relatively little overlap in the populations assisted by groups from 'inside' Burma (in Government-controlled and ceasefire areas), and those working cross-border from Thailand (in zones of on-going armed conflict)."

ICG, January 2008, p. 26:

"Humanitarian agencies have done much over the past fifteen years but their access has shrunk since 2005, with a serious impact on some communities. Other communities, especially in conflict-affected areas along the Thai border, have yet to be reached. It must be a priority to reverse the current threats to humanitarian access; establish clear and positive procedures for negotiation of project agreements, visas, travel, and imports; and expand access to all areas of the country, including especially those affected by armed conflict. Although most agencies face similar problems, the closing of nearly all ICRC activity is a particular concern, since its work concerns very vulnerable groups which few if any other organisations reach."

Humanitarian response to IDPs from Thailand (February 2008)

- The government denies Burma-based agencies access to some of the most vulnerable IDPs in eastern Burma living in zones of armed conflict
- Since the early 1990s, cross-border aid has been provided to some of these IDPs by community based organizations located in Thailand

HRW, June 2005, p. 60:

"International agencies working inside the country do not have access to the zones of ongoing armed conflict in eastern Burma where protection and other humanitarian vulnerabilities are particularly acute. While some local NGOs and CBOs, especially church and Buddhist networks, do have some access to these areas, coverage is quite limited, and will remain so, until such time as ceasefires in these areas are consolidated.

Some aid does reach IDPs in hiding from across the Thailand border. As noted by BERG, "the Thai authorities do not allow any registered NGOs ... officially to develop programs of assistance across the border, although there is endorsement of temporary cross-border assistance in certain instances."

Since the early 1990s, Karen—and later Chin, Shan, Karenni and Mon—teams have provided humanitarian relief and undertaken some community development and educational work among displaced communities in zones of ongoing armed conflict in eastern Burma. In October 2004 the TBBC reported that 30 percent of IDP households surveyed had accessed aid over the past year (17 percent in relocation sites, 35 percent in hiding sites, and 49 percent in ceasefire areas).

Thailand border-based groups' strategic planning and research capacities are generally more developed than those working on displacement issues from inside Burma. In recent years, local and international agencies providing cross-border assistance to IDPs in eastern Burma have begun to develop sophisticated data collection and analysis tools.

Beneficiaries of cross-border aid are usually a self-selecting sub-group of IDPs in hiding, having put their trust in the KNU, KNPP, and the NMSP. The main cross-border assistance groups strive for impartiality by providing assistance to all in need. However, they are not impartial, as they act in solidarity with armed opposition groups. For these reasons, donors have insisted that their programs be carefully monitored."

The Government continues to refuse any scrutiny of its human rights situation as well as humanitarian access to displaced populations (February 2006)

- Both the UN SG Special Envoy and the Special Rapporteur of the Commission of Human Rights have been denied access to the country for several years
- New restrictions on humanitarian access has led several aid agents to leave Burma

UN CHR, 27 February 2006:

"As indicated in his report to the General Assembly (A/60/422), the Secretary-General's efforts to engage with the authorities to address various concerns of the international community regarding Myanmar's democratic reform remain stalled. His Special Envoy, Tan Sri Razali Ismail, stepped down in January 2006 upon the expiration of his contract and after having been denied access to the country for nearly two years since March 2004. Paulo Sérgio Pinheiro, Special Rapporteur of the Commission of Human Rights on the situation of human rights in Myanmar, has not been allowed to visit the country since November 2003.

Consequently, political discussions with the Government of Myanmar have taken place only outside the country on limited occasions."

COE-DMHA, 20 December 2005:

"According to The Irrawaddy today (Tuesday, December 20), the French contingent of the medical aid group, Medecin Sans Frontieres (MSF) is preparing to withdraw from Myanmar. The decision was reportedly reached during an annual MSF meeting in late November, which brought together all MSF programs around the world. Dr. Herve Isambet, program manager for MSF in Myanmar, told The Irrawaddy that the group has found it difficult to implement programs in the last year "because of restrictions imposed on our international staff regarding access to villages." She added that "it was very difficult to...provide equal access to health care." However, she clarified that only MSF France will leave the country, leaving behind programs run by the Netherlands and Britain. The MSF reportedly informed the Myanmar Health Ministry of the decision last week, but the exact date of departure has not been announced yet. MSF France began its work in Myanmar in 2001, providing malaria treatment in the Mon and Karen states, as well as other regions of the country. MSF is the second aid group in a year to announce a withdrawal from the country. In August, the UN's Global Fund to Fight Aids, Tuberculosis and Malaria made an announcement to withdraw from the country due to what it said were also restrictions on its staff. Prior to the withdrawal, the agency had committed US\$100 million in aid to Myanmar. Pressure on ethnic and opposition groups, as well as international aid group in the

country has grown after the sudden ouster of former Prime Minister Khin Nyunt last year, following a power struggle in Yangon. The ouster forced many foreign and UN agencies to re-establish contacts within the government. In addition, the junta suddenly announced last month that it would be moving the capital to a compound in Pyinmana, about 320 km (200 miles) north of Yangon. The reasons for the move are unclear, and UN officials reportedly fear that it will again hamper their efforts to work effectively in Myanmar as they lose touch with government officials again."

NATIONAL AND INTERNATIONAL RESPONSES

National and international response

National response to IDPs in Burma (February 2008)

- The government of Burma does not recognize the existence of internally displaced persons and therefore has no assistance programs that address their specific needs

RI, June 2006, p. 13:

" The national authorities are largely responsible for the displacement of people and the IDP issue has acquired political sensitivity. The government does not allow international agencies to access the displaced. The displaced don't identify themselves as there is no advantage to coming forward. Far from providing assistance and protection in areas of government jurisdiction, the authorities refuse to recognize the existence of internally displaced people."

National and international response (March 2007)

National and International Assistance

Assistance activities inside Burma

The Burmese government generally refuses any outside involvement in its border areas and does not allow access to war-affected populations by international organisations. There are about 30 international NGOs and ten UN agencies working inside Burma. They are based in the capital, Rangoon, and operate under tight government restrictions and surveillance (CA, May 2004).

The UN system entities in Burma include: the UN Development Program (UNDP); the UN Children's Fund (UNICEF); the UN Populations Fund (UNFPA); the UN International Drug Control Program (UNDCP); the World Food Program (WFP); the Food and Agriculture Program (FAO); the World Health Organization (WHO); the UN High Commissioner for Refugees (UNHCR); the Joint UN Program on HIV/AIDS (UNAIDS); and the UN Information Center (UNIC) (Burma UN Service Office, March 2003).

Prior to 1988, aid was a significant proportion of public expenditure in Burma. Following the political developments since then, many major donors instituted a ban on bilateral development assistance. Neither the World Bank nor Asian Development Bank have programmes in Burma and have not provided any new lending to Myanmar since 1987 (ILO, 16 March 2005). Burma receives about USD 120 million a year, mainly humanitarian aid. The largest donor is the EU with 15 million euro in humanitarian aid for vulnerable populations in Burma and along the border with Thailand (ECHO, 22 December 2005). Other funders are DFID, JICA, Germany, USAID and Ausaid. China provides significant loans and grants, while Thailand, South Korea, India and Singapore also provides various forms of donor support. International NGO assistance amounts to USD 30 million (Igboemeka, August 2005, p.9). ASEAN is implementing a limited technical assistance programme in the country while Thai assistance has largely been tied to procurement by Thai companies (DFID, October 2004).

"In the early 2000s, it seemed that political elites on all sides were willing to cooperate on humanitarian issues. The military rulers showed new signs of working with the international community, and opposition groups modified their call for isolating the regime. Donors led by Australia, the UK and the European Union (EU) stepped up humanitarian aid and broader social support. Agencies initiated groundbreaking programs addressing sensitive issues such as HIV/AIDS and expanding into remote areas which have long suffered from conflict and neglect. Over the past few years, however, the general political environment has deteriorated, domestic repression has increased and new confrontations and mutual suspicion between the military government and international critics have put many of those programs at risk.

Since the purge in late 2004 of General Khin Nyunt and other high-ranking officials, the military government has taken a more aggressively nationalistic line with international agencies, including the aid community. Intrusive attempts to control programs and force agencies to work with government-affiliated organisations have been compounded by immense confusion within the government itself, creating a more difficult operational environment. Although conditions overall are still better than they were in the 1990s, and the impact of recent changes varies between agencies and programs, frustrations are palpable across the aid community and even within parts of the government. The situation has been further complicated by renewed pressure from international critics. While the democratic opposition increasingly favours assistance, some parliamentarians and advocacy groups abroad have stepped up efforts to restrict and micro-manage aid flows. This was particularly evident in respect to the Global Fund, which in August 2005 terminated a planned \$98 million program in Myanmar after intense pressure from U.S.-based groups undermined sensitive negotiations with the government over operational conditions."(ICG, 8 December 2006)

Assistance to internally displaced in Burma is extremely limited. A few organisations have access to relocated urban displaced populations. International NGOs also implement landmine awareness projects in two districts in the Karen State. Many of the beneficiaries of these projects were once forcibly displaced.

After a period of expanded humanitarian space to some areas in eastern Burma, access has again been curtailed, culminating in a set of guidelines in February 2006 that further restrict assistance by international organisations (Mizzima News, 13 February 2006). The tight surveillance and restrictions imposed by the regime have led the Global Fund to Fight AIDS, Tuberculosis and Malaria to terminate grants and Médecins Sans Frontières – France to cease its activities inside Burma (COE-DMHA, 20 December 2005; MSF, 30 March 2006). Even the ICRC, which has a long-standing presence in Burma has recently been restricted in carrying out its work, including prison visits (Mizzima News, 24 February 2006). In March 2007, ICRC closed two of its offices in Myanmar due to continued restrictions from the Myanmar military junta, stating that the ICRC's humanitarian work in Myanmar had reached near-paralysis (COE-DMHA, 16 March 2007). Cooperation with the government has been complicated further by the sudden relocation of key ministries to Pyinmana in southern Mandalay Division, some 320 kilometres north of Rangoon (UN CHR, 27 February 2006, para 7).

Local community-based networks in Burma are active in many ethnic minority-populated areas (both government-controlled and ceasefire zones). Most humanitarian and other assistance to relocation sites comes from community based organizations and local NGOs, either through self-help initiatives or low-profile aid-programmes. Local groups, normally represented by local or national religious leaders, have to negotiate access with local SPDC commanders and state officials. Over the past two years, there has been an increase in assistance by local networks to internally displaced in government-controlled areas (HRW, June 2005, pp. 59-60).

Some international support is, on a non-official basis, reaching internally displaced in hiding across the border from Thailand. Often, the help consists of small back-pack teams who access

these areas on an ad-hoc basis, mainly to provide basic health care. This crucial support is delivered by local partner groups which mainly provide medical and food assistance (KTWG, 2003). Karen, Chin, Shan, Karenni and Mon-teams cross the border when possible to provide relief and some communal and education activities to the displaced population. The Thailand Burma Border Consortium reported in October 2004 that 30 percent of IDP households surveyed had accessed some kind of aid during the last 12 months (TBBC, October 2004, p. 77). However, such assistance remains limited to sporadic support, due to both the logistical problems and lack of sufficient resources. Many donors are skeptical of aid to areas that can only be reached with escort of ethnic insurgent groups for example (Heppner, March 2005, p. 34). Most often left to fend for themselves, the internally displaced in conflict areas try to mitigate their disastrous situation by hiding food in various locations and preparing emergency sites in case of army raids. Often communities have to spontaneously relocate during the night in order to escape army forces. In some cases, the internally displaced organise armed militia units and cooperate with ethnic rebel armies to gain early warning about troop movements. In ceasefire areas, relocation sites and in areas of mixed administration, the main method of minimising threats is to comply with extortion and follow orders (TBBC, October 2005, pp.55-56).

Systematic information gathering during cross-border mission has also allowed for thorough surveys of living conditions of IDPs in the border areas, such as the surveys by the Thailand Burma Border Consortium "Internal Displacement and Vulnerability in Eastern Burma", issued in October 2004 and "Internal Displacement and Protection in Eastern Burma" issued in October 2005.

In general, operational assistance by UN organisations and international NGOs inside the country consists of social development projects targeting the poor in government-controlled areas, including the Arakan, Chin, Kachin and southern Shan states, and to a lesser degree in southeast Burma (Karen and Mon states and Tenasserim Division). For more information on UN activities in Burma, read the chapter "Humanitarian agencies in Burma" in the June 2005 [Human Rights Watch report](#).

The ICRC has field offices in Moulmein in the Mon state, Paan in the Karen state and Keng Tung in the Shan state, but its movement within these states is extremely restricted, and it is not allowed into the Karenni state at all (CA May 2004; UNHCR 12 March 2004).

International sanctions and condemnations:

The UN Commission on Human Rights And the UN General Assembly and the Commission on Human Rights has regularly called upon military rulers to end the systematic enforced displacement. The latest General Assembly resolution called on the Government to end the systematic enforced displacement of persons and other policies leading to displacement within Myanmar, to provide the necessary protection and assistance to internally displaced persons and ensure access to the affected populations (CHR resolution 2005/10; UNGA, 2 November 2005).

The Secretary-General's Special Envoy for Myanmar, Tan Sri Razali Ismail, stepped down in January 2006 upon expiration of his contract and after having been denied access to the country since March 2004. The Special Rapporteur of the Commission of Human Rights on the situation of human rights in Myanmar, Paulo Sérgio Pinheiro, will also end his mandate as he has not been allowed to visit the country since November 2003 (UN CHR, 27 February 2006).

Following the Asia-Europe Meeting (ASEM) in October, which the SPDC attended as a member for the first time, the European Union Common Position that provides for some sanctions against Myanmar was strengthened on the basis of the lack of progress in lifting restrictions on political activity in the country. The EU has also said that it will expand assistance within the health and

education sectors inside Burma (AI, Annual report 2004; EU, 21 February 2005, 13 September 2004).

The European Parliament has adopted several resolutions condemning the lack of democratic process, human rights abuses in general and against the ethnic minorities in particular, as well as the use of forced labour. The latest resolution dates from 12 May 2005 (EP, 12 May 2005)

Statements by ASEAN have been careful not to criticise the government. In May 2004, labour ministers noted with satisfaction the pledge made by Myanmar for continued cooperation with the ILO in their efforts to abolish forced labour practices. They expressed their optimism as to the removal of obstacles to implementation of the joint Plan of Action and the Roadmap. During 2005, the organisation for the first time openly reacted to the lack of political progress in the country. It persuaded the Burmese government to abandon its turn as chair of ASEAN in July 2005 and made an unprecedented visit to Burma to discuss the situation in March 2006 (VoA, 26 March 2006). The EU and the US maintain their economic sanctions against the military regime.

Since 1998, the International Labour Organisation (ILO) has continuously documented how forced labour is directly linked to military operations, including the forced recruitment of porters and their use as human mine-sweepers. People who have complained about forced labour practices have reportedly been persecuted and imprisoned. During its last session, ILO's Governing Body concluded that no meaningful progress had been made towards abolishing forced labour (ILO, 31 March 2006). The International Confederation of Free Trade Unions (ICFTU) has led an active campaign with Global Union Federations and many national workers' organizations to promote the implementation of the 2000 International Labour Conference resolution. Since 2001, campaigns have especially targeted the withdrawal of multinational companies from Myanmar. After the 2000 ILO resolution of the problem of forced labour in Burma, certain governments (United States, Japan, Australia, the United Kingdom, Canada and Switzerland among others) have also taken action individually as well as through international organizations, mainly focusing on restrictions on economic co-operation and financial transactions (ILO, March 2005; AFP, 18 May 2005).

The US has shown increased impatience with the military regime and lobbies for the UN Security Council to consider the situation in Burma. The Security Council received an informal briefing on 16 December 2005, based on a report commissioned by Archbishop Desmond Tutu and former President of the Czech Republic, Vaclav Havel (UNCHR, 21 February 2006, para.8; PRGC, 20 September 2005). Vetoes by China and Russia January 12 defeated a UN Security Council resolution sponsored by the United States and United Kingdom that would have called on Burma's military regime to release all political prisoners and end human rights abuses (USDOS, 12 January 2007).

However, apart from repeated condemnations in the UN General Assembly and the Commission on Human Rights, the international response to the crisis of internal displacement in Burma continues to be inconsistent and vague. In general the Special Rapporteur labels the international approach to Burma "erratic" and calls for increased international coordination (UNNS, 28 October 2005). International and regional actors should take every opportunity to raise the need for humanitarian access to conflict-affected populations with the military regime and should develop a common policy vis-à-vis the government in order to improve protection and assistance to Burma's internally displaced.

Reference to the Guiding Principles on Internal Displacement

Known reference to the Guiding Principles (as of May 2006)

Reference to the Guiding Principles in the national legislation

None

Other References to the Guiding Principles (in chronological order)

None

LIST OF SOURCES USED

(alphabetical order)

Agence France-Presse (AFP), 18 May 2005, "US continues Burma sanctions"

Internet : <http://www.abc.net.au/news/newsitems/200505/s1371331.htm> , accessed 17 June 2005

Agence France-Presse (AFP), 23 November 2007, ASEAN credibility wrecked by Myanmar crisis: analysts

Internet : <http://www.abs-cbnnews.com/storypage.aspx?StoryId=100011> , accessed 3 February 2008

Agence France-Presse (AFP), 22 May 2005, Shan state armies merge to fight military government

Internet : <http://www.kaowao.org/News.89.php?#7> , accessed 14 June 2005

Alison Vicary/ Burma Economic Watch (BEW), 14 May 2003, Economic Non-Viability, Hunger and Migration: The Case of Mawchi Township

Internet : <http://www.ibiblio.org/obl/docs/BEW-Mawchi.htm> , accessed 22 October 2003

Alternative Asean Network on Burma (ALTSEAN), 16 February 2005, Burma's National Convention, illegitimate, unrepresentative & repressive

Internet : <http://www.altsean.org/NC%20brief%20Feb%2016.pdf> , accessed 23 June 2005

Alternative Asean Network on Burma (ALTSEAN), March 2004, Special Report: On The Road To Democracy? A Summary of Political & Human Rights Developments in Burma September 1 2003 - February 29, 2004

Internet : http://www.ibiblio.org/obl/docs/roadmap-SR.htm#_ftnref163#_ftnref163 , accessed 30 March 2004

Amnesty International (AI), 10 July 2000, Myanmar - Exodus from the Shan State

Internet : <http://web.amnesty.org/ai.nsf/Index/ASA160122000?OpenDocument&of=COUNTRIESMYANMA>
accessed 30 May 2001

Amnesty International (AI), 13 June 2001, Myanmar: Ethnic Minorities, Targets of Repression, AI ref: ASA 16/014/2001

Internet : <http://web.amnesty.org/ai.nsf/print/ASA160142001?OpenDocument> , R , accessed 23 October 2001

Amnesty International (AI), 17 July 2002, Myanmar: Lack of Security in Counter-Insurgency Areas

Internet : <http://web.amnesty.org/ai.nsf/recent/ASA160072002?OpenDocument> , accessed 17 July 2002

Amnesty International (AI), 10 February 2003, Myanmar: Amnesty International's first visit to Myanmar: Official statement

Internet : <http://web.amnesty.org/library/Index/ENGASA160052003?open&of=ENG-MMR> , accessed 22 October 2003

Amnesty International (AI), 19 May 2004, Myanmar - The Rohingya Minority: Fundamental Rights Denied

Internet : <http://web.amnesty.org/library/Index/ENGASA160052004?open&of=ENG-MMR> , accessed 14 June 2004

Amnesty International (AI), 7 September 2005, Myanmar: Leaving Home
Internet : <http://web.amnesty.org/library/index/engasa160232005> , accessed 8 September 2005

Amnesty International (AI), 2005, Myanmar, report 2005
Internet : <http://web.amnesty.org/report2005/mmr-summary-eng> , accessed 14 June 2005

Amnesty International (AI), 30 March 2005, The Rohingya Minority: Fundamental Rights Denied
Internet : http://www.amnesty.org/en/alfresco_asset/aaa00d47-a48a-11dc-bac9-0158df32ab50/asa160052004en.pdf , accessed 30 January 2008

Amnesty International (AI), June 1999, Myanmar. Aftermath: Three Years of Dislocation in the Kayah State
Internet : <http://www.web.amnesty.org/ai.nsf/index/ASA160141999> , accessed 27 January 2000

Asia Times, 24 March 2005, "Karenni rebels dig in for last stand"
Internet : http://www.atimes.com/atimes/Southeast_Asia/GC25Ae01.html , accessed 14 June 2005

Asian Human Rights Commission (AHRC), 15 October 1999, People's Tribunal on Food Scarcity and Militarization in Burma: Voice of the Hungry Nation
Internet : <http://web.archive.org/web/20000131075930/www.hrschool.org/tribunal/report/index.htm> , accessed 27 January 2000

Asian Human Rights Commission (AHRC), 29 December 2004, Hunger Alert BURMA: Several thousand villagers fled from army attacks in Papun Township, Karen state
Internet : <http://www.ahrchk.net/ua/mainfile.php/2004/903> , accessed 28 February 2005

Asian Human Rights Commission (AHRC), 21 January 2005, UPDATE (Burma): Photographs of destroyed houses and internally displaced persons in Papun Township, Karen state
Internet : <http://www.ahrchk.net/ua/mainfile.php/2005/923> , accessed 28 February 2005

Asian Legal Resource Centre (ALRC), 10 March 2003, Commission On Human Rights, Fifty-ninth session Item 14 (c) of the provisional agenda: Specific Groups And Individuals: Mass Exoduses And Displaced Persons, "Written statement"
Internet : [http://www.unhchr.ch/Huridocda/Huridoca.nsf/\(Symbol\)/E.CN.4.2003.NGO.100.en?OpenDocument](http://www.unhchr.ch/Huridocda/Huridoca.nsf/(Symbol)/E.CN.4.2003.NGO.100.en?OpenDocument) , accessed 7 April 2003

Asian Legal Resource Centre (ALRC), 29 January 2004, Food scarcity in Myanmar
Internet : [http://www.unhchr.ch/Huridocda/Huridoca.nsf/\(Symbol\)/E.CN.4.2004.NGO.29.En?OpenDocument](http://www.unhchr.ch/Huridocda/Huridoca.nsf/(Symbol)/E.CN.4.2004.NGO.29.En?OpenDocument) , accessed 23 April 2004

Australian Relief & Mercy Services Ltd (ARMS), 2 February 2004, Land Mines - More Trouble For IDPs
Internet : <http://www.arms.org.au/article.asp?cg=2&type=1&id=104> , , accessed 25 February 2004

Australian Relief & Mercy Services Ltd (ARMS), 22 February 2004, IDP Numbers Grow to 5000
Internet : <http://www.arms.org.au/article.asp?cg=2&type=1&id=107> , accessed 8 July 2004

Australian Relief & Mercy Services Ltd (ARMS), 6 March 2004, More Aid needed for IDPs
Internet : <http://www.arms.org.au/article.asp?cg=2&type=1&id=117> , accessed 8 July 2004

Back Pack Health Worker Team, 14 September 2006, Chronic Emergency - Health and Human Rights in Eastern Burma

Internet : <http://www.geocities.com/maesothtml/bphwt/> , accessed 14 September 2006

BBC News, 29 June 2007, Red Cross condemns Burma 'abuses'

Internet : <http://news.bbc.co.uk/2/hi/asia-pacific/6252024.stm> , accessed 3 February 2008

BBC News, 17 November 2007, Satellites track 'removed' Burma villages

Internet : <http://news.bbc.co.uk/2/hi/asia-pacific/7099713.stm> , accessed 3 February 2008

Beyrer C, 1999, "The Health and Humanitarian Situation of Burmese Populations Along the Thai-Burma Border" Burma Debate, VOL. VI, NO. 3 FALL 1999

Internet : <http://www.burmaproject.org/burmaproject/archives/bdfall99.html> , accessed 21 June 2000

Burma Centrum Nederland, May 2003, Caught Between A Crocodile And A Snake: The Increasing Pressure on Rohingyas in Burma and Bangladesh & The Impacts of the Changing Policy of UNHCR

Internet : <http://www.ibiblio.org/obl/docs/crocodile.htm> , accessed 14 March 2006

Burma Ethnic Research Group (BERG), September 2000, "Internal Displacement in Burma", in Disasters 24(3) pp. 228-239

Internet : <http://www.blackwell-synergy.com/doi/abs/10.1111/1467-7717.00144> , accessed 14 March 2006

Burma Ethnic Research Group (BERG), May 2000, Conflict and Displacement in Karenni: The Need for Considered Responses

Internet : <http://www.ibiblio.org/obl/docs/responses.htm> , accessed 15 July 2002

Burma Ethnic Research Group (BERG), July 1999, Internal Displacement in Myanmar

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/EAFB4C86FCDA20F1802570B700599846/\\$file/BERG+IDP+Report+-+July+1999.doc](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/EAFB4C86FCDA20F1802570B700599846/$file/BERG+IDP+Report+-+July+1999.doc) ,

Burma Ethnic Research Group (BERG) and Friedrich Naumann Foundation, April 1998, Forgotten Victims of a Hidden War: Internally Displaced Karen in Burma (Bangkok)

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/0787CA1BCAB95999802570B700599932/\\$file/Berg+Karen+IDP+report.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/0787CA1BCAB95999802570B700599932/$file/Berg+Karen+IDP+report.pdf) ,

Burma Issues & Altsean-Burma (BI/ ALTSEAN), August 2003, Uncounted: political prisoners in Burma's ethnic areas

Internet : <http://www.burmaissues.org/En/Newsletter/BINews2003-07.php#politicalprisoners> , accessed 14 March 2006

Burma Issues (BI), April 2003, After the 1997 Offensives: The Burma Army's Relocation Program Kamoethway Area, Tenasserim Division

Internet : <http://www.burmaissues.org/En/Old%20BI%20Website/Reports/KAMOETHWAY.pdf> , accessed 22 October 2003

Burma Issues/The Peace Way Foundation (BI), April 2003, IDPs in Burma

Internet : <http://www.burmaissues.org/En/Old%20BI%20Website/IDPSituation.php> , accessed 14 March 2006

Burma UN Service Office, March 2003, Humanitarian Assistance to Burma: How to establish good governance in the provision of humanitarian aid

Internet : http://www.ibiblio.org/obl/docs/Humanitarian-Assistance_Dec2.htm , accessed 16 June 2003

Burmese Border Consortium (BBC), September 2002, Internally Displaced People and Relocation Sites in Eastern Burma

Internet : [http://www.ibiblio.org/obl/docs/BBC_Relocation_Site_Report_\(11-9-02\).htm](http://www.ibiblio.org/obl/docs/BBC_Relocation_Site_Report_(11-9-02).htm) , accessed 11 November 2002

Burmese Border Consortium (BBC), October 2003, Reclaiming the Right to Rice: Food Security and Internal Displacement in Eastern Burma

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/6F206C81A25C6BA4802570B700599B5C/\\$file/BBC+Reclaiming+the+Right+to+Rice+2003.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/6F206C81A25C6BA4802570B700599B5C/$file/BBC+Reclaiming+the+Right+to+Rice+2003.pdf) ,

CBC News, 16 October 2007, Japan cancels aid to Burma

Internet : <http://www.cbc.ca/world/story/2007/10/16/burma-japan.html> , accessed 3 February 2008

Center of Excellence in Disaster Management & Humanitarian Assistance (COE-DMHA), 14 December 2004, Myanmar's military junta launches offensive against ethnic Karen, reports say

Internet : http://padmin.coe-dmha.org/apdr/index.cfm?action=process3&news=16081&Sub_ID=247&criteria=myanmar&timeinterval=2004 , accessed 23 June 2005

Center of Excellence in Disaster Management & Humanitarian Assistance (COE-DMHA), 27 May 2005, Intense clashes between Shan and Wa rebels intensify along Thai-Myanmar border; Myanmar blames insurgents for blasts

Internet : http://padmin.coe-dmha.org/apdr/index.cfm?action=process3&news=16871&Sub_ID=146&criteria=myanmar&timeinterval=2004 , accessed 23 June 2005

Center of Excellence in Disaster Management & Humanitarian Assistance (COE-DMHA), 16 March 2007, ICRC closes two offices in Myanmar due to pressure from military junta

Internet : http://padmin.coe-dmha.org/apdr/index.cfm?action=process3&news=21864&Sub_ID=0&criteria=myanmar&timeinterval=33&pubdate=03/16/2007 , accessed 26 March 2007

Center of Excellence in Disaster Management & Humanitarian Assistance (COE-DMHA), 30 November 2005, At least 1,000 displaced in military attacks on Myanmar villages

Internet : http://padmin.coe-dmha.org/apdr/index.cfm?action=process3&Sub_ID=146&news=18573 accessed 1 December 2005

Center of Excellence in Disaster Management & Humanitarian Assistance (COE-DMHA), 20 December 2005, Medecins Sans Frontieres (MSF) to withdraw from Myanmar

Internet : http://padmin.coe-dmha.org/apdr/index.cfm?action=process3&Sub_ID=146&news=18708 accessed 21 December 2005

Center of Excellence in Disaster Management & Humanitarian Assistance (COE-DMHA), 19 January 2006, Myanmar government's forced agricultural policies contributing to displacement of people in eastern Shan state

Internet : http://padmin.coe-dmha.org/apdr/index.cfm?action=process3&Sub_ID=146&news=18880 accessed 20 January 2006

Center of Excellence in Disaster Management & Humanitarian Assistance (COE-DMHA), 30 March 2006, Number of displaced from violence in Myanmar's eastern Karen state rises to 5,000

Internet : http://padmin.coe-dmha.org/apdr/index.cfm?action=process3&Sub_ID=146&news=19417 accessed 31 March 2006

Center of Excellence in Disaster Management & Humanitarian Assistance (COE-DMHA), 26 April 2006, More than 11,000 displaced in reportedly worst offensives in Myanmar's Karen state in 10 years

Internet : http://padmin.coe-dmha.org/apdr/index.cfm?action=process3&Sub_ID=146&news=19619 accessed 27 April 2006

Center of Excellence in Disaster Management & Humanitarian Assistance (COE-DMHA), 4 May 2006, Military junta attacks against Karen rebels in eastern Myanmar continue

Internet : http://padmin.coe-dmha.org/apdr/index.cfm?action=process3&Sub_ID=146&news=19680 accessed 5 May 2006

Centre on Housing Rights and Evictions (COHRE), September 1998, "Forced Evictions: Violations of Human Rights"

Internet : <http://www.cohre.org/survey7.htm> , , , , , , accessed 14 March 2006

Centre on Housing Rights and Evictions (COHRE), October 2004, Housing, Land and Property Rights in Burma

Internet : http://www.ibiblio.org/obl/docs4/Housing_and_Property_Rights_in_Burma.pdf , accessed 30 January 2008

Centre on Housing Rights and Evictions (COHRE), 22 November 2007, Displacement and Dispossession: Forced Migration and Land Rights

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/835524F5F0DF1366C12573BD0049F2C8/\\$file/COHRE%20Burma%20Country%20Report.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/835524F5F0DF1366C12573BD0049F2C8/$file/COHRE%20Burma%20Country%20Report.pdf) ,

Chin Human Rights Organization (CHRO), February 2004, Ethnocide Against Chin Christians In Burma

Internet : http://www.chro.org/CHRO_images/ReligiousPersecution.pdf , accessed 22 June 2005

Christian Aid, May 2004, Burma's dirty war - the humanitarian crisis in eastern Burma

Internet : <http://www.reliefweb.int/library/documents/2004/chraid-mmr-24may.pdf> , accessed 9 June 2004

Christian Solidarity Worldwide (CSW), 26 April 2004, Visit to Thai/Burma border - 19-26 April 2004

Internet : <http://www.csw.org.uk/Countrytripreports.asp?item=456> , accessed 11 June 2004

Christian Solidarity Worldwide (CSW), 21 January 2004, Thousands more civilians attacked in Burma as ceasefire talks start

Internet : <http://www.csw.org.uk/CSWnews.asp?item=423> , accessed 11 June 2004

Christian Solidarity Worldwide (CSW), 30 November 2000, Trip Report - Thailand and Burma

Coalition to Stop the Use of Child Soldiers, May 2001, Child Soldiers Global Report: Myanmar

Congressional Research Service (CRS), 4 October 2007, Burma-US Relations

Internet : <http://www.fas.org/sgp/crs/row/RL33479.pdf> , accessed 13 February 2008

Council on Foreign Relations (CFR), June 2003, Burma: Time for Change

Internet : http://www.cfr.org/content/publications/attachments/Burma_TF.pdf , accessed 14 March 2006

Cusano, Chris in, September 2001, Burma: Displaced Karens: 'Like water on the Khu Leaf', in Caught Between Borders - Response Strategies of the Internally Displaced, ed. Birgit Refslund and Marc Vincent

Internet : http://www.ibiblio.org/obl/docs3/Cusano-Displaced_Karen.pdf , accessed 12 June 2006

Department for International Development, UK (DFID), October 2004, Burma: Country Assistance Plan

Internet : <http://www.dfid.gov.uk/pubs/files/capburma.pdf> , accessed 17 June 2005

Department for International Development, UK (DFID), 25 July 2007, DFID assistance to Burmese IDPs and refugees on Thai-Burma border

Internet : [http://www.reliefweb.int/rw/RWFiles2007.nsf/FilesByRWDocUnidFilename/EKOL-75H4FB-full_report.pdf/\\$File/full_report.pdf](http://www.reliefweb.int/rw/RWFiles2007.nsf/FilesByRWDocUnidFilename/EKOL-75H4FB-full_report.pdf/$File/full_report.pdf) , accessed 3 February 2008

DLA Piper Rudnick Gray Cary, 20 September 2005, Threat to peace: a call for the UN Security Council to act in Burma (commissioned by Vaclav Havel and Desmond Tutu)

Internet : <http://burmacampaign.org.uk/reports/Burmaunscreport.pdf> , accessed 12 April 2006

Dr Hudson-Rodd, Nancy and Dr Nyunt, Myo, June 2004, State-induced violence and poverty in Burma

Internet : http://www.ibiblio.org/obl/docs4/State-induced_violence_and_poverty.pdf , accessed 28 February 2007

Dr. Hudson Rodd, Nancy and Cowan, Edith, October 2004, Housing, Land, and Property Rights in Burma

Internet : http://www.ibiblio.org/obl/docs4/Housing_and_Property_Rights_in_Burma.pdf , accessed 28 February 2007

European Commission, 22 December 2005, Commission allocates €15 million in humanitarian aid to vulnerable populations in Burma/Myanmar and to Burmese refugees along the Myanmar-Thai border

Internet : <http://europa.eu.int/rapid/pressReleasesAction.do?reference=IP/05/1694&format=HTML&aged=0&language=EN&guiLanguage=en> , accessed 3 April 2006

European Parliament, 12 May 2005, European Parliament resolution on Burma

Internet : http://www.unpo.org/news_detail.php?arg=02&par=2486 , accessed 20 June 2005

European Union, 13 September 2004, ASEM - Council Conclusions

Internet : http://europa.eu.int/comm/external_relations/asem/intro/gac.htm#asem130904 , accessed 20 June 2005

European Union, 21 February 2005, Press release: Burma/Myanmar - Restrictive measures

Internet : http://europa.eu.int/comm/external_relations/gac/date/2005/02_210205_ga.pdf#burma , accessed 20 June 2005

Fédération Internationale des Ligues des Droits de l'Homme (FIDH), 13 March 2007, Written intervention on Burma-Situation of Human Rights in Myanmar

Internet : <http://www.fidh.org/spip.php?article4106> , accessed 3 February 2008

Financial Times, 2 November 2007, Burma expels top UN diplomat

Internet : http://www.ft.com/cms/s/0/2e4dd240-893c-11dc-b52e-0000779fd2ac.dwp_uuid=6a365390-7032-11dc-a6d1-0000779fd2ac.html , accessed 3 February 2008

Forced Migration Online, July 2007, Internal Displacement in Eastern Burma

Internet : <http://www.fmreview.org/FMRpdfs/FMR28/25.pdf> , accessed 2 February 2008

Forced Migration Online, 2003, FMO Country Guide: Burma

Internet : <http://www.forcedmigration.org/guides/fmo019/> , accessed 28 October 2003

Forum-Asia, 5 April 2004, Burma's Displaced People in India and Bangladesh, by Chris Lewa

Internet : http://www.ibiblio.org/obl/docs/Forum-Asia_briefing.htm , accessed 8 July 2004

Forum-Asia, June 2003, We are like a soccer ball, kicked by Burma, kicked by Bangladesh, by researcher Chris Lewa

Internet : <http://www.ibiblio.org/obl/docs/KICKED-June2003.pdf> , accessed 23 June 2004

Free Burma Rangers, 16 January 2006, Burma Army burns Karenni village

Internet : <http://www.freeburmarangers.org/Reports/20060119.html> , accessed 20 April 2006

Free Burma Rangers, 24 April 2006, 11,000 People Displaced as Attacks Continue.

Internet : <http://www.freeburmarangers.org/Reports/20060423.html> , accessed 1 May 2006

Free Burma Rangers, April 2004, IDP Mission in Mergui-Tavoy District

Internet : http://www.freeburmarangers.org/Reports/idp_mission_in_mergui-tavoy_district_april_2004.htm , accessed 22 June 2004

Free Burma Rangers, May 2004, Shan State Relief Mission

Internet : http://www.freeburmarangers.org/Reports/shan_state_relief_mission_may_2004.htm , accessed 23 June 2004

Free Burma Rangers, May 2005, Report

Global Witness, October 2003, A Conflict Of Interest: The uncertain future of Burma's forests

Internet : <http://www.globalwitness.org/reports/show.php/en.00046.html> , accessed 27 October 2003

Harris P., 1998, "Myanmar", in Janie Hampton, ed.

Heppner, Kevin, September 2000, A Village on Fire: The Destruction of Rural Life in Southeastern Burma, in Cultural Survival Quarterly

Internet : <http://web.archive.org/web/20010624213218/www.cs.org/publications/CSQ/243/heppner.html> , accessed 14 January 2003

Heppner, Kevin, March 2005, Sovereignty, Survival and Resistance: Contending Perspectives on Karen Internal Displacement in Burma

Internet : <http://www.ibiblio.org/freeburma/humanrights/khrg/archive/papers/wp2005w1.pdf> , accessed 21 June 2005

Human Rights Education Institute of Burma (HREIB), September 2006, Despite Promises: Child Soldiers in Burma's SPDC Armed Forces

Internet : <http://www.hreib.com/download/cs> , accessed 28 February 2007

Human Rights Foundation of Monland (HURFOM), 31 July 2007, The Mon Forum July 2007

Internet : <http://www.ibiblio.org/obl/docs4/MF2007-07.pdf> , accessed 30 January 2008

Human Rights Foundation of Monland (HURFOM), May 2003, The Mon Forum

Internet : <http://www.ibiblio.org/obl/docs/MF2003-05B.htm> , accessed 28 October 2003

Human Rights Foundation of Monland (HURFOM), 31 March 2004, Woman and Child Rights Project (WCRP): Discrimination and Violation against Women in Burma
Internet : http://www.rehmonnya.org/allwcrp_detail.php?id=23 , accessed 14 June 2004

Human Rights Foundation of Monland (HURFOM), October 2003, No Land to Farm: A Comprehensive Report on Land, Real Estate and Properties Confiscation in Mon's Area, Burma (1998-2003)
Internet : <http://www.rehmonnya.org/landreport.php> , accessed 14 June 2004

Human Rights Watch (HRW), July 2002, Crackdown on Burmese Muslims
Internet : <http://hrw.org/backgrounder/asia/burma-bck.htm> , accessed 28 October 2003

Human Rights Watch (HRW), 2007, Events of 2006
Internet : <http://hrw.org/englishwr2k7/docs/2007/01/11/burma14865.htm> , accessed 28 March 2007

Human Rights Watch (HRW), 2006, Annual report 2005
Internet : <http://hrw.org/english/docs/2005/01/13/burma9826.htm> , accessed 14 June 2005

Human Rights Watch (HRW), 27 May 2005, Burma: Army and Proxies Attack Shan Civilians Thailand Must Admit Civilians Forcibly Displaced
Internet : <http://hrw.org/english/docs/2005/05/27/burma11034.htm> , accessed 14 June 2005

Human Rights Watch (HRW), 2006, Human Rights Overview: Burma
Internet : <http://hrw.org/english/docs/2006/01/18/burma12268.htm> , accessed 20 January 2006

Human Rights Watch (HRW), 20 December 2006, Burma: Landmines Kill, Maim and Starve Civilian
Internet : <http://hrw.org/english/docs/2006/12/20/burma14904.htm> , accessed 20 December 2006

Human Rights Watch (HRW), 5 September 2007, Constitutional Convention Reinforces Military Rule
Internet : <http://hrw.org/english/docs/2007/09/05/burma16798.htm> , accessed 29 January 2008

Human Rights Watch (HRW), October 2002, My Gun Was as Tall as Me
Internet : <http://hrw.org/reports/2002/burma/> , accessed 23 February 2005

Human Rights Watch (HRW), 10 June 2005, "They Came and Destroyed Our Village Again", The Plight of Internally Displaced Persons in Karen State
Internet : <http://hrw.org/reports/2005/burma0605/> , accessed 21 October 2005

Human Rights Watch (HRW), 10 June 2005, "They Came and Destroyed Our Village Again" The Plight of Internally Displaced Persons in Karen State
Internet : <http://hrw.org/reports/2005/burma0605/> , accessed 10 June 2005

Human Rights Watch (HRW), 7 December 2007, Crackdown: Repression of the 2007 Popular Protests in Burma
Internet : <http://hrw.org/reports/2007/burma1207/burma1207webwcover.pdf> , accessed 29 January 2008

Human Rights Watch (HRW), 24 March 2007, Natural Gas Project Threatens Human Rights
Internet : <http://www.hrw.org/english/docs/2007/03/24/burma15557.htm> , accessed 4 February 2008

Human Rights Watch (HRW), September 1998, Unwanted and Unprotected: Burmese Refugees in Thailand

Internet : http://www.hrw.org/hrw/reports98/thai/Thai989-04.htm#P232_61784 , accessed 5 May 1999

Human Rights Watch (HRW), May 2000, "Burmese refugees in Bangladesh: still no durable solution"

Internet : <http://www.hrw.org/reports/2000/burma/> , accessed 22 June 2000

Igboemeka, Adaeze, August 2005, Aid Effectiveness in Burma/Myanmar: Study on Development Agency Perceptions

Internet : <http://www2.dfid.gov.uk/mdg/aid-effectiveness/newsletters/burma-report.pdf> , accessed 8 May 2006

International Committee of the Red Cross (ICRC), 17 June 2005, ICRC annual report 2004

Internet : [http://www.icrc.org/Web/Eng/siteeng0.nsf/htmlall/6D5CPS\\$FILE/icrc_ar_04_myanmar.pdf?OpenElement](http://www.icrc.org/Web/Eng/siteeng0.nsf/htmlall/6D5CPS$FILE/icrc_ar_04_myanmar.pdf?OpenElement) , accessed 23 June 2005

International Committee of the Red Cross (ICRC), 8 April 2003, Myanmar : getting closer to the victims

Internet : <http://www.icrc.org/web/eng/siteeng0.nsf/iwpList368/BD2BDA750DAF1F7EC1256CFC0049E709> accessed 28 October 2003

International Confederation of Free Trade Unions (ICFTU), August 2003, "Growing Up Under The Burmese Dictatorship": The situation facing children after 41 years of military rule in Burma

Internet : http://www.icftu.org/www/PDF/report_burmachildren_2003.pdf , , accessed 15 August 2003

International Crisis Group (ICG), 21 December 2000, How Strong is the Military Regime?

Internet : <http://icg-beta.web.easynet.be/home/index.cfm?id=1529&l=1> , accessed 30 May 2001

International Crisis Group (ICG), 31 January 2008, After the Crackdown

Internet : http://www.crisisgroup.org/library/documents/asia/burma_myanmar/144_burma_myanmar_after_the_crackdown.pdf , accessed 5 February 2008

International Crisis Group (ICG), 8 December 2006, Myanmar: New Threats to Humanitarian Aid

Internet : http://www.crisisgroup.org/library/documents/asia/burma_myanmar/b58_myanmar_new_threats_to_humanitarian_aid.pdf , accessed 27 March 2007

International Crisis Group (ICG), 7 May 2003, Myanmar Backgrounder: Ethnic Minority Politics

Internet : http://www.crisisgroup.org/library/documents/report_archive/A400967_07052003.pdf , accessed 3 February 2008

International Crisis Group (ICG), 26 April 2004, Myanmar: Sanctions, Engagement or Another Way Forward?

Internet : http://www.crisisweb.org/library/documents/asia/burma_myanmar/078_myanmar_sanctions_engagement_or_another_way_web.pdf , accessed 25 June 2004

International Federation of Human Rights Leagues (FIDH)

, 9 March 2004, Written Statement - Commission on Human Rights (E/CN.4/2004/NGO/158)

Internet : [http://www.unhcr.ch/Huridocda/Huridoca.nsf/\(Symbol\)/E.CN.4.2004.NGO.158.En?Opendocument](http://www.unhcr.ch/Huridocda/Huridoca.nsf/(Symbol)/E.CN.4.2004.NGO.158.En?Opendocument) , accessed 8 July 2004

International Herald Tribune (IHT), 25 October 2007, Pro-democracy leader Aung San Suu Kyi meets with Myanmar government official

Internet : <http://www.ihf.com/articles/ap/2007/10/26/asia/AS-GEN-Myanmar-Suu-Kyi.php> , accessed 29 January 2008

International Labour Organisation (ILO), March 2002, Developments concerning the question of the observance by the Government of Myanmar of the Forced Labour Convention, 1930 (No. 29)

Internet : <http://www-ilo-mirror.cornell.edu/public/english/standards/relm/ilc/ilc90/pdf/pr-28p3.pdf> , accessed 18 April 2002

International Labour Organisation (ILO), June 2005, Special Sitting to examine developments concerning the question of the observance by the Government of Myanmar of the Forced Labour Convention, 1930 (No. 29), Committee on the Application of Standards, 93rd Session, Geneva, June 2005, C. App./D.6

Internet : <http://www.ibiblio.org/obl/docs3/ILC2005-93-C%20App-D6-1-En.pdf> , accessed 14 June 2005

International Labour Organisation (ILO), October 2005, A global alliance against forced labour, Report of the Director-General, Global Report under the Follow-up to the ILO Declaration on Fundamental Principles and Rights at Work

Internet : http://www.ilo.org/dyn/declaris/DECLARATIONWEB.DOWNLOAD_BLOB?Var_DocumentID=505 , accessed 16 December 2005

International Labour Organisation (ILO), 16 June 2005, 93rd annual Conference of the ILO concludes its work - Delegates pave the way for urgent action on key labour concerns

Internet : <http://www.ilo.org/public/english/bureau/inf/pr/2005/31.htm> , 9 , accessed 17 June 2005

International Labour Organisation (ILO), 31 March 2006, ILO Governing Body concludes 295th Session - Considers labour situation in Myanmar and Belarus, as well as globalization and migration issues

Internet : <http://www.ilo.org/public/english/bureau/inf/pr/2006/10.htm> , accessed 6 April 2006

International Labour Organisation (ILO), 2 July 1998, Report of the Commission of Inquiry

Internet : <http://www.ilo.org/public/english/standards/relm/gb/docs/gb273/myanmar.htm> , accessed 5 May 1999

International Labour Organisation (ILO), 9 March 2001, Developments concerning the question of the observance by the Government of Myanmar of the Forced Labour Convention, 1930 (No. 29)

Internet : <http://www.ilo.org/public/english/standards/relm/gb/docs/gb280/pdf/gb-6.pdf> , accessed 22 May 2001

International Labour Organisation (ILO), March 2005, Developments concerning the question of the observance by the Government of Myanmar of the Forced Labour Convention, 1930 (No. 29), GB.292/7/1, 292nd Session

Internet : <http://www.ilo.org/public/english/standards/relm/gb/docs/gb292/pdf/gb-7-1.pdf> , accessed 19 June 2005

International Labour Organisation (ILO), 2002, CEACR: Individual Observation concerning Convention No. 29, Forced Labour, 1930 Myanmar (ratification: 1955) Published: 2002

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/DE23711AA9C22438802570B700599A38/\\$file/CEACR+2002.htm](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/DE23711AA9C22438802570B700599A38/$file/CEACR+2002.htm) ,

ISN Security Watch, 27 November 2007, Missed opportunity on Burma

Internet : <http://www.isn.ethz.ch/news/sw/details.cfm?id=18399> , accessed 13 February 2008

Kao Wao News, 19 April 2005, "Farmland seized: Ba's destructive land use policy"

Internet : <http://www.ibiblio.org/obl/docs3/KW87.html> , accessed 14 June 2005

Kao Wao News, 26 January 2005, "A hundred families fled to Mon resettlement camp"

Internet : <http://www.kaowao.org/breakingnews=January.2005.php?#3> , accessed 14 June 2005

Kao Wao News, July 2003, KAO WAO NEWS No. 48

Internet : <http://www.rehmonnya.org/> , accessed 28 October 2003

Kao Wao News, October 2003, KAO WAO NEWS No. 53

Internet : <http://www.rehmonnya.org/> , accessed 28 October 2003

Karen Human Rights Group (KHRG), 5 April 2000, Exiled At Home: Continued Forced Relocations and Displacement in Shan State

Internet : <http://metalab.unc.edu/freeburma/humanrights/khrg/archive/khrg2000/khrg0003.html> , accessed 21 June 2000

Karen Human Rights Group (KHRG), 24 May 1999, Death Squads and Displacement: Systematic Executions, Village Destruction and the Flight of Villagers in Nyaunglebin District

Internet : <http://metalab.unc.edu/freeburma/humanrights/khrg/archive/khrg99/khrg9904.html> , accessed 26 January 2000

Karen Human Rights Group (KHRG), June 2000, "I. Village Destruction and Relocation"

Internet : http://metalab.unc.edu/freeburma/humanrights/khrg/archive/photoreports/2000photos/set2000a/Village_Destruction.html , accessed 21 June 2000

Karen Human Rights Group (KHRG), October 2001, Flight, Hunger and Survival: Repression and Displacement in the Villages of Papun and Nyaunglebin Districts

Internet : <http://www.ibiblio.org/freeburma/humanrights/khrg/archive/khrg2001/khrg0103a.html> , accessed 19 June 2002

Karen Human Rights Group (KHRG), 25 September 2002, Information Update #2002-U5: Operation Than L'Yet: Forced Displacement, Massacres and Forced Labour in Dooplaya District

Internet : <http://www.ibiblio.org/freeburma/humanrights/khrg/archive/khrg2002/khrg02u5.html> , accessed 28 October 2003

Karen Human Rights Group (KHRG), 4 May 2005, Nyaunglebin District: Food supplies destroyed, villagers forcibly displaced, and region-wide forced labour as SPDC forces seek control over civilians

Internet : <http://www.ibiblio.org/freeburma/humanrights/khrg/archive/khrg2005/khrg05f4.html> , accessed 13 June 2005

Karen Human Rights Group (KHRG), 16 June 2003, Information Update #2003-U: Expansion of the Guerrilla Retaliation Units and Food Shortages in Toungoo District of Northern Karen State

Internet : http://www.ibiblio.org/freeburma/humanrights/khrg/archive/updates.html#Update_2003-U1 , accessed 28 October 2003

Karen Human Rights Group (KHRG), September 2004, Enduring Hunger and Repression Food Scarcity, Internal Displacement, and the Continued Use of Forced Labour in Toungoo District
Internet : <http://www.khrg.org/khrg2004/khrg0401a.html> , accessed 14 June 2005

Karen Human Rights Group (KHRG), 19 August 2005, Toungoo district: Civilians displaced by dams, roads, and military control
Internet : <http://www.khrg.org/khrg2005/khrg05f7.html> , accessed 3 April 2006

Karen Human Rights Group (KHRG), 9 December 2005, Nyaunglebin district: SPDC operations along the Shwegyin River, and the villagers' response
Internet : <http://www.khrg.org/khrg2005/khrg05f8.html> , accessed 3 April 2006

Karen Human Rights Group (KHRG), November 2006, Dignity in the Shadow of Oppression: The abuse and agency of Karen women under militarisation
Internet : <http://www.khrg.org/khrg2006/khrg0605.pdf> , accessed 24 November 2006

Karen Human Rights Group (KHRG), 20 September 2006, Hunger Wielded as a Weapon in Thaton District
Internet : <http://www.khrg.org/khrg2006/khrg06b11.pdf> , accessed 24 November 2006

Karen Human Rights Group (KHRG), 20 November 2006, SPDC forces attack rice harvest to force villagers into 'new towns'
Internet : <http://www.khrg.org/khrg2006/khrg06b12.pdf> , accessed 24 November 2006

Karen Human Rights Group (KHRG), 6 October 2006, Papun Update: SPDC attacks on villages continue
Internet : <http://www.khrg.org/khrg2006/khrg06f10.pdf> , accessed 24 November 2006

Karen Human Rights Group (KHRG), 21 December 2006, Oppression by proxy in Thaton District
Internet : <http://www.khrg.org/khrg2006/khrg06f11.pdf> , accessed 27 February 2007

Karen Human Rights Group (KHRG), 26 December 2006, Forced Labour, Extortion, and Festivities: The SPDC and DKBA burden on villagers in Pa'an District
Internet : <http://www.khrg.org/khrg2006/khrg06f12.pdf> , accessed 27 February 2007

Karen Human Rights Group (KHRG), 11 February 2006, Pa'an District: Land confiscation, forced labour and extortion undermining villagers' livelihoods
Internet : <http://www.khrg.org/khrg2006/khrg06f1.html> , accessed 3 April 2006

Karen Human Rights Group (KHRG), 30 April 2006, SPDC Operations in Kler Lweh Htoo (Nyaunglebin) District
Internet : <http://www.khrg.org/khrg2006/khrg06f4.html> , accessed 10 May 2006

Karen Human Rights Group (KHRG), 10 July 2006, Forced Relocation, Restrictions and Abuses in Nyaunglebin District
Internet : <http://www.khrg.org/khrg2006/khrg06f6.pdf> , accessed 24 November 2006

Karen Human Rights Group (KHRG), 11 September 2006, SPDC Attacks on Villages in Nyaunglebin and Papun Districts and the Civilian Response
Internet : <http://www.khrg.org/khrg2006/khrg06f9.html> , accessed 24 November 2006

Karen Human Rights Group (KHRG), 30 May 2007, Provoking Displacement in Toungoo District
Internet : <http://www.khrg.org/khrg2007/khrg07f4.html> , accessed 30 January 2008

Karen Human Rights Group (KHRG), 9 August 2007, Landmines, Killings and Food Destruction: Civilian life in Toungoo District
Internet : <http://www.khrg.org/khrg2007/khrg07f6.html> , accessed 3 February 2008

Karen Human Rights Group (KHRG), 16 October 2007, Forced labour, extortion and the state of education in Dooطلا District
Internet : <http://www.khrg.org/khrg2007/khrg07f8.html> , accessed 3 February 2008

Karen Human Rights Group (KHRG), 11 January 2007, Attacks, killings and increased militarisation in Nyaunglebin District
Internet : <http://www.khrg.org/khrg2008/khrg08f1.html> , accessed 30 January 2008

Karen Rivers Watch, November 2004, Damming at Gunpoint
Internet : <http://www.karenriverwatch.net/Dam-EG.pdf> , accessed 3 February 2008

Karen Teachers Working Group (KTWG), 2003, About KTWG, Karen State Education Information, & Latest Education Report from Karen State Schools
Internet : <http://members.cscms.com/~teaching/> , accessed 28 October 2003

Karen Women's Organization (KWO), February 2007, State of Terror
Internet : http://www.womenofburma.org/Statement&Release/state_of_terror_report.pdf , accessed 29 March 2007

Lahu National Development Organisation, August 2003, Aftershocks Along Burma's Mekong: Reef-blasting and Military-style Development in Eastern Shan State
Internet : <http://www.shanland.org/resources/bookspub/humanrights/UNDERCURRENTS.pdf> , accessed 14 March 2006

Lahu National Development Organisation, April 2002, Unsettling Moves: the Wa forced resettlement program in Eastern Shan State
Internet : <http://www.shanland.org/resources/bookspub/humanrights/wa/> , accessed 14 March 2006

Landmine Monitor, 9 September 2003, Landmine Monitor Report 2003: Toward a Mine-Free World
Internet : <http://www.icbl.org/lm/2003/> , accessed 29 October 2003

Landmine Monitor, November 2004, Landmine Monitor Report 2004
Internet : <http://www.icbl.org/lm/2004/burma> , accessed 23 June 2005

Landmine Monitor, 22 November 2005, Landmine Monitor Report 2005
Internet : <http://www.icbl.org/lm/2005/burma.html> , accessed 6 April 2006

Landmine Monitor, November 2007, Landmine Monitor Report 2007
Internet : <http://www.icbl.org/lm/2007/burma> , accessed 3 February 2008

Medecins Sans Frontieres (MSF), 17 September 2003, Thousands of refugees harassed to return to Myanmar
Internet : <http://www.msf.org/countries/page.cfm?articleid=5020E4A5-0F5A-40D1-A5428D96263EA52C> , accessed 23 October 2003

Medecins Sans Frontieres (MSF), 30 March 2006, Prevented from working, the French section of MSF leaves Myanmar
Internet : <http://www.reliefweb.int/rw/RWB.NSF/db900SID/ACIO-6NDBW6?OpenDocument&rc=3&cc=mmr> , accessed 3 April 2006

Minority Rights Group International (MRG), May 2002, Burma/Myanmar: Time for Change (by Martin Smith)
Internet : <http://www.minorityrights.org/OnlineReports/OnlineReport.asp?ID=20> , accessed 7 April 2003

Minority Rights Group International (MRG), 30 October 2007, Minorities in Burma
Internet : <http://www.minorityrights.org/?lid=3546> , accessed 29 January 2008

Minority Rights Group International (MRG), 17 July 2002, A time for change
Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/BB43E7A181898834C12573DF00729601/\\$file/BurmaRpt\[1\].pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/BB43E7A181898834C12573DF00729601/$file/BurmaRpt[1].pdf) ,

Mizzima News, 24 February 2006, Burma rights situation worsening: Pinheiro
Internet : <http://www.reliefweb.int/rw/RWB.NSF/db900SID/ETOA-6ME93Q?OpenDocument&rc=3&cc=mmr> , accessed 3 April 2006

Mizzima News, 20 December 2005, Myanmar: Fighting continues in Karenni state
Internet : <http://www.reliefweb.int/rw/RWB.NSF/db900SID/KHII-6KF3SQ?OpenDocument&rc=3&cc=mmr> , accessed 3 April 2006

Mizzima News, 13 February 2006, Confusion over Burma's new UN and NGO guidelines
Internet : <http://www.reliefweb.int/rw/RWB.NSF/db900SID/KHII-6LZ3M6?OpenDocument&rc=3&cc=mmr> , accessed 3 April 2006

Naga Peoples Movement for Human Rights (NPMHR) and Naga Students Federation (NSF), 7 June 2001, "A brief report of the Naga Peoples Movement for Human Rights (NPMHR) and Naga Students Federation Relief Team to the Eastern Nagas" (E-mail)

Nancy Hudson-Rodd, Myo Nyunt, Saw Thamain Tun & Sein Htay, 2003, The Impact of the confiscation of Land, Labor, Capital Assets and forced relocation in Burma by the military regime
Internet : http://www.ibiblio.org/obl/docs/land_confiscation-contents.htm , accessed 29 October 2003

Narinjara News, 7 November 2002, Settlements of the Kachin Ceasefire Groups in Western Burma
Internet : <http://www.ibiblio.org/obl/docs/NN2002-11-07.htm> , accessed 30 October 2003

National Coalition Government of the Union of Burma (NCGUB), December 2004, Human Rights Yearbook Burma 2003-2004
Internet : http://www.ibiblio.org/obl/docs/HRDU2003-04/table_of_contents.htm , accessed 14 June 2005

National Coalition Government of the Union of Burma (NCGUB), September 2002, "Internally Displaced People and Forced Relocation" in Human Rights Yearbook, Burma 2001-02
Internet : <http://www.ibiblio.org/obl/docs/yearbooks/13.%20Internally%20Displaced%20People%20and%20Forced%20Relocation.htm> , accessed 27 March 2003

National Coalition Government of the Union of Burma (NCGUB), 15 January 2005, Armed conflict effect on Children
Internet : <http://www.ncgub.net/NCGUB/Armed-Child%20Report%20%2020050115.pdf> , accessed 14 June 2005

National Coalition Government of the Union of Burma (NCGUB), August 2000, Human Rights Yearbook Burma 1999-2000

National Coalition Government of the Union of Burma (NCGUB), July 1999, Human Rights Yearbook 1998-99: Forced Relocation and Internally Displaced Persons

National Health and Education Committee, 2002, Three-Year Education Project (Project 1): July 2002 - June 2005

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/2BF5B598E7E8F848802570B70059997C/\\$file/NCA+Three+year+education+project+ Final .pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/2BF5B598E7E8F848802570B70059997C/$file/NCA+Three+year+education+project+ Final .pdf) ,

National Health and Education Committee, April 2001, Children's Opportunity to Learn in the Ethnic Nationality Areas in Burma

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/52F15F30ADE292B6802570B70059997A/\\$file/Children's+Opportunity+to+Learn+ Eng .pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/52F15F30ADE292B6802570B70059997A/$file/Children's+Opportunity+to+Learn+ Eng .pdf) ,

Open Society Institute, July 2007, The Gathering Storm: Infectious Diseases and Human Rights in Burma

Internet : http://www.soros.org/initiatives/bpsai/articles_publications/publications/storm_20070628/storm_20070709.pdf , accessed 30 October 2007

Permanent Mission of the Union of Myanmar, 30 March 2000, Statement by Ambassador U Mya Than, Leader of the Myanmar Observer Delegation on submission of the report by Mr. Rajsoomer Lallah

Internet : <http://web.archive.org/web/20010305231556/www.hrschool.org/tribunal/activities/other1.htm> , accessed 28 June 2000

Pinheiro, Paulo Sergio, 28 March 2002, Statement by Professor Paulo Sergio Pinheiro, Special Rapporteur on the Situation of Human Rights in Myanmar at the Fifty-Eighth Session of the Commission on Human Rights

Internet : http://www.ibiblio.org/obl/docs/chr2002SRM_Oral_Statement.htm , accessed 11 June 2002

Ratana Tosakul-Boonmathya, 28 August 2002, Rebuilding lives, families, and communities: the Kachins in upper Burma

Internet : http://mail.kku.ac.th/~hsfac/person/dept02/ratana_t.html , accessed 30 October 2003

Refugees International (RI), 16 May 2007, Military Offensive Displacing Thousands of Civilians

Internet : <http://www.refintl.org/content/article/detail/9997/> , accessed 30 January 2008

Refugees International (RI), 10 October 2002, Burma's Internally Displaced: No Options for a Safe Haven

Internet : <http://www.refugeesinternational.org/content/article/detail/824/> , accessed 23 October 2002

Refugees International (RI), 15 March 2003, Forgotten People: The Rohingyas of Burma

Internet : <http://www.refugeesinternational.org/content/article/detail/870/> , accessed 28 October 2003

Refugees International (RI), 2 June 2006, Ending the Waiting Game: Strategies for Responding to Internally Displaced People in Burma

Internet : http://www.refugeesinternational.org/files/8705_file_EndingtheWaitingGame.pdf , accessed 2 June 2006

ReliefWeb, 28 November 2006, The IRC opens landmark legal center for Burmese refugees
Internet : <http://ocha-gwapps1.unog.ch/rw/rwb.nsf/db900sid/LTIO-6VZR6R?OpenDocument> ,
accessed 13 February 2008

Rogers, Benedict, 17 August 2004, Burma: Continuing large-scale religious freedom violations
Internet : http://forum18.org/Archive.php?article_id=538 , accessed 14 June 2005

Salween Watch, August 2003, Salween Watch Update - Volume 14
Internet : <http://www.ibiblio.org/obl/docs/SW14.htm> , accessed 30 October 2003

Science Daily, 4 October 2007, Satellite Images Corroborate Eyewitness Accounts Of Human Rights Abuses In Burma
Internet : <http://www.sciencedaily.com/releases/2007/09/070928135616.htm> , accessed 4 October 2007

Security Council Report, 15 December 2005, Myanmar: Update Report no. 4
Internet : http://www.securitycouncilreport.org/site/c.gIKWLeMTIsG/b.1304015/k.247A/UPDATE_REPORT_NO_4brMYANMARBR15_DECEMBER_2005.htm , accessed 3 February 2008

Shan Relief and Development Committee (SRDC), 18 January 2006, Deserted fields: The destruction of agriculture in Mong Nai Township, Shan State
Internet : http://www.shanland.org/articles/general/2006/Deserted_Fields.pdf , accessed 25 April 2006

Shwe Gas Bulletin, 2006, Than Shwe's gas powered Regime to look now on China
Internet : <http://www.ibiblio.org/obl/docs3/SGB01-09-ocr.pdf> , accessed 3 February 2008

South, Ashley, 26 February 2007, Burma: The Changing Nature of Displacement Crises
Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/81660F299DDACFAEC125728E004E6C31/\\$file/WP39+20Burma+20AS.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/81660F299DDACFAEC125728E004E6C31/$file/WP39+20Burma+20AS.pdf) ,

Thailand Burma Border Consortium (TBBC), 31 December 2005, Programme Report July-December 2005
Internet : http://www.ibiblio.org/obl/docs3/TBBCreport_Jul-Dec2005.pdf , accessed 7 April 2006

Thailand Burma Border Consortium (TBBC), October 2004, Internal Displacement and Vulnerability in Eastern Burma
Internet : <http://www.ibiblio.org/obl/docs/TBBC-IDPs2004-full> , accessed 15 November 2004

Thailand Burma Border Consortium (TBBC), August 2006, Over 5,000 civilians from 22 villages targeted as combatants by SPDC military operations in Papun Township, Karen State
Internet : <http://www.reliefweb.int/rw/rwb.nsf/db900sid/TKAE-6U494K?OpenDocument> , accessed 14 September 2006

Thailand Burma Border Consortium (TBBC), 26 October 2006, Internal Displacement in Eastern Burma - 2006 Survey
Internet : <http://www.tbtc.org/idps/report-2006-idp-english.pdf> , accessed 26 October 2006

Thailand Burma Border Consortium (TBBC), 19 October 2007, Internal Displacement in Eastern Burma: 2007 Survey
Internet : <http://www.tbtc.org/idps/report-2007-idp-english.pdf> , accessed 30 October 2007

Thailand Burma Border Consortium (TBBC), October 2005, Internal displacement and protection in Eastern Burma

Internet : [http://www.internal-displacement.org/8025708F004CE90B/\(httpDocuments\)/92B7CEE72B7456D5802570B700599E74/\\$file/TBBC+Internal+Displacement+and+Protection+in+Eastern+Burma+2005.pdf](http://www.internal-displacement.org/8025708F004CE90B/(httpDocuments)/92B7CEE72B7456D5802570B700599E74/$file/TBBC+Internal+Displacement+and+Protection+in+Eastern+Burma+2005.pdf) ,

Thailand Burma Border Consortium (TBBC), May 2005, Relief programme: July to December 2004, including revised funding appeal for 2005

The Christian Post, 12 January 2006, Over 1,200 Displaced by Burma Army; Freezing Climates Draw Concerns

Internet : <http://www.christianpost.com/article/asia/879/section/over.1200.displaced.by.burma.army.freezing.climates.draw.concerns/1.htm> , accessed 20 January 2006

The Irrawaddy, 30 November 2005, Burmese troops shell and burn five villages

Internet : <http://www.reliefweb.int/rw/RWB.NSF/db900SID/RMOI-6JN3N3?OpenDocument&rc=3&cc=mmr> , accessed 3 April 2006

The Karen Women's Organization (KWO), April 2004, Shattering silences: Karen Women speak out about the Burmese military regime's use of rape as a strategy of war in the Karen State

Internet : http://womenofburma.org/Report/Shattering_Silences.pdf , accessed 15 June 2004

The Shan Human Rights Foundation (SHRF), August 2007, Shan Human Rights Foundation August 2007 Report

Internet : <http://metallica.nidvelven-it.no:36080/shan/humanrights/monthlyreport/2007/shrf-monthly-report-august-2007/> , accessed 30 January 2008

The Shan Human Rights Foundation (SHRF), 2007, Shan Human Rights Foundation January 2007 Report

Internet : <http://metallica.nidvelven-it.no:36080/shan/humanrights/monthlyreport/2007/shrf-monthly-report-january-2007/> , accessed 30 January 2008

The Shan Human Rights Foundation (SHRF), 7 March 2006, New uprooting in eastern Shan State

Internet : <http://www.shanland.org/articles/humanrights/2006/News-08070306> , accessed 6 April 2006

The Shan Human Rights Foundation (SHRF), June 2005, Monthly reports by Shan Human Rights Foundation

Internet : <http://www.shanland.org/articles/humanrights/monthlyreport/2005/SHRF-MONTHLY-REPORT/view?> , accessed 21 June 2005

The Shan Human Rights Foundation (SHRF), 2003, Charting the Exodus From Shan State

Internet : <http://www.shanland.org/resources/bookspub/humanrights/Chartingtheexodus.pdf/view?searchterm=Charting%20the%20Exodus%20From%20Shan%20Statef> , accessed 14 March 2006

The Shan Human Rights Foundation (SHRF), April 1999, A Report on the Conditions of Internally Displaced Persons in Shan State of Burma

The Shan Human Rights Foundation (SHRF) & The Shan Women's Action Network (SWAN), May 2002, License to Rape: The Burmese military regime's use of sexual violence in the ongoing war in Shan State

Internet : <http://www.shanland.org/resources/bookspub/humanrights/LtoR/index.html/view?searchterm=License%20to%20Rape:%20The%20Burmese%20military%20regime's%20use%20of%20sexual%20violence%20in%20the%20ongoing%20war%20in%20Shan%20State> , accessed 14 March 2006

The Women's League of Chinland (WLC), 27 March 2007, Unsafe State - State-sanctioned sexual violence against Chin women in Burma
Internet : <http://www.ibiblio.org/obl/docs4/UnsafeState.pdf> , accessed 29 March 2007

UN News Service, 28 October 2005, UN expert says human rights abuses in Myanmar not being addressed
Internet : <http://www.reliefweb.int/rw/rwb.nsf/db900SID/RMOI-6HP4U5?OpenDocument&cc=mmr&rc=3> , accessed 3 April 2006

United Nations Commission on Human Rights (CHR), 11 April 2005, Situation of human rights in Myanmar - Human Rights Resolution 2005/10, E/CN.4/2005/L.29
Internet : http://ap.ohchr.org/documents/E/CHR/resolutions/E-CN_4-RES-2005-10.doc , accessed 14 June 2005

United Nations Commission on Human Rights (CHR), 7 March 2005, Report of the Secretary-General on the situation of human rights in Myanmar, E/CN.4/2005/130
Internet : <http://www.ohchr.org/english/bodies/chr/docs/61chr/E.CN.4.2005.130.doc> , accessed 14 June 2005

United Nations Commission on Human Rights (CHR), 2 December 2004, Situation of human rights in Myanmar, Report of the Special Rapporteur, Paulo Sérgio Pinheiro, E/CN.4/2005/36
Internet : <http://www.ohchr.org/english/bodies/chr/docs/61chr/E.CN.4.2005.36.pdf> , accessed 14 June 2005

United Nations Commission on Human Rights (CHR), 27 February 2006, The situation of human rights in Myanmar - Report of the Secretary-General
Internet : <http://www.ohchr.org/english/bodies/chr/docs/62chr/E.CN.4.2006.117.pdf> , accessed 6 April 2006

United Nations Commission on Human Rights (CHR), 22 January 1999, Situation of human rights in Myanmar
Internet : [http://www.unhchr.ch/Huridocda/Huridoca.nsf/\(Symbol\)/E.CN.4.1999.35.En?OpenDocument](http://www.unhchr.ch/Huridocda/Huridoca.nsf/(Symbol)/E.CN.4.1999.35.En?OpenDocument) , accessed 9 February 2000

United Nations Commission on Human Rights (CHR), 6 February 2001, Written statement submitted by the Asian Legal Resource Centre, a non-governmental organization in general consultative status (E/CN.4/2001/NGO/108)
Internet : [http://www.unhchr.ch/huridocda/huridoca.nsf/\(Symbol\)/E.CN.4.2001.NGO.108.En?Opendocument](http://www.unhchr.ch/huridocda/huridoca.nsf/(Symbol)/E.CN.4.2001.NGO.108.En?Opendocument) , accessed 30 May 2001

United Nations Commission on Human Rights (CHR), 10 January 2002, Report on the situation of human rights in Myanmar, prepared by Mr. Paulo Sergio Pinheiro, Special Rapporteur of the Commission on Human Rights, in accordance with Commission resolution 2001/15 (E/CN.4/2002/45)
Internet : [http://www.unhchr.ch/Huridocda/Huridoca.nsf/\(Symbol\)/E.CN.4.2002.45.en?OpenDocument](http://www.unhchr.ch/Huridocda/Huridoca.nsf/(Symbol)/E.CN.4.2002.45.en?OpenDocument) , t , accessed 17 April 2002

United Nations Commission on Human Rights (CHR), 5 January 2004, Question of the Violation Of Human Rights and Fundamental Freedoms in any Part of the World: Situation of human rights in Myanmar (E/CN.4/2004/33)

Internet :
[http://www.unhchr.ch/Huridocda/Huridoca.nsf/\(Symbol\)/E.CN.4.2004.33.en?OpenDocument](http://www.unhchr.ch/Huridocda/Huridoca.nsf/(Symbol)/E.CN.4.2004.33.en?OpenDocument) ,
accessed 30 March 2004

United Nations General Assembly (UN GA), 12 February 2007, Report of the Special Rapporteur on the situation of human rights in Myanmar (A/HRC/4/14)

Internet :
<http://daccessdds.un.org/doc/UNDOC/GEN/G07/107/31/PDF/G0710731.pdf?OpenElement> ,
accessed 26 March 2007

United Nations General Assembly (UN GA), 17 March 2005, Resolution on situation of human rights in Myanmar (A/RES/59/263)

Internet :
<http://daccessdds.un.org/doc/UNDOC/GEN/N04/492/04/PDF/N0449204.pdf?OpenElement> ,
accessed 20 June 2005

United Nations General Assembly (UN GA), 5 August 2003, Interim report of the Special Rapporteur of the Commission on Human Rights on the situation of human rights in Myanmar (A/58/28/219)

Internet : <http://ods-dds-ny.un.org/doc/UNDOC/GEN/N03/459/83/PDF/N0345983.pdf?OpenElement> , accessed 14 October 2003

United Nations General Assembly (UN GA), 2 November 2005, Resolution on situation of human rights in Myanmar (A/C.3/60/L.53)

Internet : <http://www.ibiblio.org/obl/docs3/GA2005-res.pdf> , accessed 8 May 2006

United Nations General Assembly (UN GA), 12 August 2005, Interim report of the Special Rapporteur of the Commission on Human Rights on the situation of human rights in Myanmar (A/60/221)

Internet : <http://www.securitycouncilreport.org/atf/cf/{65BFCF9B-6D27-4E9C-8CD3-CF6E4FF96FF9}/Myan%20A%2060%20221.pdf> , accessed 20 December 2005

United Nations General Assembly (UN GA), 4 October 1999, Interim report on the situation of human rights in Myanmar prepared by the Special Rapporteur of the Commission on Human Rights in accordance with Economic and Social Council decision 1999/231 of 27 July 1999, A/54/440

Internet : <http://www.unhchr.ch/huridocda/huridoca.nsf/Documents?OpenFrameset> , accessed 9 February 2000

United Nations High Commissioner for Refugees (UNHCR), 12 March 2004, Myanmar: UNHCR reached agreement

Internet : <http://www.unhcr.org/cgi-bin/texis/vtx/print?tbl=NEWS&id=4051bd477> , accessed 9 March 2006

United Nations High Commissioner for Refugees (UNHCR), 2007, Myanmar: Country Operations Plan 2007

Internet : <http://www.unhcr.org/cgi-bin/texis/vtx/refworld/rwmain?docid=45221d702> , accessed 3 February 2008

United Nations Security Council (UN SC), 11 October 2007, Statement by President of the Security Council

Internet :
<http://daccessdds.un.org/doc/UNDOC/GEN/N07/538/30/PDF/N0753830.pdf?OpenElement> ,
accessed 13 February 2008

U.S. Committee for Refugees (USCR), June 2004, World Refugee Survey 2004: Burma
Internet : <http://www.refugees.org/countryreports.aspx?area=investigate&subm=19&ssm=29&cid=192> ,
accessed 2 June 2004

U.S. Committee for Refugees (USCR), April 2000, No Way In, No Way Out: Internal
Displacement in Burma

U.S. Department of State (U.S. DOS), 12 January 2007, Security Council resolution fails due to
jurisdictional dispute, U.S. envoy says
Internet : <http://www.reliefweb.int/rw/RWB.NSF/db900SID/STED-6XG7K7?OpenDocument&rc=3&cc=mmr> , accessed 28 February 2007

U.S. Department of State (U.S. DOS), 16 October 2007, Burma: Democratic Aspirations
Internet : <http://www.state.gov/documents/organization/93816.pdf> , accessed 29 January 2008

U.S. Department of State (U.S. DOS), 4 March 2002, Country Reports on Human Rights
Practices Released by the Bureau of Democracy, Human Rights, and Labor, 2001: Burma
Internet : <http://www.state.gov/g/drl/rls/hrrpt/2001/eap/8260.htm> , accessed 17 April 2002

U.S. Department of State (U.S. DOS), 31 March 2003, Country Reports on Human Rights
Practices, 2003: Burma
Internet : <http://www.state.gov/g/drl/rls/hrrpt/2002/18237.htm> , accessed 11 November 2003

U.S. Department of State (U.S. DOS), February 2004, Country Reports on Human Rights
Practices
Internet : <http://www.state.gov/g/drl/rls/hrrpt/2003/27765.htm> , accessed 2 July 2004

U.S. Department of State (U.S. DOS), 6 March 2007, Country Reports on Human Rights
Practices 2006
Internet : <http://www.state.gov/g/drl/rls/hrrpt/2006/78768.htm> , accessed 7 March 2007

U.S. Department of State (U.S. DOS), 14 September 2007, International Religious Freedom
Report 2007
Internet : <http://www.state.gov/g/drl/rls/irf/2007/90131.htm> , accessed 5 November 2007

U.S. Department of State (U.S. DOS), 25 February 2000, 1999 Country Reports on Human
Rights Practices Released by the Bureau of Democracy, Human Rights, and Labor: Burma
Internet : http://www.state.gov/www/global/human_rights/1999_hrp_report/burma.html , accessed
23 June 2000

Voice of America (VOA), 26 March 2006, Malaysian FM: Burma Trip Was Success Despite Not
Meeting Suu Kyi
Internet : <http://www.voanews.com/burmese/2006-03-26-voa1.cfm> , accessed 3 April 2006

Women and Child Rights Project, September 2004, Socio-economic conditions of Mon IDPs in
southern Burma
Internet : http://www.rehmonnya.org/allwcrp_detail.php?id=30 , accessed 22 June 2005